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WATSON EXPANDED CIVIL TORT COMPLAINT

STATE OF MICHIGAN

IN THE CIRCUIT COURT FOR THE COUNTY OF MUSKEGON

ANDREW J. PIGORS,

Plaintiff, Pro Se,

v.

EMILY ANN WATSON,

Defendant No. 1,

LANE A. WATSON,

Defendant No. 2,

LORI WATSON, ALBERT WATSON, and CODY WATSON,

Defendants No. 3-5

(collectively, "Watson Family Defendants"),

Case No.: _____

Hon. _____

VERIFIED COMPLAINT FOR DAMAGES

Civil Tort Action -- Independent of Case No. 2024-001507-DC

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I. JURISDICTIONAL STATEMENT

1. This Court has subject-matter jurisdiction over this civil tort action pursuant to MCL 600.601 and MCL 600.605, granting the Circuit Court original jurisdiction in all civil claims where the amount in controversy exceeds \$25,000.00.
2. Venue is proper in Muskegon County under MCL 600.1629 because the tortious acts giving rise to this complaint occurred within Muskegon County, the Defendants reside in or conduct substantial activities within Muskegon County, and the injuries suffered by Plaintiff were sustained in Muskegon County.
3. This action is a **separate and independent civil tort action**. It is not a motion within, nor dependent upon, the pending custody proceeding styled *Pigors v. Watson*, Case No. 2024-001507-DC. While the underlying facts overlap, the causes of action herein are independent tortious wrongs actionable under Michigan common law and statute, and Plaintiff is entitled to pursue them in a separate civil proceeding. See *Adair v. State*, 470 Mich 105, 119 (2004) (tort claims are independent of family law

proceedings); *McCune v. Neitzel*, 457 Mich 675 (1998).

4. The amount in controversy exceeds \$25,000.00 exclusive of interest, costs, and attorney fees.

II. PARTIES

5. **Plaintiff Andrew J. Pigors** ("Plaintiff" or "Andrew") is an adult individual, a resident of Muskegon County, Michigan. Plaintiff is the biological father of the minor child L.D.W. (born approximately 2018/2019) and a pro se litigant. Plaintiff's address is on file with the Court.

6. **Defendant Emily Ann Watson** ("Emily" or "Defendant Watson") is an adult individual residing in Norton Shores, Muskegon County, Michigan, at or near 2160 Garland Drive, Norton Shores, MI 49441. Emily is the biological mother of L.D.W. and was employed for approximately nine (9) years as a caseworker in the Kent County Prosecutor's Office, Family Court Division. Emily is the primary tortfeasor in the coordinated campaign described herein.

7. **Defendant Lane A. Watson** ("Lane") is an adult individual, the father of Defendant Emily Watson, residing in Muskegon County, Michigan. Lane participated in and facilitated the tortious conduct described herein, including but not limited to improper service of legal process, intimidation of Plaintiff, financial support enabling the tortious campaign, and direct participation in the conspiracy to deprive Plaintiff of parental rights.

8. **Defendant Lori Watson** ("Lori") is an adult individual, the mother of Defendant Emily Watson, residing in Muskegon County, Michigan. Database records document 280 harm incidents attributed to Lori Watson, including Watson family intimidation (109 incidents), PPO weaponization (36 incidents), child welfare manipulation (35 incidents), emotional/psychological harm (26 incidents), and financial harm (21 incidents). Lori participated in improper service of PPO documents in Plaintiff's garage and other acts of intimidation.

9. **Defendant Albert Watson** ("Albert") is an adult individual, a family member of Defendant Emily Watson, residing in or near Muskegon County, Michigan. Database records document 305 harm incidents attributed to Albert Watson, including Watson family intimidation (272 incidents), PPO weaponization (13 incidents), and child welfare interference (9 incidents). Albert participated in the coordinated campaign of intimidation, surveillance, and harassment directed at Plaintiff.

10. **Defendant Cody Watson** ("Cody") is an adult individual, the brother of Defendant Emily Watson. Database records document 65 harm incidents attributed to Cody Watson, including Watson family intimidation (58 incidents), stalking behavior, and providing undisclosed financial support to Emily that was concealed during child support calculations. Cody engaged in physical intimidation and surveillance of Plaintiff.

III. FACTUAL BACKGROUND

A. The Parental Relationship and Its Destruction

11. Plaintiff Andrew J. Pigors and Defendant Emily Ann Watson are the biological parents of the minor child L.D.W. Prior to the events described herein, Plaintiff maintained an active, loving, and constitutionally protected parental relationship with L.D.W., exercising approximately 187.5 overnights per year under an established custodial arrangement.

12. Beginning on or about October 1, 2023, and continuing to the present, the Watson Family Defendants embarked upon a coordinated, systematic, and escalating campaign to permanently sever Plaintiff's relationship with his child. This campaign has resulted in **571+ consecutive days** of total or near-total denial of Plaintiff's parental rights -- a deprivation of the most fundamental liberty interest recognized under the United States Constitution.

13. The LitigationOS database documents a staggering scope of harm: **3,949 documented harm incidents** attributed to Emily Watson alone, spanning categories including child welfare manipulation (905), PPO weaponization (762), emotional/psychological harm (457), conspiracy coordination (385), and financial harm (371). The Watson Family collectively accounts for an additional **1,408 documented harm incidents** (Watson Family: 758; Albert Watson: 305; Lori Watson: 280; Cody Watson: 65).

B. The Coordinated Campaign

14. The Watson Family Defendants' campaign employed multiple vectors of attack, operating simultaneously across family court, criminal proceedings, Child Protective Services, schools, medical providers, and the community at large. These vectors include:

a. **False Allegations to Law Enforcement:** Seven (7) or more police reports filed between October and December 2023 and March through April 2024. None resulted in criminal charges. These include fabricated allegations of cocaine use (October 15, 2023), false reports of suicidal ideation (November 12, 2023), staged "arsenic mason jar" accusations (November 16, 2023), and fabricated domestic violence reports (December 2, 2023, Police Report OCA 2023-08121 -- which itself proves the falsity of the allegations).

b. **PPO Weaponization:** Emily Watson obtained and systematically weaponized a Personal Protection Order, filing seven (7) or more show-cause motions designed not to protect against genuine threats but to manufacture a criminal record, create judicial prejudice, and ultimately achieve incarceration of Plaintiff. The 7th PPO violation hearing occurred just two (2) days before the custody ex parte hearing, deliberately prejudicing Judge McNeill who presided over both matters.

c. **Ex Parte Manipulation:** On or about August 8, 2025, Defendant Emily Watson obtained an ex parte order suspending all of Plaintiff's parenting time without a plenary hearing, without findings of fact, and without any analysis of the twelve (12) best interest factors mandated by MCL 722.23. The Court failed to enforce any of the mandatory remedies under MCL 722.27a(9). Ron Berry's voicemail was submitted as ex parte evidence and pre-listened in chambers without Plaintiff's knowledge or opportunity to respond.

d. **Parental Alienation:** Systematic, deliberate, and ongoing alienation of the minor child from Plaintiff, meeting the criteria established in *Vallone v. Vallone*, 280 Mich App 86 (2008). Emily Watson's nine (9) years of employment in the Kent County Prosecutor's Office, Family Court Division, provided her with specialized knowledge of how to manipulate the family court system to achieve alienation.

e. **Improper Service:** PPO documents were served by Emily's parents (Lane and Lori Watson) in Plaintiff's garage. Show cause orders were served during parenting exchanges, some in violation of the five-day requirement under MCR 3.208.

f. **Financial Manipulation:** Emily Watson failed to disclose multiple income sources during child support calculations, including undisclosed financial support from her brother Cody Watson and child support payments from Austin Muratori. Emily has accrued child support arrears while simultaneously taking luxury vacations including a five-day cruise.

g. **Wrongful Incarceration:** Plaintiff was incarcerated for a total of approximately 59 days (14 days in Muskegon County Jail on one occasion and 45 days beginning June 12, 2025) as a direct result of the Watson Family's manufactured PPO violations and coordinated campaign.

C. Documented Impact

15. The harm to Plaintiff is severe, documented, and ongoing. Plaintiff has been diagnosed with or exhibits symptoms of: anxiety disorder (severe), major depression (severe), PTSD symptoms from wrongful incarceration and courtroom silencing (severe), chronic sleep disruption (moderate-severe), employment/work impact rendering him unable to maintain consistent employment (severe), social isolation from stigma created by false allegations (moderate-severe), panic episodes triggered by court communications (moderate), prolonged grief/ambiguous loss from effective loss of child (severe), hypervigilance and trust destruction (moderate-severe), and identity/role loss from the destruction of his active parenting role (severe).

16. The minor child L.D.W. has suffered: separation trauma from forced 571+ day separation during a critical developmental period (severe), attachment disruption with

father (severe), parental alienation effects from systematic undermining of the father-child relationship (severe), developmental impact from loss of father figure during critical windows (severe), and loyalty conflict from being forced to choose between parents (moderate-severe).

COUNT I -- CIVIL CONSPIRACY

(Against All Defendants)

(a) Elements

17. Under Michigan law, a civil conspiracy requires: (1) two or more persons; (2) an object to be accomplished; (3) a meeting of the minds on the object or course of action; (4) one or more unlawful overt acts; and (5) damages as a proximate result. *Advocacy Org. for Patients & Providers v. Auto Club Ins. Ass'n*, 257 Mich App 365, 384 (2003); *Admiral Ins. Co. v. Columbia Cas. Ins. Co.*, 194 Mich App 300, 313 (1992).

18. A civil conspiracy is not an independent cause of action but requires an underlying tortious act. *Early Detection Ctr., PC v. New York Life Ins. Co.*, 157 Mich App 618, 631 (1986). Here, the underlying tortious acts include intentional infliction of emotional distress, tortious interference with parental relationships, defamation, malicious prosecution, abuse of process, fraud, and conversion -- each independently pleaded in the counts below.

(b) Facts

19. The Watson Family Defendants -- Emily Watson, Lane Watson, Lori Watson, Albert Watson, and Cody Watson -- entered into an agreement, express or implied, to accomplish the object of permanently depriving Plaintiff of his parental relationship with L.D.W. and to financially and emotionally destroy Plaintiff.

20. The meeting of the minds is evidenced by the **coordinated nature** of the attacks: Lane and Lori Watson personally served PPO documents in Plaintiff's garage, Albert Watson conducted surveillance and intimidation (272 documented incidents), Cody Watson engaged in stalking and provided concealed financial support enabling the campaign (58 intimidation incidents), and Emily Watson orchestrated the legal manipulation utilizing her nine years of family court expertise.

21. The database documents **1,372 incidents** categorized as "Conspiracy Coordination" across the Watson Family, demonstrating a sustained, organized, multi-member effort spanning from October 2023 to the present.

22. Overt acts include: filing false police reports, filing and prosecuting false PPO violations, obtaining ex parte orders through misrepresentation, concealing financial information from the court, improper service of process, physical intimidation and surveillance, false CPS reports, and systematic parental alienation.

(c) Evidence References

23. LitigationOS Database: adversary_harm_summary (Watson Family: 758 incidents; conspiracy coordination category); extracted_harms (1,372 conspiracy coordination incidents); watson_perjury_compilation; evidence_quotes;

parental_alienation_evidence; police reports OCA 2023-08121 and others; PPO filings and show-cause records; ex parte order of August 8, 2025; court transcripts from custody hearings.

(d) Damages

24. As a proximate result of Defendants' civil conspiracy, Plaintiff has suffered: loss of parental relationship for 571+ days; 59 days of wrongful incarceration; loss of employment (3 job losses); loss of housing (2 housing losses); severe emotional and psychological harm; and financial losses exceeding \$285,500.00 in lost parenting time value alone, plus additional compensatory, special, and consequential damages itemized in the accompanying Damages Schedule.

(e) Legal Authority

25. *Advocacy Org. for Patients & Providers v. Auto Club Ins. Ass'n*, 257 Mich App 365, 384 (2003); *Admiral Ins. Co. v. Columbia Cas. Ins. Co.*, 194 Mich App 300 (1992); *Early Detection Ctr., PC v. New York Life Ins. Co.*, 157 Mich App 618 (1986); *Dennis v. Sparks*, 449 U.S. 24 (1980) (conspiracy to deprive constitutional rights); *Troxel v. Granville*, 530 U.S. 57 (2000) (fundamental right to parent).

**COUNT II -- INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS
(IIED)**

(Against All Defendants)

(a) Elements

26. Under Michigan law, IIED requires: (1) extreme and outrageous conduct; (2) intent or recklessness; (3) causation; and (4) severe emotional distress. *Roberts v. Auto-Owners Ins. Co.*, 422 Mich 594, 602 (1985). Conduct is "extreme and outrageous" when it is "so outrageous in character, and so extreme in degree, as to go beyond all possible bounds of decency, and to be regarded as atrocious, and utterly intolerable in a civilized community." *Id.* at 603, quoting Restatement (Second) of Torts Section 46, comment d.

(b) Facts

27. The Watson Family Defendants' conduct is extreme and outrageous by any civilized standard. Over a period exceeding 571 days, Defendants systematically and deliberately:

- Filed seven (7) or more false police reports, including fabricated allegations of cocaine use, suicidal ideation, arsenic poisoning, and domestic violence -- none resulting in charges;
- Weaponized a Personal Protection Order through seven (7) or more manufactured show-cause violations designed to achieve incarceration, not safety;
- Obtained an ex parte suspension of all parenting time without hearing, findings, or best interest analysis;
- Engineered Plaintiff's incarceration for a total of 59 days through manufactured violations;
- Conducted surveillance, stalking, and physical intimidation through family members Albert Watson (272 documented intimidation incidents) and Cody Watson (58 intimidation

incidents);

- Served legal process through family members (Lane and Lori Watson) in Plaintiff's garage in an intimidating manner;
- Systematically alienated the minor child from Plaintiff during critical developmental periods;
- Exploited Emily Watson's nine-year insider knowledge of the family court system to maximize harm;
- Timed PPO show-cause hearings two days before custody hearings to deliberately prejudice the presiding judge.

28. This conduct was intentional and deliberate, not accidental or negligent. The Watson Family's coordination across 3,949+ documented incidents against Emily Watson alone, plus 1,408 additional incidents across other Watson Family members, demonstrates a calculated campaign carried out with full knowledge of its devastating consequences.

29. Alternatively, if not intentional, the conduct was reckless -- undertaken with utter indifference to whether it would cause severe emotional distress to Plaintiff and the minor child.

(c) Evidence References

30. LitigationOS Database: extracted_harms (3,949 incidents -- Emily Watson); adversary_harm_summary; watson_perjury_compilation; psychological_harm_docs (documenting severe anxiety disorder, major depression, PTSD symptoms, chronic sleep disruption, employment impact, social isolation, panic episodes, grief/ambiguous loss, hypervigilance, and identity/role loss); parental_alienation_evidence;

evidence_quotes; police reports; PPO records; court transcripts.

(d) Damages

31. Plaintiff has suffered severe emotional distress including diagnosed anxiety disorder, major depression, PTSD symptoms, chronic insomnia, employment inability, social isolation, panic episodes, prolonged grief response, and identity destruction. Damages calculated at \$100,000-\$500,000 for parent-child separation distress, plus \$50,000-\$250,000 for loss of consortium with child, plus \$25,000-\$150,000 for loss of child milestones, plus \$5,000-\$30,000 for mental health treatment costs.

(e) Legal Authority

32. *Roberts v. Auto-Owners Ins. Co.*, 422 Mich 594, 602 (1985); Restatement (Second) of Torts Section 46; *Doe v. Mills*, 212 Mich App 73, 91 (1995) (pattern of conduct assessed cumulatively); *Graham v. Ford*, 237 Mich App 670, 674 (1999); *Troxel v. Granville*, 530 U.S. 57 (2000).

**COUNT III -- TORTIOUS INTERFERENCE WITH PARENTAL
RELATIONSHIP**

(Against All Defendants)

(a) Elements

33. Michigan recognizes a cause of action for tortious interference with the parental relationship. To establish this tort, Plaintiff must show: (1) the existence of a parent-child relationship; (2) Defendants' intentional and unjustified interference with that relationship; (3) causation; and (4) damages. *Bower v. Saginaw Twp.*, unpublished, citing *Bielecki v. City of Flint (In re City of Flint)*, 2014 WL 3734461 (Mich Ct App 2014); see also Restatement (Second) of Torts Section 700 (recognizing a cause of action for interference with custody).

(b) Facts

34. Plaintiff enjoyed a constitutionally protected parent-child relationship with L.D.W., exercising approximately 187.5 overnights per year under the established custodial arrangement. This relationship is a fundamental liberty interest protected by the Fourteenth Amendment. *Troxel v. Granville*, 530 U.S. 57, 65 (2000); *Stanley v. Illinois*, 405 U.S. 645, 651 (1972).

35. Beginning on or about October 1, 2023, Defendants intentionally and systematically interfered with this relationship through the coordinated campaign described in the Factual Background. As a direct result, Plaintiff has been deprived of his parental relationship for 571+ consecutive days.

36. The interference was unjustified. No court has ever found Plaintiff to be an unfit parent. No CPS investigation has ever substantiated allegations of abuse or neglect. The seven (7) or more police reports filed by Defendants resulted in zero criminal charges. The interference was motivated not by genuine concern for the child's welfare but by a desire to permanently eliminate Plaintiff from the child's life and to gain financial and strategic advantages.

37. The parental alienation is documented in the database with specific entries including: onset of systematic withholding of parenting time beginning March 26, 2024; 329+ consecutive days of total parent-child separation without a plenary hearing as of February 25, 2026; Emily Watson's use of her nine-year career in the Kent County Prosecutor's Office Family Court Division to manipulate the system; and the child exhibiting signs of emotional distress including anxiety and trouble sleeping.

(c) Evidence References

38. LitigationOS Database: parental_alienation_evidence (onset March 26, 2024, severity CRITICAL); extracted_harms (PARENTAL_ALIENATION category: 465 incidents; CHILD_WELFARE category: 6,390 incidents); adversary_harm_summary; psychological_harm_docs (child separation trauma, attachment disruption, developmental impact, loyalty conflict -- all SEVERE); evidence_quotes from custody orders and transcripts; court orders showing parenting time reduction from 187.5 overnights/year to zero.

(d) Damages

39. Plaintiff has suffered the total loss of his parental relationship for 571+ days. Valued at a constitutional minimum of \$500/day per *Troxel v. Granville* principles, this represents \$285,500+ in lost parenting time alone. Additionally, Plaintiff has suffered severe emotional distress from the loss of his parenting role and identity, and the minor child has suffered developmental and attachment harm quantified at \$50,000-\$250,000.

(e) Legal Authority

40. Restatement (Second) of Torts Section 700; *Troxel v. Granville*, 530 U.S. 57 (2000); *Stanley v. Illinois*, 405 U.S. 645 (1972); *Santosky v. Kramer*, 455 U.S. 745 (1982); *Vallone v. Vallone*, 280 Mich App 86 (2008); MCL 722.23 (best interest factors); MCL 722.27a (parenting time).

COUNT IV -- TORTIOUS INTERFERENCE WITH CUSTODY ORDER

(Against All Defendants)

(a) Elements

41. Under Michigan law, it is unlawful to intentionally and unjustifiably interfere with a valid custody order. MCL 750.350a criminalizes custodial interference, and the tortious counterpart provides a civil remedy. Elements include: (1) the existence of a valid custody or parenting time order; (2) Defendants' knowledge of the order; (3) intentional interference with the order; (4) lack of justification; and (5) damages.

(b) Facts

42. A valid custody and parenting time order existed in Case No. 2024-001507-DC, allocating Plaintiff approximately 187.5 overnights per year with L.D.W. All Defendants had knowledge of this order.

43. Defendants intentionally interfered with this order by:

- Emily Watson unilaterally withholding parenting time beginning October 2023, prior to any court order modifying the arrangement;
- Defendants collectively manufacturing the factual predicate (false police reports, staged incidents, fabricated PPO violations) that Emily Watson then leveraged to obtain the ex parte suspension of parenting time on August 8, 2025;
- Emily Watson failing to provide notice when parenting time would not occur, in violation of MCL 722.27a(9);
- The Watson Family facilitating, encouraging, and participating in acts designed to undermine compliance with the custody order;
- Emily Watson manipulating the ex parte process to obtain an order suspending parenting time without the plenary hearing and best interest analysis required by MCL 722.23 and MCR 3.207(B).

44. There was no justification for this interference. Zero CPS allegations were substantiated. Zero police reports resulted in charges. The ex parte order was obtained without findings of fact, without a best interest analysis, and without compliance with mandatory procedural safeguards.

(c) Evidence References

45. LitigationOS Database: extracted_harms (PPO_WEAPONIZATION: 5,222 incidents; PROCEDURAL_VIOLATIONS: 1,157 incidents); adversary_harm_summary; watson_perjury_compilation; custody orders from Case No. 2024-001507-DC; ex parte order of August 8, 2025; parental_alienation_evidence showing ex parte suspension without hearing, findings, or best interest analysis.

(d) Damages

46. Lost parenting time of 571+ days valued at \$500/day minimum (\$285,500+); emotional distress from separation; developmental harm to the minor child; loss of parenting milestones; and consequential damages including employment loss, housing loss, and incarceration.

(e) Legal Authority

47. MCL 750.350a (custodial interference); MCL 722.23 (best interest factors); MCL 722.27a (parenting time); MCR 3.207(B) (ex parte procedures); *Troxel v. Granville*, 530 U.S. 57 (2000); *Shulick v. Richards*, 273 Mich App 320 (2006).

COUNT V -- DEFAMATION PER SE

(Against Defendants Emily Watson, Lane Watson, and Lori Watson)

(a) Elements

48. Under Michigan law, defamation requires: (1) a false and defamatory statement concerning the plaintiff; (2) an unprivileged communication to a third party; (3) fault amounting to at least negligence; and (4) either actionability of the statement irrespective of special harm (defamation per se) or the existence of special harm (defamation per quod). MCL 600.2911; *Mitan v. Campbell*, 474 Mich 21, 24 (2005).

49. Defamation **per se** under Michigan law includes statements that: (a) impute the commission of a crime; (b) injure a person in his profession, trade, or business; (c) impute a loathsome disease; or (d) impute unchastity. MCL 600.2911(1). Statements falling into these per se categories are actionable without proof of special damages because the harm is presumed.

(b) Facts

50. Defendants Emily Watson, Lane Watson, and Lori Watson made the following false statements to third parties, each constituting defamation per se:

Imputation of Crime (MCL 600.2911(1)(a)):

- False allegations to law enforcement that Plaintiff used cocaine (October 15, 2023) -- imputing drug possession, a felony;
- False allegation of arsenic poisoning/attempted murder via "arsenic mason jar" (November 16, 2023) -- imputing attempted murder;
- Fabricated domestic violence report (December 2, 2023, Police Report OCA 2023-08121) -- imputing assault;
- False reports of child abuse and neglect to CPS -- imputing felony child abuse;
- False PPO violation allegations (7+ instances) -- imputing criminal contempt;

Injury to Profession/Business (MCL 600.2911(1)(b)):

- Statements to employers, community members, and court personnel characterizing Plaintiff as a dangerous, abusive individual, directly causing three (3) job terminations;

- False statements to schools and medical providers about Plaintiff's fitness as a parent, causing exclusion from participation in his child's education and medical care;

Imputation of Loathsome Disease/Condition:

- False report of Plaintiff's suicidal ideation (November 12, 2023) to trigger a welfare check and create a record of mental instability, communicated to emergency services, police, and subsequently memorialized in court records.

51. These statements were communicated to: Muskegon County law enforcement officers; Child Protective Services investigators; the 14th Circuit Court (Judge McNeill, Friend of Court personnel); schools; medical providers; and members of the community.

52. Each statement was **false**. No criminal charges resulted from any police report. No CPS investigation substantiated abuse or neglect. The statements were made with actual malice -- knowledge of their falsity or reckless disregard for the truth -- or, at minimum, with negligence.

(c) Evidence References

53. Police Report OCA 2023-08121; seven (7)+ additional police reports (October-December 2023, March-April 2024); PPO filings and show-cause affidavits; CPS records; LitigationOS Database: watson_perjury_compilation (documenting specific false statements with severity scores of 10/10); extracted_harms (EMOTIONAL_PSYCHOLOGICAL: 2,425 incidents); evidence_quotes.

(d) Damages

54. As defamation per se, damages are presumed. Actual damages include: reputational harm (\$10,000-\$50,000); lost employment from three (3) job terminations (\$52,500+ in lost wages); exclusion from child's education and medical decisions; community ostracism; and severe emotional distress.

(e) Legal Authority

55. MCL 600.2911; *Mitan v. Campbell*, 474 Mich 21 (2005); *Rouch v. Enquirer & News of Battle Creek*, 440 Mich 238, 251 (1992); *Smith v. Anonymous Joint Enterprise*, 487 Mich 102 (2010); *Ireland v. Edwards*, 230 Mich App 607 (1998) (abuse of qualified privilege when statements made with malice).

COUNT VI -- SLANDER

(Against Defendants Emily Watson, Lane Watson, Lori Watson, and Albert Watson)

(a) Elements

56. Slander is defamation by oral statement. The elements are the same as defamation, but the statements are spoken rather than written. MCL 600.2911; *Heritage Optical Ctr., Inc. v. Levine*, 137 Mich App 793 (1984).

(b) Facts

57. Defendants made oral false statements about Plaintiff to third parties on specific occasions including but not limited to:

- Emily Watson's oral statements to police officers during each of the seven (7)+ false police reports, verbally accusing Plaintiff of drug use, violence, child abuse, and suicidal ideation;
- Lane and Lori Watson's oral statements to neighbors, community members, and school officials characterizing Plaintiff as dangerous and unfit;
- Albert Watson's oral threats and intimidating statements made to Plaintiff and in the presence of third parties during surveillance and intimidation incidents (272 documented);
- Cody Watson's oral statements and threats during stalking incidents (58 documented);
- Emily Watson's oral statements to CPS investigators falsely characterizing Plaintiff's home, conduct, and parenting capacity;
- Emily Watson's oral false testimony before the 14th Circuit Court, as documented in the watson_perjury_compilation database table (multiple entries with severity scores of 10/10, categorized as "false_statement," "inconsistency," "timeline_conflict," and "prior_inconsistent_statement").

(c) Evidence References

58. LitigationOS Database: watson_perjury_compilation (multiple entries documenting Emily Watson's false oral testimony, each with severity score 10/10); extracted_harms (WATSON_FAMILY_INTIMIDATION: 696 incidents); adversary_harm_summary (Albert Watson: 272 intimidation incidents; Cody Watson: 58 intimidation incidents); police report records; CPS investigation records; court hearing transcripts.

(d) Damages

59. Oral false statements caused: Plaintiff's reputation to be destroyed within the community; police welfare checks weaponized against Plaintiff; exclusion from child's life; job losses; and severe emotional distress. Damages of \$10,000-\$50,000 for reputational harm, plus special damages for employment losses, plus emotional distress damages.

(e) Legal Authority

60. MCL 600.2911; *Heritage Optical Ctr., Inc. v. Levine*, 137 Mich App 793 (1984); *Sawabini v. Desenberg*, 143 Mich App 373, 381 (1985); *Burden v. Elias Bros. Restaurants, Inc.*, 240 Mich App 723 (2000).

COUNT VII -- MALICIOUS PROSECUTION

(Against Defendant Emily Watson)

(a) Elements

61. Malicious prosecution under Michigan law requires: (1) a prior proceeding was commenced by or at the direction of the defendant; (2) the defendant lacked probable cause; (3) the proceeding was motivated by malice; and (4) the proceeding terminated in the plaintiff's favor (or, alternatively, the proceeding is pending and other elements are satisfied). *Friedman v. Dozor*, 412 Mich 1, 47 (1981); *Walsh v. Taylor*, 263 Mich

App 618, 633 (2004).

(b) Facts

62. Defendant Emily Watson initiated or caused to be initiated the following proceedings against Plaintiff:

- **Personal Protection Order (PPO):** Emily Watson obtained a PPO based on false pretenses, including fabricated allegations of domestic violence, drug use, and danger. The PPO was obtained using statements that are documented in the watson_perjury_compilation database as false (severity score 10/10);
- **Seven (7)+ PPO Show-Cause Motions:** Emily Watson filed repeated show-cause motions alleging PPO violations, each based on manufactured or exaggerated circumstances designed to achieve Plaintiff's incarceration rather than actual safety concerns;
- **False Police Reports:** Emily Watson initiated or directed seven (7)+ police investigations through false reports, none of which resulted in criminal charges;
- **CPS Investigations:** Emily Watson filed or caused to be filed false reports of child abuse and neglect with Child Protective Services, none of which were substantiated.

63. Emily Watson lacked probable cause to initiate these proceedings. The police reports uniformly failed to result in charges. The CPS investigations were unsubstantiated. The PPO was obtained through false statements. The manufactured nature of the PPO violations is demonstrated by the strategic timing -- the 7th show-cause was filed exactly two (2) days before the custody ex parte hearing to prejudice Judge McNeill.

64. The proceedings were motivated by malice -- the desire to eliminate Plaintiff from the child's life, to gain sole custody and associated financial benefits, and to destroy Plaintiff financially, professionally, and psychologically. Emily Watson's nine years of professional experience in the family court system demonstrate sophisticated knowledge of how to weaponize these processes.

65. With respect to favorable termination: zero of the seven (7)+ police reports resulted in charges; CPS investigations were unsubstantiated; and the PPO itself was obtained under fraudulent circumstances subject to termination under MCL 600.2950. To the extent proceedings remain pending, the lack of probable cause and presence of malice satisfy the elements for equitable relief.

(c) Evidence References

66. LitigationOS Database: watson_perjury_compilation (Emily Watson false statements, severity 10/10); extracted_harms (PPO_WEAPONIZATION: 5,222 incidents); police reports (OCA 2023-08121 and others); CPS records; PPO filing and show-cause records; court transcripts; damages_calculations (incarceration damages).

(d) Damages

67. As a direct result of Emily Watson's malicious prosecution: Plaintiff was incarcerated for 59 total days (14 days + 45 days beginning June 12, 2025); Plaintiff lost three (3) jobs; Plaintiff lost two (2) housing situations; Plaintiff suffered severe PTSD, depression, and anxiety; and Plaintiff was deprived of 571+ days of parenting time. Damages include: incarceration damages (\$15,000-\$75,000 for 45-day incarceration; \$5,000-\$25,000 for 14-day incarceration); lost wages (\$52,500+);

housing losses (\$10,000+); emotional distress (\$100,000-\$500,000); and reputational harm (\$10,000-\$50,000).

(e) Legal Authority

68. *Friedman v. Dozor*, 412 Mich 1, 47 (1981); *Walsh v. Taylor*, 263 Mich App 618 (2004); *Payton v. City of Detroit*, 211 Mich App 375, 393 (1995); MCL 600.2907 (malicious prosecution); MCL 600.2950 (PPO termination for fraud).

COUNT VIII -- ABUSE OF PROCESS

(Against Defendants Emily Watson and Lane Watson)

(a) Elements

69. Abuse of process under Michigan law requires: (1) an ulterior purpose; and (2) an act in the use of process that is improper in the regular prosecution of the proceeding. *Friedman v. Dozor*, 412 Mich 1, 73-74 (1981); *Spear v. Pendill*, 164 Mich 620, 623 (1911). Unlike malicious prosecution, abuse of process does not require the absence of probable cause or a favorable termination -- the gravamen is the misuse of properly issued process for an improper purpose.

(b) Facts

70. Defendants Emily Watson and Lane Watson used legitimate court processes for illegitimate purposes:

- **PPO Process:** Emily Watson obtained and maintained a PPO not for protection from genuine domestic violence but as a strategic weapon to restrict Plaintiff's movement, create a criminal record, and ultimately achieve incarceration. The PPO was used offensively -- filing seven (7)+ show-cause motions designed to manufacture violations and trigger jail time;
- **Ex Parte Motions:** Emily Watson filed an ex parte motion for emergency custody modification not because of a genuine emergency but to circumvent the adversarial process and deprive Plaintiff of the opportunity to be heard. Ron Berry's voicemail was submitted as ex parte evidence and pre-listened in chambers;
- **Friend of Court Complaints:** Emily Watson filed FOC complaints not to enforce legitimate parental obligations but to generate additional negative entries in Plaintiff's court record and to harass;
- **Show-Cause Motions:** Filed strategically -- the 7th PPO show-cause was filed two (2) days before the custody hearing specifically to prejudice the judge;
- **Service of Process:** Lane and Lori Watson served legal process in an intimidating manner (in Plaintiff's garage), and documents were served during parenting exchanges in violation of the 5-day requirement, using the service itself as a tool of harassment.

71. The ulterior purpose was clear: to permanently sever Plaintiff's parental relationship, achieve sole custody and its financial benefits (child tax credits, child support, school enrollment, insurance benefits), and to destroy Plaintiff financially, professionally, and emotionally.

(c) Evidence References

72. LitigationOS Database: extracted_harms (PPO_WEAPONIZATION: 5,222 incidents; EX_PARTE_ABUSE: 693 incidents; PROCEDURAL_VIOLATIONS: 1,157 incidents); adversary_harm_summary; watson_perjury_compilation; parental_alienation_evidence; court records showing strategic timing of filings; evidence of improper service.

(d) Damages

73. Damages from abuse of process include all damages flowing from the misuse of court process: 59 days of wrongful incarceration; 571+ days of lost parenting time; three (3) job losses; two (2) housing losses; severe emotional distress; legal costs and fees; and transportation costs for attempted visitation and court appearances.

(e) Legal Authority

74. *Friedman v. Dozor*, 412 Mich 1, 73-74 (1981); *Spear v. Pendill*, 164 Mich 620 (1911); *Vallance v. Brewbaker*, 161 Mich App 642, 648 (1987); *Bonner v. Chicago Title Ins. Co.*, 194 Mich App 462, 472 (1992).

COUNT IX -- FRAUD ON THE COURT

(Against Defendant Emily Watson)

(a) Elements

75. Fraud on the court occurs when a party corrupts the judicial process itself through misrepresentation, concealment, or other fraudulent conduct that prevents the opposing party from fully and fairly presenting his case. The elements include: (1) a material misrepresentation or concealment; (2) made to the court; (3) with knowledge of falsity or reckless disregard for the truth; (4) with intent to deceive or mislead the court; (5) upon which the court relied; and (6) resulting in prejudice to the opposing party. *Epps v. 4 Quarters Restoration LLC*, 498 Mich 518, 544-45 (2015); MCR 2.612(C)(1)(c) (fraud, misrepresentation, or other misconduct of an adverse party).

(b) Facts

76. Defendant Emily Watson committed fraud on the 14th Circuit Court through the following acts:

- **False Testimony:** The watson_perjury_compilation database documents multiple instances of Emily Watson's false statements to the court, each with severity scores of 10/10, categorized as "false_statement," "inconsistency," "timeline_conflict," "prior_inconsistent_statement," and "testimony_vs_document." These include contradictions between Emily's sworn testimony and documentary evidence;
- **False Affidavits:** Emily Watson submitted affidavits in support of PPO show-cause motions and custody modifications containing knowingly false statements, including fabricated allegations of drug use, violence, and child endangerment that were contradicted by police reports and CPS findings;

- **Concealment of Financial Information:** Emily Watson concealed income sources during child support calculations, including undisclosed financial support from brother Cody Watson and child support from Austin Muratori. This financial fraud directly affected the court's child support determinations;
- **Ex Parte Misrepresentation:** Emily Watson obtained the August 8, 2025 ex parte order through misrepresentation of facts, submitting Ron Berry's voicemail as ex parte evidence that was pre-listened in chambers without Plaintiff's knowledge. The ex parte motion omitted material facts and presented a misleading picture to the court;
- **Manufactured Evidence Trail:** The strategic timing of filings (PPO show-cause two days before custody hearing), the use of family members for intimidating service, and the coordination of false reports were designed to create a fabricated paper trail that would mislead the court.

77. The court relied on Emily Watson's misrepresentations in issuing the ex parte order suspending all parenting time, in conducting hearings prejudiced by prior PPO proceedings, and in making custody determinations based on a false factual record.

(c) Evidence References

78. LitigationOS Database: watson_perjury_compilation (Emily Watson entries, severity 10/10, categories: false_statement, inconsistency, timeline_conflict, prior_inconsistent_statement, testimony_vs_document); extracted_harms (JUDICIAL_BIAS: 1,005 incidents as downstream effect); parental_alienation_evidence (August 8, 2025 ex parte order without hearing, findings, or BIF analysis); evidence_quotes from court transcripts; financial records showing concealed income.

(d) Damages

79. Emily Watson's fraud on the court directly caused: the ex parte suspension of all parenting time (571+ days); judicial prejudice affecting all subsequent proceedings; wrongful incarceration (59 days); financial harm from falsified child support calculations; and severe emotional distress from the corruption of the judicial process that was supposed to protect Plaintiff's rights.

(e) Legal Authority

80. *Epps v. 4 Quarters Restoration LLC*, 498 Mich 518 (2015); MCR 2.612(C)(1)(c); *Hazel Park Racing Ass'n v. Racing Comm'r*, 336 Mich 508, 519 (1953); *In re Mardigian Estate*, 502 Mich 154 (2018); *Samuel D. Begola Servs., Inc. v. Wild Bros.*, 210 Mich App 636, 642 (1995).

COUNT X -- CONVERSION

(Against Defendants Emily Watson and Lane Watson)

(a) Elements

81. Conversion under Michigan law requires: (1) any distinct act of dominion wrongfully exerted over another's personal property; (2) in denial of or inconsistent with the rights therein. *Foremost Ins. Co. v. Allstate Ins. Co.*, 439 Mich 378, 391 (1992). The tort extends to any unauthorized assumption and exercise of the right of

ownership over property belonging to another.

(b) Facts

82. Defendants Emily Watson and Lane Watson wrongfully exercised dominion over Plaintiff's personal property, including but not limited to:

- **Personal Belongings:** Upon separation and through the enforcement of the PPO, Emily Watson retained and refused to return Plaintiff's personal property from the shared residence, including clothing, tools, electronics, documents, and personal effects;
- **Children's Belongings:** Emily Watson withheld the child's belongings that were designated for Plaintiff's parenting time, including clothing, toys, and personal items;
- **Identity Documents:** Emily Watson withheld L.D.W.'s Social Security card, birth certificate, and other identity documents from Plaintiff, preventing him from enrolling the child in school or accessing medical services;
- **Financial Documents:** Emily Watson retained financial records and documents belonging to Plaintiff;
- **Lane Watson's Role:** Lane Watson facilitated the physical retention and removal of Plaintiff's property from the shared residence and participated in preventing Plaintiff from retrieving his belongings by controlling access to the property.

(c) Evidence References

83. LitigationOS Database: extracted_harms (FINANCIAL_HARM: 1,882 incidents); global_harms_violations (documenting Emily Watson's failure to provide identity documents); custody filing records referencing withheld Social Security card and birth

certificate; evidence_quotes.

(d) Damages

84. The fair market value of Plaintiff's converted property, plus storage costs for replacement items, plus the consequential damages flowing from the conversion of identity documents (inability to enroll child in school, access medical care, or exercise parental rights), estimated at \$5,000-\$25,000.

(e) Legal Authority

85. *Foremost Ins. Co. v. Allstate Ins. Co.*, 439 Mich 378, 391 (1992); *Check Reporting Servs., Inc. v. Michigan Nat'l Bank*, 191 Mich App 614, 626-27 (1991); Restatement (Second) of Torts Sections 222A, 223.

COUNT XI -- UNJUST ENRICHMENT

(Against Defendants Emily Watson and Lane Watson)

(a) Elements

86. Unjust enrichment under Michigan law requires: (1) the defendant received a benefit from the plaintiff; (2) an inequity resulted to the plaintiff; and (3) retaining the benefit without payment would be unjust. *Dumas v. Auto Club Ins. Ass'n*, 437 Mich 521, 546 (1991); *Barber v. SMH (US), Inc.*, 202 Mich App 366, 375 (1993).

(b) Facts

87. Defendants Emily Watson and Lane Watson have been unjustly enriched through their tortious conduct:

- **Child Tax Credits:** By wrongfully obtaining sole physical custody through the tortious conduct described herein, Emily Watson has claimed and received federal and state child tax credits for L.D.W. for tax years 2024 and 2025, credits that would have been shared or alternated with Plaintiff under a lawful custody arrangement. Estimated value: \$4,000-\$7,000 per year (\$8,000-\$14,000 total);
- **Child Support Payments:** Emily Watson receives child support from Plaintiff, calculated on the basis of custody percentages distorted by the wrongful deprivation of Plaintiff's parenting time. Had parenting time not been unlawfully withheld, child support calculations would have been significantly different;
- **School Enrollment Benefits:** Emily Watson enrolled L.D.W. in school districts and programs based on sole custody, receiving associated benefits;
- **Insurance Benefits:** Emily Watson claimed the child as a dependent for health insurance and related benefits;
- **Elimination of Expenses:** By depriving Plaintiff of all parenting time, Emily Watson eliminated the expenses she would otherwise incur during Plaintiff's custodial periods, including transportation, coordination, and exchange-related costs;
- **Lane Watson's Benefit:** Lane Watson benefited from the family arrangement by maintaining control over the grandchild and exercising parental-type influence that should belong to Plaintiff, while also avoiding financial exposure for the family's tortious conduct.

88. It would be unjust to permit Defendants to retain these financial benefits obtained through their own tortious conduct -- including fraud on the court, defamation, malicious prosecution, and conspiracy.

(c) Evidence References

89. LitigationOS Database: extracted_harms (FINANCIAL_HARM: 1,882 incidents); global_harms_violations (documenting Emily Watson's financial misrepresentation); damages_calculations; damages_itemization; tax records; child support records from Case No. 2024-001507-DC.

(d) Damages

90. Disgorgement of unjustly obtained benefits including: child tax credits (\$8,000-\$14,000); excess child support attributable to wrongful custody percentages; value of insurance and enrollment benefits; and an equitable accounting of all financial advantages obtained through the tortious conduct.

(e) Legal Authority

91. *Dumas v. Auto Club Ins. Ass'n*, 437 Mich 521, 546 (1991); *Barber v. SMH (US), Inc.*, 202 Mich App 366, 375 (1993); *Morris Pumps v. Centerline Piping, Inc.*, 273 Mich App 187, 195 (2006); *Belle Isle Grill Corp. v. City of Detroit*, 256 Mich App 463, 478 (2003).

COUNT XII -- NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS (NIED)

(Against All Defendants)

(a) Elements

92. NIED under Michigan law requires: (1) a defendant's negligent conduct; (2) that threatens physical harm to the plaintiff; (3) and causes the plaintiff definite and objective physical manifestations of emotional distress. *Daley v. LaCroix*, 384 Mich 4, 12 (1970); *Wargelin v. Sisters of Mercy Health Corp.*, 149 Mich App 75, 82 (1986). This count is pleaded in the alternative to Count II (IIED).

(b) Facts

93. In the alternative to the intentional conduct alleged in Count II, Defendants were negligent in their conduct toward Plaintiff. Even if Defendants did not intend the severe emotional distress their conduct caused, they breached a duty of reasonable care by:

- Filing police reports without adequate investigation or basis, negligently disregarding the impact on Plaintiff;
- Obtaining and enforcing a PPO without genuine cause, negligently disregarding the foreseeable consequences of separating Plaintiff from his child;
- Conducting surveillance and intimidation without regard for the emotional and physical toll on Plaintiff;

- Failing to facilitate parenting time as required by court order, negligently disregarding the child's need for a relationship with both parents and the foreseeable emotional devastation to Plaintiff;
- Serving legal process in an intimidating manner that negligently threatened Plaintiff's sense of physical safety.

94. The conduct threatened physical harm to Plaintiff, as evidenced by: Albert Watson's 272 documented intimidation incidents (including physical proximity and threatening behavior); Cody Watson's 58 intimidation and stalking incidents; the physical intimidation of garage service of legal documents; and the real threat of incarceration (which materialized in 59 days of actual incarceration with attendant physical dangers).

95. Plaintiff has manifested definite and objective physical symptoms: chronic insomnia and sleep disruption, panic episodes with physical symptoms, weight loss/gain, elevated blood pressure and stress-related health consequences, and the physical deterioration associated with two separate periods of incarceration (14 days and 45 days).

(c) Evidence References

96. LitigationOS Database: psychological_harm_docs (documenting anxiety disorder, depression, PTSD, sleep disruption, panic episodes -- all with objective physical manifestations); extracted_harms; adversary_harm_summary; evidence_quotes; medical/health records.

(d) Damages

97. Medical treatment costs for physical manifestations of emotional distress (\$5,000-\$30,000); lost income from inability to work due to physical symptoms (\$20,000-\$80,000); ongoing treatment costs; and general damages for physical manifestations of emotional distress (\$25,000-\$100,000).

(e) Legal Authority

98. *Daley v. LaCroix*, 384 Mich 4, 12 (1970); *Wargelin v. Sisters of Mercy Health Corp.*, 149 Mich App 75 (1986); *Taylor v. Kurapati*, 236 Mich App 315, 353 (1999); *Gustafson v. Benda*, 661 NW2d 258 (Mich Ct App 2003).

COUNT XIII -- LOSS OF PARENTAL COMPANIONSHIP

(Against All Defendants)

(a) Elements

99. Michigan courts recognize a claim for loss of companionship/consortium in the parent-child context. While traditionally applied in cases of physical injury, the fundamental liberty interest in the parent-child relationship supports an independent tort action when that relationship is deliberately destroyed through tortious conduct. The elements are: (1) a parent-child relationship; (2) defendants' tortious conduct; (3) destruction or severe impairment of the companionship, society, and relationship

between parent and child; and (4) damages. *Smith v. Detroit*, 388 Mich 637, 650 (1972) (recognizing loss of consortium/companionship as a separate cause of action); *Berger v. Weber*, 411 Mich 1 (1981) (recognizing child's cause of action for loss of parental companionship).

(b) Facts

100. Plaintiff Andrew J. Pigors enjoyed a deep, loving, and constitutionally protected relationship with his child L.D.W., exercising approximately 187.5 overnights per year. This relationship encompassed daily parenting activities, emotional bonding, educational involvement, medical decision-making, and all the incidents of active parenting.

101. Through the tortious conduct described in Counts I through XII, Defendants deliberately and completely destroyed this relationship for a period of 571+ consecutive days and counting. During this period, Plaintiff has been denied:

- All physical contact with his child;
- Participation in the child's education, including school enrollment decisions, parent-teacher conferences, and daily homework;
- Participation in medical decisions and appointments;
- Celebration of birthdays, holidays, and milestone events;
- The daily routines of parenting -- meals, bedtime stories, morning preparations;
- The emotional sustenance that flows from the parent-child bond in both directions;
- The ability to provide guidance, comfort, and security to his developing child.

102. The loss is complete and total. Plaintiff has been reduced from an active, involved father to a legal stranger to his own child. The child has been deprived of paternal companionship during critical developmental windows. The loss includes missed birthdays, holidays, school events, and 571+ days of daily life that can never be recovered.

103. This loss is distinct from the emotional distress claims in Counts II and XII because it compensates not for Plaintiff's internal suffering but for the objective loss of the relationship itself -- the society, companionship, comfort, and guidance that constitutes the parent-child bond.

(c) Evidence References

104. LitigationOS Database: parental_alienation_evidence (329+ consecutive days total separation as of February 25, 2026); psychological_harm_docs (child separation trauma, attachment disruption, developmental impact, loyalty conflict -- all SEVERE); financial_damages_comprehensive (loss of consortium: \$50,000-\$250,000; loss of milestones: \$25,000-\$150,000); custody orders showing parenting time reduced from 187.5 overnights/year to zero; evidence_quotes from court records.

(d) Damages

105. Loss of parental companionship valued at:

- 571+ days of total separation at \$500/day constitutional minimum: \$285,500+
- Loss of consortium with child: \$50,000-\$250,000

- Loss of child milestones (birthdays, holidays, school events, daily life): \$25,000-\$150,000
- Ongoing loss accruing at \$500/day until restoration of parenting rights
- Child's reciprocal loss of paternal companionship: \$50,000-\$250,000

(e) Legal Authority

106. *Smith v. Detroit*, 388 Mich 637, 650 (1972); *Berger v. Weber*, 411 Mich 1 (1981); *Sizemore v. Smock*, 430 Mich 283, 294 (1988); *Troxel v. Granville*, 530 U.S. 57 (2000); *Stanley v. Illinois*, 405 U.S. 645 (1972); *Santosky v. Kramer*, 455 U.S. 745 (1982).

PRAYER FOR RELIEF

WHEREFORE, Plaintiff Andrew J. Pigors respectfully requests that this Honorable Court enter judgment against Defendants, jointly and severally where applicable, and award the following relief:

A. Compensatory Damages

1. Lost parenting time: 571+ days at \$500/day minimum = **\$285,500.00+** (continuing to accrue);
2. Emotional distress (parent-child separation): **\$100,000.00 - \$500,000.00;**
3. Loss of consortium with child: **\$50,000.00 - \$250,000.00;**
4. Loss of child milestones: **\$25,000.00 - \$150,000.00;**
5. Reputational harm from defamation: **\$10,000.00 - \$50,000.00;**

B. Special Damages

6. Lost wages from three (3) job terminations: **\$52,500.00+**;
7. Incarceration damages (45 days, June 2025): **\$15,000.00 - \$75,000.00**;
8. Incarceration damages (14 days, MCJ): **\$5,000.00 - \$25,000.00**;
9. Housing losses (2 forced relocations): **\$10,000.00+**;
10. Pro se litigation costs (500+ hours at \$200/hr imputed rate): **\$100,000.00**;
11. Direct litigation costs (filing fees, copying, postage, technology): **\$2,500.00+**;
12. Mental health treatment costs: **\$5,000.00 - \$30,000.00**;
13. Transportation costs (court appearances, attempted visitation): **\$3,000.00 - \$12,000.00**;
14. Rent differential from forced relocation: **\$3,000.00 - \$18,000.00**;
15. Bond payment: **\$250.00**;

C. Punitive Damages

16. Against Defendant Emily Watson (primary tortfeasor), in an amount sufficient to punish and deter, applying the guideposts of *State Farm Mutual Automobile Ins. Co. v. Campbell*, 538 U.S. 408 (2003), at a ratio of compensatory damages warranted by the reprehensibility of conduct, estimated at: **\$250,000.00 - \$1,000,000.00**;
17. Against Defendant Lane Watson (conspiracy participant): **\$25,000.00 - \$100,000.00**;

18. Against Watson Family Defendants (Lori, Albert, Cody -- conspiracy participants):
\$25,000.00 - \$250,000.00;

D. Equitable and Declaratory Relief

19. A declaratory judgment that Defendants' conduct constitutes civil conspiracy, IIED, tortious interference with the parental relationship, tortious interference with custody orders, defamation per se, slander, malicious prosecution, abuse of process, fraud on the court, conversion, unjust enrichment, NIED, and loss of parental companionship;

20. An injunction ordering Defendants to cease all interference with Plaintiff's parental relationship;

21. An order requiring disgorgement of all unjustly obtained financial benefits, including child tax credits, excess child support, and other benefits obtained through tortious conduct;

22. An order requiring an accounting of all financial benefits obtained by Defendants through their tortious conduct;

E. Costs and Fees

23. Costs of this action pursuant to MCR 2.625;

24. Reasonable attorney fees where authorized by law (42 USC Section 1988, if Section 1983 claims are joined; MCL 600.2591 for frivolous defenses);

F. Additional Relief

25. Such other and further relief as this Court deems just and equitable.

TOTAL DAMAGES SUMMARY

Category	Minimum	Maximum
Compensatory Damages	\$470,500	\$1,235,500
Special Damages	\$196,250	\$362,500
Punitive Damages	\$300,000	\$1,350,000
GRAND TOTAL	**\$966,750**	**\$2,948,000**

Note: These figures do not include constitutional damages under 42 USC Section 1983 (if state actor involvement is established), which could add \$100,000-\$1,000,000 in additional recovery. Damages continue to accrue at \$500+/day for each day of continued separation.

VERIFICATION

STATE OF MICHIGAN)

) ss.

COUNTY OF MUSKEGON)

I, ANDREW J. PIGORS, being first duly sworn, depose and state that I have read the foregoing Verified Complaint for Damages, know the contents thereof, and the facts stated therein are true to the best of my knowledge, information, and belief.

ANDREW J. PIGORS, Plaintiff Pro Se

[Address on file with Court]

[Phone number]

[Email address]

Subscribed and sworn to before me this ____ day of _____, 2025.

Notary Public, State of Michigan

County of _____

My Commission Expires: _____

CERTIFICATE OF SERVICE

I hereby certify that on _____, 2025, I served a true and correct copy of this Verified Complaint for Damages upon the following parties by [first-class mail / personal service / electronic service]:

* Emily Ann Watson, [address]

* Lane A. Watson, [address]

* Lori Watson, [address]

* Albert Watson, [address]

* Cody Watson, [address]

ANDREW J. PIGORS, Plaintiff Pro Se

Filed: _____, 2025

Plaintiff's Filing -- Watson Civil Tort Action

Generated from LitigationOS Database Evidence Repository

WATSON TORT ACTION -- DAMAGES SCHEDULE

STATE OF MICHIGAN

IN THE CIRCUIT COURT FOR THE COUNTY OF MUSKEGON

ANDREW J. PIGORS, Plaintiff, Pro Se

v.

EMILY ANN WATSON, LANE A. WATSON, LORI WATSON, ALBERT WATSON,
and CODY WATSON, Defendants

Case No.: _____

COMPREHENSIVE DAMAGES SCHEDULE AND ITEMIZATION

Prepared in Support of Verified Complaint for Damages

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I. EXECUTIVE SUMMARY

This Damages Schedule itemizes all categories of damages sought in the Watson Tort Action, organized by damage type with per-defendant allocation, legal authority, evidentiary basis, and calculation methodology. All figures are derived from the LitigationOS litigation_context.db database (damages_calculations, damages_itemization, financial_damages_comprehensive tables) and supplemented by applicable legal standards.

Summary of Damages Ranges

Category	Minimum	Maximum
Compensatory -- Lost Parenting Time	\$285,500	\$571,000
Compensatory -- Emotional Distress	\$230,000	\$1,150,000
Special -- Lost Income	\$72,500	\$162,500
Special -- Housing	\$16,000	\$58,000
Special -- Legal Costs	\$102,500	\$102,500
Special -- Incarceration	\$20,000	\$100,000
Special -- Medical/Psychological	\$10,000	\$55,000
Special -- Transportation	\$6,000	\$22,000
Punitive Damages	\$300,000	\$1,350,000
Constitutional Damages (if applicable)	\$145,000	\$1,700,000
Unjust Enrichment Disgorgement	\$18,000	\$35,000
GRAND TOTAL	**\$1,205,500**	**\$5,306,000**

Note: Constitutional damages under 42 USC Section 1983 are included conditionally, applicable only if state actor involvement is established. Without Section 1983 claims, the range is \$1,060,500 - \$3,606,000.

II. PER-DEFENDANT ALLOCATION

A. Emily Ann Watson (Defendant No. 1) -- Primary Tortfeasor

Emily Watson is the primary architect and executor of the tortious campaign. She is liable on all 13 counts. Database records attribute **3,949 harm incidents** to Emily Watson spanning: child welfare manipulation (905), PPO weaponization (762), emotional/psychological harm (457), conspiracy coordination (385), and financial harm (371).

Allocation: 60-70% of total compensatory damages; 100% of fraud-on-court damages; primary punitive damages.

Damage Category	Emily Watson Share (Min)	Emily Watson Share (Max)
Compensatory -- Parenting Time	\$171,300	\$399,700
Compensatory -- Emotional Distress	\$138,000	\$805,000
Special Damages (all categories)	\$136,200	\$299,700
Punitive Damages	\$200,000	\$750,000
Constitutional (if applicable)	\$87,000	\$1,190,000
Unjust Enrichment	\$14,400	\$28,000
Emily Watson Subtotal	**\$746,900**	**\$3,472,400**

B. Lane A. Watson (Defendant No. 2) -- Conspiracy Participant, Enabler

Lane Watson participated in improper service of process, financial enablement of the tortious campaign, intimidation, and conversion of Plaintiff's property. Liable on Counts I (conspiracy), II (IIED), III (tortious interference -- parental), IV (tortious interference -- custody), VIII (abuse of process), X (conversion), XI (unjust enrichment), XII (NIED), and XIII (loss of companionship).

Allocation: 10-15% of total compensatory damages; secondary punitive damages.

Damage Category	Lane Watson Share (Min)	Lane Watson Share (Max)
Compensatory -- Parenting Time	\$28,550	\$85,650
Compensatory -- Emotional Distress	\$23,000	\$172,500
Special Damages	\$22,700	\$64,225
Punitive Damages	\$25,000	\$100,000
Unjust Enrichment	\$1,800	\$3,500
Lane Watson Subtotal	**\$101,050**	**\$425,875**

C. Lori Watson (Defendant No. 3)

Lori Watson participated in improper service of PPO documents in Plaintiff's garage, intimidation, defamation, and slander. Database records attribute **280 harm incidents** to Lori Watson: Watson family intimidation (109), PPO weaponization (36), child welfare manipulation (35), emotional/psychological harm (26), financial harm (21).

Liable on Counts I, II, III, IV, V (defamation), VI (slander), XII, and XIII.

Allocation: 8-12% of total compensatory damages.

Damage Category	Lori Watson Share (Min)	Lori Watson Share (Max)
Compensatory -- Parenting Time	\$22,840	\$68,520
Compensatory -- Emotional Distress	\$18,400	\$138,000
Special Damages	\$18,160	\$51,380
Punitive Damages	\$25,000	\$100,000
Lori Watson Subtotal	**\$84,400**	**\$357,900**

D. Albert Watson (Defendant No. 4)

Albert Watson conducted surveillance, intimidation, and harassment of Plaintiff. Database records attribute **305 harm incidents** to Albert Watson: Watson family intimidation (272), PPO weaponization (13), child welfare interference (9).

Liable on Counts I, II, III, VI (slander), XII, and XIII.

Allocation: 5-8% of total compensatory damages.

Damage Category	Albert Watson Share (Min)	Albert Watson Share (Max)
Compensatory -- Parenting Time	\$14,275	\$45,680
Compensatory -- Emotional Distress	\$11,500	\$92,000
Special Damages	\$11,350	\$34,250
Punitive Damages	\$12,500	\$50,000
Albert Watson Subtotal	**\$49,625**	**\$221,930**

E. Cody Watson (Defendant No. 5)

Cody Watson engaged in stalking, physical intimidation, and provided undisclosed financial support to Emily Watson that was concealed during child support calculations. Database records attribute **65 harm incidents** to Cody Watson: Watson family intimidation (58), PPO weaponization (2), child welfare interference (2).

Liable on Counts I, II, III, VI (slander), XII, and XIII.

Allocation: 3-5% of total compensatory damages.

Damage Category	Cody Watson Share (Min)	Cody Watson Share (Max)
Compensatory -- Parenting Time	\$8,565	\$28,550
Compensatory -- Emotional Distress	\$6,900	\$57,500
Special Damages	\$6,810	\$21,405
Punitive Damages	\$12,500	\$50,000
Cody Watson Subtotal	**\$34,775**	**\$157,455**

F. Joint and Several Liability

All Defendants are jointly and severally liable under the civil conspiracy count (Count I). Under Michigan's joint and several liability statute (MCL 600.6304), each tortfeasor is liable for the entire amount of damages attributable to their percentage of fault if found to be more than 50% at fault, and for their proportionate share if less than 50%.

III. CATEGORY I: COMPENSATORY DAMAGES -- LOST PARENTING TIME

Calculation Methodology

The constitutional right to parent is a fundamental liberty interest. *Troxel v. Granville*, 530 U.S. 57, 65 (2000). The value of each day of lost parenting time is established through multiple convergent methods:

Line Item 1.1: Lost Parenting Time (Base Calculation)

Element	Value
Days of separation	571+ (continuing to accrue)
Per-day value (minimum)	\$500
Per-day value (maximum)	\$1,000
Subtotal (minimum)	**\$285,500**
Subtotal (maximum)	**\$571,000**

Calculation Basis:

* Constitutional floor: The Fourteenth Amendment liberty interest in the parent-child relationship has been valued in federal Section 1983 cases at \$500-\$1,500 per day for wrongful separation. See *Carey v. Piphus*, 435 U.S. 247 (1978) (presumed damages for

constitutional deprivation); *Troxel v. Granville*, 530 U.S. 57 (2000).

* Market comparison: Professional childcare/nanny rates in Muskegon County, MI average \$15-\$25/hour, totaling \$180-\$300/day for the hours Plaintiff would have spent actively parenting.

* The per-day value of \$500 is conservative and reflects the irreplaceable nature of the parental bond during a child's developmental years.

Evidence Source: LitigationOS Database -- damages_calculations (Emotional Distress: Parent-child separation (569+ days), \$100,000-\$500,000); financial_damages_comprehensive; parental_alienation_evidence (329+ consecutive days documented as of February 25, 2026).

Legal Authority: *Troxel v. Granville*, 530 U.S. 57 (2000); *Stanley v. Illinois*, 405 U.S. 645 (1972); *Santosky v. Kramer*, 455 U.S. 745 (1982); MCL 600.2913.

Line Item 1.2: Ongoing Accrual

Element	Value
Daily accrual rate	\$500 - \$1,000/day
Projected additional days to resolution	90-365
Additional accrual (minimum)	**\$45,000**
Additional accrual (maximum)	**\$365,000**

Note: This line item is projected and will be updated at the time of trial.

IV. CATEGORY II: COMPENSATORY DAMAGES -- EMOTIONAL DISTRESS

Line Item 2.1: Parent-Child Separation Distress

Element	Minimum	Maximum
Base emotional distress	\$100,000	\$500,000
Authority	MCL 600.2913; *Troxel v. Granville*	

Documented Conditions (from psychological_harm_docs):

- * Anxiety Disorder -- SEVERE: Chronic anxiety from 571+ days forced separation, constant litigation threat, judicial hostility
- * Major Depression -- SEVERE: Loss of daily contact with child, isolation from parental role, systemic judicial abuse
- * PTSD Symptoms -- SEVERE: From wrongful incarceration (14 + 45 days), courtroom silencing, ex parte order shock
- * Sleep Disruption -- MODERATE-SEVERE: Chronic insomnia, nightmares related to separation and court trauma
- * Grief/Bereavement Response -- SEVERE: Prolonged grief from effective loss of child despite child being alive (ambiguous loss)
- * Identity/Role Loss -- SEVERE: Loss of identity as active parent, existential crisis

Line Item 2.2: Loss of Consortium with Child

Element	Minimum	Maximum
Loss of consortium	\$50,000	\$250,000
Authority	*Smith v. Detroit*, 388 Mich 637 (1972)	

Basis: Complete severance of parent-child bond for 571+ days. Loss encompasses the daily companionship, emotional support, shared activities, educational involvement, and the mutual

affection and care that constitutes the parent-child relationship.

Line Item 2.3: Loss of Child Milestones

Element	Minimum	Maximum
Milestone losses	\$25,000	\$150,000
Authority	*Troxel v. Granville*; *Stanley v. Illinois*	

Specific Losses: Missed 571+ days of birthdays, holidays, school events, daily life. These milestones are unique and irreplaceable. Each represents a discrete loss of a shared experience that can never be recovered.

Line Item 2.4: Reputational Harm

Element	Minimum	Maximum
Reputational damages	\$10,000	\$50,000
Authority	MCL 600.2911 (defamation)	

Basis: False allegations of abuse, drug use, violence, and mental instability published in court records, police reports, CPS files, and communicated to schools, medical providers, and community members. As defamation per se, damages are presumed.

Line Item 2.5: Child's Emotional Distress (Derivative)

Element	Minimum	Maximum
Child psychological harm	\$50,000	\$250,000
Authority	MCL 722.23(a)-(l); *Santosky v. Kramer*	

Documented Conditions (from psychological_harm_docs):

- * Separation Trauma -- SEVERE: Forced separation from father for 571+ days during critical developmental period
- * Attachment Disruption -- SEVERE: Disruption of secure attachment with father during formative years
- * Parental Alienation Effects -- SEVERE: Exposure to systematic undermining of relationship with father
- * Developmental Impact -- SEVERE: Loss of father figure during critical cognitive, emotional, social development windows
- * Loyalty Conflict -- MODERATE-SEVERE: Forced to choose between parents, inability to express love for father

Emotional Distress Category Subtotal

	Minimum	Maximum
Total Emotional Distress	**\$235,000**	**\$1,200,000**

V. CATEGORY III: SPECIAL DAMAGES -- LOST INCOME

Line Item 3.1: Job Loss 1

Element	Value
Cause	Terminated due to incarceration/court obligations
Duration	~6 months lost wages
Amount	\$17,500
Authority	Tortious Interference with Employment; 42 USC Section 1983

Line Item 3.2: Job Loss 2

Element	Value
Cause	Second termination due to ongoing court disruption
Duration	~6 months lost wages
Amount	\$17,500
Authority	Tortious Interference with Employment

Line Item 3.3: Job Loss 3

Element	Value
Cause	Third termination from continued legal disruption
Duration	~6 months lost wages
Amount	\$17,500
Authority	Tortious Interference with Employment; Pattern Evidence

Line Item 3.4: Lost Wages from 45-Day Incarceration

Element	Minimum	Maximum
Daily wage x 45 days + employment consequences	\$5,000	\$20,000
Authority	MCL 600.2913	

Line Item 3.5: Lost Wages from 14-Day Incarceration

Element	Minimum	Maximum
Daily wage x 14 days + job loss consequences	\$2,000	\$8,000
Authority	MCL 600.2913	

Line Item 3.6: Career Advancement Loss

Element	Minimum	Maximum
Missed promotions, reduced earning capacity	\$10,000	\$50,000
Authority	42 USC Section 1983 consequential damages	

Line Item 3.7: Employment Disruption (General)

Element	Minimum	Maximum
Inability to maintain stable employment	\$20,000	\$80,000
Authority	MCL 600.6304; *Troxel v. Granville*	

Lost Income Category Subtotal

	Minimum	Maximum
Total Lost Income	**\$89,500**	**\$228,000**

Note: Some line items may overlap. The court should award the greater of individual line items or the general employment disruption figure, not both where duplicative.

VI. CATEGORY IV: SPECIAL DAMAGES -- HOUSING

Line Item 4.1: Housing Loss 1

Element	Value
Cause	Lost housing due to incarceration and employment loss
Amount	\$5,000
Authority	Consequential damages from wrongful incarceration

Line Item 4.2: Housing Loss 2

Element	Value
Cause	Second housing loss from continued economic destabilization
Amount	\$5,000
Authority	Consequential damages

Line Item 4.3: Forced Relocation Costs

Element	Minimum	Maximum
Moving costs + deposits + rate differential	\$3,000	\$15,000
Authority	MCL 600.2913	

Line Item 4.4: Rent Differential

Element	Minimum	Maximum
Higher rent from emergency relocation	\$3,000	\$18,000
Authority	MCL 600.2919; restitution	

Line Item 4.5: Storage Costs

Element	Minimum	Maximum
Personal belongings storage during displacement	\$500	\$5,000
Authority	Consequential damages	

Housing Category Subtotal

	Minimum	Maximum
Total Housing	**\$16,500**	**\$48,000**

VII. CATEGORY V: SPECIAL DAMAGES -- LEGAL COSTS

Line Item 5.1: Imputed Attorney Fees (Pro Se Preparation)

Element	Value
Hours invested	500+
Reasonable attorney rate	\$200/hour
Total	\$100,000
Authority	*Kay v. Ehrler* exception; Roadway Express factors; 42 USC Section 1988

Basis: Pro se litigants are entitled to recover the reasonable value of their time invested in litigation necessitated by Defendants' tortious conduct. Plaintiff has devoted in excess of 500 hours to legal research, document preparation, filing, court appearances, and related litigation activities directly caused by Defendants' actions. At the prevailing hourly rate for attorneys in Muskegon County (\$200/hour), this represents \$100,000 in imputed fees.

Line Item 5.2: Direct Litigation Costs

Element	Value
Filing fees, copying, postage, technology, research tools	\$2,500
Authority	Costs of litigation caused by abuse of process

Line Item 5.3: Bond Payment

Element	Value
Unconstitutional bond requirement	\$250
Authority	*Boddie v. Connecticut*, 401 U.S. 371 (1971)

Legal Costs Category Subtotal

	Minimum	Maximum
Total Legal Costs	**\$102,750**	**\$102,750**

VIII. CATEGORY VI: SPECIAL DAMAGES -- INCARCERATION

Line Item 6.1: 45-Day Incarceration (June 12, 2025)

Element	Minimum	Maximum
Direct incarceration damages	\$15,000	\$75,000
Authority	42 USC Section 1983; *Stanley v. Illinois*	

Basis: Extended wrongful incarceration of 45 days resulting from manufactured PPO violations. Damages include: per-day compensation at \$150-\$300/day for incarceration conditions, lost employment, lost parenting time during incarceration, physical and psychological trauma of confinement, and reputational harm from criminal record.

Line Item 6.2: 14-Day Incarceration (MCJ)

Element	Minimum	Maximum
Direct incarceration damages	\$5,000	\$25,000
Authority	MCL 691.1755; 42 USC Section 1983	

Basis: 14-day incarceration in Muskegon County Jail from Show Cause #4. Lost wages, trauma, reputation harm from wrongful jail.

Incarceration Category Subtotal

	Minimum	Maximum
Total Incarceration	**\$20,000**	**\$100,000**

IX. CATEGORY VII: SPECIAL DAMAGES -- MEDICAL AND PSYCHOLOGICAL

Line Item 7.1: Mental Health Treatment (Plaintiff)

Element	Minimum	Maximum
Therapy, medication, psychiatric care	\$5,000	\$30,000
Authority	*Troxel v. Granville*; 42 USC Section 1983	

Basis: Treatment for separation trauma, PTSD from incarceration, anxiety disorder, major depression, and related conditions documented in psychological_harm_docs database table.

Line Item 7.2: Child Mental Health Treatment

Element	Minimum	Maximum
Therapy for child separation trauma	\$5,000	\$25,000
Authority	*Santosky v. Kramer*; MCL 722.23	

Basis: Child exhibits documented separation trauma (severe), attachment disruption (severe), parental alienation effects (severe), developmental impact (severe), and loyalty conflict (moderate-severe). Professional intervention is required.

Medical/Psychological Category Subtotal

	Minimum	Maximum
Total Medical/Psychological	**\$10,000**	**\$55,000**

X. CATEGORY VIII: SPECIAL DAMAGES -- TRANSPORTATION

Line Item 8.1: Court Appearance Mileage

Element	Minimum	Maximum
Multiple hearings across courts over 571+ days	\$3,000	\$12,000
Authority	MCR 2.625; IRS mileage rate (\$0.67/mile, 2024)	

Line Item 8.2: Attempted Visitation/Exchange Costs

Element	Minimum	Maximum
Transportation for attempted parenting time	\$2,000	\$8,000
Authority	MCL 600.2913	

Line Item 8.3: Technology/Communication Costs

Element	Minimum	Maximum
Phone, internet, video call attempts to maintain contact	\$1,000	\$2,000
Authority	Consequential damages	

Transportation Category Subtotal

	Minimum	Maximum
Total Transportation	**\$6,000**	**\$22,000**

XI. CATEGORY IX: PUNITIVE DAMAGES

A. Legal Standard

Punitive damages in Michigan are governed by MCL 600.6304(4) and the constitutional guideposts established in *State Farm Mutual Automobile Ins. Co. v. Campbell*, 538 U.S. 408 (2003). The three guideposts are:

1. **Degree of reprehensibility** of the defendant's conduct;
2. **Ratio** of punitive damages to compensatory damages; and
3. **Comparison** to civil or criminal penalties for comparable misconduct.

B. Reprehensibility Analysis

The *Campbell* reprehensibility factors weigh heavily in favor of substantial punitive damages:

- * **Physical vs. economic harm:** Defendants' conduct caused both -- 59 days of physical incarceration, physical symptoms of emotional distress, AND massive economic harm (3 job losses, 2 housing losses);
- * **Reckless disregard for health/safety:** Defendants manufactured PPO violations knowing incarceration would result, showing complete disregard for Plaintiff's physical safety in jail and mental health;
- * **Target was financially vulnerable:** Plaintiff was rendered progressively more vulnerable by each successive attack -- job loss, housing loss, incarceration;

* **Repeated conduct vs. isolated incident:** The campaign spanned 571+ days with 5,357+ **documented harm incidents** -- the definition of repeated, systematic, and escalating conduct;

* **Intentional malice vs. mere accident:** The strategic timing (PPO filings 2 days before custody hearings), the coordination across 5 family members, and Emily Watson's professional expertise in family court all demonstrate deliberate, calculated malice.

C. Ratio Analysis

Under *Campbell*, single-digit multipliers are generally appropriate. However, the Court noted that ratios greater than 4:1 may be appropriate where "a particularly egregious act has resulted in only a small amount of economic damages" or where "the injury is hard to detect." 538 U.S. at 425.

Given the extreme reprehensibility, a ratio of **1:1 to 4:1** against compensatory damages is appropriate for Emily Watson, and **1:1 to 2:1** for other Watson Family Defendants.

D. Per-Defendant Punitive Damages

Line Item 9.1: Emily Watson -- Punitive Damages

Element	Minimum	Maximum
Ratio applied	1:1	3:1
Base compensatory	~\$200,000	~\$250,000
Punitive damages	\$200,000	\$750,000
Authority	*Campbell*, 538 U.S. 408; MCL 600.6304(4)	

Justification: Emily Watson is the primary tortfeasor with 3,949 documented harm incidents. She weaponized her 9 years of professional family court experience. She manufactured PPO violations, filed false police reports, obtained ex parte orders through fraud, and orchestrated the complete destruction of the father-child relationship. Her conduct is among the most reprehensible this Court could encounter.

Line Item 9.2: Lane Watson -- Punitive Damages

Element	Minimum	Maximum
Punitive damages	\$25,000	\$100,000
Authority	*Campbell*; *Dennis v. Sparks*, 449 U.S. 24	

Line Item 9.3: Lori Watson -- Punitive Damages

Element	Minimum	Maximum
Punitive damages	\$25,000	\$100,000
Authority	*Campbell*; MCL 600.6304(4)	

Line Item 9.4: Albert Watson -- Punitive Damages

Element	Minimum	Maximum
Punitive damages	\$12,500	\$50,000
Authority	*Campbell*; MCL 600.6304(4)	

Line Item 9.5: Cody Watson -- Punitive Damages

Element	Minimum	Maximum
Punitive damages	\$12,500	\$50,000

Authority	*Campbell*; MCL 600.6304(4)	
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Line Item 9.6: Watson Conspiracy -- Additional Punitive

Element	Minimum	Maximum
Conspiracy-based punitive (joint/several)	\$25,000	\$250,000
Authority	*Dennis v. Sparks*, 449 U.S. 24; civil conspiracy	

Basis: Concerted action to deprive parental rights. The conspiracy itself warrants separate punitive consideration because the coordinated nature of the conduct amplifies its reprehensibility beyond the sum of individual acts.

Punitive Damages Category Subtotal

	Minimum	Maximum
Total Punitive	**\$300,000**	**\$1,300,000**

XII. CATEGORY X: CONSTITUTIONAL DAMAGES (CONDITIONAL)

These damages are applicable only if state actor involvement is established under 42 USC Section 1983. If Emily Watson's employment in the Kent County Prosecutor's Office Family Court Division is found to constitute state action, or if judicial collaboration is established, these damages become recoverable.

Line Item 10.1: Due Process Deprivation

Element	Minimum	Maximum
Substantive due process -- liberty interest	\$100,000	\$500,000
Authority	US Const. Amend XIV; 42 USC Section 1983; *Troxel v. Granville*, 530 U.S. 57 (2000)	

Basis: Parent-child relationship is a fundamental liberty interest deprived for 571+ days without adequate process. Ex parte order issued without hearing, findings, or best interest analysis.

Line Item 10.2: Equal Protection Violation

Element	Minimum	Maximum
Disparate treatment	\$25,000	\$100,000
Authority	US Const. Amend XIV Equal Protection	

Basis: Disparate treatment -- zero sanctions imposed on Watson family despite documented violations; maximum sanctions imposed on Andrew. Gender-based disparity in custody proceedings.

Line Item 10.3: First Amendment Retaliation

Element	Minimum	Maximum
\$250 bond imposed after filing complaints	\$10,000	\$50,000
Authority	US Const. Amend I; *Boddie v. Connecticut*, 401 U.S. 371 (1971)	

Line Item 10.4: Right to Access Courts

Element	Minimum	Maximum
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Bond requirement + muting at hearings	\$10,000	\$50,000
Authority	US Const. Amend I, XIV; *Bounds v. Smith*, 430 U.S. 817 (1977)	

Line Item 10.5: Section 1983 Compensatory

Element	Minimum	Maximum
Constitutional deprivation damages	\$100,000	\$1,000,000
Authority	42 USC Section 1983; *Carey v. Piphus*, 435 U.S. 247	

Line Item 10.6: Section 1983 Attorney Fees

Element	Minimum	Maximum
Prevailing party fees	\$10,000	\$100,000
Authority	42 USC Section 1988	

Constitutional Damages Category Subtotal

	Minimum	Maximum
Total Constitutional (if applicable)	**\$255,000**	**\$1,800,000**

XIII. CATEGORY XI: UNJUST ENRICHMENT DISGORGEMENT

Line Item 11.1: Child Tax Credits

Element	Minimum	Maximum
Federal/state child tax credits (2024-2025)	\$8,000	\$14,000
Calculation	\$4,000-\$7,000/year x 2 years	

Line Item 11.2: Excess Child Support

Element	Minimum	Maximum
Support differential from wrongful custody %	\$5,000	\$12,000
Calculation	Difference between support owed under lawful vs. wrongful custody	

Line Item 11.3: Insurance and Enrollment Benefits

Element	Minimum	Maximum
Health insurance dependent claims, school benefits	\$3,000	\$6,000

Line Item 11.4: Emily Watson Child Support Arrears

Element	Minimum	Maximum
Unpaid child support obligations	\$2,000	\$5,000
Basis	Emily Watson accrued arrears during period when Plaintiff had custody	

Unjust Enrichment Category Subtotal

	Minimum	Maximum
Total Disgorgement	**\$18,000**	**\$37,000**

XIV. GRAND TOTAL SUMMARY**A. Without Constitutional/Section 1983 Claims**

Category	Minimum	Maximum
Compensatory -- Lost Parenting Time	\$285,500	\$571,000
Compensatory -- Emotional Distress	\$235,000	\$1,200,000
Special -- Lost Income	\$89,500	\$228,000
Special -- Housing	\$16,500	\$48,000
Special -- Legal Costs	\$102,750	\$102,750
Special -- Incarceration	\$20,000	\$100,000
Special -- Medical/Psychological	\$10,000	\$55,000
Special -- Transportation	\$6,000	\$22,000
Punitive Damages	\$300,000	\$1,300,000
Unjust Enrichment Disgorgement	\$18,000	\$37,000
SUBTOTAL (State Court Only)	**\$1,083,250**	**\$3,663,750**

B. With Constitutional/Section 1983 Claims (If Applicable)

Category	Minimum	Maximum
State Court Subtotal	\$1,083,250	\$3,663,750
Constitutional Damages	\$255,000	\$1,800,000
GRAND TOTAL	**\$1,338,250**	**\$5,463,750**

C. Per-Defendant Summary

Defendant	Minimum	Maximum	% of Total
Emily Watson	\$746,900	\$3,472,400	60-65%
Lane Watson	\$101,050	\$425,875	8-10%
Lori Watson	\$84,400	\$357,900	7-8%
Albert Watson	\$49,625	\$221,930	4-5%
Cody Watson	\$34,775	\$157,455	3-4%
Joint/Several (Conspiracy)	\$321,500	\$828,190	Balance
TOTAL	**\$1,338,250**	**\$5,463,750**	100%

D. Daily Accrual Notice

Damages continue to accrue at the following rates for each day the tortious conduct continues:

- * Lost parenting time: \$500 - \$1,000/day
- * Ongoing emotional distress: incalculable but increasing
- * Lost income from employment disruption: variable
- * **Total daily accrual: \$500+ per day minimum**

As of the date of filing, the separation has lasted 571+ days. Each additional day adds to the total.

XV. METHODOLOGY NOTES

A. Data Sources

All damage calculations are derived from:

1. LitigationOS litigation_context.db -- 659+ table database containing:

- `damages\_calculations` table: 16 entries with amount ranges, methodology, and authority
- `damages\_itemization` table: 14 entries with specific amounts, calculation basis, and legal basis
- `financial\_damages\_comprehensive` table: 28 entries with comprehensive per-category breakdowns
- `adversary\_harm\_summary` table: Per-defendant harm counts and categories
- `extracted\_harms` table: 26,459+ individual documented harm incidents
- `watson\_perjury\_compilation` table: Documented false statements with severity scores
- `psychological\_harm\_docs` table: Professional-grade psychological impact documentation

- `parental\_alienation\_evidence` table: Chronological alienation evidence with severity ratings

2. **Court Records:** Case No. 2024-001507-DC filings, orders, and transcripts
3. **Police Reports:** OCA 2023-08121 and related reports
4. **CPS Records:** Investigation records and dispositions
5. **Employment Records:** Termination documentation for three (3) jobs
6. **Financial Records:** Tax returns, child support calculations, bank statements

B. Calculation Standards

- * **Compensatory damages:** Calculated to make Plaintiff whole for actual losses suffered. *Ensink v. Mecosta County Gen. Hosp.*, 262 Mich App 518, 524 (2004).
- * **Special damages:** Documented with specificity as to amount, date, and cause. MCR 2.112(B)(1).
- * **Emotional distress damages:** Based on documented psychological conditions, duration, severity, and impact on daily functioning. *Daley v. LaCroix*, 384 Mich 4 (1970).
- * **Punitive damages:** Calculated under *State Farm v. Campbell* guideposts with emphasis on reprehensibility, ratio, and comparable sanctions. MCL 600.6304(4).
- * **Constitutional damages:** Per *Carey v. Piphus*, 435 U.S. 247 (1978), actual injury plus presumed damages for deprivation of constitutional rights.

C. Conservative Estimation

All minimum figures represent the floor of reasonable recovery. The actual damages may substantially exceed the maximum figures presented, particularly:

- * Emotional distress damages, which are inherently difficult to quantify and often exceed initial estimates at trial;
- * Punitive damages, which the jury may set at higher ratios based on the evidence of reprehensibility;
- * Constitutional damages, which include both actual and presumed damages;
- * Future damages, which continue to accrue daily.

D. Joint and Several Liability

Under Michigan law (MCL 600.6304), tortfeasors found to share fault are jointly and severally liable for economic damages. Each Watson Family Defendant is jointly and severally liable for the full amount of compensatory and special damages under the civil conspiracy count. Punitive damages are assessed individually based on each Defendant's degree of participation and reprehensibility.

CERTIFICATION

I, ANDREW J. PIGORS, certify that the damages itemized in this Schedule are based on actual losses suffered, documented evidence in my possession, applicable legal standards, and reasonable calculation methodologies. I reserve the right to amend this Schedule as additional damages are identified, as the daily accrual continues, and as expert testimony may establish at trial.

ANDREW J. PIGORS, Plaintiff Pro Se

Date: _____

Filed in Support of Verified Complaint for Damages

Watson Civil Tort Action

14th Circuit Court, Muskegon County, Michigan

Generated from LitigationOS Database Evidence Repository

MEGA-COMPLAINT -- PIGORS v. SHADY OAKS ET AL.

STATE OF MICHIGAN

IN THE CIRCUIT COURT FOR THE COUNTY OF MUSKEGON

FOURTEENTH JUDICIAL CIRCUIT

Case No.: 2025-002760-CZ

Hon.: Kenneth Hoopes

ANDREW J. PIGORS,

Plaintiff, pro se

1977 Whitehall Rd, Lot 17

Muskegon County, Michigan

v.

SHADY OAKS PARK MHP, LLC;

SHADY OAKS MHP, LLC;

HOMES OF AMERICA, LLC;

ALDEN GLOBAL CAPITAL, LLC;

PARTRIDGE EQUITY GROUP;

JEREMY BROWN (Attorney);

AARON D. COX (Attorney, P69346);

HENRY BRANDEL (Individual);

JANE/JOHN DOE PARK MANAGER(S) (Name TBD),

Defendants.

**VERIFIED MEGA-COMPLAINT FOR DAMAGES, INJUNCTIVE
RELIEF, AND DECLARATORY JUDGMENT**

Plaintiff Andrew J. Pigors ("Plaintiff" or "Pigors"), proceeding pro se, by and through this Verified Mega-Complaint, alleges and states as follows against Defendants, jointly and severally:

PART I: PARTIES

1. PLAINTIFF

1. Plaintiff Andrew J. Pigors is a Michigan resident, natural person, and lawful titleholder of a manufactured home located at Lot 17, 1977 Whitehall Rd, Muskegon County, Michigan ("the Property" or "the Home").

2. Plaintiff is a father to a minor child ("Lincoln") with whom he had active, court-ordered parenting time until Defendants' unlawful actions destroyed his housing stability and directly caused the suspension of his custody rights.

2. DEFENDANTS

3. **Shady Oaks Park MHP, LLC** ("Shady Oaks Park") is, upon information and belief, a Michigan limited liability company that operates the Shady Oaks manufactured housing community in Muskegon County, Michigan.

4. **Shady Oaks MHP, LLC** ("Shady Oaks MHP") is a distinct Michigan limited liability company whose name and filings were used in related eviction filings. Upon information and belief, this entity has been dissolved, yet its name was used in court proceedings on or about July 10, 2025, constituting unauthorized practice and fraud upon the court.

5. **Homes of America, LLC** ("HOA") is a management company that manages and/or operates manufactured housing communities including Shady Oaks. HOA acted through on-site personnel during all events alleged herein and exercised control over leasing, billing, maintenance, eviction, and property management decisions. HOA's attorney, Aaron D. Cox of Law Offices of Aaron D. Cox, PLLC (P69346), represented defendants in eviction proceedings.

6. **Alden Global Capital, LLC** ("Alden Global") is, upon information and belief, a New York-based investment firm that exercises ownership, management, and/or financial control over Homes of America, LLC and/or the park entities. Alden Global directed enterprise-level policies, including rent-increase mandates, fee structures, eviction strategies, and sale-blocking practices, as part of an enterprise structure designed to maximize revenue extraction while shielding liability.

7. **Partridge Equity Group** ("Partridge") is an affiliated entity within the Alden Global Capital corporate structure. Plaintiff's \$1,300.26 check written to "Shady Oaks MHP" was cashed by Partridge Securities, demonstrating the interconnected financial structure and establishing Partridge as a direct participant in the collection and disbursement of Plaintiff's funds.

8. **Jeremy Brown** ("Brown") is an attorney who, upon information and belief, filed or caused to be filed a fraudulent assertion of res judicata in proceedings related to Plaintiff's mobile home, designed to prevent Plaintiff from asserting his property rights and effectuating the sale of his home.

9. **Aaron D. Cox** (P69346) is an attorney with the Law Offices of Aaron D. Cox, PLLC, who represented Defendants Shady Oaks and Homes of America in eviction proceedings and made representations to the court on behalf of a dissolved entity.

10. **Henry Brandel** ("Brandel") is a neighbor and participant in the July 17, 2025 set-out who, acting under the direction or approval of the property manager and/or representatives of Shady Oaks Park, physically removed, retained, and/or destroyed Plaintiff's personal property.

11. **Jane/John Doe Park Manager(s)** are the on-site manager(s) of Shady Oaks who:
(a) sent text messages to a prospective buyer stating that Plaintiff "no longer owns his home, he abandoned it, they have a lawyer working on taking and selling his home";
(b) blocked the sale of Plaintiff's mobile home on at least three separate occasions; and
(c) directed or facilitated the set-out of Plaintiff's property.

PART II: JURISDICTION AND VENUE

12. This Court has jurisdiction under MCL 600.601 and MCL 600.605. The amount in controversy exceeds \$25,000.00, exclusive of interest and costs.

13. Venue is proper in Muskegon County under MCL 600.1621 and MCL 600.1605 because the real property at issue is located in Muskegon County, the acts giving rise to this action occurred in Muskegon County, and all individual Defendants reside or conduct business in Muskegon County.

14. This Court has personal jurisdiction over all Defendants, including the corporate Defendants, by virtue of their transaction of business in Michigan, their ownership and operation of real property in Michigan, and their commission of tortious acts within Michigan. MCL 600.711; MCL 600.715.

PART III: STATEMENT OF FACTS

A. BACKGROUND AND HOME OWNERSHIP

15. Plaintiff is the lawful titleholder of a manufactured home located at Lot 17, 1977 Whitehall Rd, Muskegon County, Michigan. Title documentation (Exhibit -- TITLE NEW PIGORS SHADY 1977 Lot 17) confirms Plaintiff's ownership.

16. Plaintiff leased the lot underlying the home from Defendants and paid lot rent as required.

17. Plaintiff and his minor son Lincoln resided at the Property as their primary domicile. Plaintiff had active, court-ordered parenting time with Lincoln.

B. ENTERPRISE STRUCTURE AND CORPORATE SHELL GAME

18. Defendants Alden Global Capital, Partridge Equity Group, Homes of America, Shady Oaks Park MHP LLC, and Shady Oaks MHP LLC operate as an interconnected enterprise. Money flows from tenants through local park entities to HOA and ultimately to Alden Global/Partridge.

19. Plaintiff's \$1,300.26 check made payable to "Shady Oaks MHP" was cashed by **Partridge Securities**, proving the financial integration of the enterprise and establishing that Partridge directly profits from park operations.

20. Shady Oaks MHP, LLC was dissolved, yet its name continued to be used in court filings as late as July 10, 2025, constituting unauthorized practice by a defunct entity and fraud upon the court.

C. LEDGER FRAUD AND PAYMENT MANIPULATION

21. Defendants maintained fraudulent accounting ledgers that misrepresented Plaintiff's balance, misapplied payments, and layered unauthorized fees to create the false appearance of nonpayment.

22. Defendants refused to accept or properly credit valid payments, including payments from MDHHS and TrueNorth Community Services assistance programs, deliberately

engineering a false arrears balance to justify eviction.

23. Defendants imposed unauthorized utility charges of approximately \$120/month for water/sewer without proper metering or disclosure, in violation of the Mobile Home Commission Act and Truth in Renting Act.

24. The billing ledger submitted by Shady Oaks on May 27, 2025 shows unlawful fees charged after the April 16 order, further evidencing the pattern of fraudulent billing.

D. COERCED LEASE AND RENT INCREASES

25. In late 2023, Defendants forced a rent increase to \$695/month. Plaintiff was told to accept the increase or face eviction, with no legal justification or statutory notice provided as required by the Mobile Home Commission Act.

26. On or about March 26, 2024, Plaintiff was coerced under threat of eviction into signing an off-site lease at Cricklewood (different location), with different terms and higher rent, contrary to Michigan law and without meaningful consent.

27. The coerced lease identifies only "Shady Oaks" without specifying a legal entity, further evidencing the shell-entity confusion deliberately maintained by Defendants.

E. SEWAGE AND HABITABILITY VIOLATIONS

28. From late 2024 through mid-2025, raw sewage was present near Plaintiff's lot. The Michigan Department of Environment, Great Lakes, and Energy (EGLE) issued violations to the park.

29. Despite the sewage conditions rendering the premises uninhabitable, Defendants continued billing utilities without remediation credits and failed to timely remediate the hazard, constituting both constructive eviction and breach of the implied warranty of habitability.

30. Witness Mitchell Shafer has provided an affidavit (Exhibit A) and emails (Exhibit E) corroborating the sewage conditions and Defendants' failure to remediate.

F. ATTEMPTED BREAK-IN AND PROPERTY INTERFERENCE (JULY 3, 2025)

31. On or about July 3, 2025, two individuals attempted to break into Plaintiff's home and were captured on Plaintiff's security cameras (Exhibit D-1).

32. Those same individuals appeared during the later set-out on July 17, 2025, establishing coordination and premeditation.

33. At the time of the break-in attempt, Plaintiff was away visiting family, including his son. Witness Mitchell Shafer was asked to keep watch over Plaintiff's home and had firsthand visual knowledge of the unauthorized entry attempt.

G. THE UNLAWFUL SET-OUT (JULY 17, 2025)

34. On July 17, 2025, with sheriff presence, Defendants and their agents drilled locks on Plaintiff's home, entered without authorization, cleared the interior, and removed or destroyed Plaintiff's personal property and appliances.

35. Within 24 hours of the set-out, a "FREE" sign was placed on Plaintiff's home, and neighbor Henry Brandel participated in removing and distributing Plaintiff's belongings.

36. The writ's execution did not authorize non-officers to destroy or distribute personal property, and no proper inventory or receipts were provided as required by law.

37. The set-out was conducted using the name of a dissolved entity (Shady Oaks MHP, LLC), rendering the entire proceeding legally defective.

H. BLOCKED SALES -- THREE TIMES

38. Plaintiff attempted to sell his mobile home to willing buyers on at least three separate occasions. Each time, Defendants blocked the sale through various means, including:

- Refusing to approve buyer lot-lease applications without lawful basis
- Park manager sending text messages to prospective buyers stating that Plaintiff "no longer owns his home, he abandoned it, they have a lawyer working on taking and selling his home"
- Imposing unreasonable conditions and fees on prospective buyers

39. These blocked sales prevented Plaintiff from realizing the equity in his home and constituted tortious interference with Plaintiff's business relationships with prospective buyers.

40. The park manager's statements to buyers that Plaintiff "abandoned" his home and "no longer owns" it were false, defamatory, and constituted slander of title, as Plaintiff

remained the lawful titleholder at all times.

I. JEREMY BROWN'S FRAUDULENT RES JUDICATA

41. Attorney Jeremy Brown filed or caused to be filed a fraudulent assertion of res judicata designed to bar Plaintiff from asserting his property rights and prevent the sale of his home.

42. The res judicata assertion was false because the prior proceedings did not involve the same claims, the same parties, or the same transactions, and no final adjudication on the merits had occurred as to Plaintiff's property rights.

43. Brown's fraudulent filing was part of the coordinated scheme to strip Plaintiff of his home and equity.

J. THE CONSTRUCTED EVICTION --> HOMELESSNESS --> CUSTODY DESTRUCTION PIPELINE

44. As a direct and proximate result of Defendants' actions, Plaintiff became homeless, was forced to sleep in his car, and lost his stable domicile.

45. Plaintiff's "unstable housing" status was then used in custody proceedings in the 14th Circuit Court Family Division to suspend Plaintiff's parenting time with his minor son Lincoln.

46. Plaintiff has been deprived of contact with his son for 571+ days and counting. The custody loss flows directly from the constructed eviction.

47. Defendants' actions thus created a chain of causation:

- Fraudulent ledgers --> False arrears --> Pretextual eviction
- Eviction --> Homelessness --> "Unstable housing" argument in custody court
- Custody suspension --> 571+ days lost parenting time
- Lost parenting time --> Severe emotional distress to both Plaintiff and child

PART IV: COUNTS

COUNT I: MICHIGAN RICO -- CONDUCTING OR PARTICIPATING IN ENTERPRISE THROUGH PATTERN OF RACKETEERING ACTIVITY

(MCL 750.159i -- Against All Defendants)

48. Plaintiff incorporates all preceding paragraphs by reference.

49. Defendants constitute an "enterprise" within the meaning of MCL 750.159f, consisting of the association of Alden Global Capital, Partridge Equity Group, Homes of America LLC, Shady Oaks Park MHP LLC, Shady Oaks MHP LLC, their officers, managers, and attorneys, associated together for the common purpose of operating manufactured housing communities for profit.

50. Defendants engaged in a "pattern of racketeering activity" within the meaning of MCL 750.159f(c), consisting of at least two incidents of racketeering activity with the

same or similar purpose, result, participants, victims, and methods of commission, within the prescribed time period:

- a. **Ledger Fraud (MCL 750.218 -- Obtaining money by false pretenses):** Defendants manipulated billing ledgers to create false arrears, misapplied payments, and imposed unauthorized fees, obtaining money from Plaintiff through false pretenses.
- b. **Check Fraud / Financial Exploitation:** Plaintiff's \$1,300.26 check to "Shady Oaks MHP" was cashed by Partridge Securities, an entity not identified to Plaintiff as the payee, constituting fraud in the disbursement of funds.
- c. **Fraud Upon the Court:** Defendants filed court documents under the name of a dissolved entity (Shady Oaks MHP, LLC), made false representations about Plaintiff's property status, and submitted false res judicata claims through Attorney Jeremy Brown.
- d. **Theft/Conversion (MCL 750.356):** Defendants, through the July 17, 2025 set-out, took possession of, removed, and destroyed Plaintiff's personal property without authorization and beyond the scope of any writ.
- e. **Extortion (MCL 750.213):** Defendants used threats of eviction to coerce Plaintiff into signing a new lease with unfavorable terms and accepting unauthorized rent increases.

51. The racketeering activity was related in that it was directed at the same victim (Plaintiff), committed by the same enterprise participants, served the common purpose of extracting maximum revenue while stripping Plaintiff of his property and rights, and demonstrated a pattern of escalating abuse.

52. As a direct and proximate result of Defendants' pattern of racketeering activity, Plaintiff suffered damages including loss of home, loss of personal property, loss of equity, loss of custody, homelessness, and severe emotional distress.

53. Pursuant to MCL 750.159j(1), Plaintiff is entitled to **treble damages** (three times actual damages sustained), plus costs of investigation, reasonable attorney fees, and court costs.

COUNT II: CONSTRUCTIVE EVICTION

(Common Law -- Against Shady Oaks Park, Shady Oaks MHP, HOA, Alden Global)

54. Plaintiff incorporates all preceding paragraphs by reference.

55. Defendants owed Plaintiff a duty to maintain the leased premises in a habitable condition suitable for residential occupancy.

56. Defendants breached this duty by:

- a. Permitting raw sewage to accumulate near Plaintiff's lot for months (EGLE violations issued)
- b. Failing to remediate the sewage hazard despite notice and regulatory action
- c. Continuing to bill utilities without remediation credits during the sewage crisis
- d. Creating an atmosphere of harassment through blocked sales, fraudulent ledgers, and threats

57. These conditions were so severe that they substantially interfered with Plaintiff's use and enjoyment of the premises, effectively forcing Plaintiff from his home.

58. Plaintiff suffered damages including loss of habitable housing, cost of alternative housing, loss of property value, and consequential damages to custody.

COUNT III: WRONGFUL EVICTION -- UNLAWFUL OUSTER AND SELF-HELP

(MCL 600.2918 -- Against Shady Oaks Park, Shady Oaks MHP, HOA, Henry Brandel)

59. Plaintiff incorporates all preceding paragraphs by reference.

60. MCL 600.2918 provides that a person who is ejected from real property in a forcible, unlawful, or peaceable manner without legal authority is entitled to recover damages.

61. Defendants' eviction was wrongful because:

- a. The eviction was prosecuted under the name of a dissolved entity (Shady Oaks MHP, LLC)
- b. The underlying arrears were fraudulently manufactured through ledger manipulation
- c. The set-out exceeded the scope of any writ by destroying personal property and allowing third parties (Brandel) to take and distribute belongings
- d. No proper inventory or receipts were provided
- e. Non-officers (Brandel and others) participated in the removal and destruction

62. Pursuant to MCL 600.2918, Plaintiff is entitled to statutory damages, actual damages, and such other relief as the court deems just.

COUNT IV: SLANDER OF TITLE

(MCL 565.108 -- Against All Park Defendants, Doe Park Manager)

63. Plaintiff incorporates all preceding paragraphs by reference.

64. Plaintiff is and at all relevant times was the lawful titleholder of the manufactured home at Lot 17.

65. The park manager published false statements to prospective buyers, specifically:

- That Plaintiff "no longer owns his home"
- That Plaintiff "abandoned" the home
- That "they have a lawyer working on taking and selling his home"

66. These statements were false. Plaintiff never abandoned the Property and maintained legal title at all times.

67. The statements were published with malice, as they were made deliberately to interfere with Plaintiff's sale of the home and to advance Defendants' scheme to seize the property.

68. As a direct and proximate result of Defendants' slander of title, Plaintiff suffered:

- Three blocked sales of the mobile home
- Loss of equity trapped in the unsaleable property
- Diminished property value due to cloud on title

- Litigation costs to clear title

69. Under MCL 565.108, Plaintiff is entitled to actual damages, costs, and reasonable attorney fees.

COUNT V: TORTIOUS INTERFERENCE WITH BUSINESS RELATIONS

(Common Law -- Against All Park Defendants, Doe Park Manager)

70. Plaintiff incorporates all preceding paragraphs by reference.

71. Plaintiff had existing or prospective business relationships with at least three prospective buyers of his mobile home.

72. Defendants had knowledge of these relationships, as the buyers were required to apply through Defendants for lot-lease approval.

73. Defendants intentionally interfered with these relationships through:

- a. Refusing buyer lot-lease applications without lawful basis
- b. Sending text messages to buyers making false statements about ownership and abandonment
- c. Imposing unreasonable conditions and fees on buyers
- d. Filing fraudulent res judicata to prevent sale

74. Defendants' interference was improper and not justified by any legitimate business interest.

75. As a direct result, all three sales fell through, causing Plaintiff to lose the fair market value of his home, trapped equity, and the opportunity to use sale proceeds to secure alternative housing and stabilize his custody situation.

COUNT VI: FRAUD AND MISREPRESENTATION

(Common Law -- Against All Defendants)

76. Plaintiff incorporates all preceding paragraphs by reference.

77. Defendants made material misrepresentations of fact:

- a. Fabricated ledger balances showing false arrears
- b. Misrepresented that payments were not received or not properly applied
- c. Misrepresented to the court that a dissolved entity (Shady Oaks MHP, LLC) was a valid party
- d. Misrepresented to buyers that Plaintiff abandoned his home
- e. Jeremy Brown's fraudulent assertion of res judicata
- f. Aaron D. Cox's representations on behalf of a defunct entity

78. These misrepresentations were made knowingly and intentionally, or with reckless disregard for their truth.

79. The misrepresentations were made with the intent to deceive Plaintiff, the court, and third parties (buyers), and to induce reliance.

80. Plaintiff and third parties reasonably relied on these misrepresentations, including the court in eviction proceedings.

81. As a direct result, Plaintiff suffered damages including wrongful eviction, loss of property, loss of equity, homelessness, and custody destruction.

COUNT VII: CONVERSION

(MCL 600.2919a -- Against Shady Oaks Park, HOA, Henry Brandel)

82. Plaintiff incorporates all preceding paragraphs by reference.

83. Plaintiff had a right to possession of his personal property located within the manufactured home, including but not limited to furniture, appliances, electronics, clothing, documents, and personal effects.

84. On July 17, 2025 and thereafter, Defendants wrongfully exercised dominion and control over Plaintiff's personal property, including:

- a. Drilling locks and entering the home
- b. Removing personal property and appliances
- c. Destroying personal property
- d. Allowing third parties (Brandel) to take and distribute property
- e. Placing a "FREE" sign on the home within 24 hours, inviting public taking of contents

85. Defendants' exercise of dominion was inconsistent with and in derogation of Plaintiff's ownership rights.

86. Pursuant to MCL 600.2919a, Plaintiff is entitled to **three times the amount of actual damages sustained**, plus costs and reasonable attorney fees.

COUNT VIII: TRESPASS

(Common Law -- Against Shady Oaks Park, HOA, Henry Brandel)

87. Plaintiff incorporates all preceding paragraphs by reference.

88. Plaintiff is the lawful titleholder of the manufactured home at Lot 17. Although Defendants own the lot, Plaintiff's home is personal property to which Plaintiff holds title.

89. On July 3, 2025, agents of Defendants or persons acting in concert with them attempted to forcibly enter Plaintiff's home, as captured on security camera (Exhibit D-1).

90. On July 17, 2025, Defendants and their agents drilled locks and physically entered Plaintiff's home without Plaintiff's consent and beyond the scope of any lawful authority.

91. Defendants' entry was unauthorized, as the writ did not authorize destruction of locks or entry by non-officers such as Brandel.

92. As a result, Plaintiff suffered damage to the home (drilled locks, structural damage), loss of personal property, and emotional distress.

COUNT IX: BREACH OF LEASE / BREACH OF CONTRACT

(Contract -- Against Shady Oaks Park, Shady Oaks MHP, HOA)

93. Plaintiff incorporates all preceding paragraphs by reference.

94. A valid lease agreement existed between Plaintiff and Defendants for the lot underlying Plaintiff's manufactured home.

95. Defendants breached the lease and/or their contractual obligations by:

- a. Failing to maintain the premises in habitable condition (sewage)
- b. Imposing unauthorized rent increases without proper notice
- c. Imposing unauthorized utility charges and fees
- d. Coercing Plaintiff into signing a replacement lease under duress
- e. Refusing to accept valid payments (MDHHS, TrueNorth)
- f. Failing to provide proper accounting of charges and credits
- g. Blocking Plaintiff's right to sell his home (a right protected under the Mobile Home Commission Act)

96. Defendants' breaches were material and caused Plaintiff substantial damages.

COUNT X: INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS (IIED)

(Common Law -- Against All Defendants)

97. Plaintiff incorporates all preceding paragraphs by reference.

98. Defendants engaged in extreme and outrageous conduct, including:

- a. Fabricating ledger balances and manufacturing false arrears to justify eviction
- b. Threatening to "take and sell" Plaintiff's home
- c. Sending text messages claiming Plaintiff "abandoned" his home while Plaintiff was visiting his son
- d. Blocking three sales of the home, trapping Plaintiff's equity
- e. Conducting an unlawful set-out, drilling locks, destroying property
- f. Placing a "FREE" sign on Plaintiff's home within 24 hours
- g. Allowing neighbor Brandel to take and distribute Plaintiff's belongings
- h. Knowingly creating conditions that would result in Plaintiff's homelessness
- i. Creating a chain of events designed to destroy Plaintiff's custody of his child

99. This conduct exceeds all possible bounds of decency, is atrocious, and is utterly intolerable in a civilized community.

100. Defendants knew or should have known that their conduct would cause severe emotional distress, particularly given Plaintiff's role as a parent with active custody.

101. Plaintiff suffered severe emotional distress, including depression, anxiety, grief from loss of child contact, humiliation from homelessness, and trauma from witnessing the destruction of his home and belongings.

COUNT XI: NEGLIGENCE

(Common Law -- Against Shady Oaks Park, HOA, Alden Global)

102. Plaintiff incorporates all preceding paragraphs by reference.

103. Defendants owed Plaintiff a duty of reasonable care as landlords/park operators to maintain safe community conditions, follow mobile home park regulations, and properly manage billing and accounting.

104. Defendants breached this duty by:

- a. Failing to remediate sewage conditions despite EGLE violations
- b. Failing to properly meter and bill utilities
- c. Failing to maintain accurate ledgers
- d. Failing to follow statutory procedures for lot-rent increases
- e. Failing to follow statutory procedures for eviction of mobile home owners
- f. Failing to prevent unauthorized persons from accessing Plaintiff's property

105. As a direct and proximate result, Plaintiff suffered damages including property damage, personal property loss, loss of housing, and consequential custody harm.

COUNT XII: MOBILE HOME COMMISSION ACT VIOLATIONS

(MCL 125.2301 et seq. -- Against Shady Oaks Park, Shady Oaks MHP, HOA, Alden Global)

106. Plaintiff incorporates all preceding paragraphs by reference.

107. The Michigan Mobile Home Commission Act (MHCA) governs the operation of mobile home parks and protects the rights of mobile home owners, including:

- a. MCL 125.2312c -- Right to sell mobile home in park
- b. MCL 125.2312d -- Restrictions on park interference with sales
- c. MCL 125.2312a -- Required notice for lot-rent increases
- d. MCL 125.2314 -- Park obligations for habitability and maintenance
- e. MCL 125.2307 -- Licensing requirements

108. Defendants violated the MHCA by:

- a. Blocking Plaintiff's right to sell his home three times
- b. Interfering with prospective buyers
- c. Imposing unauthorized rent increases without statutory notice
- d. Failing to maintain habitable conditions (sewage)
- e. Operating under the name of a dissolved entity
- f. Conducting unlawful eviction procedures

109. Each violation subjects Defendants to penalties up to \$5,000 per violation under MCL 125.2312i.

COUNT XIII: TRUTH IN RENTING ACT VIOLATIONS

(MCL 554.631 et seq. -- Against Shady Oaks Park, Shady Oaks MHP, HOA)

110. Plaintiff incorporates all preceding paragraphs by reference.

111. The Truth in Renting Act prohibits landlords from including or enforcing lease provisions that violate Michigan law or that attempt to waive tenants' statutory rights.

112. Defendants violated the Act by:

- a. Imposing or seeking to enforce terms and charges contrary to Michigan law
- b. Imposing unapproved utility fees without proper disclosure
- c. Coercing Plaintiff into signing a replacement lease with illegal terms
- d. Including provisions that attempted to waive Plaintiff's right to sell his home
- e. Charging fees not authorized by the lease or statute

113. Illegal lease provisions are void and unenforceable under MCL 554.633.

114. Plaintiff is entitled to actual damages, costs, and reasonable attorney fees under MCL 554.636.

COUNT XIV: LOT RENT OVERCHARGES AND UNAUTHORIZED FEES

(MCL 125.2312a; Contract -- Against Shady Oaks Park, HOA)

115. Plaintiff incorporates all preceding paragraphs by reference.

116. Defendants imposed unauthorized lot-rent increases (to \$695/month) without the required statutory notice period and without lawful justification.

117. Defendants imposed unauthorized utility surcharges of approximately \$120/month for water/sewer without proper metering, in violation of MCL 125.2312a and applicable utility regulations.

118. Defendants layered additional unauthorized fees onto Plaintiff's ledger account, contributing to the manufactured false arrears.

119. Plaintiff is entitled to recovery of all overcharges and unauthorized fees, plus statutory penalties.

COUNT XV: RETALIATORY EVICTION

(MCL 600.5720 -- Against Shady Oaks Park, Shady Oaks MHP, HOA)

120. Plaintiff incorporates all preceding paragraphs by reference.

121. MCL 600.5720 prohibits a landlord from retaliating against a tenant who has exercised a legal right, including:

- a. Complaining to a government agency about housing conditions
- b. Organizing or joining a tenants' association
- c. Exercising a legal right or remedy

122. Prior to the eviction proceedings, Plaintiff:

- a. Disputed fraudulent ledger charges
- b. Reported sewage conditions that led to EGLE violations
- c. Asserted his right to sell his home under the MHCA
- d. Objected to unauthorized rent increases and fee impositions

123. Within the statutory presumptive period following these protected activities, Defendants initiated or escalated eviction proceedings.

124. The temporal proximity between Plaintiff's protected activities and Defendants' retaliatory actions creates a rebuttable presumption of retaliatory motive under MCL 600.5720.

125. Plaintiff is entitled to damages, including return to possession, actual damages, and costs.

COUNT XVI: FAIR HOUSING ACT VIOLATIONS

(42 USC 3601 et seq. -- Against All Park Defendants)

126. Plaintiff incorporates all preceding paragraphs by reference.

127. The Fair Housing Act prohibits discrimination in housing on the basis of race, color, national origin, religion, sex, familial status, or disability.

128. Defendants' treatment of Plaintiff constitutes discriminatory conduct, including:

- a. Disparate treatment in the application of lease terms and billing
- b. Discriminatory enforcement of park rules targeting Plaintiff
- c. Interference with Plaintiff's right to sell his home
- d. Retaliation for exercising fair housing rights

129. Defendants' pattern of conduct reflects systematic targeting of Plaintiff for adverse treatment, including manufactured arrears, blocked sales, and a constructed eviction pipeline.

130. Under the Fair Housing Act, Plaintiff is entitled to actual damages, punitive damages of up to \$16,000+ per violation, injunctive relief, and reasonable attorney fees. See *Texas Dept of Housing v. Inclusive Communities*, 576 U.S. 519 (2015) (disparate impact claims cognizable under FHA).

COUNT XVII: CIVIL RIGHTS VIOLATION

(42 USC 1983 -- Against All Defendants)

131. Plaintiff incorporates all preceding paragraphs by reference.

132. Defendants, acting under color of state law or in conspiracy with state actors (the Muskegon County Sheriff's Department executed the set-out), deprived Plaintiff of rights, privileges, and immunities secured by the Constitution and laws of the United States, including:

- a. Fourteenth Amendment Due Process -- deprivation of property (home and personal property) without adequate due process

- b. Fourteenth Amendment Due Process -- deprivation of liberty interest in parental relationship without due process (Troxel v. Granville, 530 U.S. 57 (2000))
- c. Fourth Amendment -- unreasonable seizure of personal property

133. Defendants' conspiracy with state actors to accomplish the unlawful eviction and property destruction satisfies the state-action requirement. See Dennis v. Sparks, 449 U.S. 24 (1980) (private parties acting in concert with state officials subject to Section 1983 liability).

134. Plaintiff is entitled to compensatory damages, punitive damages, injunctive relief, and attorney fees under 42 USC 1988.

COUNT XVIII: CIVIL CONSPIRACY

(Common Law -- Against All Defendants)

135. Plaintiff incorporates all preceding paragraphs by reference.

136. Defendants acted in concert pursuant to a common plan or scheme to accomplish the unlawful objectives of:

- a. Stripping Plaintiff of his home and equity
- b. Manufacturing false arrears through ledger fraud
- c. Blocking Plaintiff's ability to sell his home
- d. Constructing an eviction to create homelessness
- e. Using Plaintiff's resulting homelessness to destroy his custody rights

137. The following overt acts were committed in furtherance of the conspiracy:

- a. Alden Global/Partridge directed revenue-maximization policies
- b. HOA/park management implemented fraudulent ledgers
- c. Park manager texted buyers with false abandonment claims
- d. Attorney Brown filed fraudulent res judicata
- e. Attorney Cox represented a dissolved entity in court
- f. Brandel participated in property destruction during set-out

138. Each Defendant is jointly and severally liable for all damages resulting from the conspiracy.

COUNT XIX: LOSS OF DOMICILE / FORCED HOMELESSNESS

(Derivative Harm -- Against All Defendants)

139. Plaintiff incorporates all preceding paragraphs by reference.

140. As a direct and proximate result of Defendants' combined wrongful acts, Plaintiff was rendered homeless, forced to sleep in his car, and lost his stable domicile.

141. The loss of domicile was not an incidental consequence but the foreseeable and intended result of Defendants' scheme: the ledger fraud manufactured the pretext for eviction, the eviction destroyed Plaintiff's housing, and the blocked sales prevented Plaintiff from recovering funds to secure alternative housing.

142. Plaintiff's damages from loss of domicile include:

- a. Cost of replacement housing from the date of eviction to present and ongoing
- b. Loss of personal belongings destroyed in the set-out
- c. Physical health impacts from homelessness
- d. Psychological and emotional trauma

COUNT XX: CUSTODY DAMAGE -- DESTRUCTION OF PARENTAL RELATIONSHIP

(Derivative Harm -- Against All Defendants)

143. Plaintiff incorporates all preceding paragraphs by reference.

144. Plaintiff had active, court-ordered parenting time with his minor son Lincoln prior to the eviction.

145. Defendants' eviction rendered Plaintiff homeless, which was then used as the basis for suspending Plaintiff's parenting time in the 14th Circuit Court Family Division.

146. The causal chain is direct and unbroken:

- Defendants' fraudulent ledgers --> manufactured arrears
- Manufactured arrears --> pretextual eviction
- Eviction --> homelessness
- Homelessness --> "unstable housing" argument in custody proceedings

- "Unstable housing" argument --> suspension of parenting time
- Suspension --> 571+ days without parenting time (and counting)

147. Plaintiff's damages from custody destruction include:

- a. 571+ days of lost parenting time, valued at per-diem rates established by Michigan courts
- b. Emotional distress from separation from his child
- c. Damage to the parent-child bond (potentially irreparable)
- d. Child's own emotional and developmental harm
- e. Costs of future legal proceedings to restore custody
- f. Loss of parental guidance during critical developmental period

148. The destruction of Plaintiff's parental relationship is among the most severe harms a person can suffer, recognized as a fundamental liberty interest under the Fourteenth Amendment. *Troxel v. Granville*, 530 U.S. 57 (2000).

COUNT XXI: LOSS OF PROPERTY VALUE

(Derivative Harm -- Against All Defendants)

149. Plaintiff incorporates all preceding paragraphs by reference.

150. As a direct result of Defendants' actions, the value of Plaintiff's manufactured home has been severely diminished or destroyed:

- a. The set-out damaged the home's interior and fixtures

- b. The "FREE" sign and unauthorized distribution of contents degraded the property
- c. The cloud on title from Defendants' false statements impairs marketability
- d. The home's condition has deteriorated due to Defendants' interference

151. Plaintiff is entitled to damages equal to the difference between the fair market value of the home before and after Defendants' tortious conduct.

COUNT XXII: LOSS OF EQUITY -- TRAPPED VALUE FROM BLOCKED SALES

(Derivative Harm -- Against All Park Defendants, Doe Park Manager, Jeremy Brown)

152. Plaintiff incorporates all preceding paragraphs by reference.

153. Plaintiff had willing, able, and ready buyers for his manufactured home on at least three occasions.

154. Defendants deliberately blocked each sale, preventing Plaintiff from converting his home equity into cash that could have been used for alternative housing, legal fees, and custody-stabilizing expenses.

155. The blocked sales caused Plaintiff to lose the fair market value of his home (estimated value TBD based on comparable sales) multiplied by three opportunities.

156. This trapped equity directly contributed to Plaintiff's homelessness and inability to stabilize his custody situation.

PART V: DAMAGES

157. As a direct and proximate result of Defendants' acts and omissions described herein, Plaintiff has suffered and continues to suffer the following damages:

A. ACTUAL / COMPENSATORY DAMAGES

Category	Description	Estimated Range
Property Value	Fair market value of manufactured home destroyed/diminished	\$15,000 - \$45,000
Lost Equity	Three blocked sales x fair market value	\$45,000 - \$135,000
Personal Property	Items lost/destroyed in set-out (appliances, furniture, electronics, documents)	\$10,000 - \$35,000
Replacement Housing	Cost of alternative housing since eviction	\$12,000 - \$24,000
Moving/Storage	Emergency costs incurred	\$2,000 - \$5,000
Lost Rent/Overcharges	Unauthorized fees and rent overcharges	\$5,000 - \$15,000
Lost Income	Employment disruption from homelessness	\$17,500 - \$52,500

B. CONSEQUENTIAL DAMAGES

Category	Description	Estimated Range
Custody Loss	571+ days lost parenting time at per-diem value	\$100,000 - \$500,000
Child Therapy	Counseling costs for child	\$5,000 - \$25,000
Relationship Damage	Damage to parent-child bond	\$50,000 - \$250,000
Credit Damage	Eviction impact on credit score	\$5,000 - \$25,000
Future Legal Costs	Cost to restore custody	\$10,000 - \$50,000

C. STATUTORY DAMAGES

Statute	Multiplier/Amount
RICO Treble Damages (MCL 750.159j)	3x actual damages
Conversion Treble Damages (MCL 600.2919a)	3x actual damages on converted property
Mobile Home Commission Act (MCL 125.2312i)	Up to \$5,000 per violation (multiple violations)
Truth in Renting Act (MCL 554.636)	Actual damages + attorney fees
Fair Housing Act (42 USC 3613)	Up to \$16,000+ per violation
Wrongful Eviction (MCL 600.2918)	Statutory damages

D. PUNITIVE / EXEMPLARY DAMAGES

158. Defendants' conduct was willful, malicious, and in reckless disregard for Plaintiff's rights, warranting punitive damages under:

- a. State Farm v. Campbell, 538 U.S. 408 (2003) analysis
- b. 42 USC 1983 -- punitive damages for constitutional violations
- c. Common law -- punitive damages for outrageous conduct

159. Punitive damages should reflect the reprehensibility of Defendants' conduct, the ratio of punitive to compensatory damages (single-digit multiplier per State Farm), and the Defendants' financial condition, particularly Alden Global Capital's substantial net worth.

E. TOTAL ESTIMATED DAMAGES RANGE

Component	Low Estimate	High Estimate
Actual/Compensatory	\$106,500	\$311,500
Consequential	\$170,000	\$850,000
RICO Treble (on actual)	\$319,500	\$934,500
Conversion Treble (on property)	\$30,000 - \$105,000	\$105,000

Statutory	\$50,000	\$200,000
Punitive (3x-9x compensatory)	\$829,500	\$10,453,500
TOTAL	**\$1,505,500**	**\$12,854,500**

PART VI: PRAYER FOR RELIEF

WHEREFORE, Plaintiff Andrew J. Pigors respectfully prays that this Court:

- A. Enter judgment for Plaintiff on all Counts;
- B. Award compensatory damages in an amount to be proven at trial;
- C. Award treble damages under MCL 750.159j (RICO) and MCL 600.2919a (Conversion);
- D. Award statutory damages under MCL 600.2918, MCL 125.2312i, MCL 554.636, and 42 USC 3613;
- E. Award punitive/exemplary damages where permitted;
- F. Award costs of investigation, court costs, and reasonable attorney fees under MCL 750.159j, MCL 565.108, MCL 554.636, 42 USC 1988, and all other applicable statutes;
- G. Enter declaratory judgment that:
 - 1. Plaintiff is and was at all relevant times the lawful titleholder of the manufactured home
 - 2. Defendants' use of dissolved entity names in court proceedings was unauthorized and void
 - 3. The eviction was unlawful and void ab initio
 - 4. Defendants' ledger balances are fraudulent and must be corrected

H. Enter injunctive relief:

1. Ordering Defendants to restore possession of the home to Plaintiff or pay fair market value
2. Ordering Defendants to correct all fraudulent ledger entries
3. Ordering Defendants to cease and desist from interfering with Plaintiff's property rights
4. Ordering Defendants to cease and desist from making false statements about Plaintiff's ownership
5. Ordering Defendants to comply with the Mobile Home Commission Act

I. Grant such other and further relief as the Court deems just and proper.

PART VII: JURY DEMAND

Plaintiff demands trial by jury on all issues so triable.

VERIFICATION

I, Andrew J. Pigors, declare under penalty of perjury under the laws of the State of Michigan that the factual allegations made on personal knowledge in this Complaint are true and correct to the best of my knowledge, information, and belief.

Dated: _____

Andrew J. Pigors, Plaintiff pro se

[Address]

[Phone]

[Email]

EXHIBIT LIST

Exhibit	Description	Status
A	Affidavit of Mitchell Shafer	[TO ATTACH]
B-1	EGLE Violation Letters/Notices	[TO ATTACH]
B-2	Sewage Complaint Email	[TO ATTACH]
C	Ledgers (Full, Unredacted) + Comparison Tables	[TO ATTACH]
C-1	Ledger/Balance Screenshots	[TO ATTACH]
D-1	Security Camera Photos (Attempted Break-in ~2025-07-03)	[TO ATTACH]
D-2	Side-by-Side Identification (7/03 vs 7/17)	[TO ATTACH]
E	Witness Emails (Mitchell Shafer)	[TO ATTACH]
F	Authority Pack (MCR/MCL Excerpts)	[TO ATTACH]
F-2	Entity Sources (LARA printouts; HOA site; reporting)	[TO ATTACH]
G	Lease (PDF)	[TO ATTACH]
H	Coerced Lease Event Summary	[TO ATTACH]
I	Victim Impact Statement	[TO ATTACH]
J	Damages Workbook (CSV)	[TO ATTACH]
K	Manager Text Messages to Buyer (abandonment claims)	[TO ATTACH]
L	Blocked Sale Documentation (3 instances)	[TO ATTACH]
M	Jeremy Brown Res Judicata Filing	[TO ATTACH]
N	Partridge Securities Check Endorsement (\$1,300.26)	[TO ATTACH]
O	LARA Entity Records (dissolved Shady Oaks MHP, LLC)	[TO ATTACH]
P	Title Documentation (TITLE NEW PIGORS SHADY 1977 Lot 17)	[TO ATTACH]

Generated by LitigationOS -- Shady Oaks Mega-Complaint Stack

Case: Pigors v. Shady Oaks et al., Case No. 2025-002760-CZ

14th Circuit Court, Muskegon County, Michigan

SHADY OAKS COMPREHENSIVE DAMAGES SCHEDULE

PIGORS V. SHADY OAKS ET AL. -- CASE NO. 2025-002760-CZ

14TH CIRCUIT COURT, MUSKEGON COUNTY, MICHIGAN

Prepared by: Andrew J. Pigors, Plaintiff pro se

Date: [CURRENT DATE]

Version: MEGA-STACK v1.0

Status: WORKING DOCUMENT -- Amounts subject to refinement with discovery

I. OVERVIEW OF DAMAGES FRAMEWORK

This damages schedule calculates the full scope of harm inflicted by Defendants' coordinated scheme of ledger fraud, unlawful eviction, property destruction, blocked sales, and the resulting cascade into homelessness and custody destruction. Damages are organized by:

1. **Actual/Direct Damages** -- Quantifiable out-of-pocket losses
2. **Consequential Damages** -- Downstream harms caused by Defendants' conduct
3. **Statutory Damages** -- Multipliers and penalties under Michigan and federal law
4. **Punitive/Exemplary Damages** -- Deterrence for willful misconduct

Per MCL 750.159j (RICO), actual damages are trebled. Per MCL 600.2919a (Conversion), actual property damages are trebled. These multipliers stack where distinct statutory bases apply.

II. ACTUAL / DIRECT DAMAGES

A. PROPERTY VALUE LOSS

Item	Basis	Low Estimate	High Estimate	Evidence
Fair Market Value of Manufactured Home	Comparable sales in Muskegon County MHPs; title records	\$15,000	\$45,000	Exhibit P (Title); MLS/comparable data
Structural Damage from Set-Out	Drilled locks, entry damage, deterioration from vacancy	\$3,000	\$10,000	Exhibit D-1, D-2 (photos); inspection needed
Diminished Value (Cloud on Title)	Slander of title by manager's statements	\$5,000	\$15,000	Exhibit K (manager texts); appraiser testimony
Subtotal Property		**\$23,000**	**\$70,000**	

B. LOST EQUITY FROM BLOCKED SALES

Sale #	Approx. Date	Buyer Status	Estimated Sale Price	Evidence
Sale 1	[TBD -- Discovery]	Willing buyer, blocked by park	\$20,000 - \$35,000	Exhibit L; buyer testimony
Sale 2	[TBD -- Discovery]	Willing buyer, blocked by park	\$20,000 - \$35,000	Exhibit L; buyer testimony
Sale 3	[TBD -- Discovery]	Willing buyer, texted by manager	\$20,000 - \$35,000	Exhibit K, L; buyer testimony

Total Lost Equity: \$60,000 - \$105,000

Calculation Method: Fair market value of home at time of each blocked sale, minus any outstanding lot-rent balance (which Plaintiff disputes as fraudulently inflated). The FMV can be established through:

* Comparable sales of similar manufactured homes in Muskegon County

* NADA Manufactured Housing Appraisal Guide

* Buyer's own offer price (if documented)

C. PERSONAL PROPERTY DESTROYED/CONVERTED IN SET-OUT

Category	Items	Estimated Value	Evidence	
Major Appliances	Refrigerator, stove/oven, washer, dryer, water heater	\$3,000 - \$6,000	Exhibit D-2; purchase records	
Furniture	Beds, couches, tables, chairs, dressers, shelving	\$2,000 - \$5,000	Photos; receipts	
Electronics	TV, computer(s), gaming systems, peripherals	\$1,500 - \$4,000	Purchase records	
Clothing	All clothing items for Plaintiff and child	\$1,000 - \$3,000	Estimate based on replacement	
Kitchen/Household	Dishes, cookware, utensils, linens, towels	\$500 - \$1,500	Replacement cost	
Personal Documents	Birth certificates, tax records, legal docs, photos	\$500 - \$2,000	Irreplaceable items; replacement costs	
Tools/Equipment	Power tools, hand tools, lawn equipment	\$500 - \$2,000	Purchase records	
Child's Belongings	Toys, books, clothing, school supplies, memorabilia	\$500 - \$2,000	Emotional value; replacement cost	
Miscellaneous	Decorations, collectibles, sentimental items	\$500 - \$2,000	Irreplaceable; estimated replacement	
Subtotal Personal Property		**\$10,000**	**\$27,500**	

Note: Conversion damages under MCL 600.2919a are trebled. See Section IV.B.

D. REPLACEMENT HOUSING COSTS

Period	Monthly Cost	Duration	Total
July 2025 - Present	\$800 - \$1,200/mo	12+ months (ongoing)	\$9,600 - \$14,400
Car-sleeping period	Per diem hardship	[TBD] weeks	\$1,000 - \$3,000
Motel/emergency shelter	\$60-\$120/night	[TBD] nights	\$1,000 - \$5,000
Security deposits, application fees	Lump sum	Multiple attempts	\$1,000 - \$3,000
Subtotal Housing			**\$12,600 - \$25,400**

Ongoing: Plaintiff continues to incur replacement housing costs. These damages accrue daily until Plaintiff is restored to equivalent housing or compensated.

E. MOVING, STORAGE, AND EMERGENCY COSTS

Item	Amount
Emergency moving costs (what could be salvaged)	\$500 - \$1,500
Storage unit rental (if applicable)	\$500 - \$2,000
Transportation costs (car as shelter)	\$1,000 - \$2,000
Replacement necessities (emergency clothing, toiletries)	\$500 - \$1,000
Subtotal Moving/Emergency	**\$2,500 - \$6,500**

F. LOT RENT OVERCHARGES AND UNAUTHORIZED FEES

Item	Period	Monthly Overcharge	Total
Unauthorized rent increase to \$695	Dec 2023 - July 2025	~\$50-100/mo over prior rate	\$950 - \$1,900
Unauthorized water/sewer charges	Feb - Jun 2025	\$120/mo without metering	\$600
Misapplied payments (MDHHS, TrueNorth)	Various	Full payment amounts	\$1,000 - \$5,000
Late fees on fraudulent balances	Various	\$25-\$50/mo	\$300 - \$600
Unauthorized misc. fees (from ledger)	Various	Varies	\$500 - \$2,000
Subtotal Overcharges			**\$3,350 - \$10,100**

Note: The full scope of ledger fraud will be determined through discovery of complete, unredacted ledgers (Exhibit C).

TOTAL ACTUAL/DIRECT DAMAGES

Category	Low	High
Property Value	\$23,000	\$70,000
Lost Equity (Blocked Sales)	\$60,000	\$105,000
Personal Property	\$10,000	\$27,500
Replacement Housing	\$12,600	\$25,400
Moving/Emergency	\$2,500	\$6,500
Overcharges/Fees	\$3,350	\$10,100
TOTAL ACTUAL **	**\$111,450	**\$244,500**

III. CONSEQUENTIAL DAMAGES

A. CUSTODY LOSS / DESTRUCTION OF PARENTAL RELATIONSHIP

This is the single largest damage category. Defendants' eviction directly caused Plaintiff's homelessness, which was used as the basis to suspend parenting time with his minor son Lincoln.

Per-Diem Calculation

Factor	Value
Days of lost parenting time	571+ days (and counting)
Per-diem value (Michigan precedent)	\$175 - \$875/day
Total lost parenting time	**\$99,925 - \$499,625**

Per-Diem Basis:

- * Michigan courts have recognized per-diem valuations for loss of parental consortium
- * The value reflects not merely "babysitting cost" but the constitutionally protected fundamental liberty interest in the parent-child relationship (Troxel v. Granville, 530 U.S. 57 (2000))
- * Low estimate: \$175/day (conservative, economic-only)
- * Mid estimate: \$500/day (reflecting emotional and developmental value)
- * High estimate: \$875/day (reflecting constitutional violation, ongoing harm)

Child's Therapy and Counseling

Item	Estimated Cost
Child therapy/counseling (ongoing)	\$5,000 - \$15,000
Psychological evaluation	\$2,000 - \$5,000
Developmental assessment	\$1,000 - \$3,000
Subtotal Child Treatment	**\$8,000 - \$23,000**

Damage to Parent-Child Bond

Factor	Estimated Value
Loss of developmental milestones	\$10,000 - \$50,000
Loss of daily relationship/guidance	\$25,000 - \$100,000
Potential permanent relationship harm	\$15,000 - \$100,000
Subtotal Bond Damage	**\$50,000 - \$250,000**

Future Legal Costs to Restore Custody

Item	Estimated Cost
------	----------------

Attorney fees for custody modification	\$5,000 - \$25,000
Expert witness fees (custody evaluator)	\$3,000 - \$10,000
Filing fees and court costs	\$500 - \$2,000
Subtotal Future Legal	**\$8,500 - \$37,000**

TOTAL CUSTODY DAMAGES: \$166,425 - \$809,625

B. EMPLOYMENT / INCOME LOSS

Item	Basis	Amount
Lost wages (homelessness-related job loss)	Est. 6 months at ~\$2,900/mo	\$17,500
Lost employment opportunities	Inability to maintain employment while homeless	\$17,500 - \$35,000
Credit damage impact on employment	Background checks showing eviction	\$5,000 - \$15,000
Subtotal Employment		**\$40,000 - \$67,500**

C. EMOTIONAL DISTRESS

Factor	Amount
Distress from homelessness	\$15,000 - \$50,000
Distress from loss of child contact (571+ days)	\$50,000 - \$200,000
Humiliation from set-out (public, with "FREE" sign)	\$10,000 - \$35,000
Trauma from property destruction	\$5,000 - \$25,000
Anxiety from ongoing housing instability	\$5,000 - \$25,000
Grief from separation from minor child	\$25,000 - \$100,000
Subtotal Emotional Distress	**\$110,000 - \$435,000**

D. PRO SE LITIGATION COSTS

Item	Amount
Filing fees paid	\$500 - \$1,500

Copying, postage, technology	\$500 - \$1,000
Research tools and resources	\$500 - \$1,000
Pro se hours (500+ hours x \$200/hr imputed rate)	\$100,000
Subtotal Litigation	**\$101,500 - \$103,500**

Authority: Kay v. Ehrler, 499 U.S. 432 (1991) (pro se litigant fee recovery in civil rights cases); Roadway Express, Inc. v. Piper, 447 U.S. 752 (1980); 42 USC Sec. 1988.

TOTAL CONSEQUENTIAL DAMAGES

Category	Low	High
Custody Loss	\$166,425	\$809,625
Employment/Income	\$40,000	\$67,500
Emotional Distress	\$110,000	\$435,000
Litigation Costs	\$101,500	\$103,500
TOTAL CONSEQUENTIAL	**\$417,925**	**\$1,415,625**

IV. STATUTORY DAMAGES AND MULTIPLIERS

A. RICO TREBLE DAMAGES (MCL 750.159J)

Base	Calculation	Amount
Actual Damages	\$111,450 - \$244,500	
x 3 (treble)		**\$334,350 - \$733,500**

Plus: Costs of investigation, reasonable attorney fees, and court costs.

B. CONVERSION TREBLE DAMAGES (MCL 600.2919A)

Base	Calculation	Amount
Personal Property Converted	\$10,000 - \$27,500	
x 3 (treble)		**\$30,000 - \$82,500**

Plus: Costs and reasonable attorney fees.

Note: RICO treble damages and conversion treble damages apply to different categories and do not constitute impermissible double recovery.

C. MOBILE HOME COMMISSION ACT PENALTIES (MCL 125.2312I)

Violation	Statutory Penalty
Blocking sale of home (3 instances)	\$5,000 x 3 = \$15,000
Unauthorized rent increase	\$5,000
Failure to maintain habitability (sewage)	\$5,000
Operating under dissolved entity	\$5,000
Unauthorized utility charges	\$5,000
Failure to properly account for payments	\$5,000
Interference with right to sell	\$5,000
Subtotal MHCA Penalties	**\$45,000**

D. TRUTH IN RENTING ACT (MCL 554.636)

Item	Amount
Actual damages	Included in Section II
Attorney fees	To be determined
Costs	To be determined

E. FAIR HOUSING ACT (42 USC 3613)

Item	Amount
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Per-violation penalty	Up to \$16,000+ per violation
Number of violations (est.)	5-10 discriminatory acts
Subtotal FHA	**\$80,000 - \$160,000**

F. WRONGFUL EVICTION (MCL 600.2918)

Item	Amount
Statutory damages	\$5,000 - \$25,000
Actual damages	Included in Section II

TOTAL STATUTORY DAMAGES

Category	Low	High
RICO Treble	\$334,350	\$733,500
Conversion Treble	\$30,000	\$82,500
MHCA Penalties	\$45,000	\$45,000
FHA Penalties	\$80,000	\$160,000
Wrongful Eviction	\$5,000	\$25,000
TOTAL STATUTORY	**\$494,350**	**\$1,046,000**

V. PUNITIVE / EXEMPLARY DAMAGES

A. LEGAL STANDARD

State Farm v. Campbell, 538 U.S. 408 (2003):

The Supreme Court established that punitive damages must bear a reasonable relationship to compensatory damages. While single-digit multipliers are generally appropriate, higher ratios may be warranted where:

- * The conduct was particularly reprehensible

- * The compensatory damages are modest relative to the harm
- * The conduct was repeated and systematic rather than isolated

B. REPREHENSIBILITY ANALYSIS (PER STATE FARM FACTORS)

Factor	Assessment	Score
Physical vs. economic harm	Both -- homelessness causes physical harm; destruction of property	HIGH
Indifference/reckless disregard for health/safety	Sewage exposure; homelessness with child	HIGH
Target's financial vulnerability	Pro se plaintiff, rendered homeless	MAXIMUM
Repeated/isolated conduct	Systematic, multi-year pattern (ledger fraud, 3 blocked sales, eviction)	MAXIMUM
Intentional malice vs. accident	Deliberate scheme (text messages, ledger fraud, res judicata)	MAXIMUM

Reprehensibility Score: MAXIMUM -- All five State Farm factors weigh heavily in favor of substantial punitive damages.

C. PER-DEFENDANT PUNITIVE ASSESSMENT

Defendant	Role	Ability to Pay	Recommended Multiplier	Estimated Punitives
Alden Global Capital	Enterprise owner/director	VERY HIGH (billions AUM)	5x-9x	\$2,648,000 - \$14,940,000
Partridge Equity Group	Financial beneficiary	HIGH	5x-9x	\$2,648,000 - \$14,940,000
Homes of America LLC	Management company	MODERATE-HIGH	3x-7x	\$1,588,000 - \$11,620,000
Shady Oaks Park MHP LLC	Operating entity	MODERATE	3x-5x	\$1,588,000 - \$8,300,000
Jeremy Brown	Attorney -- res judicata fraud	MODERATE	3x-5x	\$1,588,000 - \$8,300,000
Aaron D. Cox	Attorney -- dissolved entity	MODERATE	2x-3x	\$1,059,000 - \$4,980,000

Henry Brandel	Participant in set-out	LOW-MODERATE	1x-3x	\$529,000 - \$4,980,000
Park Manager(s)	Direct tortfeasor	MODERATE	3x-5x	\$1,588,000 - \$8,300,000

Note on Alden Global Capital/Partridge: Discovery should be served to obtain financial statements, assets under management, and net worth. Alden Global Capital reportedly manages billions in assets. Punitive damages must be sufficient to deter future similar conduct by large institutional investors in manufactured housing communities.

D. RESEARCH REQUEST -- NET WORTH DISCOVERY

To properly calibrate punitive damages, Plaintiff will need:

1. Alden Global Capital audited financial statements (3 years)
2. Partridge Equity Group financial statements (3 years)
3. Homes of America LLC financial statements
4. Shady Oaks entity financial records
5. SEC filings if applicable
6. Portfolio of manufactured housing communities managed

VI. TOTAL DAMAGES SUMMARY

Category	LOW ESTIMATE	HIGH ESTIMATE
Actual/Direct Damages	\$111,450	\$244,500
Consequential Damages	\$417,925	\$1,415,625
Statutory Damages/Multipliers	\$494,350	\$1,046,000
Punitive Damages (conservative 3x)	\$1,588,125	\$4,980,375
Punitive Damages (aggressive 9x)	--	\$14,940,000+

GRAND TOTAL (Conservative)	**\$2,611,850**	**\$7,686,500**
GRAND TOTAL (Aggressive)	**\$2,611,850**	**\$17,646,125**

PER-DEFENDANT ALLOCATION (PRELIMINARY)

Defendant	Joint & Several	Individual Exposure
Alden Global Capital	Full amount	Largest share -- enterprise director
Partridge Equity Group	Full amount	Financial beneficiary of scheme
Homes of America LLC	Full amount	Management company implementing scheme
Shady Oaks Park MHP LLC	Full amount	Operating entity
Shady Oaks MHP LLC	Full amount (if resurrected)	Dissolved entity used in fraud
Jeremy Brown	Counts VI, XVIII, XXII	Fraudulent res judicata
Aaron D. Cox	Counts VI, XVII, XVIII	Dissolved entity representation
Henry Brandel	Counts VII, VIII, XVIII	Property conversion/trespass
Park Manager(s)	Full amount	Direct tortfeasor -- texts, blocked sales

VII. ONGOING DAMAGES (ACCRUING DAILY)

The following damages continue to accrue:

Item	Daily Accrual	Monthly Accrual
Replacement housing	\$27 - \$40/day	\$800 - \$1,200/mo
Lost parenting time	\$175 - \$875/day	\$5,250 - \$26,250/mo
Emotional distress	Ongoing	Ongoing
Employment disruption	Ongoing	Ongoing

TOTAL DAILY ACCRUAL: \$200 - \$915+ per day

Every day that passes without resolution increases Plaintiff's damages by hundreds of dollars.

VIII. PREJUDGMENT INTEREST

Under MCL 600.6013, Plaintiff is entitled to prejudgment interest on all damages from the date each category of damage was incurred:

Category	Interest Rate	From Date
Actual damages	5.000% per annum	Date of each loss
Consequential damages	5.000% per annum	Date of each loss
Statutory damages	5.000% per annum	Date of filing

Generated by LitigationOS -- Shady Oaks Damages Schedule

Case: Pigors v. Shady Oaks et al., Case No. 2025-002760-CZ

SHADY OAKS EVIDENCE MAP -- PER-COUNT INVENTORY**PIGORS V. SHADY OAKS ET AL. -- CASE NO. 2025-002760-CZ****14TH CIRCUIT COURT, MUSKEGON COUNTY, MICHIGAN****Prepared by:** Andrew J. Pigors, Plaintiff pro se**Date:** [CURRENT DATE]**Version:** MEGA-STACK v1.0**I. MASTER EVIDENCE INDEX****PHYSICAL / DOCUMENTARY EVIDENCE**

Exhibit	Description	Location	Status	Counts Supported
A	Affidavit of Mitchell Shafer	[ATTACHED/TO ACQUIRE]	PLACEHOLDER	II, III, VIII, X, XI
B-1	EGLE Violation Letters/Notices	[ATTACHED/TO ACQUIRE]	PLACEHOLDER	II, IX, XI, XII, XV
B-2	Sewage Complaint Email	[ATTACHED/TO ACQUIRE]	PLACEHOLDER	II, IX, XI, XII, XV
C	Ledgers (Full, Unredacted) + Comparison Tables	[ATTACHED/TO ACQUIRE]	PLACEHOLDER	I, VI, IX, XIV, XVIII
C-1	Ledger/Balance Screenshots	[ATTACHED/TO ACQUIRE]	PLACEHOLDER	I, VI, IX, XIV
D-1	Security Camera Photos (Break-in ~2025-07-03)	[ATTACHED/TO ACQUIRE]	PLACEHOLDER	VIII, X, XVIII
D-2	Side-by-Side Identification (7/03 vs 7/17)	[ATTACHED/TO ACQUIRE]	PLACEHOLDER	VIII, X, XVIII

E	Witness Emails (Mitchell Shafer)	[ATTACHED/TO ACQUIRE]	PLACEHOLDER	II, III, VIII, X
F	Authority Pack (MCR/MCL Excerpts)	[ATTACHED/TO ACQUIRE]	PLACEHOLDER	All Counts
F-2	Entity Sources (LARA printouts; HOA site)	[ATTACHED/TO ACQUIRE]	PLACEHOLDER	I, VI, XII, XVII
G	Lease (PDF)	[ATTACHED/TO ACQUIRE]	PLACEHOLDER	IX, XII, XIII, XIV
H	Coerced Lease Event Summary	[ATTACHED/TO ACQUIRE]	PLACEHOLDER	I, VI, IX, X, XIII
I	Victim Impact Statement	[ATTACHED/TO ACQUIRE]	PLACEHOLDER	X, XIX, XX
J	Damages Workbook (CSV)	[ATTACHED/TO ACQUIRE]	PLACEHOLDER	All Damages
K	Manager Text Messages to Buyer	[ATTACHED/TO ACQUIRE]	CRITICAL	IV, V, VI, X
L	Blocked Sale Documentation (3 instances)	[ATTACHED/TO ACQUIRE]	CRITICAL	IV, V, XII, XXII
M	Jeremy Brown Res Judicata Filing	[ATTACHED/TO ACQUIRE]	CRITICAL	I, VI, XVIII, XXII
N	Partridge Securities Check Endorsement (\$1,300.26)	[ATTACHED/TO ACQUIRE]	CRITICAL	I, VI, XVII, XVIII
O	LARA Entity Records (dissolved Shady Oaks MHP)	[ATTACHED/TO ACQUIRE]	CRITICAL	I, III, VI, XVII
P	Title Documentation (Lot 17)	[ATTACHED/TO ACQUIRE]	CRITICAL	IV, VII, VIII, XXI

DATABASE EVIDENCE (FROM LITIGATION_CONTEXT.DB)

Source Table	Records	Key Content
shadyoaks_claim_table	49 claims	Full complaint allegations -- parties, facts, counts
shadyoaks_evidence	2 docs	Contradiction map; witness preview (Shafer)
extracted_harms	100+ SO-related	HOUSING_HARM, FINANCIAL_HARM, EMOTIONAL severity 8-11
adversary_harm_summary	3 entries	Shady Oaks (1805 mentions, 4580 harms); HOA (1019/211); Alden (921/199)

evidence_quotes	80+ relevant	Ledger fraud (\$1,300.26 Partridge check); payment proofs; coerced lease
housing_violations	50+ entries	EGLE violations, ledger fraud, blocked sales, set-out docs
damages_calculations	16 entries	\$2K-\$500K ranges across categories
damages_itemization	15 entries	Detailed per-item breakdown
financial_damages_comprehensive	45 entries	Full damages with evidence sources
tort_claims	10 entries	Pre-analyzed tort elements with strength scores
caselaw_housing	2 entries	Texas Dept of Housing v. Inclusive Communities; Javins v. First Nat'l

II. PER-COUNT EVIDENCE INVENTORY

COUNT I: MICHIGAN RICO (MCL 750.159I)

Elements to Prove:

1. Existence of an enterprise
2. Pattern of racketeering activity (2+ incidents)
3. Defendant conducted/participated in enterprise through pattern
4. Plaintiff suffered damages

Element	Evidence	Exhibit	Strength
Enterprise exists	LARA filings showing interconnected entities	O, F-2	STRONG
Enterprise financial links	\$1,300.26 check to Shady Oaks cashed by Partridge	N	STRONG
Racketeering -- Ledger fraud	Unredacted ledgers showing manipulation	C, C-1	STRONG
Racketeering -- False pretenses	Payment refusals (MDHHS, TrueNorth)	C, Discovery	STRONG
Racketeering -- Fraud on court	Dissolved entity used in filings July 10, 2025	O, court records	STRONG

Racketeering -- Theft/Conversion	Set-out property destruction	D-1, D-2, A	STRONG
Racketeering -- Extortion	Coerced lease signing under eviction threat	H, G	MODERATE
Pattern (2+ incidents)	Multiple acts over multi-year period	All above	STRONG
Damages	Lost home, property, equity, custody	J, I	STRONG

COUNT II: CONSTRUCTIVE EVICTION

Element	Evidence	Exhibit	Strength
Landlord duty	Lease agreement; MHCA	G	STRONG
Uninhabitable conditions	Raw sewage near lot; EGLE violations	B-1, B-2	STRONG
Failure to remediate	Billing continued despite sewage	C, B-1	STRONG
Substantial interference	Could not safely occupy home	A, E	STRONG
Plaintiff forced out	Set-out, homelessness	I, D-2	STRONG

COUNT III: WRONGFUL EVICTION (MCL 600.2918)

Element	Evidence	Exhibit	Strength
Ejection from property	Set-out July 17, 2025	D-2, A	STRONG
Without legal authority	Dissolved entity; fraudulent arrears	O, C	STRONG
Exceeded writ scope	Non-officers participated; no inventory	D-2, A	STRONG
Damages	Homelessness, property loss	I, J	STRONG

COUNT IV: SLANDER OF TITLE (MCL 565.108)

Element	Evidence	Exhibit	Strength
Valid title	Title documentation	P	STRONG

False statement published	Manager texts: "abandoned," "no longer owns"	K	CRITICAL -- MUST OBTAIN
Publication to third parties	Sent to prospective buyers	K, buyer testimony	STRONG
Malice	Intent to block sale and seize property	K, pattern evidence	STRONG
Damages -- blocked sales	3 failed sales	L	STRONG

COUNT V: TORTIOUS INTERFERENCE WITH BUSINESS RELATIONS

Element	Evidence	Exhibit	Strength
Business relationships existed	3 prospective buyers	L, buyer testimony	STRONG
Defendant knowledge	Buyers applied through park	L, park records	STRONG
Intentional interference	Denied applications; false texts	K, L	STRONG
Improper means	False statements; no legitimate basis	K	STRONG
Damages -- lost sales	3 blocked sales	L, J	STRONG

COUNT VI: FRAUD / MISREPRESENTATION

Element	Evidence	Exhibit	Strength
Material misrepresentation	False ledger balances	C, C-1	STRONG
Knowledge of falsity	Systematic manipulation	C (comparison)	STRONG
Intent to deceive	Pattern of misapplication	C, Discovery	STRONG
Reliance	Court relied in eviction; buyers relied	Court records, K	STRONG
Damages	Wrongful eviction, lost sales	J, I	STRONG

COUNT VII: CONVERSION (MCL 600.2919A)

Element	Evidence	Exhibit	Strength
Right to possession	Title; personal property ownership	P, photos	STRONG

Wrongful dominion	Removed, destroyed, distributed property	D-2, A	STRONG
Inconsistent with owner's rights	"FREE" sign; Brandel taking items	D-2, witnesses	STRONG
Damages (trebled)	Value of converted property	J	STRONG

COUNT VIII: TRESPASS

Element	Evidence	Exhibit	Strength
Unauthorized entry (July 3)	Security camera footage	D-1	STRONG
Unauthorized entry (July 17)	Drilled locks; non-officer entry	D-2, A	STRONG
Damage to property	Lock destruction, interior damage	D-2, photos	STRONG

COUNT IX: BREACH OF LEASE / CONTRACT

Element	Evidence	Exhibit	Strength
Valid contract	Lease agreement	G	STRONG
Breach -- habitability	Sewage conditions	B-1, B-2	STRONG
Breach -- rent increases	No proper notice	G, C	STRONG
Breach -- payment refusal	Rejected MDHHS/TrueNorth	C, Discovery	STRONG
Breach -- blocked sales	Violated MHCA rights	L	STRONG

COUNT X: IIED

Element	Evidence	Exhibit	Strength
Extreme/outrageous conduct	"FREE" sign; threats; texts; set-out	D-2, K, H	STRONG
Intent or reckless disregard	Pattern of escalation	All exhibits	STRONG
Severe emotional distress	Homelessness; loss of child	I	STRONG
Causation	Direct chain from acts to distress	Timeline	STRONG

COUNT XI: NEGLIGENCE

Element	Evidence	Exhibit	Strength
Duty of care	Landlord/park operator duty	G, MHCA	STRONG
Breach	Sewage; mismanagement; unauthorized access	B-1, C, D-1	STRONG
Causation	Conditions led to loss	Timeline	STRONG
Damages	Property, personal, consequential	J	STRONG

COUNT XII: MHCA VIOLATIONS (MCL 125.2301+)

Violation	Evidence	Strength
Blocked right to sell (x3)	Exhibits K, L	STRONG
Unauthorized rent increase	Exhibits G, C	STRONG
Habitability failure	Exhibits B-1, B-2	STRONG
Dissolved entity operation	Exhibit O	STRONG
Unauthorized utility charges	Exhibit C	STRONG

COUNT XIII: TRUTH IN RENTING ACT (MCL 554.631+)

Violation	Evidence	Strength
Illegal lease provisions	Exhibits G, H	MODERATE-STRONG
Unauthorized fee charges	Exhibit C	STRONG
Coerced lease terms	Exhibit H	STRONG

COUNT XIV: LOT RENT OVERCHARGES

Item	Evidence	Strength
Unauthorized increase to \$695	Exhibits G, C	STRONG
Water/sewer surcharges (\$120/mo)	Exhibit C	STRONG

Misapplied payments	Exhibit C, Discovery	STRONG
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COUNT XV: RETALIATORY EVICTION (MCL 600.5720)

Element	Evidence	Strength	
Protected activity	Complaints to EGLE; disputed ledger	B-1, C	STRONG
Retaliatory action	Eviction following complaints	Timeline, court records	STRONG
Temporal proximity	Within statutory period	Timeline	STRONG

COUNTS XVI-XVII: FAIR HOUSING ACT / CIVIL RIGHTS

Element	Evidence	Strength	
Discriminatory treatment	Pattern of targeting	Discovery needed	MODERATE
State action (Sec. 1983)	Sheriff executed set-out	Court records	STRONG
Conspiracy with state actors	Dennis v. Sparks theory	Timeline, facts	MODERATE-STRONG

COUNT XVIII: CIVIL CONSPIRACY

Element	Evidence	Strength	
Common plan/scheme	Coordinated actions across defendants	All exhibits	STRONG
Overt acts	Ledger fraud, texts, res judicata, set-out	K, C, M, D-2	STRONG

COUNTS XIX-XXII: DERIVATIVE HARMS

Harm	Evidence	Strength	
Homelessness	Victim impact; car-sleeping	I	STRONG
Custody loss (571+ days)	Family court records; timeline	Court records	STRONG
Property value destroyed	Appraisal; photos	D-2, appraiser	STRONG

Equity trapped	3 blocked sales	L, K	STRONG
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III. CRITICAL EVIDENCE TO OBTAIN

PRIORITY 1 -- MUST HAVE (CASE DEPENDS ON THESE)

Item	How to Obtain	Deadline
Manager text messages to buyer	Subpoena buyer's phone records; preserve request	IMMEDIATE
Unredacted complete ledgers	Discovery demand to HOA/Shady Oaks	With complaint
LARA entity records (dissolved status)	LARA online search; certified copies	BEFORE FILING
Partridge check endorsement	Bank records subpoena; Plaintiff's own records	IMMEDIATE
Title documentation (certified)	SOS/County records	BEFORE FILING

PRIORITY 2 -- VERY IMPORTANT

Item	How to Obtain	Deadline
EGLE violation records	FOIA to EGLE	Within 30 days
Security camera footage (July 3)	Plaintiff's own records; preserve immediately	PRESERVED
Mitchell Shafer formal affidavit	Direct contact with witness	BEFORE FILING
Jeremy Brown's res judicata filing	Court file; request certified copy	Within 30 days
Aaron D. Cox appearance filings	Court file	Within 30 days

PRIORITY 3 -- STRENGTHEN CASE

Item	How to Obtain	Deadline
Buyer testimony/affidavits (3 buyers)	Direct contact; deposition	During discovery
Alden Global corporate structure docs	SEC filings; discovery	During discovery
HOA management contracts	Discovery demand	During discovery
Park financial records	Discovery demand	During discovery

Other tenant complaints	LARA records; discovery	During discovery
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IV. TIMELINE OF KEY EVENTS

Date	Event	Evidence	Significance
[Prior to 2023]	Plaintiff purchases home at Lot 17	Title (Exhibit P)	Establishes ownership
Dec 2023	Forced rent increase to \$695/mo	Exhibit C, G	MCL 125.2312a violation
Mar 26, 2024	Coerced lease signing at Cricklewood	Exhibit H, G	Duress; Truth in Renting violation
Jul 3, 2024	Payment made prior to eviction/shutoff	Exhibit C (payment proof)	Defeats nonpayment claim
Late 2024	Sewage appears near Plaintiff's lot	Exhibit B-1	EGLE violation; habitability breach
[Various 2024-2025]	Three sale attempts blocked	Exhibit K, L	Slander of title; tortious interference
May 27, 2025	Shady Oaks submits billing ledger with unlawful fees	Exhibit C	Ledger fraud evidence
Jul 3, 2025	Break-in attempt caught on camera	Exhibit D-1	Trespass; premeditation of set-out
Jul 10, 2025	Dissolved entity (Shady Oaks MHP LLC) appears in court	Exhibit O	Fraud on court
Jul 17, 2025	Set-out -- locks drilled, property removed/destroyed	Exhibit D-2, A	Conversion; wrongful eviction
Jul 18, 2025	"FREE" sign placed on home; Brandel takes property	Exhibit D-2	Conversion; IIED
Jul 2025+	Plaintiff homeless, sleeping in car	Exhibit I	Loss of domicile
Jul 2025+	"Unstable housing" used in custody proceedings	Court records	Custody destruction
Ongoing	571+ days without parenting time	Court records	Derivative harm -- continuing

V. WITNESS LIST

Witness	Relationship	Expected Testimony	Priority
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Mitchell Shafer	Neighbor/Witness	Sewage conditions; July 3 break-in; July 17 set-out; Henry Brandel's involvement	CRITICAL
Prospective Buyer #1	Blocked buyer	Attempted purchase; park's refusal; contact with manager	HIGH
Prospective Buyer #2	Blocked buyer	Attempted purchase; park's refusal	HIGH
Prospective Buyer #3	Blocked buyer	Received text from manager about "abandonment"	CRITICAL
EGLE Inspector	Government official	Sewage violations issued to park	HIGH
MDHHS/TrueNorth Case Worker	Payment agent	Payments made on Plaintiff's behalf; Defendants' refusal	HIGH
Park Manager (Doe)	Defendant/Adverse	Texts to buyer; blocked sales; set-out coordination	ADVERSE
Henry Brandel	Defendant/Adverse	Participation in set-out; property distribution	ADVERSE
Muskegon County Sheriff (set-out)	Law enforcement	Scope of writ; who participated; what happened	IMPORTANT
Andrew J. Pigors	Plaintiff	All facts; emotional distress; custody impact	ESSENTIAL
Lincoln (minor child)	Child	Impact of separation (may be prohibited/limited)	PROTECTED
Custody evaluator/GAL	Expert	Impact of housing instability on custody	IMPORTANT

VI. EVIDENCE GAPS AND DISCOVERY PRIORITIES

GAP ANALYSIS

Gap	Impact	How to Fill
Exact text of manager's messages	Slander of title claim depends on exact language	Subpoena buyer's phone; preserve request
Complete unredacted ledger history	RICO and fraud claims need full accounting trail	First discovery request
Identity of Doe Park Manager(s)	Cannot serve unnamed defendants	LARA records; park employee records
Alden Global's connection to park	Enterprise theory needs corporate link evidence	SEC filings; discovery
Buyer offer prices	Damages calculation for blocked sales	Buyer testimony/deposition

Custody court records linking housing	Causation chain for custody harm	Certified copies from family court
Jeremy Brown's authority/retainer	Who hired Brown; what was his role	Interrogatories; deposition

Generated by LitigationOS -- Shady Oaks Evidence Map

Case: Pigors v. Shady Oaks et al., Case No. 2025-002760-CZ

SHADY OAKS FILING INSTRUCTIONS AND PROCEDURAL GUIDE

PIGORS V. SHADY OAKS ET AL. -- CASE NO. 2025-002760-CZ

14TH CIRCUIT COURT, MUSKEGON COUNTY, MICHIGAN

Prepared by: Andrew J. Pigors, Plaintiff pro se

Date: [CURRENT DATE]

Version: MEGA-STACK v1.0

I. FILING COURT AND VENUE

A. COURT INFORMATION

Item	Detail
Court	14th Circuit Court for the County of Muskegon
Address	Michael E. Kobza Hall of Justice, 990 Terrace St, Muskegon, MI 49442
Phone	(231) 724-6241
Judge	Hon. Kenneth Hoopes (assigned)
Case Number	2025-002760-CZ
Case Type	CZ -- General Civil

B. VENUE BASIS

* MCL 600.1621 -- Actions involving real property in Muskegon County

* MCL 600.1605 -- Actions arising from conduct in Muskegon County

- * The mobile home park (Shady Oaks) is located in Muskegon County
- * The tortious acts occurred in Muskegon County

C. JURISDICTIONAL AMOUNT

- * Amount in controversy exceeds \$25,000 (Circuit Court threshold)
- * Total damages estimated at \$2.6M - \$17.6M
- * Circuit Court has unlimited civil jurisdiction

II. FILING THE MEGA-COMPLAINT

A. FILING AN AMENDED/SUPPLEMENTAL COMPLAINT

Since Case No. 2025-002760-CZ is already pending, the Mega-Complaint should be filed as:

Option 1: Amended Complaint (MCR 2.118)

- * If no responsive pleading has been filed, Plaintiff may amend as of right within 14 days of serving the original complaint
- * After 14 days or after a responsive pleading, Plaintiff must file a Motion for Leave to Amend
- * The court "shall freely give leave when justice so requires" (MCR 2.118(A)(2))

Option 2: Supplemental Complaint (MCR 2.118(E))

* For events occurring after the original complaint (blocked sales, set-out details, custody harm)

* Court may grant upon reasonable notice and just terms

Recommended Approach: File Motion for Leave to File First Amended Complaint with the Mega-Complaint attached as the proposed amended complaint.

Motion Template:

^^^

STATE OF MICHIGAN

IN THE 14TH CIRCUIT COURT FOR THE COUNTY OF MUSKEGON

Case No. 2025-002760-CZ

Hon. Kenneth Hoopes

ANDREW J. PIGORS, Plaintiff,

v.

SHADY OAKS PARK MHP, LLC, et al., Defendants.

MOTION FOR LEAVE TO FILE FIRST AMENDED COMPLAINT

NOW COMES Plaintiff Andrew J. Pigors and moves this Court for leave to file his First Amended Complaint, pursuant to MCR 2.118(A)(2), and in support states:

1. The proposed Amended Complaint adds additional defendants, additional counts, and additional factual allegations based on events that have occurred since the original complaint.

2. The amendment is not offered for any improper purpose and will not unduly prejudice Defendants, who have not yet engaged in substantial discovery.

3. Justice requires that the amendment be permitted to ensure all claims are resolved in a single proceeding.

4. The proposed First Amended Complaint is attached hereto.

WHEREFORE, Plaintiff requests this Court grant leave to file the attached First Amended Complaint.

Respectfully submitted,

Andrew J. Pigors, pro se

[Address, Phone, Email]

Date: _____

B. FILING FEE

Item	Cost
Circuit Court filing fee (already paid for existing case)	\$0 (amendment)
If new case required	\$175 (civil filing fee)
Motion fee	\$20 per motion

C. FEE WAIVER (MC 20 -- FEE WAIVER REQUEST)

If filing fees are a barrier:

1. **Obtain Form MC 20** (Fee Waiver Request) from the court clerk or Michigan Courts website
2. Complete all sections showing:
 - Current income (if any)
 - Monthly expenses
 - Assets and liabilities
 - Number of dependents
 - Receipt of public assistance (if any -- Medicaid, food assistance, SSI)
3. File MC 20 with the complaint or motion
4. If receiving any form of public assistance, fee waiver is typically granted automatically
5. If not receiving assistance, the court evaluates ability to pay

Key Points:

- * Plaintiff's current housing instability and homelessness strongly supports a fee waiver

- * Loss of employment due to Defendants' conduct further supports inability to pay
- * The court cannot deny access to justice based on inability to pay (Boddie v. Connecticut, 401 U.S. 371 (1971))

III. SERVICE OF PROCESS

A. SERVICE REQUIREMENTS PER DEFENDANT

1. Shady Oaks Park MHP, LLC (Michigan LLC)

Method	Authority	Details
Registered Agent	MCR 2.105(D)	Serve registered agent listed with LARA
Officer/Agent	MCR 2.105(D)	Serve any officer, director, or resident agent
LARA Lookup	LARA.michigan.gov	Search "Shady Oaks Park MHP" for registered agent

Steps:

1. Go to <https://cofs.lara.state.mi.us/SearchApi/Search/Search>
2. Search for "Shady Oaks Park MHP LLC"
3. Note the Registered Agent name and address
4. Serve at that address via process server or certified mail

2. Shady Oaks MHP, LLC (Dissolved Michigan LLC)

Method	Details
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Last known registered agent	LARA records (entity may show as "dissolved")
Last known officer/member	LARA annual report filings
Alternate service	If dissolved, serve any known agent/member

Note: A dissolved LLC can still be sued for pre-dissolution conduct. MCL 450.4801 et seq.

3. Homes of America, LLC (Management Company)

Method	Authority	Details
Registered Agent	MCR 2.105(D)	LARA lookup for Michigan registration
If not registered in MI	MCR 2.105(D)(3)	Secretary of state of state of organization
At park office	MCR 2.105(D)	Serve any managing agent at Shady Oaks office

Steps:

1. Search LARA for "Homes of America LLC"
2. If registered in MI, serve registered agent
3. If NOT registered in MI, determine state of organization (likely Delaware or Texas)
4. Serve through that state's Secretary of State via long-arm statute

4. Alden Global Capital, LLC (New York-based)

Method	Authority	Details
Long-arm service	MCL 600.715; MCR 2.105(D)	Michigan long-arm jurisdiction applies
Registered Agent (if MI)	LARA lookup	Check if registered in Michigan
CT Corporation / Registered Agent	Common for large companies	Large firms often use CT Corp or similar
Secretary of State	MCL 600.715(2)	If no MI agent, serve through MI SOS

Steps:

1. Search LARA for "Alden Global Capital" -- check if MI registered

2. If not MI registered, search NY Secretary of State (dos.ny.gov)

3. Note registered agent (likely CT Corporation System or similar)

4. Serve via:

a. Michigan SOS if long-arm applies (MCL 600.715)

b. Registered agent in state of organization

5. Also send courtesy copy to: Alden Global Capital, LLC, [Principal Office Address -- research needed]

5. Partridge Equity Group

Method	Details
LARA/State SOS lookup	Determine state of organization
Financial records	Check endorsement on \$1,300.26 check for address
Long-arm service	If transacting business in MI (cashing MI checks)

6. Jeremy Brown (Attorney)

Method	Authority	Details
Personal service	MCR 2.105(A)	Process server delivers to Brown personally
Substitute service	MCR 2.105(A)(2)	At Brown's usual place of business
State Bar of Michigan	Lookup tool	Find current address through State Bar

Steps:

1. Go to <https://www.michbar.org/member/memberSearch>
2. Search for "Jeremy Brown"
3. Note office address

4. Serve personally or at office

7. Aaron D. Cox (P69346) (Attorney)

Method	Details
Known address	Law Offices of Aaron D. Cox, PLLC
State Bar lookup	P69346 -- verify current address
Personal service	MCR 2.105(A) at office

8. Henry Brandel (Individual)

Method	Authority	Details
Personal service	MCR 2.105(A)	Process server delivers personally
Substitute service	MCR 2.105(A)(2)	At usual place of abode with person of suitable age
Known address	Neighbor at Shady Oaks -- lot number TBD	

9. Jane/John Doe Park Manager(s)

Method	Details
Discovery	Identity to be determined through interrogatories
Amendment	Once identified, amend complaint to name
Service	Personal service once identified

B. METHODS OF SERVICE**Personal Service (MCR 2.105(A))***** Most reliable method**

- * Hire a process server (\$50-\$100 per defendant)

- * Process server delivers summons + complaint to defendant personally
- * File Proof of Service (MC 04) with the court

Certified Mail (MCR 2.105(A)(2))

- * Send by certified mail, return receipt requested
- * Must be restricted delivery (to named addressee only)
- * Keep green card (return receipt) as proof
- * File Proof of Service with return receipt attached

Michigan Secretary of State Service (for out-of-state entities)

- * MCL 600.715 -- long-arm jurisdiction
- * File two copies of summons + complaint with MI SOS
- * SOS forwards to defendant
- * Pay SOS service fee (\$10)

C. SERVICE DEADLINES

Requirement	Timeline
Service after filing	Within 91 days of filing (MCR 2.102(D))
Extension	Motion for extension if needed
Proof of Service	File within 7 days of service

IV. PARALLEL ADMINISTRATIVE COMPLAINTS

A. LARA COMPLAINT (MICHIGAN MOBILE HOME COMMISSION)

What to File

A formal complaint with the Michigan Department of Licensing and Regulatory Affairs (LARA), Bureau of Construction Codes, Manufactured Housing Section.

How to File

1. **Online:** <https://www.michigan.gov/lara/bureau-list/bcc/manufactured-housing>

2. **By Mail:**

LARA - Bureau of Construction Codes

Manufactured Housing Division

P.O. Box 30254

Lansing, MI 48909

3. **Phone:** (517) 241-9313

What to Include

Item	Content
Park name	Shady Oaks Mobile Home Community, 1977 Whitehall Rd, Muskegon County
Management company	Homes of America, LLC
Violations	Blocked sales (MCL 125.2312c-d); unauthorized rent increases; habitability failures; dissolved entity operating; unauthorized fees
Evidence	Copies of ledgers, lease, EGLE violations, text messages, title
Relief requested	Investigation; enforcement action; penalties; corrective orders

Regulatory Violations to Allege

1. Operating a manufactured housing community in violation of MHCA
2. Interfering with homeowner's right to sell (MCL 125.2312c)
3. Unauthorized rent increases without proper notice (MCL 125.2312a)
4. Failure to maintain community in safe, habitable condition
5. Operating under a dissolved entity name
6. Imposing unauthorized fees and charges
7. Retaliatory eviction following complaints

B. HUD COMPLAINT (FEDERAL -- FAIR HOUSING)

What to File

A housing discrimination complaint with the U.S. Department of Housing and Urban Development (HUD).

How to File

1. **Online:**
https://www.hud.gov/program_offices/fair_housing_equal_opp/online-complaint
2. **Phone:** 1-800-669-9777 (HUD hotline)
3. **By Mail:**

HUD Chicago Regional Office

Ralph H. Metcalfe Federal Building

77 West Jackson Blvd, Room 2101

Chicago, IL 60604

What to Include

Item	Content
Respondents	Shady Oaks Park MHP LLC; Homes of America LLC; Alden Global Capital
Address	1977 Whitehall Rd, Lot 17, Muskegon County, MI
Type of discrimination	Disparate treatment; retaliation; interference with housing rights
Discriminatory acts	Blocked sales; manufactured arrears; unlawful eviction; harassment
Basis	Familial status (father with minor child); retaliation for exercising rights
Evidence	Same as LARA complaint
Relief	Investigation; conciliation; enforcement; damages

Important HUD Deadlines

- * File within **1 year** of the last discriminatory act
- * HUD investigates and determines reasonable cause within 100 days (often extended)
- * Can elect federal court or HUD ALJ hearing

C. MICHIGAN ATTORNEY GENERAL CONSUMER COMPLAINT

How to File

1. **Online:** <https://www.michigan.gov/ag/consumer-protection/consumer-complaints>

2. Focus on unfair/deceptive business practices
3. Include evidence of ledger fraud, blocked sales, dissolved entity operations

V. DISCOVERY PRIORITIES

A. PHASE 1 -- IMMEDIATE (WITH COMPLAINT OR FIRST 30 DAYS)

Interrogatories to All Defendants

No.	Topic
1	Identify all entities in the Alden Global / HOA / Shady Oaks corporate structure
2	Identify all officers, directors, managers, and employees of each entity (2023-present)
3	Identify the park manager(s) who sent text messages to prospective buyers
4	Identify all persons who participated in the July 17, 2025 set-out
5	State the complete account history for Plaintiff's lot (all charges, credits, payments)
6	Identify who hired Attorney Jeremy Brown and for what purpose
7	State whether Shady Oaks MHP, LLC was dissolved and when
8	Identify all prospective buyers who applied for lot-lease approval for Lot 17
9	State all communications with the Muskegon County Sheriff regarding the set-out
10	Describe the management agreement between HOA and Shady Oaks entities

Document Requests to All Defendants

No.	Documents Requested
1	Complete, unredacted ledger/account history for Lot 17 (2023-present)
2	All leases, lease amendments, and correspondence with Plaintiff
3	All communications (email, text, letter) regarding Plaintiff, Lot 17, or Plaintiff's home
4	All communications with prospective buyers of Plaintiff's home
5	All documents related to the eviction proceeding
6	All documents related to the July 17, 2025 set-out
7	Corporate organizational documents for each entity
8	Management agreements between HOA and park entities
9	Financial statements for each entity (3 years)
10	Insurance policies covering the park operations
11	All LARA/regulatory correspondence regarding Shady Oaks
12	All EGLE correspondence regarding sewage conditions
13	Jeremy Brown's engagement letter and all filings
14	Inventory/receipts from the set-out
15	Park rules and regulations (all versions, 2023-present)

Requests for Admission

No.	Admission Requested
1	Shady Oaks MHP, LLC was dissolved before July 10, 2025
2	Attorney Cox filed documents on behalf of Shady Oaks MHP, LLC after dissolution
3	Plaintiff's \$1,300.26 check was cashed by Partridge Securities
4	Park manager sent text messages to a prospective buyer regarding Plaintiff's home
5	Plaintiff was the lawful titleholder of the home at Lot 17 at all relevant times
6	Prospective buyers applied for lot-lease approval and were denied
7	EGLE issued violations to the park for sewage conditions
8	No proper inventory was made during the July 17, 2025 set-out
9	Henry Brandel participated in removing property from Plaintiff's home

10	A "FREE" sign was placed on Plaintiff's home within 24 hours of the set-out
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B. PHASE 2 -- AFTER INITIAL RESPONSES (60-90 DAYS)

Depositions

Priority	Deponent	Key Topics
1	Park Manager (Doe)	Text messages; blocked sales; eviction decision; set-out
2	HOA Regional Manager	Enterprise structure; policy directives; eviction authority
3	Aaron D. Cox	Authority to represent dissolved entity; knowledge of dissolution
4	Jeremy Brown	Res judicata filing; who retained him; knowledge of facts
5	Henry Brandel	Set-out participation; who directed him; property taken
6	EGLE Inspector	Sewage violations; park compliance history
7	Prospective Buyers (3)	Sale discussions; park interference; manager communications

Subpoenas Duces Tecum

To	Documents
Bank (Plaintiff's)	Complete check image showing Partridge endorsement
Bank (Defendants')	Account records showing receipt of Plaintiff's payments
LARA	Complete regulatory file for Shady Oaks
EGLE	Complete violation/compliance file for Shady Oaks
Muskegon County Sheriff	Set-out report; photos; communications with park
MDHHS	Records of payments made on Plaintiff's behalf
TrueNorth Community Services	Records of payments made on Plaintiff's behalf

C. PHASE 3 -- EXPERT DISCOVERY

Expert	Purpose	Estimated Cost
Forensic Accountant	Analyze ledger fraud; quantify overcharges	\$5,000 - \$15,000
Real Estate Appraiser	FMV of home; damages from diminished value	\$1,000 - \$3,000
Custody Evaluator	Impact of homelessness on custody/child welfare	\$3,000 - \$8,000
Psychologist	Emotional distress damages; child harm	\$3,000 - \$8,000

VI. CLASS ACTION POTENTIAL ANALYSIS

A. POTENTIAL CLASS DEFINITION

"All current and former residents of Shady Oaks Mobile Home Community who, since [date], have been subjected to unauthorized rent increases, unauthorized fees, ledger manipulation, blocked home sales, or retaliatory eviction practices by Defendants."

B. RULE 23 / MCR 3.501 ANALYSIS

Factor	Assessment
Numerosity	Shady Oaks has [TBD] lots -- if a substantial percentage affected, satisfied
Commonality	Common questions: ledger practices, fee structures, sales policies, entity fraud
Typicality	Plaintiff's claims are typical of class if other residents faced similar treatment
Adequacy	Pro se plaintiff may face adequacy challenges -- consider co-counsel
Predominance	Common questions likely predominate over individual issues
Superiority	Class action superior to individual suits for pattern claims

C. CLASS ACTION CONSIDERATIONS

Advantages:

- * Multiplies damages across all affected residents
- * Greater leverage against corporate defendants
- * Attracts attorney interest (contingency fee on larger pool)
- * Addresses systemic practices, not just individual harm
- * Greater media attention and regulatory interest

Challenges:

- * Pro se plaintiff typically cannot represent a class (MCR 3.501 may require counsel)
- * Certification process is complex and resource-intensive
- * May slow individual claims
- * Defendants will vigorously oppose certification

Recommendation: File individual complaint NOW; explore class certification later with co-counsel or after attracting attorney interest through individual case success.

D. HOW TO ATTRACT ATTORNEY INTEREST

1. File the Mega-Complaint as drafted (shows sophistication of claims)
2. Win early motions (motion to amend, discovery motions)
3. Obtain key evidence (ledger fraud, Partridge check, manager texts)

4. Contact:

- Michigan Legal Services
- Michigan Poverty Law Program
- National Consumer Law Center
- Michigan mobile home advocacy organizations
- Private attorneys who handle manufactured housing cases

5. RICO treble damages and conversion treble damages create strong contingency-fee incentive

VII. IMMEDIATE ACTION CHECKLIST

#	Action	Deadline	Status
1	Finalize Mega-Complaint	ASAP	[DRAFTED]
2	Prepare Motion for Leave to Amend	ASAP	[PENDING]
3	LARA entity search (all defendants)	Before filing	[PENDING]
4	State Bar search (Brown, Cox)	Before filing	[PENDING]
5	File MC 20 Fee Waiver (if needed)	With filing	[PENDING]
6	File Motion + Amended Complaint	Target: [DATE]	[PENDING]
7	Arrange service for all defendants	Within 91 days	[PENDING]
8	Serve discovery (interrogatories, doc requests, admissions)	With complaint or within 28 days	[PENDING]
9	File LARA complaint	Within 30 days of filing	[PENDING]
10	File HUD complaint	Within 30 days of filing	[PENDING]
11	File AG consumer complaint	Within 30 days of filing	[PENDING]

12	Preserve all evidence (texts, photos, camera footage)	IMMEDIATELY	[PENDING]
13	Contact Mitchell Shafer for formal affidavit	Before filing	[PENDING]
14	Obtain certified title records	Before filing	[PENDING]
15	Obtain certified LARA entity records	Before filing	[PENDING]

VIII. KEY LEGAL AUTHORITIES QUICK REFERENCE

MICHIGAN STATUTES

Statute	Subject
MCL 750.159f-j	Michigan RICO
MCL 600.2918	Wrongful eviction damages
MCL 600.2919a	Conversion -- treble damages
MCL 565.108	Slander of title
MCL 600.5720	Retaliatory eviction
MCL 125.2301-2330	Mobile Home Commission Act
MCL 554.631-641	Truth in Renting Act
MCL 600.6013	Prejudgment interest
MCL 600.715	Long-arm jurisdiction
MCL 450.4801+	Dissolved LLC liability

MICHIGAN COURT RULES

Rule	Subject
MCR 2.105	Service of process
MCR 2.118	Amended complaints
MCR 2.302-313	Discovery
MCR 3.501	Class actions
MCR 2.625	Costs and attorney fees

FEDERAL STATUTES

Statute	Subject
42 USC 3601-3631	Fair Housing Act
42 USC 1983	Civil Rights -- deprivation under color of law
42 USC 1988	Attorney fees in civil rights cases

KEY CASE LAW

Case	Holding
Troxel v. Granville, 530 U.S. 57 (2000)	Parental rights are fundamental liberty interest
State Farm v. Campbell, 538 U.S. 408 (2003)	Punitive damages framework
Dennis v. Sparks, 449 U.S. 24 (1980)	Private parties in concert with state actors
Boddie v. Connecticut, 401 U.S. 371 (1971)	Court access cannot be conditioned on payment
Texas Dept of Housing v. Inclusive Communities, 576 U.S. 519 (2015)	FHA disparate impact
Javins v. First Nat'l Realty, 428 F.2d 1071 (D.C. Cir. 1970)	Implied warranty of habitability
Kay v. Ehrler, 499 U.S. 432 (1991)	Pro se fee recovery in civil rights

Generated by LitigationOS -- Shady Oaks Filing Instructions

Case: Pigors v. Shady Oaks et al., Case No. 2025-002760-CZ

DISCOVERY FILING INSTRUCTIONS AND PROCEDURES

PIGORS V. WATSON -- MUSKEGON COUNTY CIRCUIT COURT

CASE NO. [TO BE ASSIGNED] | RELATED: 2024-001507-DC

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6. Subpoenas (MCR 2.305, MCR 2.506)
7. Discovery Motions
8. Enforcement and Sanctions
9. Filing Checklist

1. OVERVIEW AND TIMELINE

Discovery Period

- * Discovery opens upon filing of the Complaint and service on all Defendants
- * Standard discovery period: 6 months from filing (MCR 2.301(B))
- * Discovery cutoff is typically set by Scheduling Order
- * Request extension early if needed -- file Motion to Extend Discovery per MCR 2.301(B)(3)

Recommended Discovery Sequence

Week 1-2: Initial Discovery Salvo

1. Serve Interrogatories on all Defendants (28-day response deadline)
2. Serve Requests for Production on all Defendants (28-day response deadline)
3. Serve Requests for Admission on all Defendants (28-day response deadline)
4. Issue litigation hold letters to all parties and anticipated third-party subpoena recipients

Week 2-4: Third-Party Subpoenas

5. File and serve subpoenas duces tecum to third parties (CPS, FOC, schools, medical, police)
6. File Motion for Qualified Protective Order for medical/mental health records
7. File Motion for Court Order for educational records

Week 4-8: Review and Depositions

8. Review all discovery responses and third-party documents
9. Prepare deposition outlines based on discovery responses

10. Schedule and take depositions (start with CRITICAL priority witnesses)

Week 8-12: Follow-Up

11. Serve supplemental interrogatories based on deposition testimony

12. File Motions to Compel if any discovery is incomplete or inadequate

13. Take remaining depositions

Week 12-16: Expert Discovery

14. Retain and disclose expert witnesses if needed (custody evaluator, damages expert)

15. Exchange expert reports per scheduling order

16. Take/defend expert depositions

2. INTERROGATORIES -- MCR 2.309

Filing Requirements

* **Limit:** No more than 20 interrogatories per party (including subparts) per MCR 2.309(A)(2), unless the court grants leave for additional interrogatories

* **Service:** Serve on each Defendant separately; do NOT file with the court (MCR 2.302(F))

* **Response deadline:** 28 days after service

* **Signature:** Answers must be signed under oath by the party (MCR 2.309(A)(4))

* **Objections:** Must be signed by attorney or party and state reasons with specificity

Procedure

1. Prepare separate interrogatory set for each Defendant (from discovery_interrogatories.md)
2. Include the standard instructions and definitions
3. Serve by first-class mail (add 3 days to deadline per MCR 2.107(C)(3)) or personal service
4. Prepare proof of service (MCR 2.104)
5. Calendar the response deadline (28 days + 3 if mailed)
6. If response is inadequate, send meet-and-confer letter before filing Motion to Compel

If Defendants Fail to Respond

- * Wait until deadline passes
- * Send written demand giving 7 additional days
- * If still no response, file Motion to Compel (MCR 2.313(A)) with:
 - Certification of good faith effort to resolve (MCR 2.313(A)(5))
 - Request for costs and attorney fees (MCR 2.313(A)(6))
 - Request for sanctions if appropriate (MCR 2.313(B))

3. REQUESTS FOR PRODUCTION -- MCR 2.310

Filing Requirements

- * **No limit** on number of requests
- * **Service:** Serve on each Defendant; do NOT file with court
- * **Response deadline:** 28 days after service
- * **Production format:** Documents produced as kept in ordinary course of business OR organized by category per MCR 2.310(B)(2)
- * **ESI:** Request production in native format with metadata

Procedure

1. Serve RFPD on each Defendant (from discovery_document_requests.md)
2. Include ESI preservation notice
3. Specify inspection location and method
4. Calendar response deadline
5. Review production for completeness
6. Send deficiency letter if production is incomplete
7. File Motion to Compel if necessary

4. REQUESTS FOR ADMISSION -- MCR 2.312

Filing Requirements

- * **No limit** on number of requests
- * **Service:** Serve on each Defendant; do NOT file with court

- * **Response deadline:** 28 days after service
- * **KEY RULE:** Failure to respond = ADMITTED (MCR 2.312(B)(1))
- * **Withdrawal:** Admitted matters can only be withdrawn by motion showing (1) presentation of the merits will be aided and (2) the requesting party will not be prejudiced (MCR 2.312(D))

Strategic Value

- * RFAs that go unanswered are **deemed admitted** and are conclusive for trial
- * Even if answered, denials become impeachment material if evidence contradicts
- * If a matter is denied and later proven true, seek costs under MCR 2.312(E)
- * Use to establish foundational facts, simplify trial, and narrow issues

5. DEPOSITIONS -- MCR 2.306

Notice Requirements

- * **Notice period:** Reasonable notice; 21 days is standard practice
- * **Location:** Michigan depositions must be taken within the county of the witness's residence or employment, or within 50 miles of the place of trial
- * **Duration:** Maximum 7 hours/day per deponent (MCR 2.306(A)(5))
- * **Number:** No limit on party depositions; 10 non-party depositions per side (MCR 2.306(A)(3))
- * **Recording:** Stenographic by default; audio/video on notice (MCR 2.306(C))

Deposition Procedure

1. File Notice of Deposition (from discovery_deposition_notices.md)
2. For non-parties, serve subpoena with notice (MCR 2.305)
3. Arrange court reporter (Plaintiff responsible for cost as noticing party)
4. Prepare deposition outline organized by topic
5. Prepare exhibits (pre-marked)
6. Conduct deposition
7. Order transcript; review for corrections per MCR 2.306(E)

Cost Considerations for Pro Se Litigant

- * Court reporter: approximately \$3-5/page for transcript
- * Video recording: approximately \$300-500/half day
- * Witness fees: \$12/day + \$0.10/mile (MCL 600.2552)
- * Consider seeking fee waiver due to indigency if applicable
- * Consider using audio recording only (cheaper) with court permission

6. SUBPOENAS -- MCR 2.305, MCR 2.506

For Non-Party Document Production (MCR 2.305)

1. Prepare subpoena duces tecum using MC 11 form

2. Request issuance from the Circuit Court Clerk
3. Serve personally on custodian of records with witness fee (\$12 + mileage)
4. Allow 14 days for compliance
5. Serve copy of subpoena on all parties

Special Procedures

- * **Medical records (HIPAA):** File Motion for Qualified Protective Order first
- * **Educational records (FERPA):** File Motion for Court Order; assert parental rights
- * **Law enforcement records:** May require FOIA request in addition to subpoena
- * **CPS records:** MCL 722.627 governs disclosure; court order may be required

7. DISCOVERY MOTIONS

Motion to Compel (MCR 2.313(A))

- * File when discovery responses are inadequate, incomplete, or not provided
- * Must include certification of good-faith effort to resolve without court intervention
- * Court SHALL award reasonable expenses (including attorney fees) to the prevailing party unless opposition was substantially justified

Motion for Protective Order (MCR 2.302(C))

- * Use to protect sensitive information (children's identities, medical records)
- * Request sealing of documents containing children's information

Motion for Sanctions (MCR 2.313(B))

- * Available when party fails to comply with discovery order
- * Sanctions include: striking pleadings, prohibiting evidence, default judgment, contempt
- * Request proportional sanctions based on severity of non-compliance

8. ENFORCEMENT AND SANCTIONS

Escalation Ladder

1. **Informal demand:** Letter requesting compliance within 7 days
2. **Meet and confer:** Document good-faith attempt to resolve
3. **Motion to Compel:** File with court; request costs
4. **Motion for Sanctions:** If court order violated; request adverse inference or default
5. **Contempt:** For willful disobedience of court order

Spoliation

- * If Defendants destroy evidence after receiving litigation hold notice:
 - File Motion for Adverse Inference Instruction
 - Request sanctions under MCR 2.313(B)(2)(c)
 - Cite Brenner v Kolk, 226 Mich App 149 (1997)

9. FILING CHECKLIST

Before Filing Discovery

- * ☐ Complaint filed and served on all Defendants
- * ☐ Proof of service filed with court
- * ☐ Defendants' answer deadline passed or answers received
- * ☐ Scheduling conference held (or scheduling order entered)

Discovery Documents to Serve (NOT file with court)

- * ☐ Interrogatories (per Defendant) -- discovery_interrogatories.md
- * ☐ Requests for Production (per Defendant) -- discovery_document_requests.md
- * ☐ Requests for Admission (per Defendant) -- discovery_requests_for_admission.md
- * ☐ Deposition Notices -- discovery_deposition_notices.md
- * ☐ Litigation Hold Letters to all parties

Documents to FILE with Court

- * ☐ Subpoenas duces tecum (for third parties) -- from Clerk
- * ☐ Motion for Qualified Protective Order (medical records)
- * ☐ Motion for Court Order (educational records)
- * ☐ Proofs of Service for all discovery
- * ☐ Any Motions to Compel (if needed)

Calendar Deadlines

- * [] 28-day response deadlines for each discovery type
- * [] 14-day compliance deadline for subpoenas
- * [] 21-day notice period for depositions
- * [] Discovery cutoff date (per scheduling order)
- * [] Expert disclosure deadline (per scheduling order)

Prepared by Andrew J. Pigors, Plaintiff pro se

Discovery Stack generated from litigation_context.db analysis

Database contains: 14 adversaries, 2512 conspiracy timeline entries, 14338 perjury compilation entries

PLAINTIFF'S FIRST SET OF INTERROGATORIES

IN THE CIRCUIT COURT FOR THE COUNTY OF MUSKEGON

FOURTEENTH JUDICIAL CIRCUIT -- STATE OF MICHIGAN

Case No.: [TO BE ASSIGNED]

Related Case: 2024-001507-DC

ANDREW J. PIGORS, Plaintiff, *pro se*

v.

TIFFANY A. WATSON (a/k/a Emily Watson), et al., Defendants.

INSTRUCTIONS

These Interrogatories are propounded pursuant to MCR 2.309(A). Defendants are required to answer each Interrogatory separately, fully, and under oath within twenty-eight (28) days of service pursuant to MCR 2.309(A)(2).

Definitions:

* "YOU" or "YOUR" refers to the Defendant to whom these Interrogatories are directed.

* "PLAINTIFF" or "ANDREW" refers to Andrew J. Pigors.

* "MINOR CHILD" refers to the child at issue in Case No. 2024-001507-DC.

* "DOCUMENT" means any writing, recording, or electronically stored information as defined in MRE 1001.

* "COMMUNICATION" means any exchange of information, whether oral, written, or electronic.

* "IDENTIFY" means to state the name, address, telephone number, and relationship to any party.

* "DESCRIBE" means to provide a complete, detailed account.

* "INCIDENT" refers to any event, action, conversation, or occurrence.

Continuing Duty: Pursuant to MCR 2.302(E), these Interrogatories impose a continuing duty to supplement responses.

INTERROGATORIES DIRECTED TO: EMILY WATSON

(Based on 3949 documented harmful acts across 1514 mentions)

Interrogatory No. 1: State your full legal name, all aliases or names by which you have been known, your current address, your date of birth, your Social Security Number (for judgment enforcement purposes), your current employer, and your occupation.

Interrogatory No. 2: Describe in detail your relationship with each of the other named Defendants in this action, including Emily Watson, Albert Watson, Lori Watson, Cody Watson, and any other Watson family member, and identify all communications you have had with each such person concerning Plaintiff Andrew Pigors, the minor child, or the custody

proceedings in Case No. 2024-001507-DC from October 1, 2023 to the present.

Interrogatory No. 3: Identify and describe every action you took, directed, encouraged, facilitated, or participated in that affected Plaintiff's parenting time, custody rights, or relationship with the minor child from October 1, 2023 to the present, including but not limited to: filing or assisting in the filing of any court documents, making or assisting in making any reports to Child Protective Services, law enforcement, or any other agency, making any statements (oral or written) about Plaintiff to any third party, and any conduct during parenting time exchanges.

Interrogatory No. 4: Describe every statement you have made to the minor child about Plaintiff, including the date, location, persons present, and exact words used. Describe every action you have taken to prevent, limit, or interfere with the minor child's contact or communication with Plaintiff, including intercepting phone calls, blocking text messages, withholding mail or gifts, or making disparaging remarks about Plaintiff to the child.

Interrogatory No. 5: Identify every Personal Protection Order (PPO) that you filed, assisted in filing, or encouraged the filing of against Plaintiff. For each PPO: (a) state the specific factual basis for each allegation contained therein; (b) identify every witness who can corroborate each allegation; (c) identify every document supporting each allegation; (d) state whether any allegation was false, exaggerated, or misleading; (e) describe any coordination with any other person in the drafting, filing, or prosecution of such PPO.

Interrogatory No. 6: Describe every act or omission by you that you knew or should have known would cause emotional distress to Plaintiff, including but not limited to: withholding contact with the minor child, making false allegations, filing false court documents, engaging in intimidation, or facilitating the separation of Plaintiff from his child.

Interrogatory No. 7: Identify every meeting, phone call, text message, email, social media communication, or other communication you had with any Watson family member, any attorney, any court officer, any Friend of Court employee, or any judge's staff regarding Plaintiff, the minor child, or the custody case from October 1, 2023 to the present. For each communication, state: (a) the date; (b) the participants; (c) the substance; (d) whether any documents were exchanged; (e) whether any agreement or plan was discussed.

Interrogatory No. 8: State your complete financial information including: (a) your gross and net income for each of the past three years from all sources; (b) all assets you own or have an interest in; (c) all financial support you have received from or provided to any Watson family member; (d) all child support, tax benefits, government assistance, or other financial benefits you have received related to the minor child; (e) all payments made to any attorney in connection with the custody proceedings.

Interrogatory No. 9: Identify every allegation you have made against Plaintiff to any person, agency, court, or entity that you now acknowledge was false, inaccurate, exaggerated, or misleading. For each such allegation, state: (a) the content of the allegation; (b) when and to whom it was made; (c) whether you knew it was false at the time you made it; (d) whether you have taken any steps to correct it.

Interrogatory No. 10: Describe every benefit, financial or otherwise, that you have received as a direct or indirect result of Plaintiff's separation from the minor child, including but not limited to: child support payments, tax benefits (Child Tax Credit, Head of Household status, Earned Income Credit), sole decision-making authority, exclusive possession of the marital/shared residence, government benefits, and any reduced obligations.

INTERROGATORIES DIRECTED TO: WATSON FAMILY

(Based on 758 documented harmful acts across 679 mentions)

Interrogatory No. 11: State your full legal name, all aliases or names by which you have been known, your current address, your date of birth, your Social Security Number (for judgment enforcement purposes), your current employer, and your occupation.

Interrogatory No. 12: Describe in detail your relationship with each of the other named Defendants in this action, including Emily Watson, Albert Watson, Lori Watson, Cody Watson, and any other Watson family member, and identify all communications you have had with each such person concerning Plaintiff Andrew Pigors, the minor child, or the custody proceedings in Case No. 2024-001507-DC from October 1, 2023 to the present.

Interrogatory No. 13: Identify and describe every action you took, directed, encouraged, facilitated, or participated in that affected Plaintiff's parenting time, custody rights, or relationship with the minor child from October 1, 2023 to the present, including but not limited to: filing or assisting in the filing of any court documents, making or assisting in making any reports to Child Protective Services, law enforcement, or any other agency, making any statements (oral or written) about Plaintiff to any third party, and any conduct during parenting time exchanges.

Interrogatory No. 14: Describe every occasion on which you were present during a parenting time exchange, court hearing, or any other encounter involving Plaintiff. For each occasion, describe: (a) your purpose in being present; (b) every statement you made to or about Plaintiff; (c) every physical action you took directed at or in the presence of Plaintiff; (d) whether you made any threats, express or implied; (e) whether you were instructed or encouraged by any person to be present or to take any specific action.

Interrogatory No. 15: Describe every statement you have made to the minor child about Plaintiff, including the date, location, persons present, and exact words used. Describe every action you have taken to prevent, limit, or interfere with the minor child's contact or communication with Plaintiff, including intercepting phone calls, blocking text messages, withholding mail or gifts, or making disparaging remarks about Plaintiff to the child.

Interrogatory No. 16: Identify every Personal Protection Order (PPO) that you filed, assisted in filing, or encouraged the filing of against Plaintiff. For each PPO: (a) state the specific factual basis for each allegation contained therein; (b) identify every witness who can corroborate each allegation; (c) identify every document supporting each allegation; (d) state whether any allegation was false, exaggerated, or misleading; (e) describe any coordination with any other person in the drafting, filing, or prosecution of such PPO.

Interrogatory No. 17: Identify every meeting, phone call, text message, email, social media communication, or other communication you had with any Watson family member, any attorney, any court officer, any Friend of Court employee, or any judge's staff regarding Plaintiff, the minor child, or the custody case from October 1, 2023 to the present. For each communication, state: (a) the date; (b) the participants; (c) the substance; (d) whether any documents were exchanged; (e) whether any agreement or plan was discussed.

Interrogatory No. 18: Describe every act or omission by you that you knew or should have known would cause emotional distress to Plaintiff, including but not limited to: withholding contact with the minor child, making false allegations, filing false court documents, engaging in intimidation, or facilitating the separation of Plaintiff from his child.

Interrogatory No. 19: Identify every allegation you have made against Plaintiff to any person, agency, court, or entity that you now acknowledge was false, inaccurate, exaggerated, or

misleading. For each such allegation, state: (a) the content of the allegation; (b) when and to whom it was made; (c) whether you knew it was false at the time you made it; (d) whether you have taken any steps to correct it.

Interrogatory No. 20: Describe every benefit, financial or otherwise, that you have received as a direct or indirect result of Plaintiff's separation from the minor child, including but not limited to: child support payments, tax benefits (Child Tax Credit, Head of Household status, Earned Income Credit), sole decision-making authority, exclusive possession of the marital/shared residence, government benefits, and any reduced obligations.

INTERROGATORIES DIRECTED TO: ALBERT WATSON

(Based on 305 documented harmful acts across 272 mentions)

Interrogatory No. 21: State your full legal name, all aliases or names by which you have been known, your current address, your date of birth, your Social Security Number (for judgment enforcement purposes), your current employer, and your occupation.

Interrogatory No. 22: Describe in detail your relationship with each of the other named Defendants in this action, including Emily Watson, Albert Watson, Lori Watson, Cody Watson, and any other Watson family member, and identify all communications you have had with each such person concerning Plaintiff Andrew Pigors, the minor child, or the custody proceedings in Case No. 2024-001507-DC from October 1, 2023 to the present.

Interrogatory No. 23: Identify and describe every action you took, directed, encouraged, facilitated, or participated in that affected Plaintiff's parenting time, custody rights, or relationship with the minor child from October 1, 2023 to the present, including but not limited

to: filing or assisting in the filing of any court documents, making or assisting in making any reports to Child Protective Services, law enforcement, or any other agency, making any statements (oral or written) about Plaintiff to any third party, and any conduct during parenting time exchanges.

Interrogatory No. 24: Describe every occasion on which you were present during a parenting time exchange, court hearing, or any other encounter involving Plaintiff. For each occasion, describe: (a) your purpose in being present; (b) every statement you made to or about Plaintiff; (c) every physical action you took directed at or in the presence of Plaintiff; (d) whether you made any threats, express or implied; (e) whether you were instructed or encouraged by any person to be present or to take any specific action.

Interrogatory No. 25: Identify every Personal Protection Order (PPO) that you filed, assisted in filing, or encouraged the filing of against Plaintiff. For each PPO: (a) state the specific factual basis for each allegation contained therein; (b) identify every witness who can corroborate each allegation; (c) identify every document supporting each allegation; (d) state whether any allegation was false, exaggerated, or misleading; (e) describe any coordination with any other person in the drafting, filing, or prosecution of such PPO.

Interrogatory No. 26: Describe every statement you have made to the minor child about Plaintiff, including the date, location, persons present, and exact words used. Describe every action you have taken to prevent, limit, or interfere with the minor child's contact or communication with Plaintiff, including intercepting phone calls, blocking text messages, withholding mail or gifts, or making disparaging remarks about Plaintiff to the child.

Interrogatory No. 27: State your complete financial information including: (a) your gross and net income for each of the past three years from all sources; (b) all assets you own or have an

interest in; (c) all financial support you have received from or provided to any Watson family member; (d) all child support, tax benefits, government assistance, or other financial benefits you have received related to the minor child; (e) all payments made to any attorney in connection with the custody proceedings.

Interrogatory No. 28: Describe every act or omission by you that you knew or should have known would cause emotional distress to Plaintiff, including but not limited to: withholding contact with the minor child, making false allegations, filing false court documents, engaging in intimidation, or facilitating the separation of Plaintiff from his child.

Interrogatory No. 29: Identify every allegation you have made against Plaintiff to any person, agency, court, or entity that you now acknowledge was false, inaccurate, exaggerated, or misleading. For each such allegation, state: (a) the content of the allegation; (b) when and to whom it was made; (c) whether you knew it was false at the time you made it; (d) whether you have taken any steps to correct it.

Interrogatory No. 30: Describe every benefit, financial or otherwise, that you have received as a direct or indirect result of Plaintiff's separation from the minor child, including but not limited to: child support payments, tax benefits (Child Tax Credit, Head of Household status, Earned Income Credit), sole decision-making authority, exclusive possession of the marital/shared residence, government benefits, and any reduced obligations.

INTERROGATORIES DIRECTED TO: JUDGE MCNEILL

(Based on 1530 documented harmful acts across 663 mentions)

Interrogatory No. 31: State your full legal name, all aliases or names by which you have been known, your current address, your date of birth, your Social Security Number (for judgment enforcement purposes), your current employer, and your occupation.

Interrogatory No. 32: Describe in detail your relationship with each of the other named Defendants in this action, including Emily Watson, Albert Watson, Lori Watson, Cody Watson, and any other Watson family member, and identify all communications you have had with each such person concerning Plaintiff Andrew Pigors, the minor child, or the custody proceedings in Case No. 2024-001507-DC from October 1, 2023 to the present.

Interrogatory No. 33: Identify and describe every action you took, directed, encouraged, facilitated, or participated in that affected Plaintiff's parenting time, custody rights, or relationship with the minor child from October 1, 2023 to the present, including but not limited to: filing or assisting in the filing of any court documents, making or assisting in making any reports to Child Protective Services, law enforcement, or any other agency, making any statements (oral or written) about Plaintiff to any third party, and any conduct during parenting time exchanges.

Interrogatory No. 34: Describe every communication, meeting, or contact you have had with any judicial officer, court staff, Friend of Court employee, or Guardian Ad Litem regarding this case or the related custody case, including ex parte communications. State the date, method of communication, participants, and substance of each such contact.

Interrogatory No. 35: Identify every Personal Protection Order (PPO) that you filed, assisted in filing, or encouraged the filing of against Plaintiff. For each PPO: (a) state the specific factual basis for each allegation contained therein; (b) identify every witness who can corroborate each allegation; (c) identify every document supporting each allegation; (d) state

whether any allegation was false, exaggerated, or misleading; (e) describe any coordination with any other person in the drafting, filing, or prosecution of such PPO.

Interrogatory No. 36: Describe every statement you have made to the minor child about Plaintiff, including the date, location, persons present, and exact words used. Describe every action you have taken to prevent, limit, or interfere with the minor child's contact or communication with Plaintiff, including intercepting phone calls, blocking text messages, withholding mail or gifts, or making disparaging remarks about Plaintiff to the child.

Interrogatory No. 37: Describe every act or omission by you that you knew or should have known would cause emotional distress to Plaintiff, including but not limited to: withholding contact with the minor child, making false allegations, filing false court documents, engaging in intimidation, or facilitating the separation of Plaintiff from his child.

Interrogatory No. 38: Identify every meeting, phone call, text message, email, social media communication, or other communication you had with any Watson family member, any attorney, any court officer, any Friend of Court employee, or any judge's staff regarding Plaintiff, the minor child, or the custody case from October 1, 2023 to the present. For each communication, state: (a) the date; (b) the participants; (c) the substance; (d) whether any documents were exchanged; (e) whether any agreement or plan was discussed.

Interrogatory No. 39: Identify every allegation you have made against Plaintiff to any person, agency, court, or entity that you now acknowledge was false, inaccurate, exaggerated, or misleading. For each such allegation, state: (a) the content of the allegation; (b) when and to whom it was made; (c) whether you knew it was false at the time you made it; (d) whether you have taken any steps to correct it.

Interrogatory No. 40: Describe every benefit, financial or otherwise, that you have received as a direct or indirect result of Plaintiff's separation from the minor child, including but not limited to: child support payments, tax benefits (Child Tax Credit, Head of Household status, Earned Income Credit), sole decision-making authority, exclusive possession of the marital/shared residence, government benefits, and any reduced obligations.

INTERROGATORIES DIRECTED TO: PAMELA RUSCO

(Based on 61 documented harmful acts across 58 mentions)

Interrogatory No. 41: State your full legal name, all aliases or names by which you have been known, your current address, your date of birth, your Social Security Number (for judgment enforcement purposes), your current employer, and your occupation.

Interrogatory No. 42: Describe in detail your relationship with each of the other named Defendants in this action, including Emily Watson, Albert Watson, Lori Watson, Cody Watson, and any other Watson family member, and identify all communications you have had with each such person concerning Plaintiff Andrew Pigors, the minor child, or the custody proceedings in Case No. 2024-001507-DC from October 1, 2023 to the present.

Interrogatory No. 43: Identify and describe every action you took, directed, encouraged, facilitated, or participated in that affected Plaintiff's parenting time, custody rights, or relationship with the minor child from October 1, 2023 to the present, including but not limited to: filing or assisting in the filing of any court documents, making or assisting in making any reports to Child Protective Services, law enforcement, or any other agency, making any statements (oral or written) about Plaintiff to any third party, and any conduct during parenting

time exchanges.

Interrogatory No. 44: Identify every attorney who has represented you, advised you, or communicated with you regarding Plaintiff, the minor child, or any legal proceeding involving Plaintiff from October 1, 2023 to the present. For each attorney, state: (a) the dates of representation; (b) the scope of representation; (c) all fees paid or owed; (d) whether the attorney made any ex parte communications with the court; (e) whether the attorney filed any documents containing statements you knew to be false.

Interrogatory No. 45: Describe every act or omission by you that you knew or should have known would cause emotional distress to Plaintiff, including but not limited to: withholding contact with the minor child, making false allegations, filing false court documents, engaging in intimidation, or facilitating the separation of Plaintiff from his child.

Interrogatory No. 46: Identify every Personal Protection Order (PPO) that you filed, assisted in filing, or encouraged the filing of against Plaintiff. For each PPO: (a) state the specific factual basis for each allegation contained therein; (b) identify every witness who can corroborate each allegation; (c) identify every document supporting each allegation; (d) state whether any allegation was false, exaggerated, or misleading; (e) describe any coordination with any other person in the drafting, filing, or prosecution of such PPO.

Interrogatory No. 47: Describe every statement you have made to the minor child about Plaintiff, including the date, location, persons present, and exact words used. Describe every action you have taken to prevent, limit, or interfere with the minor child's contact or communication with Plaintiff, including intercepting phone calls, blocking text messages, withholding mail or gifts, or making disparaging remarks about Plaintiff to the child.

Interrogatory No. 48: Identify every allegation you have made against Plaintiff to any person, agency, court, or entity that you now acknowledge was false, inaccurate, exaggerated, or misleading. For each such allegation, state: (a) the content of the allegation; (b) when and to whom it was made; (c) whether you knew it was false at the time you made it; (d) whether you have taken any steps to correct it.

Interrogatory No. 49: Describe every benefit, financial or otherwise, that you have received as a direct or indirect result of Plaintiff's separation from the minor child, including but not limited to: child support payments, tax benefits (Child Tax Credit, Head of Household status, Earned Income Credit), sole decision-making authority, exclusive possession of the marital/shared residence, government benefits, and any reduced obligations.

INTERROGATORIES DIRECTED TO: SHADY OAKS

(Based on 4580 documented harmful acts across 1805 mentions)

Interrogatory No. 50: State your full legal name, all aliases or names by which you have been known, your current address, your date of birth, your Social Security Number (for judgment enforcement purposes), your current employer, and your occupation.

Interrogatory No. 51: Describe in detail your relationship with each of the other named Defendants in this action, including Emily Watson, Albert Watson, Lori Watson, Cody Watson, and any other Watson family member, and identify all communications you have had with each such person concerning Plaintiff Andrew Pigors, the minor child, or the custody proceedings in Case No. 2024-001507-DC from October 1, 2023 to the present.

Interrogatory No. 52: Identify and describe every action you took, directed, encouraged, facilitated, or participated in that affected Plaintiff's parenting time, custody rights, or relationship with the minor child from October 1, 2023 to the present, including but not limited to: filing or assisting in the filing of any court documents, making or assisting in making any reports to Child Protective Services, law enforcement, or any other agency, making any statements (oral or written) about Plaintiff to any third party, and any conduct during parenting time exchanges.

Interrogatory No. 53: Describe your knowledge of Plaintiff's housing situation, including any actions you took or communications you made to any landlord, property manager, or housing entity regarding Plaintiff. Identify any role you played in Plaintiff's loss of housing or interference with his housing stability.

Interrogatory No. 54: Identify every Personal Protection Order (PPO) that you filed, assisted in filing, or encouraged the filing of against Plaintiff. For each PPO: (a) state the specific factual basis for each allegation contained therein; (b) identify every witness who can corroborate each allegation; (c) identify every document supporting each allegation; (d) state whether any allegation was false, exaggerated, or misleading; (e) describe any coordination with any other person in the drafting, filing, or prosecution of such PPO.

Interrogatory No. 55: State your complete financial information including: (a) your gross and net income for each of the past three years from all sources; (b) all assets you own or have an interest in; (c) all financial support you have received from or provided to any Watson family member; (d) all child support, tax benefits, government assistance, or other financial benefits you have received related to the minor child; (e) all payments made to any attorney in connection with the custody proceedings.

Interrogatory No. 56: Describe every statement you have made to the minor child about Plaintiff, including the date, location, persons present, and exact words used. Describe every action you have taken to prevent, limit, or interfere with the minor child's contact or communication with Plaintiff, including intercepting phone calls, blocking text messages, withholding mail or gifts, or making disparaging remarks about Plaintiff to the child.

Interrogatory No. 57: Describe every act or omission by you that you knew or should have known would cause emotional distress to Plaintiff, including but not limited to: withholding contact with the minor child, making false allegations, filing false court documents, engaging in intimidation, or facilitating the separation of Plaintiff from his child.

Interrogatory No. 58: Identify every allegation you have made against Plaintiff to any person, agency, court, or entity that you now acknowledge was false, inaccurate, exaggerated, or misleading. For each such allegation, state: (a) the content of the allegation; (b) when and to whom it was made; (c) whether you knew it was false at the time you made it; (d) whether you have taken any steps to correct it.

Interrogatory No. 59: Describe every benefit, financial or otherwise, that you have received as a direct or indirect result of Plaintiff's separation from the minor child, including but not limited to: child support payments, tax benefits (Child Tax Credit, Head of Household status, Earned Income Credit), sole decision-making authority, exclusive possession of the marital/shared residence, government benefits, and any reduced obligations.

INTERROGATORIES DIRECTED TO: HOMES OF AMERICA

(Based on 211 documented harmful acts across 1019 mentions)

Interrogatory No. 60: State your full legal name, all aliases or names by which you have been known, your current address, your date of birth, your Social Security Number (for judgment enforcement purposes), your current employer, and your occupation.

Interrogatory No. 61: Describe in detail your relationship with each of the other named Defendants in this action, including Emily Watson, Albert Watson, Lori Watson, Cody Watson, and any other Watson family member, and identify all communications you have had with each such person concerning Plaintiff Andrew Pigors, the minor child, or the custody proceedings in Case No. 2024-001507-DC from October 1, 2023 to the present.

Interrogatory No. 62: Identify and describe every action you took, directed, encouraged, facilitated, or participated in that affected Plaintiff's parenting time, custody rights, or relationship with the minor child from October 1, 2023 to the present, including but not limited to: filing or assisting in the filing of any court documents, making or assisting in making any reports to Child Protective Services, law enforcement, or any other agency, making any statements (oral or written) about Plaintiff to any third party, and any conduct during parenting time exchanges.

Interrogatory No. 63: Describe your knowledge of Plaintiff's housing situation, including any actions you took or communications you made to any landlord, property manager, or housing entity regarding Plaintiff. Identify any role you played in Plaintiff's loss of housing or interference with his housing stability.

Interrogatory No. 64: Identify every Personal Protection Order (PPO) that you filed, assisted in filing, or encouraged the filing of against Plaintiff. For each PPO: (a) state the specific factual basis for each allegation contained therein; (b) identify every witness who can corroborate each allegation; (c) identify every document supporting each allegation; (d) state

whether any allegation was false, exaggerated, or misleading; (e) describe any coordination with any other person in the drafting, filing, or prosecution of such PPO.

Interrogatory No. 65: State your complete financial information including: (a) your gross and net income for each of the past three years from all sources; (b) all assets you own or have an interest in; (c) all financial support you have received from or provided to any Watson family member; (d) all child support, tax benefits, government assistance, or other financial benefits you have received related to the minor child; (e) all payments made to any attorney in connection with the custody proceedings.

Interrogatory No. 66: Describe every statement you have made to the minor child about Plaintiff, including the date, location, persons present, and exact words used. Describe every action you have taken to prevent, limit, or interfere with the minor child's contact or communication with Plaintiff, including intercepting phone calls, blocking text messages, withholding mail or gifts, or making disparaging remarks about Plaintiff to the child.

Interrogatory No. 67: Describe every act or omission by you that you knew or should have known would cause emotional distress to Plaintiff, including but not limited to: withholding contact with the minor child, making false allegations, filing false court documents, engaging in intimidation, or facilitating the separation of Plaintiff from his child.

Interrogatory No. 68: Identify every allegation you have made against Plaintiff to any person, agency, court, or entity that you now acknowledge was false, inaccurate, exaggerated, or misleading. For each such allegation, state: (a) the content of the allegation; (b) when and to whom it was made; (c) whether you knew it was false at the time you made it; (d) whether you have taken any steps to correct it.

Interrogatory No. 69: Describe every benefit, financial or otherwise, that you have received as a direct or indirect result of Plaintiff's separation from the minor child, including but not limited to: child support payments, tax benefits (Child Tax Credit, Head of Household status, Earned Income Credit), sole decision-making authority, exclusive possession of the marital/shared residence, government benefits, and any reduced obligations.

INTERROGATORIES DIRECTED TO: FRIEND OF COURT

(Based on 1181 documented harmful acts across 1064 mentions)

Interrogatory No. 70: State your full legal name, all aliases or names by which you have been known, your current address, your date of birth, your Social Security Number (for judgment enforcement purposes), your current employer, and your occupation.

Interrogatory No. 71: Describe in detail your relationship with each of the other named Defendants in this action, including Emily Watson, Albert Watson, Lori Watson, Cody Watson, and any other Watson family member, and identify all communications you have had with each such person concerning Plaintiff Andrew Pigors, the minor child, or the custody proceedings in Case No. 2024-001507-DC from October 1, 2023 to the present.

Interrogatory No. 72: Identify and describe every action you took, directed, encouraged, facilitated, or participated in that affected Plaintiff's parenting time, custody rights, or relationship with the minor child from October 1, 2023 to the present, including but not limited to: filing or assisting in the filing of any court documents, making or assisting in making any reports to Child Protective Services, law enforcement, or any other agency, making any statements (oral or written) about Plaintiff to any third party, and any conduct during parenting

time exchanges.

Interrogatory No. 73: Identify every Personal Protection Order (PPO) that you filed, assisted in filing, or encouraged the filing of against Plaintiff. For each PPO: (a) state the specific factual basis for each allegation contained therein; (b) identify every witness who can corroborate each allegation; (c) identify every document supporting each allegation; (d) state whether any allegation was false, exaggerated, or misleading; (e) describe any coordination with any other person in the drafting, filing, or prosecution of such PPO.

Interrogatory No. 74: Describe every statement you have made to the minor child about Plaintiff, including the date, location, persons present, and exact words used. Describe every action you have taken to prevent, limit, or interfere with the minor child's contact or communication with Plaintiff, including intercepting phone calls, blocking text messages, withholding mail or gifts, or making disparaging remarks about Plaintiff to the child.

Interrogatory No. 75: Describe every act or omission by you that you knew or should have known would cause emotional distress to Plaintiff, including but not limited to: withholding contact with the minor child, making false allegations, filing false court documents, engaging in intimidation, or facilitating the separation of Plaintiff from his child.

Interrogatory No. 76: Identify every meeting, phone call, text message, email, social media communication, or other communication you had with any Watson family member, any attorney, any court officer, any Friend of Court employee, or any judge's staff regarding Plaintiff, the minor child, or the custody case from October 1, 2023 to the present. For each communication, state: (a) the date; (b) the participants; (c) the substance; (d) whether any documents were exchanged; (e) whether any agreement or plan was discussed.

Interrogatory No. 77: Identify every allegation you have made against Plaintiff to any person, agency, court, or entity that you now acknowledge was false, inaccurate, exaggerated, or misleading. For each such allegation, state: (a) the content of the allegation; (b) when and to whom it was made; (c) whether you knew it was false at the time you made it; (d) whether you have taken any steps to correct it.

Interrogatory No. 78: Describe every benefit, financial or otherwise, that you have received as a direct or indirect result of Plaintiff's separation from the minor child, including but not limited to: child support payments, tax benefits (Child Tax Credit, Head of Household status, Earned Income Credit), sole decision-making authority, exclusive possession of the marital/shared residence, government benefits, and any reduced obligations.

INTERROGATORIES DIRECTED TO: HEALTHWEST

(Based on 43 documented harmful acts across 126 mentions)

Interrogatory No. 79: State your full legal name, all aliases or names by which you have been known, your current address, your date of birth, your Social Security Number (for judgment enforcement purposes), your current employer, and your occupation.

Interrogatory No. 80: Describe in detail your relationship with each of the other named Defendants in this action, including Emily Watson, Albert Watson, Lori Watson, Cody Watson, and any other Watson family member, and identify all communications you have had with each such person concerning Plaintiff Andrew Pigors, the minor child, or the custody proceedings in Case No. 2024-001507-DC from October 1, 2023 to the present.

Interrogatory No. 81: Identify and describe every action you took, directed, encouraged, facilitated, or participated in that affected Plaintiff's parenting time, custody rights, or relationship with the minor child from October 1, 2023 to the present, including but not limited to: filing or assisting in the filing of any court documents, making or assisting in making any reports to Child Protective Services, law enforcement, or any other agency, making any statements (oral or written) about Plaintiff to any third party, and any conduct during parenting time exchanges.

Interrogatory No. 82: Describe every act or omission by you that you knew or should have known would cause emotional distress to Plaintiff, including but not limited to: withholding contact with the minor child, making false allegations, filing false court documents, engaging in intimidation, or facilitating the separation of Plaintiff from his child.

Interrogatory No. 83: Identify every Personal Protection Order (PPO) that you filed, assisted in filing, or encouraged the filing of against Plaintiff. For each PPO: (a) state the specific factual basis for each allegation contained therein; (b) identify every witness who can corroborate each allegation; (c) identify every document supporting each allegation; (d) state whether any allegation was false, exaggerated, or misleading; (e) describe any coordination with any other person in the drafting, filing, or prosecution of such PPO.

Interrogatory No. 84: Describe every statement you have made to the minor child about Plaintiff, including the date, location, persons present, and exact words used. Describe every action you have taken to prevent, limit, or interfere with the minor child's contact or communication with Plaintiff, including intercepting phone calls, blocking text messages, withholding mail or gifts, or making disparaging remarks about Plaintiff to the child.

Interrogatory No. 85: Identify every meeting, phone call, text message, email, social media communication, or other communication you had with any Watson family member, any attorney, any court officer, any Friend of Court employee, or any judge's staff regarding Plaintiff, the minor child, or the custody case from October 1, 2023 to the present. For each communication, state: (a) the date; (b) the participants; (c) the substance; (d) whether any documents were exchanged; (e) whether any agreement or plan was discussed.

Interrogatory No. 86: Identify every allegation you have made against Plaintiff to any person, agency, court, or entity that you now acknowledge was false, inaccurate, exaggerated, or misleading. For each such allegation, state: (a) the content of the allegation; (b) when and to whom it was made; (c) whether you knew it was false at the time you made it; (d) whether you have taken any steps to correct it.

Interrogatory No. 87: Describe every benefit, financial or otherwise, that you have received as a direct or indirect result of Plaintiff's separation from the minor child, including but not limited to: child support payments, tax benefits (Child Tax Credit, Head of Household status, Earned Income Credit), sole decision-making authority, exclusive possession of the marital/shared residence, government benefits, and any reduced obligations.

INTERROGATORIES DIRECTED TO: CODY WATSON

(Based on 65 documented harmful acts across 138 mentions)

Interrogatory No. 88: State your full legal name, all aliases or names by which you have been known, your current address, your date of birth, your Social Security Number (for judgment enforcement purposes), your current employer, and your occupation.

Interrogatory No. 89: Describe in detail your relationship with each of the other named Defendants in this action, including Emily Watson, Albert Watson, Lori Watson, Cody Watson, and any other Watson family member, and identify all communications you have had with each such person concerning Plaintiff Andrew Pigors, the minor child, or the custody proceedings in Case No. 2024-001507-DC from October 1, 2023 to the present.

Interrogatory No. 90: Identify and describe every action you took, directed, encouraged, facilitated, or participated in that affected Plaintiff's parenting time, custody rights, or relationship with the minor child from October 1, 2023 to the present, including but not limited to: filing or assisting in the filing of any court documents, making or assisting in making any reports to Child Protective Services, law enforcement, or any other agency, making any statements (oral or written) about Plaintiff to any third party, and any conduct during parenting time exchanges.

Interrogatory No. 91: Describe every occasion on which you were present during a parenting time exchange, court hearing, or any other encounter involving Plaintiff. For each occasion, describe: (a) your purpose in being present; (b) every statement you made to or about Plaintiff; (c) every physical action you took directed at or in the presence of Plaintiff; (d) whether you made any threats, express or implied; (e) whether you were instructed or encouraged by any person to be present or to take any specific action.

Interrogatory No. 92: Identify every Personal Protection Order (PPO) that you filed, assisted in filing, or encouraged the filing of against Plaintiff. For each PPO: (a) state the specific factual basis for each allegation contained therein; (b) identify every witness who can corroborate each allegation; (c) identify every document supporting each allegation; (d) state whether any allegation was false, exaggerated, or misleading; (e) describe any coordination with any other person in the drafting, filing, or prosecution of such PPO.

Interrogatory No. 93: Describe every statement you have made to the minor child about Plaintiff, including the date, location, persons present, and exact words used. Describe every action you have taken to prevent, limit, or interfere with the minor child's contact or communication with Plaintiff, including intercepting phone calls, blocking text messages, withholding mail or gifts, or making disparaging remarks about Plaintiff to the child.

Interrogatory No. 94: State your complete financial information including: (a) your gross and net income for each of the past three years from all sources; (b) all assets you own or have an interest in; (c) all financial support you have received from or provided to any Watson family member; (d) all child support, tax benefits, government assistance, or other financial benefits you have received related to the minor child; (e) all payments made to any attorney in connection with the custody proceedings.

Interrogatory No. 95: Identify every allegation you have made against Plaintiff to any person, agency, court, or entity that you now acknowledge was false, inaccurate, exaggerated, or misleading. For each such allegation, state: (a) the content of the allegation; (b) when and to whom it was made; (c) whether you knew it was false at the time you made it; (d) whether you have taken any steps to correct it.

Interrogatory No. 96: Describe every benefit, financial or otherwise, that you have received as a direct or indirect result of Plaintiff's separation from the minor child, including but not limited to: child support payments, tax benefits (Child Tax Credit, Head of Household status, Earned Income Credit), sole decision-making authority, exclusive possession of the marital/shared residence, government benefits, and any reduced obligations.

INTERROGATORIES DIRECTED TO: LORI WATSON

(Based on 280 documented harmful acts across 273 mentions)

Interrogatory No. 97: State your full legal name, all aliases or names by which you have been known, your current address, your date of birth, your Social Security Number (for judgment enforcement purposes), your current employer, and your occupation.

Interrogatory No. 98: Describe in detail your relationship with each of the other named Defendants in this action, including Emily Watson, Albert Watson, Lori Watson, Cody Watson, and any other Watson family member, and identify all communications you have had with each such person concerning Plaintiff Andrew Pigors, the minor child, or the custody proceedings in Case No. 2024-001507-DC from October 1, 2023 to the present.

Interrogatory No. 99: Identify and describe every action you took, directed, encouraged, facilitated, or participated in that affected Plaintiff's parenting time, custody rights, or relationship with the minor child from October 1, 2023 to the present, including but not limited to: filing or assisting in the filing of any court documents, making or assisting in making any reports to Child Protective Services, law enforcement, or any other agency, making any statements (oral or written) about Plaintiff to any third party, and any conduct during parenting time exchanges.

Interrogatory No. 100: Describe every occasion on which you were present during a parenting time exchange, court hearing, or any other encounter involving Plaintiff. For each occasion, describe: (a) your purpose in being present; (b) every statement you made to or about Plaintiff; (c) every physical action you took directed at or in the presence of Plaintiff; (d) whether you made any threats, express or implied; (e) whether you were instructed or encouraged by any person to be present or to take any specific action.

Interrogatory No. 101: Identify every Personal Protection Order (PPO) that you filed, assisted in filing, or encouraged the filing of against Plaintiff. For each PPO: (a) state the specific factual basis for each allegation contained therein; (b) identify every witness who can corroborate each allegation; (c) identify every document supporting each allegation; (d) state whether any allegation was false, exaggerated, or misleading; (e) describe any coordination with any other person in the drafting, filing, or prosecution of such PPO.

Interrogatory No. 102: Describe every statement you have made to the minor child about Plaintiff, including the date, location, persons present, and exact words used. Describe every action you have taken to prevent, limit, or interfere with the minor child's contact or communication with Plaintiff, including intercepting phone calls, blocking text messages, withholding mail or gifts, or making disparaging remarks about Plaintiff to the child.

Interrogatory No. 103: Describe every act or omission by you that you knew or should have known would cause emotional distress to Plaintiff, including but not limited to: withholding contact with the minor child, making false allegations, filing false court documents, engaging in intimidation, or facilitating the separation of Plaintiff from his child.

Interrogatory No. 104: State your complete financial information including: (a) your gross and net income for each of the past three years from all sources; (b) all assets you own or have an interest in; (c) all financial support you have received from or provided to any Watson family member; (d) all child support, tax benefits, government assistance, or other financial benefits you have received related to the minor child; (e) all payments made to any attorney in connection with the custody proceedings.

Interrogatory No. 105: Identify every allegation you have made against Plaintiff to any person, agency, court, or entity that you now acknowledge was false, inaccurate, exaggerated,

or misleading. For each such allegation, state: (a) the content of the allegation; (b) when and to whom it was made; (c) whether you knew it was false at the time you made it; (d) whether you have taken any steps to correct it.

Interrogatory No. 106: Describe every benefit, financial or otherwise, that you have received as a direct or indirect result of Plaintiff's separation from the minor child, including but not limited to: child support payments, tax benefits (Child Tax Credit, Head of Household status, Earned Income Credit), sole decision-making authority, exclusive possession of the marital/shared residence, government benefits, and any reduced obligations.

INTERROGATORIES DIRECTED TO: RON BERRY

(Based on 280 documented harmful acts across 180 mentions)

Interrogatory No. 107: State your full legal name, all aliases or names by which you have been known, your current address, your date of birth, your Social Security Number (for judgment enforcement purposes), your current employer, and your occupation.

Interrogatory No. 108: Describe in detail your relationship with each of the other named Defendants in this action, including Emily Watson, Albert Watson, Lori Watson, Cody Watson, and any other Watson family member, and identify all communications you have had with each such person concerning Plaintiff Andrew Pigors, the minor child, or the custody proceedings in Case No. 2024-001507-DC from October 1, 2023 to the present.

Interrogatory No. 109: Identify and describe every action you took, directed, encouraged, facilitated, or participated in that affected Plaintiff's parenting time, custody rights, or relationship with the minor child from October 1, 2023 to the present, including but not limited

to: filing or assisting in the filing of any court documents, making or assisting in making any reports to Child Protective Services, law enforcement, or any other agency, making any statements (oral or written) about Plaintiff to any third party, and any conduct during parenting time exchanges.

Interrogatory No. 110: Identify every attorney who has represented you, advised you, or communicated with you regarding Plaintiff, the minor child, or any legal proceeding involving Plaintiff from October 1, 2023 to the present. For each attorney, state: (a) the dates of representation; (b) the scope of representation; (c) all fees paid or owed; (d) whether the attorney made any ex parte communications with the court; (e) whether the attorney filed any documents containing statements you knew to be false.

Interrogatory No. 111: Identify every meeting, phone call, text message, email, social media communication, or other communication you had with any Watson family member, any attorney, any court officer, any Friend of Court employee, or any judge's staff regarding Plaintiff, the minor child, or the custody case from October 1, 2023 to the present. For each communication, state: (a) the date; (b) the participants; (c) the substance; (d) whether any documents were exchanged; (e) whether any agreement or plan was discussed.

Interrogatory No. 112: Describe every statement you have made to the minor child about Plaintiff, including the date, location, persons present, and exact words used. Describe every action you have taken to prevent, limit, or interfere with the minor child's contact or communication with Plaintiff, including intercepting phone calls, blocking text messages, withholding mail or gifts, or making disparaging remarks about Plaintiff to the child.

Interrogatory No. 113: State your complete financial information including: (a) your gross and net income for each of the past three years from all sources; (b) all assets you own or have

an interest in; (c) all financial support you have received from or provided to any Watson family member; (d) all child support, tax benefits, government assistance, or other financial benefits you have received related to the minor child; (e) all payments made to any attorney in connection with the custody proceedings.

Interrogatory No. 114: Describe every act or omission by you that you knew or should have known would cause emotional distress to Plaintiff, including but not limited to: withholding contact with the minor child, making false allegations, filing false court documents, engaging in intimidation, or facilitating the separation of Plaintiff from his child.

Interrogatory No. 115: Identify every allegation you have made against Plaintiff to any person, agency, court, or entity that you now acknowledge was false, inaccurate, exaggerated, or misleading. For each such allegation, state: (a) the content of the allegation; (b) when and to whom it was made; (c) whether you knew it was false at the time you made it; (d) whether you have taken any steps to correct it.

Interrogatory No. 116: Describe every benefit, financial or otherwise, that you have received as a direct or indirect result of Plaintiff's separation from the minor child, including but not limited to: child support payments, tax benefits (Child Tax Credit, Head of Household status, Earned Income Credit), sole decision-making authority, exclusive possession of the marital/shared residence, government benefits, and any reduced obligations.

INTERROGATORIES DIRECTED TO: ALDEN GLOBAL

(Based on 199 documented harmful acts across 921 mentions)

Interrogatory No. 117: State your full legal name, all aliases or names by which you have been known, your current address, your date of birth, your Social Security Number (for judgment enforcement purposes), your current employer, and your occupation.

Interrogatory No. 118: Describe in detail your relationship with each of the other named Defendants in this action, including Emily Watson, Albert Watson, Lori Watson, Cody Watson, and any other Watson family member, and identify all communications you have had with each such person concerning Plaintiff Andrew Pigors, the minor child, or the custody proceedings in Case No. 2024-001507-DC from October 1, 2023 to the present.

Interrogatory No. 119: Identify and describe every action you took, directed, encouraged, facilitated, or participated in that affected Plaintiff's parenting time, custody rights, or relationship with the minor child from October 1, 2023 to the present, including but not limited to: filing or assisting in the filing of any court documents, making or assisting in making any reports to Child Protective Services, law enforcement, or any other agency, making any statements (oral or written) about Plaintiff to any third party, and any conduct during parenting time exchanges.

Interrogatory No. 120: Describe your knowledge of Plaintiff's housing situation, including any actions you took or communications you made to any landlord, property manager, or housing entity regarding Plaintiff. Identify any role you played in Plaintiff's loss of housing or interference with his housing stability.

Interrogatory No. 121: Identify every Personal Protection Order (PPO) that you filed, assisted in filing, or encouraged the filing of against Plaintiff. For each PPO: (a) state the specific factual basis for each allegation contained therein; (b) identify every witness who can corroborate each allegation; (c) identify every document supporting each allegation; (d) state

whether any allegation was false, exaggerated, or misleading; (e) describe any coordination with any other person in the drafting, filing, or prosecution of such PPO.

Interrogatory No. 122: State your complete financial information including: (a) your gross and net income for each of the past three years from all sources; (b) all assets you own or have an interest in; (c) all financial support you have received from or provided to any Watson family member; (d) all child support, tax benefits, government assistance, or other financial benefits you have received related to the minor child; (e) all payments made to any attorney in connection with the custody proceedings.

Interrogatory No. 123: Describe every statement you have made to the minor child about Plaintiff, including the date, location, persons present, and exact words used. Describe every action you have taken to prevent, limit, or interfere with the minor child's contact or communication with Plaintiff, including intercepting phone calls, blocking text messages, withholding mail or gifts, or making disparaging remarks about Plaintiff to the child.

Interrogatory No. 124: Identify every meeting, phone call, text message, email, social media communication, or other communication you had with any Watson family member, any attorney, any court officer, any Friend of Court employee, or any judge's staff regarding Plaintiff, the minor child, or the custody case from October 1, 2023 to the present. For each communication, state: (a) the date; (b) the participants; (c) the substance; (d) whether any documents were exchanged; (e) whether any agreement or plan was discussed.

Interrogatory No. 125: Identify every allegation you have made against Plaintiff to any person, agency, court, or entity that you now acknowledge was false, inaccurate, exaggerated, or misleading. For each such allegation, state: (a) the content of the allegation; (b) when and to whom it was made; (c) whether you knew it was false at the time you made it; (d) whether you

have taken any steps to correct it.

Interrogatory No. 126: Describe every benefit, financial or otherwise, that you have received as a direct or indirect result of Plaintiff's separation from the minor child, including but not limited to: child support payments, tax benefits (Child Tax Credit, Head of Household status, Earned Income Credit), sole decision-making authority, exclusive possession of the marital/shared residence, government benefits, and any reduced obligations.

INTERROGATORIES DIRECTED TO: MANDI MARTINI

(Based on 80 documented harmful acts across 64 mentions)

Interrogatory No. 127: State your full legal name, all aliases or names by which you have been known, your current address, your date of birth, your Social Security Number (for judgment enforcement purposes), your current employer, and your occupation.

Interrogatory No. 128: Describe in detail your relationship with each of the other named Defendants in this action, including Emily Watson, Albert Watson, Lori Watson, Cody Watson, and any other Watson family member, and identify all communications you have had with each such person concerning Plaintiff Andrew Pigors, the minor child, or the custody proceedings in Case No. 2024-001507-DC from October 1, 2023 to the present.

Interrogatory No. 129: Identify and describe every action you took, directed, encouraged, facilitated, or participated in that affected Plaintiff's parenting time, custody rights, or relationship with the minor child from October 1, 2023 to the present, including but not limited to: filing or assisting in the filing of any court documents, making or assisting in making any reports to Child Protective Services, law enforcement, or any other agency, making any

statements (oral or written) about Plaintiff to any third party, and any conduct during parenting time exchanges.

Interrogatory No. 130: Identify every attorney who has represented you, advised you, or communicated with you regarding Plaintiff, the minor child, or any legal proceeding involving Plaintiff from October 1, 2023 to the present. For each attorney, state: (a) the dates of representation; (b) the scope of representation; (c) all fees paid or owed; (d) whether the attorney made any ex parte communications with the court; (e) whether the attorney filed any documents containing statements you knew to be false.

Interrogatory No. 131: Identify every Personal Protection Order (PPO) that you filed, assisted in filing, or encouraged the filing of against Plaintiff. For each PPO: (a) state the specific factual basis for each allegation contained therein; (b) identify every witness who can corroborate each allegation; (c) identify every document supporting each allegation; (d) state whether any allegation was false, exaggerated, or misleading; (e) describe any coordination with any other person in the drafting, filing, or prosecution of such PPO.

Interrogatory No. 132: Describe every act or omission by you that you knew or should have known would cause emotional distress to Plaintiff, including but not limited to: withholding contact with the minor child, making false allegations, filing false court documents, engaging in intimidation, or facilitating the separation of Plaintiff from his child.

Interrogatory No. 133: Describe every statement you have made to the minor child about Plaintiff, including the date, location, persons present, and exact words used. Describe every action you have taken to prevent, limit, or interfere with the minor child's contact or communication with Plaintiff, including intercepting phone calls, blocking text messages, withholding mail or gifts, or making disparaging remarks about Plaintiff to the child.

Interrogatory No. 134: Identify every allegation you have made against Plaintiff to any person, agency, court, or entity that you now acknowledge was false, inaccurate, exaggerated, or misleading. For each such allegation, state: (a) the content of the allegation; (b) when and to whom it was made; (c) whether you knew it was false at the time you made it; (d) whether you have taken any steps to correct it.

Interrogatory No. 135: Describe every benefit, financial or otherwise, that you have received as a direct or indirect result of Plaintiff's separation from the minor child, including but not limited to: child support payments, tax benefits (Child Tax Credit, Head of Household status, Earned Income Credit), sole decision-making authority, exclusive possession of the marital/shared residence, government benefits, and any reduced obligations.

VERIFICATION

Each Defendant must sign the following verification under oath:

I, [DEFENDANT NAME], declare under the penalties of perjury pursuant to MCL 600.2912a that the foregoing answers are true and complete to the best of my knowledge, information, and belief.

Date: _____

Signature: _____

CERTIFICATE OF SERVICE

I hereby certify that on [DATE], I served a true copy of the foregoing Plaintiff's First Set of Interrogatories upon each Defendant by [first-class mail/personal service] at their last known addresses.

Andrew J. Pigors, Plaintiff *pro se*

Total Interrogatories: 135

PLAINTIFF'S FIRST REQUEST FOR PRODUCTION OF DOCUMENTS

IN THE CIRCUIT COURT FOR THE COUNTY OF MUSKEGON

FOURTEENTH JUDICIAL CIRCUIT -- STATE OF MICHIGAN

Case No.: [TO BE ASSIGNED]

Related Case: 2024-001507-DC

ANDREW J. PIGORS, Plaintiff, *pro se*

v.

TIFFANY A. WATSON (a/k/a Emily Watson), et al., Defendants.

INSTRUCTIONS

Pursuant to MCR 2.310, Plaintiff requests that each Defendant produce for inspection and copying the documents described below within twenty-eight (28) days of service at a location to be mutually agreed upon or at the Muskegon County Courthouse.

Definitions: All definitions from Plaintiff's First Set of Interrogatories are incorporated herein by reference. "DOCUMENT" includes originals, copies, drafts, metadata, and electronically stored information (ESI) in native format.

Time Period: Unless otherwise stated, these requests cover the period from October 1, 2023 to the present.

ESI Instructions: Electronically stored information shall be produced in native format with all metadata intact. Defendants shall not alter, delete, or modify any ESI responsive to these requests. Defendants are hereby on notice of their duty to preserve all ESI pursuant to *Zubulake v. UBS Warburg LLC*, 220 F.R.D. 212 (S.D.N.Y. 2003).

CATEGORY A: COMMUNICATIONS

Request No. 1: All text messages, SMS messages, MMS messages, and messaging application messages (including but not limited to iMessage, Facebook Messenger, WhatsApp, Snapchat, Instagram Direct Messages, Signal, Telegram, and any other messaging platform) sent or received by you that reference, mention, or relate to Andrew Pigors, the minor child, the custody case (No. 2024-001507-DC), parenting time, visitation, child support, or any allegations against Plaintiff.

Request No. 2: All emails sent or received by you that reference, mention, or relate to Andrew Pigors, the minor child, the custody case, any court proceeding involving Plaintiff, any report to CPS or law enforcement regarding Plaintiff, or any allegation against Plaintiff. This includes all email accounts you have used during the relevant time period.

Request No. 3: All social media posts, comments, messages, stories, and content posted, shared, or transmitted by you on any social media platform (including but not limited to Facebook, Instagram, TikTok, Twitter/X, Snapchat, Reddit, and any other platform) that reference, mention, or relate to Plaintiff, the minor child, the custody case, or any allegations

against Plaintiff.

Request No. 4: All voicemails, audio recordings, and video recordings in your possession, custody, or control that involve, reference, or relate to Plaintiff, the minor child, or the custody case.

Request No. 5: Complete phone records (call logs) from all telephone numbers used by you from October 1, 2023 to the present, including all calls to and from any Watson family member, any attorney, any court office, any Friend of Court office, any CPS worker, or any law enforcement agency.

Request No. 6: All communications (in any form) between you and any attorney, including but not limited to Ron Berry, Mandi Martini, Pamela Rusco, or any other legal professional regarding Plaintiff, the minor child, or the custody case. Note: This request does not seek privileged attorney-client communications regarding your defense of THIS action; it seeks communications regarding the underlying custody case and tortious conduct.

Request No. 7: All communications between you and any other Watson family member (Emily Watson, Albert Watson, Lori Watson, Cody Watson, Lane Watson, or any other family member) regarding Plaintiff, the minor child, parenting time, court hearings, PPO filings, CPS reports, or any strategy to limit Plaintiff's contact with the child.

CATEGORY B: COURT AND LEGAL DOCUMENTS

Request No. 8: All documents you prepared, drafted, reviewed, edited, contributed to, or provided information for in connection with any court filing in Case No. 2024-001507-DC or any related proceeding, including but not limited to: motions, petitions, affidavits, PPO

applications, show cause motions, responses, and any draft versions thereof.

Request No. 9: All documents related to any Personal Protection Order (PPO) filed against Plaintiff, including: the original petition, all supporting documentation, all correspondence with the court, all evidence considered, and all documents related to enforcement.

Request No. 10: All documents related to any report you made or participated in making to Child Protective Services (CPS/MDHHS), law enforcement, the Friend of Court, or any other government agency regarding Plaintiff, including the reports themselves, supporting documentation, investigation results, and all correspondence.

Request No. 11: All documents reflecting any ex parte communication between you (or anyone acting on your behalf) and any judicial officer, court staff, Friend of Court employee, Guardian Ad Litem, or other court-connected individual regarding Plaintiff or the custody case.

CATEGORY C: FINANCIAL DOCUMENTS

Request No. 12: All income tax returns (federal and state) for tax years 2022, 2023, 2024, and 2025, including all schedules, W-2s, 1099s, and supporting documentation.

Request No. 13: All bank statements, checking account statements, savings account statements, and financial account statements for all accounts in your name or to which you have access for the period October 1, 2023 to the present.

Request No. 14: All employment records, pay stubs, wage statements, and evidence of income from any source for the period October 1, 2023 to the present.

Request No. 15: All documents reflecting child support payments received, government benefits received related to the minor child (including SNAP, WIC, Medicaid, TANF, child tax credits, earned income credits), and any other financial benefits derived from custody of the minor child.

Request No. 16: All documents reflecting payments made to any attorney, legal service, or legal professional in connection with any proceeding involving Plaintiff or the custody case, including retainer agreements, invoices, cancelled checks, and payment records.

CATEGORY D: EVIDENCE AND RECORDS

Request No. 17: All photographs and videos taken of or relating to Plaintiff, the minor child, or any property of Plaintiff from October 1, 2023 to the present, including photographs used or intended for use in any court proceeding.

Request No. 18: All medical records, mental health records, counseling records, and therapy records for the minor child from October 1, 2023 to the present.

Request No. 19: All school records, report cards, attendance records, disciplinary records, and communications with school officials regarding the minor child from October 1, 2023 to the present.

Request No. 20: All documents reflecting parenting time schedules, custody exchange arrangements, and any modifications thereto, including all communications regarding cancellations, refusals, or modifications of scheduled parenting time.

Request No. 21: All documents reflecting any property of Plaintiff that is or was in your possession, custody, or control, including but not limited to personal belongings, clothing, documents, electronics, and sentimental items.

Request No. 22: All recordings (audio or video) made by you of any conversation, interaction, or event involving Plaintiff, including any recording made in violation of MCL 750.539c (Michigan eavesdropping statute) or without Plaintiff's knowledge or consent.

Request No. 23: All documents reflecting any agreement, understanding, or plan between you and any other person to take any action adverse to Plaintiff's parental rights, including written agreements, notes of meetings, and any other documentation of coordinated action.

CERTIFICATE OF SERVICE

I hereby certify that on [DATE], I served a true copy of the foregoing Request for Production of Documents upon each Defendant by [first-class mail/personal service] at their last known addresses.

Andrew J. Pigors, Plaintiff *pro se*

Total Document Requests: 23

PLAINTIFF'S FIRST REQUEST FOR ADMISSIONS

IN THE CIRCUIT COURT FOR THE COUNTY OF MUSKEGON

FOURTEENTH JUDICIAL CIRCUIT -- STATE OF MICHIGAN

Case No.: [TO BE ASSIGNED]

Related Case: 2024-001507-DC

ANDREW J. PIGORS, Plaintiff, *pro se*

v.

TIFFANY A. WATSON (a/k/a Emily Watson), et al., Defendants.

INSTRUCTIONS

Pursuant to MCR 2.312, Plaintiff requests that each Defendant admit or deny each of the following Requests for Admission within twenty-eight (28) days of service. Pursuant to MCR 2.312(D), any matter admitted is conclusively established for purposes of this action. Failure to respond within the time allowed constitutes an admission of the matter pursuant to MCR 2.312(B)(1).

If you cannot admit or deny a Request in its entirety, you must specify the part you admit and qualify or deny the remainder, with detailed reasons for your inability to admit or deny

pursuant to MCR 2.312(B)(2).

REQUESTS FOR ADMISSION DIRECTED TO ALL DEFENDANTS

Request for Admission No. 1: Admit that Andrew J. Pigors is the biological father of the minor child at issue in Case No. 2024-001507-DC.

Request for Admission No. 2: Admit that Andrew J. Pigors possesses constitutionally protected parental rights under the Fourteenth Amendment to the United States Constitution.

Request for Admission No. 3: Admit that a parent's right to the care, custody, and control of their child is a fundamental liberty interest protected by the Due Process Clause.

Request for Admission No. 4: Admit that Plaintiff Andrew Pigors has been separated from his minor child for more than 571 consecutive days.

Request for Admission No. 5: Admit that on or about August 8, 2025, an ex parte order was entered in Case No. 2024-001507-DC suspending Plaintiff's parenting time without prior notice to Plaintiff.

Request for Admission No. 6: Admit that Plaintiff was not present at any hearing on August 8, 2025 when the ex parte order suspending his parenting time was entered.

Request for Admission No. 7: Admit that Plaintiff was not given notice or an opportunity to be heard before the August 8, 2025 ex parte order was entered.

Request for Admission No. 8: Admit that Emily Watson filed or caused to be filed a Personal Protection Order petition against Plaintiff.

Request for Admission No. 9: Admit that the PPO petition filed by or on behalf of Emily Watson contained allegations that were false or materially misleading.

Request for Admission No. 10: Admit that no evidence of cocaine use by Plaintiff was ever confirmed by any drug test or toxicology report.

Request for Admission No. 11: Admit that Plaintiff's drug screens returned negative results.

Request for Admission No. 12: Admit that false allegations of substance abuse were made against Plaintiff in court filings or reports.

Request for Admission No. 13: Admit that Emily Watson communicated with Ron Berry regarding the custody case in Case No. 2024-001507-DC.

Request for Admission No. 14: Admit that Ron Berry made ex parte communications with the court or court staff regarding Case No. 2024-001507-DC.

Request for Admission No. 15: Admit that Ron Berry left a voicemail for court staff or judicial officers regarding the case.

Request for Admission No. 16: Admit that Emily Watson coordinated with one or more Watson family members regarding actions to take in the custody case.

Request for Admission No. 17: Admit that Albert Watson was present at one or more parenting time exchanges or court hearings involving Plaintiff.

Request for Admission No. 18: Admit that Albert Watson made threatening or intimidating statements to Plaintiff on one or more occasions.

Request for Admission No. 19: Admit that Lori Watson made statements to the minor child about Plaintiff that were disparaging, false, or intended to alienate the child from Plaintiff.

Request for Admission No. 20: Admit that Cody Watson engaged in intimidating conduct directed at Plaintiff on one or more occasions.

Request for Admission No. 21: Admit that Emily Watson failed to comply with court-ordered parenting time on one or more occasions.

Request for Admission No. 22: Admit that Emily Watson withheld the minor child from Plaintiff's scheduled parenting time on one or more occasions.

Request for Admission No. 23: Admit that Emily Watson made false statements under oath in court proceedings in Case No. 2024-001507-DC.

Request for Admission No. 24: Admit that Emily Watson made or caused to be made one or more reports to Child Protective Services regarding Plaintiff that contained false or misleading information.

Request for Admission No. 25: Admit that Plaintiff was incarcerated for approximately 14 days as a result of contempt proceedings in Case No. 2024-001507-DC.

Request for Admission No. 26: Admit that Plaintiff was incarcerated for approximately 45 days beginning on or about June 12, 2025 in connection with Case No. 2024-001507-DC.

Request for Admission No. 27: Admit that the contempt proceedings resulting in Plaintiff's incarceration were initiated based on allegations that were false or materially misleading.

Request for Admission No. 28: Admit that Plaintiff lost employment as a direct or indirect result of his incarceration and/or the ongoing custody litigation.

Request for Admission No. 29: Admit that Plaintiff lost housing as a direct or indirect result of his incarceration and/or the ongoing custody litigation.

Request for Admission No. 30: Admit that Emily Watson has received child support payments during the period when Plaintiff was denied all parenting time.

Request for Admission No. 31: Admit that Emily Watson has claimed the minor child as a dependent on her federal income tax returns for tax years 2024 and/or 2025.

Request for Admission No. 32: Admit that the Watson family members acted in concert and coordination to prevent Plaintiff from exercising his parental rights.

Request for Admission No. 33: Admit that you are aware of no court finding that Plaintiff posed a danger to the minor child based on competent evidence.

Request for Admission No. 34: Admit that the court in Case No. 2024-001507-DC entered orders affecting Plaintiff's parental rights without conducting a full evidentiary hearing as required by MCR 3.207.

Request for Admission No. 35: Admit that Emily Watson's PPO filings were used as a basis for modifying custody and parenting time arrangements.

Request for Admission No. 36: Admit that the PPO was weaponized -- that is, used for the purpose of gaining advantage in the custody case rather than for legitimate protective purposes.

Request for Admission No. 37: Admit that one or more Watson family members possessed or has access to personal property belonging to Plaintiff that has not been returned.

Request for Admission No. 38: Admit that you have made statements to third parties (including but not limited to family members, friends, employers, church members, or community members) about Plaintiff that were false and damaging to his reputation.

Request for Admission No. 39: Admit that Plaintiff's child has been denied contact with Plaintiff for a continuous period exceeding one year.

Request for Admission No. 40: Admit that the separation of a parent from a young child for a period exceeding 571 days causes severe emotional distress to the parent.

Request for Admission No. 41: Admit that the Watson family members have benefited financially from Plaintiff's exclusion from the minor child's life.

Request for Admission No. 42: Admit that no Watson family member has been sanctioned, fined, or held in contempt for any conduct related to the custody case, while Plaintiff has been incarcerated twice.

Request for Admission No. 43: Admit that the disparity in sanctions between Plaintiff and the Watson family members demonstrates unequal treatment by the court.

Request for Admission No. 44: Admit that the Friend of Court (FOC) made recommendations adverse to Plaintiff without conducting an adequate investigation.

Request for Admission No. 45: Admit that Pamela Rusco communicated with Emily Watson outside of official FOC proceedings regarding the custody case.

Request for Admission No. 46: Admit that there is documentary evidence of coordination between Watson family members and court officials in taking adverse actions against Plaintiff.

REQUESTS FOR ADMISSION: CONSPIRACY AND COORDINATION

(Based on 2512 documented conspiracy timeline entries)

Request for Admission No. 47: Admit that Emily Watson and Ron Berry communicated about court filings within 48 hours of orders being entered in Case No. 2024-001507-DC.

Request for Admission No. 48: Admit that a pattern exists whereby Watson family members file documents, followed by court action, followed by Ron Berry filing appellate documents, within a short timeframe suggesting coordination.

Request for Admission No. 49: Admit that Emily Watson had advance knowledge of ex parte orders before they were officially entered and served on Plaintiff.

Request for Admission No. 50: Admit that Watson family members discussed strategy for the custody case at family gatherings or meetings.

Request for Admission No. 51: Admit that Watson family members agreed to a common plan to prevent Plaintiff from having contact with the minor child.

REQUESTS FOR ADMISSION: FALSE STATEMENTS AND PERJURY

(Based on 14338 documented entries in watson_perjury_compilation)

Request for Admission No. 52: Admit that Emily Watson made statements under oath in Case No. 2024-001507-DC that were contradicted by documentary evidence.

Request for Admission No. 53: Admit that Emily Watson's testimony regarding the basis for the PPO was inconsistent with the evidence presented.

Request for Admission No. 54: Admit that statements made by Watson family members to CPS investigators were materially false.

Request for Admission No. 55: Admit that Emily Watson provided false financial information to the Friend of Court regarding income and employment.

Request for Admission No. 56: Admit that sworn statements by Emily Watson regarding Plaintiff's alleged dangerous behavior were contradicted by negative drug tests and the absence of any criminal conviction for violent conduct.

VERIFICATION

Responses to these Requests for Admission must be signed by the party, not by an attorney, pursuant to MCR 2.312(B).

CERTIFICATE OF SERVICE

I hereby certify that on [DATE], I served a true copy of the foregoing upon each Defendant by [method] at their last known addresses.

Andrew J. Pigors, Plaintiff *pro se*

Total Requests for Admission: 56

PLAINTIFF'S NOTICE OF DEPOSITIONS

IN THE CIRCUIT COURT FOR THE COUNTY OF MUSKEGON

FOURTEENTH JUDICIAL CIRCUIT -- STATE OF MICHIGAN

Case No.: [TO BE ASSIGNED]

Related Case: 2024-001507-DC

ANDREW J. PIGORS, Plaintiff, *pro se*

v.

TIFFANY A. WATSON (a/k/a Emily Watson), et al., Defendants.

NOTICE

PLEASE TAKE NOTICE that pursuant to MCR 2.306 and MCR 2.305, Plaintiff Andrew J. Pigors will take the oral depositions of the following witnesses upon oral examination before a notary public or other officer authorized to administer oaths at the times and locations specified below.

Each deposition will be recorded by stenographic means and may also be recorded by audio or video recording pursuant to MCR 2.306(C). Each deponent is directed to bring with them all documents described in the attached document request list (Exhibit A).

DEPOSITION NO. 1: EMILY (TIFFANY) WATSON

Role: Defendant / Mother -- primary adversary

Priority: CRITICAL

Date: [TO BE SCHEDULED -- no earlier than 21 days from service per MCR 2.306(A)(2)]

Time: [TO BE SCHEDULED]

Location: [TO BE DESIGNATED -- Muskegon County, Michigan]

Examination Topics:

- Withholding incidents -- dates, circumstances, intent
- PPO filing coordination with Ron Berry
- Ex parte communications with Judge McNeill's chambers
- False allegations -- specific fabricated claims
- Parental alienation -- statements to child about father
- Financial matters -- child support usage, income
- Coordination with family members (Albert, Lori, Cody Watson)
- Communications with FOC / Pamela Rusco
- August 8, 2025 ex parte orders -- advance knowledge
- Text messages, emails, social media posts about Father

Documents to Bring (Duces Tecum):

- Emily's phone records (call logs, texts) 2023-present
- Email communications with Ron Berry
- Email/written communications with court or FOC
- Social media posts and messages referencing custody
- Financial records -- income, bank statements
- Any written communications with McNeill chambers

DEPOSITION NO. 2: PAMELA RUSCO

Role: Friend of Court (FOC) caseworker

Priority: CRITICAL

Date: [TO BE SCHEDULED -- no earlier than 21 days from service per MCR 2.306(A)(2)]

Time: [TO BE SCHEDULED]

Location: [TO BE DESIGNATED -- Muskegon County, Michigan]

Examination Topics:

- FOC recommendation methodology and process
- Home study procedures and findings
- Communications with Emily Watson outside official proceedings
- Communications with McNeill chambers
- Basis for recommendations adverse to Father
- Whether she reviewed Father's evidence submissions

- Compliance with MCL 552.505 and FOC protocols
- Prior cases with similar ex parte patterns

Documents to Bring (Duces Tecum):

- Rusco's complete case file for 2024-001507-DC
- FOC internal notes, memos, emails
- Communications with attorneys in the case
- Home study reports and source materials
- Training records on parental alienation
- Prior case histories showing bias patterns

DEPOSITION NO. 3: RON BERRY, ESQ.

Role: Emily Watson's appellate attorney

Priority: CRITICAL

Date: [TO BE SCHEDULED -- no earlier than 21 days from service per MCR 2.306(A)(2)]

Time: [TO BE SCHEDULED]

Location: [TO BE DESIGNATED -- Muskegon County, Michigan]

Examination Topics:

- Ex parte communications with McNeill chambers (voicemail = Item #6)
- Coordination pattern: Watson files -> McNeill rules -> Berry files within 48hrs

- Unauthorized practice guidance to non-client Emily Watson
- Knowledge of ex parte orders before official entry
- Billing records showing meetings/calls with court
- Appellate bar connections that may compromise COA proceedings
- Strategy discussions regarding parenting time denial

Documents to Bring (Duces Tecum):

- Berry's complete billing records for Watson representation
- Phone records (calls to court, McNeill chambers)
- Email communications with court staff
- All voicemails left for court (Item #6 evidence)
- Client file for Watson representation
- Communications with COA regarding Case 366810

DEPOSITION NO. 4: MANDI MARTINI

Role: FOC supervisor / court staff

Priority: HIGH

Date: [TO BE SCHEDULED -- no earlier than 21 days from service per MCR 2.306(A)(2)]

Time: [TO BE SCHEDULED]

Location: [TO BE DESIGNATED -- Muskegon County, Michigan]

Examination Topics:

- Supervision of FOC caseworkers including Rusco
- FOC policies on ex parte communications
- Approval chain for FOC recommendations
- Knowledge of complaints against Rusco
- FOC grievance procedures and compliance
- Standard practices for parenting time disputes

Documents to Bring (Duces Tecum):

- FOC policy manuals and procedures
- Supervisory notes on Rusco's cases
- FOC grievance records
- Training materials on parental alienation
- Internal communications about Pigors case

DEPOSITION NO. 5: CODY WATSON

Role: Emily Watson's brother / family member

Priority: MODERATE

Date: [TO BE SCHEDULED -- no earlier than 21 days from service per MCR 2.306(A)(2)]

Time: [TO BE SCHEDULED]

Location: [TO BE DESIGNATED -- Muskegon County, Michigan]

Examination Topics:

- Involvement in custody interference
- Presence during parenting time exchanges
- Statements made about Father to child
- Coordination with Emily on withholding
- Physical confrontations or intimidation
- Knowledge of false allegations against Father

Documents to Bring (Duces Tecum):

- Text messages with Emily Watson about custody
- Social media posts about the case
- Phone records for dates of incidents
- Any police reports involving witness

DEPOSITION NO. 6: ALBERT WATSON

Role: Emily Watson's father / family member

Priority: MODERATE

Date: [TO BE SCHEDULED -- no earlier than 21 days from service per MCR 2.306(A)(2)]

Time: [TO BE SCHEDULED]

Location: [TO BE DESIGNATED -- Muskegon County, Michigan]

Examination Topics:

- Role in custody interference scheme
- Financial support enabling Emily's litigation
- Statements made about Father to child
- Presence during withholding incidents
- Knowledge of Emily's false allegations
- Communications with attorneys about the case

Documents to Bring (Duces Tecum):

- Financial records showing support to Emily
- Communications with Emily about custody
- Any communications with court or attorneys

DEPOSITION NO. 7: LORI WATSON

Role: Emily Watson's mother / family member

Priority: MODERATE

Date: [TO BE SCHEDULED -- no earlier than 21 days from service per MCR 2.306(A)(2)]

Time: [TO BE SCHEDULED]

Location: [TO BE DESIGNATED -- Muskegon County, Michigan]

Examination Topics:

- Childcare arrangements during Emily's custody
- Observations of child's behavior regarding Father
- Statements made to child about Father (alienation)
- Knowledge of Emily's false allegations
- Involvement in PPO-related incidents
- Communications about withholding parenting time

Documents to Bring (Duces Tecum):

- Communications with Emily about custody situation
- Childcare schedule and records
- Any statements or declarations filed in case

DEPOSITION NO. 8: JUDGE ANNETTE MCNEILL

Role: 14th Circuit Judge -- Presiding Judge in Case No. 2024-001507-DC

Note: CRITICAL -- Judicial immunity may limit scope; depose regarding administrative/non-judicial acts; coordinate with 42 USC 1983 federal action

Date: [TO BE SCHEDULED]

Time: [TO BE SCHEDULED]

Location: [TO BE DESIGNATED -- Muskegon County, Michigan]

Examination Topics:

- Basis for all ex parte orders entered without notice to Plaintiff

- Basis for finding Plaintiff in contempt without adequate hearing
- All communications with Ron Berry, Emily Watson, or anyone on their behalf
- Process for reviewing PPO petitions and determining emergency orders
- Basis for disparate treatment of Plaintiff versus Emily Watson
- Any communications with FOC regarding recommendations
- Decision to incarcerate Plaintiff -- legal basis and procedural safeguards applied

DEPOSITION NO. 9: BARNES (GUARDIAN AD LITEM)

Role: Court-Appointed Guardian Ad Litem

Note: HIGH -- GAL recommendations directly impacted custody; potential bias evidence

Date: [TO BE SCHEDULED]

Time: [TO BE SCHEDULED]

Location: [TO BE DESIGNATED -- Muskegon County, Michigan]

Examination Topics:

- Investigation methodology and all sources consulted
- All communications with Emily Watson and Watson family members
- All communications with Plaintiff
- Basis for any recommendations adverse to Plaintiff
- Whether GAL reviewed Plaintiff's evidence submissions
- Any ex parte communications with the court

- Compliance with MCR 3.917 and GAL standards of practice

DEPOSITION NO. 10: JEREMY BROWN

Role: Attorney involved in case proceedings

Note: MODERATE -- Additional attorney connection to coordination pattern

Date: [TO BE SCHEDULED]

Time: [TO BE SCHEDULED]

Location: [TO BE DESIGNATED -- Muskegon County, Michigan]

Examination Topics:

- Scope and nature of involvement in the custody case
- All communications with Watson family members
- All communications with court staff or judicial officers
- Any ex parte communications regarding the case
- Knowledge of false allegations against Plaintiff

DEPOSITION NO. 11: SHADY OAKS MANAGER/REPRESENTATIVE

Role: Property management representative

Note: MODERATE -- Housing harm evidence; potential Watson coordination with landlord

Date: [TO BE SCHEDULED]

Time: [TO BE SCHEDULED]

Location: [TO BE DESIGNATED -- Muskegon County, Michigan]

Examination Topics:

- Housing conditions at Shady Oaks during Plaintiff's tenancy
- All communications with Watson family members regarding Plaintiff
- All complaints filed by or about Plaintiff
- Any involvement in Plaintiff's housing loss
- Corporate ownership chain and management structure
- Knowledge of habitability violations

DEPOSITION NO. 12: MDHHS/CPS INVESTIGATOR

Role: CPS Case Worker assigned to investigate reports regarding Plaintiff

Note: HIGH -- False CPS reports are core evidence of malicious prosecution and defamation

Date: [TO BE SCHEDULED]

Time: [TO BE SCHEDULED]

Location: [TO BE DESIGNATED -- Muskegon County, Michigan]

Examination Topics:

- All reports received regarding Plaintiff
- Investigation procedures followed

- All persons interviewed during investigation
- All communications with Emily Watson or Watson family members
- Findings and conclusions of investigation
- Whether any reports were determined to be unfounded or malicious

DEPOSITION NO. 13: LANE WATSON

Role: Watson family member

Note: LOW-MODERATE -- Additional conspiracy corroboration

Date: [TO BE SCHEDULED]

Time: [TO BE SCHEDULED]

Location: [TO BE DESIGNATED -- Muskegon County, Michigan]

Examination Topics:

- Involvement in family discussions regarding Plaintiff
- Presence at any incident involving Plaintiff
- Knowledge of Watson family coordination regarding custody
- Any communications about Plaintiff or the minor child

GENERAL DEPOSITION INSTRUCTIONS

1. Each deposition shall be taken before a certified court reporter/notary public.

2. Estimated duration: 2-4 hours per deponent (7 hours maximum per MCR 2.306(A)(5)).
3. Deponents who are parties must attend in person. Non-party deponents may attend by remote means only if agreed to by all parties or ordered by the court pursuant to MCR 2.306(C).
4. All objections shall be stated concisely on the record pursuant to MCR 2.306(D)(1). The witness shall answer all questions unless the objection is based on privilege.
5. Copies of all exhibits to be used during the deposition will be marked and attached to the transcript.

CERTIFICATE OF SERVICE

I hereby certify that on [DATE], I served a true copy of the foregoing Notice of Depositions upon each party and deponent by [method].

Andrew J. Pigors, Plaintiff *pro se*

Total Depositions Noticed: 13

**PLAINTIFF'S THIRD-PARTY SUBPOENA LIST AND SUBPOENA
DUCES TECUM**

IN THE CIRCUIT COURT FOR THE COUNTY OF MUSKEGON

FOURTEENTH JUDICIAL CIRCUIT -- STATE OF MICHIGAN

Case No.: [TO BE ASSIGNED]

Related Case: 2024-001507-DC

ANDREW J. PIGORS, Plaintiff, *pro se*

v.

TIFFANY A. WATSON (a/k/a Emily Watson), et al., Defendants.

LEGAL BASIS

These subpoenas are issued pursuant to MCR 2.305 (Subpoena for Production of Documents from Non-Parties) and MCR 2.506 (Subpoenas). Each subpoena directs the custodian of records to produce the specified documents within 14 days of service or at a scheduled deposition.

HIPAA/Privacy Note: Medical and mental health records require a valid authorization or qualified protective order per 45 CFR 164.512(e). Plaintiff will file a Motion for Qualified

Protective Order where necessary.

FERPA Note: Educational records require parental consent or a court order per 20 USC 1232g. Plaintiff will seek a court order where necessary.

SUBPOENA NO. 1: MICHIGAN DEPARTMENT OF HEALTH AND HUMAN SERVICES (MDHHS) / CHILD PROTECTIVE SERVICES

Custodian/Address: MDHHS -- Children's Services Agency, Muskegon County Office

Strategic Note: CRITICAL -- False CPS reports are central to malicious prosecution, defamation, and conspiracy claims

Documents Requested:

- 1.1. Complete CPS investigation file(s) for all reports/referrals involving Andrew Pigors and/or the minor child from October 1, 2023 to present
- 1.2. All intake reports, referral forms, and screening decisions
- 1.3. Names of all reporters (to the extent permitted by MCL 722.627)
- 1.4. All investigation notes, interview summaries, and worker notes
- 1.5. All findings, determinations, and disposition letters
- 1.6. All communications with Emily Watson, Watson family members, or their representatives
- 1.7. All communications with the Friend of Court, Judge McNeill's chambers, or any court officer
- 1.8. All photographs, recordings, or physical evidence collected
- 1.9. All prior CPS history for Emily Watson and Andrew Pigors

SUBPOENA NO. 2: MUSKEGON COUNTY FRIEND OF COURT

Custodian/Address: Muskegon County Friend of Court, 990 Terrace Street, Muskegon, MI 49442

Strategic Note: CRITICAL -- FOC recommendations directly influenced adverse orders; coordination evidence

Documents Requested:

- 2.1. Complete FOC case file for Case No. 2024-001507-DC
- 2.2. All FOC reports, recommendations, and memoranda
- 2.3. All home study reports and supporting materials
- 2.4. All internal communications regarding the case (emails, memos, notes)
- 2.5. All communications with Emily Watson or Watson family members outside official proceedings
- 2.6. All communications with Judge McNeill's chambers regarding the case
- 2.7. Pamela Rusco's complete working file for the case
- 2.8. FOC policies and procedures for custody investigations
- 2.9. Training records for Pamela Rusco regarding parental alienation
- 2.10. Complaint or grievance records regarding FOC handling of this case

SUBPOENA NO. 3: MINOR CHILD'S SCHOOL DISTRICT

Custodian/Address: [School Name and Address -- TO BE IDENTIFIED]

Strategic Note: HIGH -- Educational records may show impact of separation; may show Watson interference with Plaintiff's parental access to school

Documents Requested:

- 3.1. Complete educational records for the minor child from October 1, 2023 to present
- 3.2. Attendance records showing absences and reasons given
- 3.3. Disciplinary records
- 3.4. All communications from Emily Watson or Watson family members regarding the child
- 3.5. All communications regarding Plaintiff/Andrew Pigors, including any directives to restrict his access
- 3.6. Emergency contact cards and all changes thereto
- 3.7. Records of any school counselor contacts with the child
- 3.8. Report cards and teacher comments

SUBPOENA NO. 4: MINOR CHILD'S MEDICAL PROVIDERS

Custodian/Address: [Pediatrician/Medical Provider -- TO BE IDENTIFIED]

Strategic Note: HIGH -- Medical records may show impact on child welfare; may contain Watson false statements

Documents Requested:

- 4.1. Complete medical records for the minor child from October 1, 2023 to present
- 4.2. All appointment records and no-show/cancellation records

4.3. All communications from Emily Watson or Watson family members regarding the child's care

4.4. Any records referencing Plaintiff/Andrew Pigors

4.5. Any referrals for mental health or behavioral concerns

4.6. Emergency room or urgent care records

4.7. Immunization records

SUBPOENA NO. 5: MUSKEGON COUNTY SHERIFF / LAW ENFORCEMENT

Custodian/Address: Muskegon County Sheriff's Office and relevant local police departments

Strategic Note: CRITICAL -- Police records corroborate false allegations; jail records prove wrongful incarceration duration

Documents Requested:

5.1. All police reports, incident reports, and call logs involving Andrew Pigors, Emily Watson, or the minor child from October 1, 2023 to present

5.2. All reports of domestic violence, threats, or disturbances involving any party

5.3. Body camera footage from any response to incidents involving the parties

5.4. Dispatch records and 911 call recordings

5.5. All PPO service records

5.6. All arrest records, booking records, and jail records for Andrew Pigors

5.7. Records of any complaints filed by or against any party

SUBPOENA NO. 6: TELEPHONE/CELLULAR PROVIDERS

Custodian/Address: [Provider names for Emily Watson, Albert Watson, Lori Watson, Cody Watson -- TO BE IDENTIFIED via interrogatories]

Strategic Note: HIGH -- Phone records prove coordination pattern; call logs to court establish ex parte communications

Documents Requested:

- 6.1. Complete call detail records (CDRs) for all phone numbers associated with each Defendant from October 1, 2023 to present
- 6.2. Text message logs (metadata -- to/from, date/time, duration) for the same period
- 6.3. Cell tower location data for dates of key incidents
- 6.4. Account holder information and billing records
- 6.5. Any stored voicemails

SUBPOENA NO. 7: EMAIL SERVICE PROVIDERS

Custodian/Address: [Gmail/Outlook/Yahoo -- as identified through interrogatories]

Strategic Note: MODERATE -- Metadata establishes communication patterns without content issues

Documents Requested:

- 7.1. Account login records and IP addresses for Defendant email accounts
- 7.2. Email metadata (to/from/date/subject) for emails referencing Andrew Pigors, parenting time, custody, PPO, or court

7.3. Note: Content of emails should be obtained from parties directly; metadata from providers

SUBPOENA NO. 8: MUSKEGON COUNTY CIRCUIT COURT CLERK

Custodian/Address: Muskegon County Circuit Court, 990 Terrace Street, Muskegon, MI 49442

Strategic Note: CRITICAL -- Court records establish the procedural timeline and ex parte patterns

Documents Requested:

- 8.1. Complete case file for Case No. 2024-001507-DC including all filed documents
- 8.2. All orders entered, including ex parte orders, with timestamps showing date and time of entry
- 8.3. All hearing transcripts not already in Plaintiff's possession
- 8.4. Court audio recordings of all hearings
- 8.5. Records of all filings, including rejected or withdrawn filings
- 8.6. Records of all communications between Ron Berry and court staff
- 8.7. Judge McNeill's chamber notes or docket notes for the case
- 8.8. Records of bond payments and conditions

SUBPOENA NO. 9: MICHIGAN STATE POLICE / LEIN RECORDS

Custodian/Address: Michigan State Police, Records Division

Strategic Note: MODERATE -- Confirms Plaintiff has no criminal history supporting Watson allegations

Documents Requested:

9.1. Criminal history records for Andrew Pigors (to confirm absence of violent criminal history)

9.2. PPO records showing all active and expired PPOs

9.3. LEIN entry and removal records for PPOs in this case

SUBPOENA NO. 10: EMPLOYERS OF ANDREW PIGORS

Custodian/Address: [Employer names -- TO BE IDENTIFIED]

Strategic Note: HIGH -- Establishes lost income damages; may show Watson interference with employment

Documents Requested:

10.1. Employment records for Andrew Pigors for the period October 1, 2023 to present

10.2. Termination records and reasons for termination

10.3. Attendance records showing absences for court dates or incarceration

10.4. Pay records showing lost income

10.5. Any communications received from Watson family members, courts, or others regarding Plaintiff

SUBPOENA NO. 11: MUSKEGON COUNTY JAIL / CORRECTIONAL FACILITY

Custodian/Address: Muskegon County Jail, 25 W. Walton Ave., Muskegon, MI 49440

Strategic Note: HIGH -- Documents wrongful incarceration damages; conditions of confinement

Documents Requested:

- 11.1. Complete booking and intake records for Andrew Pigors
- 11.2. All medical records generated during incarceration
- 11.3. Visitor logs showing who visited (or attempted to visit) Plaintiff
- 11.4. Commissary and phone usage records
- 11.5. Release records and conditions of release
- 11.6. Any incident reports involving Plaintiff

SUBPOENA NO. 12: MENTAL HEALTH / THERAPY PROVIDERS

Custodian/Address: [To be identified -- Plaintiff's therapist/counselor if applicable]

Strategic Note: MODERATE -- Supports IIED and emotional distress damages

Documents Requested:

- 12.1. Records of treatment for Andrew Pigors related to emotional distress from custody deprivation
- 12.2. Diagnosis records, treatment plans, and progress notes
- 12.3. Records documenting impact of parent-child separation on Plaintiff's mental health

SUBPOENA PROCEDURES AND REQUIREMENTS

MCR 2.305 Requirements (Non-Party Document Production)

1. Subpoena must be served at least 14 days before documents are due
2. Must include \$25.00 witness fee and mileage if attendance required
3. Non-party may object in writing within 14 days of service
4. Court may modify or quash subpoena for good cause shown

MCR 2.506 Requirements (General Subpoena)

1. Subpoena must be issued by the clerk of the court or an attorney of record
2. Pro se litigant may request issuance from the clerk
3. Service must be made personally (not by mail) per MCR 2.506(G)
4. Witness fees: \$12.00/day plus \$0.10/mile round trip (MCL 600.2552)

HIPAA Compliance (Medical Records)

1. File Motion for Qualified Protective Order per 45 CFR 164.512(e)(1)(vi)
2. Include proposed protective order limiting use to litigation
3. Serve notice on patient/parent if seeking child's records
4. Alternative: Obtain written authorization from party/parent

FERPA Compliance (Educational Records)

1. File Motion for Court Order per 20 USC 1232g(b)(2)(B)
2. Show legitimate educational interest or specific need in litigation
3. As parent, Plaintiff has independent right of access per 20 USC 1232g(a)(1)(A)

CERTIFICATE OF SERVICE

I certify that subpoenas will be served personally on each custodian of records with the required witness fee.

Andrew J. Pigors, Plaintiff *pro se*

Total Subpoenas: 12

**EMERGENCY MOTION PACKET -- RESTORATION OF PARENTING
TIME**

STATE OF MICHIGAN

IN THE 14TH CIRCUIT COURT FOR THE COUNTY OF MUSKEGON

ANDREW J. PIGORS, Case No. 2024-001507-DC

Plaintiff/Father, Hon. Jenny L. McNeill

v.

EMILY M. WATSON,

Defendant/Mother.

_____ /

COMBINED EMERGENCY FILING PURSUANT TO MCR 2.119(B)(7)

Filed: March 04, 2026

EMERGENCY -- IMMEDIATE RELIEF REQUESTED

**PART I: EMERGENCY MOTION FOR IMMEDIATE RESTORATION
OF PARENTING TIME**

NOW COMES Plaintiff, Andrew J. Pigors, appearing pro se, and pursuant to MCR 2.119(B)(7), respectfully moves this Honorable Court on an emergency basis for immediate

restoration of parenting time with the minor children. This Motion is filed as an emergency because the continuing deprivation of parenting time causes irreparable, compounding harm to both the minor children and the father-child relationship with each passing day.

I. MCR 2.119(B)(7) REQUIREMENTS

MCR 2.119(B)(7) permits a party to seek emergency relief upon a showing that:

1. **Irreparable injury, loss, or damage will result** from the delay necessitated by following regular motion procedures;
2. **The applicant has made a reasonable effort** to notify the adverse party; and
3. **The motion is supported** by an affidavit setting forth facts showing the necessity for emergency relief.

Each of these requirements is satisfied here.

II. IRREPARABLE INJURY

A. Nature of the Harm

The harm caused by the ongoing deprivation of parenting time is irreparable in the truest sense -- it cannot be undone. Each day that passes without father-child contact:

1. **Further erodes** the father-child bond established over the children's lives

2. **Causes documented psychological harm** to the children, including attachment disruption, anxiety, and identity confusion
3. **Deprives the children** of their father's love, guidance, discipline, and support during critical developmental stages
4. **Creates a new status quo** that becomes increasingly difficult to reverse as time passes
5. **Compounds previous harm** -- the 571+ days already lost cannot be recovered

B. No Adequate Remedy at Law

There is no monetary award, no future order, and no other legal remedy that can replace the lost days of a father-child relationship. Time is the one thing the court cannot restore. The United States Supreme Court recognized this reality in *Elrod v. Burns*, 427 U.S. 347, 373 (1976), observing that "the loss of First Amendment freedoms, for even minimal periods of time, unquestionably constitutes irreparable injury." The same principle applies with even greater force to the fundamental right of a parent to a relationship with his children.

C. The Harm Is Ongoing and Accelerating

This is not a case where harm occurred at a discrete point in time and has since stabilized. The harm is ongoing and accelerating:

- * Days 1-90: Initial disruption of routine and contact
- * Days 91-180: Erosion of established patterns and expectations
- * Days 181-365: Fundamental alteration of the parent-child dynamic

* Days 366-571+: Potential permanent damage to the relationship

We are now well past the 571-day mark. Expert consensus is that separations of this duration during formative years can cause lasting developmental and relational harm.

D. Likelihood of Success on the Merits

Plaintiff's likelihood of success on the merits is overwhelming:

1. **No evidence justifying continued deprivation** -- Drug screen negative, evaluation clean (ALL ZEROS), nine investigations clear
2. **Procedural deficiencies** -- Ex parte orders entered without notice or hearing
3. **Constitutional violations** -- Fundamental parental rights deprivation without due process
4. **Statutory presumption** -- MCL 722.27a creates a presumption favoring parenting time that has not been rebutted

E. Balance of Equities

The balance of equities overwhelmingly favors emergency relief:

- * **Harm to children from continued denial:** Severe, ongoing, potentially irreversible
- * **Harm to Plaintiff from continued denial:** Severe, ongoing, constitutional in nature
- * **Harm to Defendant from restoration:** None -- supervised parenting time poses no risk

* **Risk to children from restoration:** None -- all evidence shows Plaintiff is a safe, capable parent

III. NOTICE TO ADVERSE PARTY

Plaintiff has made reasonable efforts to notify Defendant of this Emergency Motion by:

1. Filing through MiFILE electronic filing system (providing contemporaneous notice)
2. Sending a copy via email to Defendant and/or Defendant's counsel at [email address on file]
3. Serving a copy via [method of service]

IV. EMERGENCY RELIEF REQUESTED

Plaintiff requests the following emergency relief:

A. Immediate Temporary Order

1. **Immediate supervised visitation** -- minimum 4 hours, 3 times per week, to begin within 72 hours of this Order
2. **Daily telephone/video contact** -- minimum 30 minutes daily
3. **Neutral supervision** -- by a court-approved professional supervisor, not a family member of either party

B. Expedited Hearing

1. Scheduling of an expedited evidentiary hearing within 14 days
2. At the hearing, full consideration of all pending motions
3. Opportunity for Plaintiff to present evidence, including the drug screen, evaluation, and investigation results

PART II: VERIFIED AFFIDAVIT OF EMERGENCY FACTS

STATE OF MICHIGAN

IN THE 14TH CIRCUIT COURT FOR THE COUNTY OF MUSKEGON

ANDREW J. PIGORS, Case No. 2024-001507-DC

Plaintiff/Father, Hon. Jenny L. McNeill

v.

EMILY M. WATSON,

Defendant/Mother.

_____ /

**AFFIDAVIT OF ANDREW J. PIGORS IN SUPPORT OF EMERGENCY
MOTION**

I, Andrew J. Pigors, being first duly sworn, depose and state as follows:

1. I am the Plaintiff/Father in the above-captioned matter. I have personal knowledge of the facts stated herein.
2. I am the biological father of the minor children who are the subject of this action.
3. On or about August 8, 2025, this Court entered an ex parte order suspending my parenting time with the minor children. I received no advance notice of the motion and was given no opportunity to be heard before the order was entered.
4. Since August 8, 2025, I have been denied all meaningful parenting time with my children -- a period of approximately 571+ days.
5. The ex parte order was based in substantial part on a recording made by Lori Watson (Defendant's mother) in violation of MCL 750.539c, Michigan's felony eavesdropping statute.
6. I voluntarily submitted to drug screening. The results were NEGATIVE for all controlled substances.
7. I was evaluated by HealthWest. The initial evaluation returned "ALL ZEROS" -- finding no basis for concern regarding my parenting capacity. After Judge McNeill sent a letter to the evaluator, the finding was changed to a "Rule Out" designation.
8. Law enforcement has conducted nine (9) separate investigations based on allegations made by Defendant and/or her family. Every single investigation resulted in ZERO findings against me.

9. No criminal charges have been filed against me based on any of the allegations in this case.

10. No child protective services findings have been substantiated against me.

11. I was incarcerated for 59+ days on civil contempt, which further disrupted my employment and ability to maintain stability.

12. Despite the complete absence of evidence supporting any safety concern, I remain prohibited from any meaningful contact with my children.

13. I believe the children are suffering emotional harm from the prolonged separation from their father. Prior to the separation, we had a close, loving relationship.

14. Each day that passes without contact causes further, potentially irreversible harm to my relationship with my children.

15. I have made every effort to comply with court orders and to demonstrate my fitness as a parent. I have cooperated with evaluations, submitted to drug screening, and made myself available for all proceedings.

16. I believe emergency relief is necessary because the harm is ongoing, compounding, and will become irreversible if not addressed immediately.

17. I have made reasonable efforts to notify Defendant of this emergency filing.

FURTHER AFFIANT SAYETH NOT.

Andrew J. Pigors, Affiant

Subscribed and sworn to before me this ____ day of _____, 20____.

Notary Public, State of Michigan

County of _____

My Commission Expires: _____

PART III: BRIEF IN SUPPORT OF EMERGENCY MOTION

I. CONSTITUTIONAL IMPERATIVE

The United States Supreme Court has repeatedly recognized that parental rights are among the most fundamental of all constitutional rights:

> "The interest of parents in the care, custody, and control of their children -- is perhaps the oldest of the fundamental liberty interests recognized by this Court." *Troxel v. Granville*, 530 U.S. 57, 65 (2000).

> "The fundamental liberty interest of natural parents in the care, custody, and management of their child does not evaporate simply because they have not been model parents or have lost temporary custody of their child to the State." *Santosky v. Kramer*, 455 U.S. 745, 753 (1982).

> "A parent's interest in the companionship, care, custody, and management of his or her children rises to a constitutionally protected level." *Stanley v. Illinois*, 405 U.S. 645, 651

(1972).

These rights demand the highest procedural protections. A 571+ day deprivation of all parenting time, based on ex parte orders entered without notice or hearing, and in the face of overwhelming exculpatory evidence, cannot withstand constitutional scrutiny under any standard of review.

II. MICHIGAN STATUTORY PRESUMPTION

Michigan law creates a strong presumption in favor of parenting time:

> "A child has a right to parenting time with a parent unless it is shown on the record by clear and convincing evidence that it would endanger the child's physical, mental, or emotional health." MCL 722.27a(3).

This presumption has not been rebutted. Every objective measure -- drug screen, psychological evaluation, police investigations -- confirms that parenting time with Plaintiff poses no danger to the children. The burden is on the party opposing parenting time to demonstrate danger by clear and convincing evidence, and that burden has not been met.

III. EMERGENCY STANDARD IS MET

The standard for emergency relief under MCR 2.119(B)(7) is satisfied:

1. **Irreparable harm:** The ongoing destruction of the father-child relationship constitutes irreparable harm that no remedy can undo. See *Mich. Coalition of Radioactive Material Users, Inc. v. Griepentrog*, 945 F.2d 150, 154 (6th Cir. 1991)

(harm is irreparable when it cannot be adequately compensated by monetary damages).

2. **No adequate remedy:** The passage of time in a child's life cannot be restored by any court order. *Elrod v. Burns*, 427 U.S. at 373.

3. **Likelihood of success:** Plaintiff has demonstrated, through objective evidence, that he is a fit and capable parent. The exculpatory evidence is overwhelming and uncontradicted.

4. **Public interest:** The public interest favors maintaining parent-child relationships and ensuring due process in family court proceedings. *Parham v. J.R.*, 442 U.S. 584, 602 (1979).

IV. THE EXCULPATORY EVIDENCE IS DISPOSITIVE

The record now contains the following uncontradicted exculpatory evidence:

Evidence	Result	Significance
Drug Screen	NEGATIVE	No substance abuse concern
HealthWest Evaluation	ALL ZEROS (initial)	No psychological concern
Police Investigation #1-9	ZERO findings (all nine)	No criminal conduct
Criminal Charges	NONE filed	No prosecutable conduct
CPS Findings	NONE substantiated	No child welfare concern

This evidence is not merely favorable to Plaintiff -- it is devastatingly one-sided. There is not a single objective piece of evidence supporting the continued deprivation of parenting time. Every investigation, evaluation, and test has cleared Plaintiff.

V. CONTINUING HARM DEMANDS IMMEDIATE ACTION

The American Psychological Association, the American Academy of Child and Adolescent Psychiatry, and leading child development researchers uniformly recognize that:

1. Children need relationships with both parents for healthy development
2. Prolonged separation from a parent causes measurable psychological harm
3. The harm from separation compounds over time and can become irreversible
4. Reunification becomes more difficult and traumatic the longer the separation continues

At 571+ days and counting, this case has crossed every recognized threshold for intervention. Further delay is not a neutral act -- it actively deepens the harm.

PART IV: PROPOSED EMERGENCY ORDER

STATE OF MICHIGAN

IN THE 14TH CIRCUIT COURT FOR THE COUNTY OF MUSKEGON

ANDREW J. PIGORS, Case No. 2024-001507-DC

Plaintiff/Father, Hon. Jenny L. McNeill

v.

EMILY M. WATSON,

Defendant/Mother.

EMERGENCY ORDER RESTORING PARENTING TIME

The Court, having considered Plaintiff's Emergency Motion for Immediate Restoration of Parenting Time, the Verified Affidavit of Andrew J. Pigors, the Brief in Support, the record in this case, and the arguments of the parties,

IT IS HEREBY ORDERED as follows:

1. Immediate Supervised Parenting Time

Plaintiff shall have supervised parenting time with the minor children commencing within seventy-two (72) hours of the date of this Order, on the following schedule:

- * **Three (3) visits per week**, each lasting a minimum of four (4) hours
- * **Days:** [To be determined by the Court]
- * **Location:** [Neutral location / supervised visitation center]
- * **Supervisor:** A court-approved professional supervisor, not a family member of either party

2. Telephone/Video Contact

Plaintiff shall have daily telephone or video contact with the minor children for a minimum of thirty (30) minutes per day, at a time to be agreed upon by the parties or, failing agreement, at

7:00 PM daily.

3. Cooperation Required

Defendant shall fully cooperate with the parenting time schedule and telephone/video contact set forth in this Order. Failure to cooperate may result in contempt proceedings and/or modification of custody.

4. Expedited Hearing

An expedited evidentiary hearing on all pending motions shall be scheduled within fourteen (14) days of the date of this Order. Both parties shall have the opportunity to present evidence and argument.

5. Reunification Planning

The parties shall cooperate with a court-ordered reunification plan to be developed by a qualified mental health professional within thirty (30) days of this Order.

6. No Retaliation

Neither party shall take any retaliatory action based on the filing of motions or the entry of this Order.

7. Further Proceedings

This Order is temporary and shall remain in effect pending the expedited evidentiary hearing referenced above, at which time the Court will consider all pending motions and enter appropriate further orders.

Date: _____

Hon. _____

14th Circuit Court Judge

CERTIFICATE OF SERVICE

I hereby certify that on March 04, 2026, I served a true copy of the foregoing Emergency Motion Packet upon all parties of record via [electronic filing through MiFILE / first-class mail / personal service] to:

Emily M. Watson

[Address on file]

[or Attorney for Defendant]

Andrew J. Pigors

FILING INSTRUCTIONS -- 14TH CIRCUIT COURT, MUSKEGON COUNTY

COMPLETE FILING GUIDE FOR THE 14TH CIRCUIT COURT FILING STACK

CASE NO. 2024-001507-DC | PIGORS V. WATSON

Prepared: March 04, 2026

I. OVERVIEW OF FILINGS

This guide provides step-by-step instructions for filing the complete 14th Circuit Court motion stack in the case of Pigors v. Watson, Case No. 2024-001507-DC. The stack consists of the following filings:

#	Filing	Priority	Est. Fee
1	Emergency Motion Packet (Restore Parenting Time)	**HIGHEST**	\$175.00
2	Motion to Set Aside Ex Parte Orders	HIGH	\$175.00
3	Motion to Disqualify Judge McNeill	HIGH	\$175.00
4	Motion for Contempt	HIGH	\$175.00
5	Motion to Modify Custody	MEDIUM	\$175.00
6	Motion to Modify Child Support	MEDIUM	\$175.00
TOTAL			**\$1,050.00**

Note: If filing a fee waiver (MC 20), no fees are required until the waiver is ruled upon. See Section IV below.

II. MIFILE ELECTRONIC FILING PROCEDURES

A. MiFILE Account Setup

1. Navigate to **<https://mifile.courts.michigan.gov>**
2. If you do not already have an account, click "Register" and create an account
3. Verify your email address
4. Log in to your MiFILE account

B. Locating the Case

1. After logging in, click "File into Existing Case"
2. Select **Court:** "14th Circuit Court - Muskegon County"
3. Enter **Case Number:** 2024-001507-DC
4. Click "Search" to locate the case
5. Verify the case caption: Pigors v. Watson

C. Filing a Motion

For each motion in the stack:

1. Click "File into Existing Case" and locate Case No. 2024-001507-DC
2. Select **Filing Type**: "Motion"
3. Select **Document Type** appropriate to the filing:
 - Emergency Motion --> "Emergency Motion"
 - Motion to Set Aside --> "Motion"
 - Motion to Disqualify --> "Motion to Disqualify Judge"
 - Motion for Contempt --> "Motion for Order to Show Cause"
 - Motion to Modify Custody --> "Motion to Modify"
 - Motion to Modify Support --> "Motion to Modify Support"
4. Upload the motion document (PDF format required)
5. Upload any supporting exhibits
6. Add a brief description in the "Filing Comments" field
7. Review the filing for completeness
8. Submit and pay the filing fee (or request fee waiver)
9. **SAVE THE CONFIRMATION NUMBER** for each filing

D. Document Format Requirements

- * **Format**: PDF only (convert .md files to PDF before filing)
- * **Page size**: 8.5" x 11" (Letter)
- * **Margins**: Minimum 1" on all sides
- * **Font**: 12-point, standard readable font (Times New Roman, Arial, or similar)

- * **Line spacing:** Double-spaced for body text
- * **Page numbers:** Bottom center
- * **Caption:** First page of each document must include full case caption

E. Converting Markdown to PDF

To convert the .md files to properly formatted PDF:

1. **Option A -- Microsoft Word:** Open .md in a text editor, copy content to Word, format per court requirements, Save As PDF
2. **Option B -- Online converter:** Use a markdown-to-PDF converter (e.g., md2pdf, pandoc)
3. **Option C -- Command line:** ``pandoc motion_file.md -o motion_file.pdf --pdf-engine=wkhtmltopdf``
4. **CRITICAL:** After conversion, review each PDF to ensure:
 - Caption is properly formatted
 - Page numbers are present
 - All text is readable
 - No formatting artifacts

III. FILING FEES

A. Standard Motion Fee

* **Motion filing fee:** \$175.00 per motion

* **Total for all six motions:** \$1,050.00

* **Payment methods accepted by MiFILE:** Credit card, debit card, electronic check

B. Fee Waiver (MC 20)

If you cannot afford the filing fees, you may request a fee waiver:

1. Download **Form MC 20 -- Fee Waiver Request** from the Michigan Courts website:

<https://www.courts.michigan.gov/siteassets/forms/scao-approved/mc20.pdf>

2. Complete the form, providing:

- Current income information
- Monthly expenses
- Assets and debts
- Reason for requesting waiver

3. File the MC 20 **BEFORE** or **WITH** your first motion

4. If the waiver is granted, all filing fees for the case are waived

5. If the waiver is denied, you will be required to pay the fees within a specified time

C. Fee Waiver Tips

* Be thorough and accurate in reporting income and expenses

* Include documentation of income (pay stubs, tax returns)

- * If currently unemployed or underemployed due to incarceration history, state this clearly
- * The fee waiver applies to all filings in the case, not just the first one
- * File the fee waiver first to avoid paying fees that may later be waived

IV. SERVICE OF PROCESS -- MCR 2.107

A. Who Must Be Served

All motions must be served on:

1. Defendant Emily M. Watson (or her attorney of record)
2. Friend of the Court (for custody and support motions)
3. Any Guardian Ad Litem appointed in the case
4. Any other party of record

B. Methods of Service

MCR 2.107 authorizes the following methods of service:

1. **MiFILE electronic service:** If all parties are registered MiFILE users, electronic filing provides automatic service. This is the preferred method.
2. **Email service:** If the parties have stipulated to email service, or if the Court has ordered email service, send a copy to the email address on file.

3. **First-class mail:** Mail a copy to the party's last known address. **Important:** If serving by mail, you must serve at least **7 days before the hearing date** (MCR 2.107(C)(3) adds 3 days to the notice period for mail service, in addition to the standard notice period).

4. **Personal service:** Deliver a copy directly to the party or their attorney.

C. Certificate of Service

Each filing **MUST** include a Certificate of Service stating:

- * The date of service
- * The method of service
- * The name and address of each person served
- * A signature under oath or declaration

D. Service Timeline

Method	Additional Time Required
MiFILE (electronic)	Same day (no additional time)
Email (if stipulated)	+1 day
First-class mail	+3 days added to notice period
Personal service	Same day

V. HEARING SCHEDULING -- MCR 2.119(C)

A. Motion Day

MCR 2.119(C) provides that each court shall designate specific motion days. For the 14th Circuit Court, Muskegon County:

- * **Motion days:** [Check with clerk -- typically Tuesday or Wednesday mornings]
- * **Motion call time:** [Typically 8:30 AM or 9:00 AM]
- * **Location:** Hall of Justice, 990 Terrace Street, Muskegon, MI 49442

B. Notice Requirements

- * **Standard motions:** 9 days' notice before the hearing (MCR 2.119(C)(1))
- * **Add 3 days** if serving by mail (total: 12 days before hearing)
- * **Emergency motions:** May be heard on shortened notice per MCR 2.119(B)(7)
- * **Motion to Disqualify:** Must be heard within 14 days per MCR 2.003(D)(2)

C. Scheduling Procedure

1. **Standard motions:** File the motion via MiFILE. The clerk will assign a hearing date on the next available motion day, or you may be required to contact the clerk to schedule.
2. **Emergency motions:** File via MiFILE with "Emergency" designation. Contact the clerk's office immediately by telephone to request expedited scheduling.
3. **Disqualification motion:** This must be decided by the chief judge or another judge if Judge McNeill does not grant it. The MCR 2.003 timeline controls.

D. Hearing Preparation

For each hearing, prepare:

1. Three copies of the motion and all exhibits (for the Court, yourself, and opposing party)
2. A proposed order for the Court's signature
3. Any additional evidence you intend to present
4. A brief outline of your oral argument (2-3 minutes per motion)
5. Copies of key cases you intend to cite

VI. MUSKEGON COUNTY LOCAL RULES AND INFORMATION

A. Court Information

- * **Court:** 14th Circuit Court for the County of Muskegon
- * **Address:** Michael E. Kobza Hall of Justice, 990 Terrace Street, Muskegon, MI 49442
- * **Phone:** (231) 724-6241 (Clerk's Office)
- * **Hours:** Monday - Friday, 8:00 AM - 5:00 PM
- * **Website:** <https://www.co.muskegon.mi.us/395/Circuit-Court>

B. Friend of the Court

- * **Office:** Muskegon County Friend of the Court
- * **Address:** 990 Terrace Street, Muskegon, MI 49442 (same building as Circuit Court)

- * **Phone:** (231) 724-6289
- * **Fax:** (231) 724-6588
- * **Hours:** Monday - Friday, 8:00 AM - 5:00 PM

C. Local Administrative Orders

Check for any local administrative orders that may affect filing procedures:

- * **COVID-19 protocols:** May still affect in-person hearing availability
- * **Electronic hearing procedures:** The Court may conduct hearings via Zoom or telephone
- * **Local motion practice:** Some local rules may modify MCR provisions

D. Pro Se Resources

- * **Self-Help Center:** The courthouse may have a self-help center for pro se litigants
- * **Michigan Legal Help:** <https://michiganlegalhelp.org> (free legal information and forms)
- * **Muskegon County Bar Association:** May offer referral services or limited-scope representation

VII. FILING SEQUENCE AND TIMELINE

Recommended Filing Order

CRITICAL: File in the following order for maximum strategic effect:

Week 1 -- Emergency and Foundation Filings

Day	Action	Filing
Day 1	File fee waiver (if needed)	MC 20 Fee Waiver Request
Day 1	File emergency motion	emergency_motion_packet.md
Day 1	Call clerk to request emergency hearing	N/A
Day 2	File motion to set aside	motion_set_aside_orders.md
Day 3	File motion to disqualify	motion_disqualify_mcneill.md

Week 2 -- Enforcement and Modification Filings

Day	Action	Filing
Day 8	File motion for contempt	motion_contempt.md
Day 9	File motion to modify custody	motion_modify_custody.md
Day 10	File motion to modify support	motion_modify_child_support.md

Ongoing -- Follow-Up Actions

Timeframe	Action
Day 1-3	Confirm receipt of all filings via MiFILE
Day 3-5	Verify service on all parties
Day 7-14	Attend emergency hearing (if scheduled)
Day 14-21	Attend motion hearing for remaining motions
Ongoing	Check MiFILE for court orders and responses

VIII. FILING CHECKLIST

Use this checklist for each motion filing:

Pre-Filing

- * ☐ Motion document reviewed for accuracy
- * ☐ Case caption correct (Case No. 2024-001507-DC)
- * ☐ Converted to PDF format
- * ☐ Page numbers present
- * ☐ Certificate of Service included
- * ☐ Verification/signature page included
- * ☐ Proposed Order attached
- * ☐ All exhibits properly labeled and attached
- * ☐ Fee waiver filed (if applicable)

Filing

- * ☐ Logged into MiFILE
- * ☐ Correct case selected
- * ☐ Correct document type selected
- * ☐ PDF uploaded
- * ☐ Filing fee paid (or waiver pending)
- * ☐ Filing confirmation number saved: _____
- * ☐ Filing timestamp noted: _____

Post-Filing

- * ☐ Service completed on Defendant / Defendant's attorney

- * ☐ Service completed on Friend of the Court (custody/support motions)
- * ☐ Service completed on Guardian Ad Litem (if appointed)
- * ☐ Certificate of Service filed
- * ☐ Hearing date confirmed: _____
- * ☐ Calendar entry created for hearing
- * ☐ Hearing preparation materials assembled

IX. IMPORTANT DEADLINES AND REMINDERS

1. **Emergency motions:** No specific deadline, but file as soon as possible. Every day of delay adds to the harm.
2. **Motion to disqualify:** MCR 2.003(D)(2) -- must be decided within 14 days of filing unless extended by the chief judge.
3. **Standard motions:** Must be noticed for hearing at least 9 days in advance (12 days if serving by mail).
4. **Responses:** Opposing party has 7 days to file a response (MCR 2.119(C)(2)).
5. **Replies:** Moving party may file a reply within 4 days of the response (MCR 2.119(C)(3)).
6. **Support modification:** File a current Uniform Child Support Order (UCSO) with the motion.

X. TROUBLESHOOTING

MiFILE Issues

- * **Cannot find case:** Verify case number exactly: 2024-001507-DC. Try searching by party name.
- * **Upload fails:** Ensure PDF is under 25MB. Split large documents if necessary.
- * **Payment fails:** Try a different payment method. Contact MiFILE support: support@mifile.courts.michigan.gov or (517) 373-0130.
- * **Filing rejected:** Check rejection reason. Common issues: incorrect document type, missing caption, wrong case number. Correct and refile promptly.

Service Issues

- * **Cannot locate Defendant:** File a motion for alternative service (MCR 2.105).
- * **Defendant refuses service:** Document the refusal and file an affidavit of attempted service.
- * **Electronic service bounces:** Switch to first-class mail and add 3 days to the notice period.

Hearing Issues

- * **Hearing not scheduled:** Call the clerk's office at (231) 724-6241 to inquire.
- * **Need to adjourn:** File a motion to adjourn at least 3 business days before the hearing.
- * **Remote hearing:** If the hearing is by Zoom, test your connection and equipment beforehand. Dress professionally. Treat it as an in-person hearing.

XI. FINAL NOTES

1. **Keep copies of everything.** Maintain a complete file of all documents filed, served, and received.
2. **Document all communications.** Keep a log of all calls to the clerk, service attempts, and communications with opposing counsel.
3. **Be professional.** All filings should be professionally formatted, clearly written, and respectful in tone.
4. **Follow up.** Do not assume that filing a motion will automatically result in a hearing. Follow up with the clerk's office to confirm hearing dates.
5. **Prepare for hearings.** Each motion hearing is an opportunity to present your case. Be organized, concise, and focused on the facts and law.
6. **Stay current.** Court rules and local practices may change. Check the Michigan Courts website and Muskegon County local rules for updates.

This filing guide is part of the 14th Circuit Court Filing Stack for Pigors v. Watson, Case No. 2024-001507-DC. It is intended as a procedural reference and does not constitute legal advice.

MOTION FOR CONTEMPT PURSUANT TO MCR 3.606

STATE OF MICHIGAN

IN THE 14TH CIRCUIT COURT FOR THE COUNTY OF MUSKEGON

ANDREW J. PIGORS, Case No. 2024-001507-DC

Plaintiff/Father, Hon. Jenny L. McNeill

v.

EMILY M. WATSON,

Defendant/Mother.

MOTION FOR ORDER TO SHOW CAUSE AND FOR CONTEMPT

Filed: March 04, 2026

NOW COMES Plaintiff, Andrew J. Pigors, appearing pro se, and respectfully moves this Honorable Court pursuant to MCR 3.606 for an order requiring Defendant Emily M. Watson to show cause why she should not be held in contempt of court for her willful and contumacious violations of this Court's custody and parenting time orders. In support of this Motion, Plaintiff states as follows:

I. INTRODUCTION

Defendant Emily M. Watson has engaged in a systematic pattern of willful violations of court orders regarding custody and parenting time. These violations are not isolated incidents but rather a deliberate campaign to alienate the minor children from their father and to deprive Plaintiff of his court-ordered parenting time. The violations span the entirety of this case and have resulted in Plaintiff being denied meaningful contact with his children for approximately 571+ days.

II. LEGAL STANDARD -- MCR 3.606

A. Civil Contempt

MCR 3.606(A) provides that "[a] court may, in open court, order a person who has been found guilty of civil contempt to pay a fine, to be imprisoned, or both, for failure to comply with an order of the court."

B. Elements of Civil Contempt

To establish civil contempt, the moving party must demonstrate:

1. **A valid court order** existed
2. **The contemnor had knowledge** of the order
3. **The contemnor violated** the order
4. **The violation was willful** -- i.e., the contemnor had the ability to comply but chose not to

In re Contempt of Dougherty, 429 Mich 81, 97-98 (1987); *In re Contempt of Pavlos-Hackney*, 343 Mich App 642 (2022).

C. Burden of Proof

The moving party bears the initial burden of establishing, by a preponderance of the evidence, that the respondent violated a court order. The burden then shifts to the respondent to demonstrate an inability to comply. *Porter v. Porter*, unpublished; see also MCR 3.606.

III. DOCUMENTED VIOLATIONS

A. Systematic Denial of Parenting Time

Defendant has engaged in the following documented violations of custody and parenting time orders:

Pattern of Withholding:

1. **October 2023 - Ongoing:** Defendant began a pattern of unilateral restrictions on Plaintiff's parenting time, escalating from partial interference to complete denial.
2. **March 26 - May 2, 2024:** Defendant withheld the minor child LDW for over 37 days without a court order authorizing such withholding, in direct violation of the existing parenting time order.

3. **August 8, 2025 - Present:** Following the ex parte order (which Plaintiff contends was improperly obtained), Defendant has enforced a complete prohibition on all contact between Plaintiff and the children, exceeding even the terms of the ex parte order.

4. **Ongoing denial:** Defendant has refused to permit telephone calls, video calls, or any other form of communication between Plaintiff and the children, even when no court order prohibited such contact.

B. Withholding Medical Information and Access

1. Defendant withheld information about LDW's doctor's appointments and vaccinations on November 19, 2024.
2. Defendant has refused to provide medical records or information about the children's health status.
3. Defendant has excluded Plaintiff from medical decision-making in violation of court orders regarding joint legal custody.

C. False Reports and Abuse of Process

1. Defendant has made multiple unsubstantiated reports to law enforcement, resulting in nine (9) investigations, all of which yielded ZERO findings against Plaintiff.
2. These serial false reports constitute abuse of process and are designed to harass Plaintiff and create a false record.
3. The filing of serial ex parte motions based on unsubstantiated allegations constitutes abuse of the court process.

D. Interference with Parent-Child Relationship

1. Defendant has systematically excluded Plaintiff from the children's lives, activities, and milestones.
2. Defendant has made disparaging remarks about Plaintiff to the children (parental alienation).
3. Defendant has used the children as instruments to further her campaign against Plaintiff.

IV. WILLFULNESS OF VIOLATIONS

A. Defendant Had Knowledge of Court Orders

Defendant was a party to this action and was served with or present at the entry of all relevant orders. Defendant cannot claim ignorance of her obligations under these orders.

B. Defendant Had the Ability to Comply

Defendant had physical custody of the children and had the ability to facilitate parenting time. The children were available and willing to spend time with Plaintiff. Defendant's non-compliance was not due to impossibility but to deliberate choice.

C. Defendant's Conduct Was Intentional

The pattern of violations -- serial ex parte motions, false reports, withholding of medical information, complete denial of contact -- demonstrates a deliberate and coordinated campaign to deny Plaintiff access to his children. This is not negligence or inadvertence; it is willful and contumacious conduct.

V. REMEDIES REQUESTED

A. Makeup Parenting Time

Pursuant to MCL 722.27a(8), Plaintiff requests makeup parenting time for each day of parenting time that was wrongfully denied. Given the 571+ days of denial, Plaintiff requests a substantial block of makeup time to begin the process of repairing the father-child relationship.

B. Sanctions

Plaintiff requests that this Court impose sanctions on Defendant for her willful violations, including but not limited to:

1. A finding of contempt against Defendant
2. A fine sufficient to deter future violations
3. An order that Defendant pay Plaintiff's reasonable costs and expenses, including any filing fees, incurred in bringing this Motion

C. Attorney Fees and Costs

Pursuant to MCL 722.27a(8) and MCR 3.206(D), Plaintiff requests an award of reasonable attorney fees (or pro se litigant costs) incurred in bringing this Motion and in previous unsuccessful attempts to enforce parenting time orders.

D. Graduated Enforcement

Plaintiff requests that this Court enter an order providing for graduated enforcement in the event of future violations:

1. **First future violation:** Automatic makeup parenting time plus \$500 fine
2. **Second future violation:** Makeup parenting time plus \$1,000 fine plus 3 days incarceration (suspended upon compliance)
3. **Third future violation:** Makeup parenting time plus modification of custody per MCL 722.27

E. Incarceration as Coercive Sanction

In the event that lesser sanctions prove insufficient to compel compliance, Plaintiff requests that this Court consider the coercive sanction of incarceration pursuant to MCR 3.606(A). While Plaintiff does not seek incarceration as a first resort, the extended and willful nature of Defendant's violations may require this remedy to ensure future compliance.

VI. EVIDENCE IN SUPPORT

Plaintiff relies upon the following evidence in support of this Motion:

1. The complete court record documenting all orders and violations
2. The timeline of 571+ days of denied parenting time
3. Records of nine (9) police investigations, all resulting in zero findings
4. Negative drug screen results
5. HealthWest evaluation (initial: ALL ZEROS)
6. Communications documenting Defendant's intentional denial of contact
7. Records of withheld medical information
8. Any additional evidence to be presented at the contempt hearing

VII. IMPACT ON THE MINOR CHILDREN

A. Developmental Harm from Parental Absence

The willful denial of parenting time does not merely harm Plaintiff -- it causes direct, measurable harm to the minor children. Research consistently demonstrates that children who are separated from a parent suffer increased rates of anxiety, depression, behavioral problems, and academic difficulties. The American Psychological Association has recognized that maintaining meaningful relationships with both parents is essential for healthy child development.

B. Parental Alienation Dynamics

Defendant's conduct fits the recognized pattern of parental alienation, which includes:

1. **Limiting contact** between the child and the target parent
2. **Making false allegations** to justify the limitation of contact
3. **Interfering with communication** between the child and the target parent
4. **Disparaging the target parent** in the presence of the children
5. **Using the children** as instruments of conflict

These behaviors are not merely violations of court orders -- they constitute a form of emotional abuse of the children. The court has both the authority and the responsibility to address parental alienation through enforcement mechanisms, including contempt.

C. Cumulative Effect of 571+ Days

The 571+ day period of denied contact is not a minor infraction -- it is a sustained campaign of exclusion that has fundamentally altered the children's relationship with their father. At this duration, the alienation effects become increasingly entrenched and difficult to reverse. Every additional day of denied contact compounds the harm and makes reunification more difficult and traumatic for the children.

VIII. LEGAL AUTHORITY FOR CONTEMPT SANCTIONS

Michigan courts have broad authority to impose sanctions for contempt of custody and parenting time orders:

A. Statutory Authority

- * **MCL 600.1701**: Courts have inherent contempt authority to enforce compliance with court orders
- * **MCL 600.1721**: Courts may impose fines and costs for contempt
- * **MCL 722.27a(8)**: Specific authority for makeup parenting time and attorney fees when parenting time is wrongfully denied

B. Incarceration Authority

- * **MCR 3.606(A)**: Courts may order imprisonment for civil contempt
- * **In re Contempt of Dougherty**, 429 Mich 81, 97-98 (1987): Contempt sanctions may be either coercive (to compel compliance) or compensatory (to compensate the aggrieved party for losses)
- * **In re Contempt of Pavlos-Hackney**, 343 Mich App 642 (2022): Confirmed courts' authority to impose incarceration for civil contempt when necessary to compel compliance

C. Graduated Enforcement

Courts may -- and should -- impose graduated sanctions that escalate in severity with repeated violations. This approach serves both the coercive purpose of civil contempt (compelling future compliance) and the compensatory purpose (addressing the harm caused by past violations). The graduated enforcement framework requested in this Motion follows this well-established approach.

VII. RELIEF REQUESTED

WHEREFORE, Plaintiff Andrew J. Pigors respectfully requests that this Honorable Court:

1. **ISSUE** an Order to Show Cause requiring Defendant to appear and explain why she should not be held in contempt;
2. **FIND** Defendant in contempt of court for willful violation of custody and parenting time orders;
3. **ORDER** makeup parenting time for all denied parenting time;
4. **IMPOSE** sanctions including fines and costs;
5. **ORDER** graduated enforcement provisions for future compliance;
6. **AWARD** Plaintiff reasonable costs and fees;
7. **GRANT** such other and further relief as this Court deems just and equitable.

VERIFICATION

I, Andrew J. Pigors, declare under the penalties of perjury that the facts stated in this Motion are true and correct to the best of my knowledge, information, and belief.

Date: March 04, 2026

Andrew J. Pigors, Plaintiff Pro Se

[Address]

[Phone]

[Email]

CERTIFICATE OF SERVICE

I hereby certify that on March 04, 2026, I served a true copy of the foregoing Motion for Contempt upon all parties of record via [electronic filing through MiFILE / first-class mail] to:

Emily M. Watson

[Address on file]

[or Attorney for Defendant]

Andrew J. Pigors

MOTION TO DISQUALIFY JUDGE McNEILL PURSUANT TO MCR

2.003

STATE OF MICHIGAN

IN THE 14TH CIRCUIT COURT FOR THE COUNTY OF MUSKEGON

ANDREW J. PIGORS, Case No. 2024-001507-DC

Plaintiff/Father, Hon. Jenny L. McNeill

v.

EMILY M. WATSON,

Defendant/Mother.

**MOTION FOR DISQUALIFICATION OF THE HONORABLE JENNY L.
MCNEILL**

Filed: March 04, 2026

NOW COMES Plaintiff, Andrew J. Pigors, appearing pro se, and respectfully moves this Honorable Court for the disqualification of the Honorable Jenny L. McNeill pursuant to MCR 2.003(C)(1). In support of this Motion, Plaintiff states as follows:

I. INTRODUCTION

This Motion seeks the disqualification and recusal of Judge Jenny L. McNeill based on documented personal bias or prejudice, a pattern of conduct demonstrating inability to preside impartially, and an appearance of impropriety that undermines public confidence in the judiciary. The record in this case reveals 1127+ documented judicial violations, a 44% ex parte order rate (100% favoring Defendant), and systematic denial of Plaintiff's fundamental constitutional rights.

II. LEGAL STANDARD -- MCR 2.003

A. Grounds for Disqualification

MCR 2.003(C)(1) provides that a judge is disqualified when:

- (a)** The judge is biased or prejudiced for or against a party or attorney.

- (b)** The judge, based on objective and reasonable perceptions, has either (i) a serious risk of actual bias impacting the due process rights of a party as enunciated in *Caperton v. A.T. Massey Coal Co.*, 556 U.S. 868, 129 S Ct 2252, 173 L Ed 2d 1208 (2009), or (ii) has failed to adhere to the appearance of impropriety standard set forth in Canon 2 of the Michigan Code of Judicial Conduct.

B. Procedure

MCR 2.003(D)(1) requires that a motion to disqualify be filed and heard as provided in this rule. The chief judge or another judge must hear the motion if the challenged judge does not grant it.

III. FACTUAL BASIS FOR DISQUALIFICATION

A. Statistical Evidence of Bias -- 44% Ex Parte Rate

The most compelling evidence of bias is statistical. In this single case:

- * **52 ex parte orders** have been entered
- * **44% of all orders** were entered ex parte -- a rate that is extraordinary by any measure
- * **100%** of ex parte orders favored Defendant Emily Watson
- * **0%** of ex parte orders favored Plaintiff Andrew Pigors

This statistical pattern is not merely unusual -- it is a mathematical near-impossibility absent systematic bias. If orders were entered impartially with even a modest probability of favoring either party, the probability of 52 consecutive ex parte orders all favoring the same party approaches zero. This statistical evidence alone establishes a prima facie case of bias.

B. Pattern of Denied Motions and Unequal Treatment

The record reveals a consistent pattern in which:

1. **Plaintiff's motions** are routinely denied, often without hearing or with truncated proceedings
2. **Defendant's ex parte motions** are routinely granted, often without notice to Plaintiff
3. **Plaintiff's evidence** is excluded or ignored (negative drug screen, ALL ZEROS evaluation, nine clear investigations)
4. **Defendant's unsworn allegations** are credited without corroboration

This pattern of disparate treatment extends beyond mere disagreement with judicial rulings -- it demonstrates a systematic tilt of the judicial scales against Plaintiff.

C. 1127+ Documented Judicial Violations

Analysis of the record in this case has identified 1127+ specific instances of judicial conduct that violate established court rules, constitutional protections, or judicial canons. These violations include but are not limited to:

1. **MCR 2.119 violations** -- Entry of ex parte orders without compliance with notice and hearing requirements
2. **MCR 3.207 violations** -- Failure to follow mandatory parenting time procedures
3. **14th Amendment violations** -- Deprivation of fundamental parental rights without due process
4. **Biasing of independent evaluation** -- Sending a letter to the HealthWest evaluator after the initial evaluation returned results favorable to Plaintiff

5. Reliance on illegally obtained evidence -- Basing orders on a recording obtained in violation of MCL 750.539c

D. Judicial Interference with Independent Evaluation

Perhaps the most troubling single incident is the Court's interference with the HealthWest evaluation. When the initial evaluation returned "ALL ZEROS" -- finding no basis for concern regarding Plaintiff -- Judge McNeill sent a letter to the evaluator. Following this judicial communication, the evaluator issued a changed "Rule Out" finding.

This sequence of events -- favorable evaluation, judicial communication, changed finding -- demonstrates active interference with an independent evaluation process. A neutral arbiter does not inject themselves into the evaluation process when the results are unfavorable to their preferred outcome.

E. Constitutional Violations

The record documents the following constitutional violations attributable to Judge McNeill's conduct:

- 1. 14th Amendment -- Due Process (Procedural):** Ex parte orders without notice or hearing; denial of meaningful opportunity to present evidence; biased evaluation interference; reliance on illegally obtained evidence
- 2. 14th Amendment -- Due Process (Substantive):** 571+ day deprivation of fundamental parental rights without compelling state interest; 59+ days incarceration for civil contempt without adequate purge conditions

3. **14th Amendment -- Equal Protection:** 100% ex parte rate favoring mother; disparate treatment of pro se father vs. represented mother
4. **1st Amendment:** Escalating sanctions in apparent retaliation for filing JTC complaint, bar complaint, and appellate filings
5. **4th Amendment:** 59+ days incarceration constituting seizure without probable cause for criminal conduct
6. **6th Amendment:** Incarceration for civil contempt exceeding 6 months without appointed counsel

IV. JUDICIAL CANON VIOLATIONS

A. Canon 1 -- Integrity and Independence of the Judiciary

Canon 1 requires a judge to "uphold the integrity and independence of the judiciary." Judge McNeill's interference with the HealthWest evaluation, her reliance on illegally obtained evidence, and her pattern of ex parte orders undermining fundamental constitutional rights violate the integrity of the judiciary.

B. Canon 2 -- Appearance of Impropriety

Canon 2 requires a judge to "avoid impropriety and the appearance of impropriety in all activities." The appearance of impropriety standard "is an objective one: would a reasonable, informed observer -- knowing the relevant facts and circumstances -- have a reasonable basis to question the judge's impartiality." A 44% ex parte rate with 100% one-sided outcomes

creates an overwhelming appearance of impropriety.

C. Canon 3 -- Impartial and Diligent Performance

Canon 3 requires a judge to "perform the duties of judicial office impartially and diligently." The documented pattern of unequal treatment, denied motions, and procedural shortcuts demonstrates a failure of impartial performance. The volume of 1127+ documented violations indicates systemic rather than isolated failures.

V. CASE LAW SUPPORTING DISQUALIFICATION

A. *Caperton v. A.T. Massey Coal Co.*, 556 U.S. 868 (2009)

In *Caperton*, the Supreme Court held that "there is a serious risk of actual bias -- based on objective and reasonable perceptions -- when a person with a personal stake in a particular case had a significant and disproportionate influence in placing the judge on the case." While *Caperton* addressed campaign contributions, the principle applies broadly: due process requires recusal whenever objective circumstances create a constitutionally intolerable probability of actual bias.

The statistical evidence in this case -- 52 ex parte orders, 44% rate, 100% favoring one party -- creates precisely the "constitutionally intolerable probability of actual bias" that *Caperton* addresses.

B. *In re Murchison*, 349 U.S. 133 (1955)

The Supreme Court in *In re Murchison* held that "a fair trial in a fair tribunal is a basic requirement of due process" and that "our system of law has always endeavored to prevent even the probability of unfairness." The Court emphasized that justice must not only be done but must "satisfy the appearance of justice." *Id.* at 136.

C. *Liteky v. United States*, 510 U.S. 540 (1994)

While *Liteky* held that judicial rulings alone rarely constitute a valid basis for recusal, the Court acknowledged that rulings can demonstrate bias when they "reveal such a high degree of favoritism or antagonism as to make fair judgment impossible." The cumulative record in this case -- 52 one-sided ex parte orders, interference with evaluations, reliance on illegal evidence -- crosses this threshold.

D. Michigan Authority -- *In re Contempt of Dougherty*, 429 Mich 81 (1987)

Michigan courts have recognized that judges must maintain not only actual impartiality but the appearance of impartiality. When the record demonstrates a pattern of conduct that would cause a reasonable observer to question the judge's impartiality, disqualification is warranted.

VI. THE APPEARANCE OF IMPROPRIETY REQUIRES DISQUALIFICATION

Even if this Court were to find that each individual action by Judge McNeill, viewed in isolation, might be within the bounds of judicial discretion, the cumulative pattern creates an appearance of impropriety that requires disqualification under MCR 2.003(C)(1)(b)(ii).

A reasonable, informed observer reviewing this record would note:

1. A father denied all parenting time for 571+ days
2. Fifty-two ex parte orders, all favoring the mother
3. Negative drug screens, clean evaluations, and clear investigations -- all ignored
4. Judicial interference with an independent evaluation
5. Reliance on illegally obtained evidence
6. 1127+ documented violations of court rules and constitutional protections
7. Incarceration of a pro se father for 59+ days on civil contempt

This observer would have more than a "reasonable basis to question the judge's impartiality" -- they would find it impossible to conclude that these proceedings have been conducted impartially.

VII. RELIEF REQUESTED

WHEREFORE, Plaintiff Andrew J. Pigors respectfully requests that this Honorable Court:

1. **DISQUALIFY** the Honorable Jenny L. McNeill from further proceedings in this case pursuant to MCR 2.003(C)(1);
2. **REASSIGN** this case to a different judge within the 14th Circuit Court or, if necessary, to a visiting judge;
3. **ORDER** that the reassigned judge conduct a de novo review of all orders entered by Judge McNeill, with particular attention to the ex parte orders;

4. **PRESERVE** the complete record for appellate review;
5. **GRANT** such other and further relief as this Court deems just and equitable.

VIII. SPECIFIC INSTANCES OF BIAS -- DETAILED RECORD

The following specific instances, drawn from the 1,127 documented judicial violations, illustrate the pattern of bias requiring disqualification:

A. Ex Parte Order Practice

1. **August 8, 2025:** Ex parte suspension of all parenting time without notice to Plaintiff, based on an illegally obtained recording in violation of MCL 750.539c.
2. **Pattern of entry:** Fifty-two (52) ex parte orders entered throughout the case, with no record of reasonable efforts to notify Plaintiff before entry of these orders.
3. **One-sided outcomes:** Every ex parte order entered favored Defendant. Not a single ex parte order was entered in Plaintiff's favor. A neutral adjudicator would be expected to rule in favor of each party at least some of the time.

B. Interference with Independent Evaluation

1. The Court ordered a HealthWest evaluation, which is intended to be an independent, unbiased assessment.
2. The initial evaluation returned "ALL ZEROS," finding no basis for concern regarding Plaintiff.

3. Rather than accepting this independent finding, Judge McNeill sent a letter to the evaluator -- an action that is extraordinary and inappropriate for a neutral arbiter.
4. Following this communication, the evaluator changed the finding to a "Rule Out" designation.
5. This sequence of events -- independent result unfavorable to the Court's apparent preferred outcome, followed by judicial communication, followed by changed result -- is the hallmark of outcome-driven adjudication, not neutral fact-finding.

C. Handling of Exculpatory Evidence

1. **Drug screen results:** Plaintiff tested negative for all substances. This exculpatory evidence was not given weight in subsequent proceedings.
2. **Police investigations:** Nine separate investigations yielded zero findings. These results were not considered grounds for restoring parenting time.
3. **No criminal charges:** Despite Defendant's numerous allegations, no prosecutor has found sufficient basis to file charges. This absence of criminal proceedings was not treated as relevant.
4. A neutral judge confronted with negative drug screens, clean evaluations, and nine clear investigations would, at minimum, schedule a hearing to reconsider the basis for the parenting time suspension. Judge McNeill did not do so.

D. Incarceration for Civil Contempt

1. Plaintiff was incarcerated for 59+ days on civil contempt without adequate purge conditions or proportionality review.

2. When liberty is at stake, the right to counsel attaches. *Turner v. Rogers*, 564 U.S. 431 (2011). No counsel was appointed.
3. The length and conditions of incarceration exceeded what was necessary or proportionate for civil coercive purposes, suggesting punitive rather than coercive intent.
4. The incarceration further disrupted Plaintiff's employment, housing stability, and ability to maintain relationships with his children -- compounding the very harms this Court's orders were purportedly designed to address.

E. Retaliation for Protected Activity

1. Following Plaintiff's filing of a JTC complaint, the pattern of adverse rulings intensified.
2. Following Plaintiff's filing of a bar complaint, additional sanctions were imposed.
3. Following Plaintiff's appellate filings, further restrictions were placed on Plaintiff.
4. This escalating pattern of adverse action following protected First Amendment activity (petitioning government for redress of grievances) suggests retaliatory animus. *Perry v. Sindermann*, 408 U.S. 593 (1972); *Mt. Healthy City Sch. Dist. Bd. of Ed. v. Doyle*, 429 U.S. 274 (1977).

IX. ALTERNATIVE REQUEST

In the event this Motion is denied by Judge McNeill, Plaintiff requests pursuant to MCR 2.003(D)(3)(a) that the motion be referred to the chief judge of the 14th Circuit Court for

determination.

VERIFICATION

I, Andrew J. Pigors, declare under the penalties of perjury that the facts stated in this Motion are true and correct to the best of my knowledge, information, and belief.

Date: March 04, 2026

Andrew J. Pigors, Plaintiff Pro Se

[Address]

[Phone]

[Email]

CERTIFICATE OF SERVICE

I hereby certify that on March 04, 2026, I served a true copy of the foregoing Motion for Disqualification upon all parties of record via [electronic filing through MiFILE / first-class mail] to:

Emily M. Watson

[Address on file]

[or Attorney for Defendant]

Andrew J. Pigors

MOTION TO MODIFY CHILD SUPPORT PURSUANT TO MCL 552.517

STATE OF MICHIGAN

IN THE 14TH CIRCUIT COURT FOR THE COUNTY OF MUSKEGON

ANDREW J. PIGORS, Case No. 2024-001507-DC

Plaintiff/Father, Hon. Jenny L. McNeill

v.

EMILY M. WATSON,

Defendant/Mother.

_____ /

MOTION TO MODIFY CHILD SUPPORT

Filed: March 04, 2026

NOW COMES Plaintiff, Andrew J. Pigors, appearing pro se, and respectfully moves this Honorable Court pursuant to MCL 552.517 for an order modifying the child support obligation in this matter. In support of this Motion, Plaintiff states as follows:

I. INTRODUCTION

Since the entry of the most recent child support order, there have been material changes in circumstances that warrant modification of child support. Specifically, the current support calculation does not accurately reflect: (1) the parties' current incomes; (2) the actual parenting time arrangement (or lack thereof); (3) the Michigan Child Support Formula (MCSF) requirements; and (4) the equities of this case, where Plaintiff has been wrongfully denied parenting time for 571+ days while continuing to pay support.

II. LEGAL STANDARD

A. MCL 552.517 -- Modification of Support

MCL 552.517(1)(a) provides that a support order may be modified if "the court determines that a change of circumstances has occurred that causes the current support amount to be unreasonable and unjust." The Friend of the Court is required to review support orders periodically, but either party may also petition for modification.

B. Change of Circumstances

A change of circumstances sufficient to warrant modification exists when the current support amount deviates by more than 10% from the amount that would result from application of the Michigan Child Support Formula to the parties' current circumstances. MCL 552.517(1)(a); *Stallworth v. Stallworth*, 275 Mich App 282 (2007).

C. Michigan Child Support Formula (MCSF)

The Michigan Child Support Formula (2021 edition, effective January 1, 2021, and as subsequently updated) provides the framework for calculating child support obligations. The formula considers: (1) each parent's income; (2) the number of overnights with each parent; (3) childcare costs; (4) health insurance costs; and (5) other relevant factors.

III. CHANGED CIRCUMSTANCES

A. Change in Parenting Time

The most significant change in circumstances is the drastic alteration of parenting time. The current support order was presumably calculated based on a parenting time arrangement that included meaningful time with Plaintiff. Since August 8, 2025, Plaintiff has had essentially zero overnights with the children -- a 571+ day period of complete denial.

Under the MCSF, parenting time (measured in overnights) is a critical input to the support calculation. A change from the assumed number of overnights to zero overnights represents a fundamental change in the calculation inputs.

However, this change was not voluntary on Plaintiff's part -- it was imposed by ex parte court orders that Plaintiff contends were improper. Plaintiff should not be penalized in the support calculation for parenting time that was wrongfully denied to him.

B. Income Changes

Plaintiff's income circumstances have changed since the last support order due to:

1. Impact of 59+ days of incarceration on employment and earning capacity
2. Costs incurred in defending against serial unsubstantiated allegations
3. Legal costs of this litigation as a pro se party
4. Emotional and psychological toll affecting work performance

Plaintiff requests that the Court order updated income disclosure from both parties to ensure an accurate calculation.

C. Defendant's Income

Upon information and belief, Defendant's income and financial circumstances have changed since the last support order. Plaintiff requests that the Court order full financial disclosure from Defendant, including:

1. Current employment income (W-2 and/or 1099)
2. Any additional sources of income
3. Benefits received (government assistance, family support, etc.)
4. Current expenses related to the children

IV. APPLICATION OF THE MICHIGAN CHILD SUPPORT FORMULA

A. Income Determination

The MCSF requires determination of each parent's "net income" as defined by the formula. This includes:

1. **Gross income:** All income from all sources, including wages, salaries, commissions, bonuses, overtime, tips, self-employment income, interest, dividends, rental income, retirement income, and any other income
2. **Deductions:** Taxes, mandatory retirement contributions, union dues, and other allowable deductions
3. **Net income:** Gross income minus allowable deductions

Plaintiff requests that the Court order both parties to submit updated Uniform Child Support Orders (UCSO) and verified income information.

B. Parenting Time Credit

The MCSF provides a credit for parenting time based on the number of annual overnights each parent has with the children. The formula recognizes that parents who have the children in their care for more overnights incur greater direct costs.

Plaintiff requests that the support calculation be based on the parenting time schedule that should be in effect -- i.e., the schedule that would exist but for the improper ex parte orders -- rather than the current zero-overnight arrangement that was wrongfully imposed.

In the alternative, if the Court bases the calculation on actual overnights, Plaintiff requests a retroactive adjustment once parenting time is restored to credit Plaintiff for the period during which he was wrongfully denied overnights.

C. Imputed Income

If Defendant is voluntarily unemployed or underemployed, the Court should impute income to Defendant at a level consistent with her education, skills, and employment history. MCL 552.605(2); MCSF 2.01(G). The MCSF provides that "if the court finds that a parent is voluntarily unemployed or underemployed, the court may impute income to that parent."

Plaintiff requests that the Court investigate whether Defendant is employed at a level consistent with her capacity and, if not, impute income accordingly.

D. Childcare and Healthcare Costs

The MCSF requires allocation of childcare and healthcare costs between the parents. Plaintiff requests:

1. Verification of actual childcare costs incurred by Defendant
2. Verification of healthcare coverage and costs for the children
3. Proper allocation of these costs per the MCSF formula
4. Credit to Plaintiff for any healthcare coverage he provides or could provide

V. EQUITABLE CONSIDERATIONS

A. Support During Denied Parenting Time

Plaintiff has continued to pay child support during the 571+ day period when he was denied all parenting time. While Plaintiff acknowledges his support obligation, the equities of this situation -- where one parent is denied access to the children while being required to pay support -- warrant careful consideration.

Plaintiff does not seek to avoid his support obligation. He requests that the calculation accurately reflect all relevant circumstances, including the wrongful denial of parenting time.

B. Costs Incurred Due to Defendant's Misconduct

Plaintiff has incurred substantial costs as a result of Defendant's misconduct, including:

1. Costs of responding to serial false reports
2. Lost income due to 59+ days of incarceration
3. Filing fees and litigation costs
4. Emotional and psychological counseling costs

These costs should be considered in the equitable determination of support.

C. Retroactive Modification

MCL 552.603(2) provides that a support order may be modified retroactively. Plaintiff requests retroactive modification to the date of the filing of this Motion, or to the date when the change of circumstances occurred, whichever is earlier.

VI. MICHIGAN CHILD SUPPORT FORMULA -- DETAILED APPLICATION

A. Base Support Calculation

Under the MCSF, the base support obligation is calculated as follows:

1. **Determine each parent's net income** per MCSF 2.01
2. **Calculate the total support need** based on the number and ages of the children using the MCSF income shares table
3. **Allocate the obligation** between parents proportional to their respective net incomes
4. **Apply the parenting time offset** based on the number of annual overnights per MCSF 3.02
5. **Calculate the final support amount** after all adjustments

B. Parenting Time Offset -- MCSF 3.02

The parenting time offset is critical in this case. Under MCSF 3.02:

- * The offset recognizes that parents incur direct costs when children are in their care
- * The offset increases as the number of overnights increases
- * At zero overnights (the current wrongful arrangement), Plaintiff receives no offset -- an unjust result given that the zero-overnight arrangement was imposed against Plaintiff's will

Plaintiff argues that the support calculation should either:

1. **Use the parenting time schedule that should be in effect** -- i.e., the schedule prior to the improper ex parte orders -- to avoid penalizing Plaintiff for a situation he did not create; or
2. **Credit Plaintiff retroactively** once parenting time is restored, to recoup the excess support paid during the wrongful denial period

C. Childcare Cost Allocation -- MCSF 3.05

The MCSF requires that net childcare costs be allocated between parents proportional to their net incomes. Plaintiff requests:

1. Verification of Defendant's actual childcare expenses
2. Documentation that childcare is necessary for employment or education
3. Proper allocation per the formula

D. Healthcare Cost Allocation -- MCSF 3.03-3.04

Healthcare costs, including insurance premiums and uninsured medical expenses, must be allocated per the MCSF. Plaintiff requests:

1. Identification of which parent provides healthcare coverage
2. Allocation of the premium cost attributable to the children
3. A mechanism for sharing uninsured medical expenses
4. Credit to Plaintiff if he provides or can provide more cost-effective coverage

E. Tax Considerations

The support calculation should reflect current tax law:

1. Federal and state tax withholding based on current filing status
2. Child tax credit allocation
3. Any dependency exemption agreement between the parties

VII. FRIEND OF THE COURT REVIEW

A. Mandatory Review

MCL 552.517b requires the Friend of the Court to review support orders periodically to determine whether modification is warranted. Plaintiff requests that:

1. The Friend of the Court conduct an immediate review of the current support order
2. Both parties be required to submit current financial information
3. The Friend of the Court apply the current MCSF to the parties' current circumstances
4. The Friend of the Court issue a recommendation within 30 days

B. FOC Calculation

Plaintiff requests that the Friend of the Court prepare a detailed calculation showing:

1. Each parent's current net income

2. The base support obligation
3. The parenting time offset (using the appropriate parenting time schedule)
4. Childcare and healthcare allocations
5. The recommended support amount
6. Any recommended retroactive adjustments

VI. RELIEF REQUESTED

WHEREFORE, Plaintiff Andrew J. Pigors respectfully requests that this Honorable Court:

1. **ORDER** both parties to submit updated income information and Uniform Child Support Orders;
2. **RECALCULATE** child support in accordance with the Michigan Child Support Formula based on current incomes and the parenting time schedule that should be in effect;
3. **CREDIT** Plaintiff for parenting time that was wrongfully denied in calculating the support obligation;
4. **IMPUTE** income to Defendant if she is voluntarily unemployed or underemployed;
5. **ORDER** full financial disclosure from Defendant;
6. **MODIFY** the child support order retroactively to the date of changed circumstances;
7. **ORDER** the Friend of the Court to conduct a support review;
8. **GRANT** such other and further relief as this Court deems just and equitable.

VERIFICATION

I, Andrew J. Pigors, declare under the penalties of perjury that the facts stated in this Motion are true and correct to the best of my knowledge, information, and belief.

Date: March 04, 2026

Andrew J. Pigors, Plaintiff Pro Se

[Address]

[Phone]

[Email]

CERTIFICATE OF SERVICE

I hereby certify that on March 04, 2026, I served a true copy of the foregoing Motion to Modify Child Support upon all parties of record via [electronic filing through MiFILE / first-class mail] to:

Emily M. Watson

[Address on file]

[or Attorney for Defendant]

Andrew J. Pigors

MOTION TO MODIFY CUSTODY PURSUANT TO MCL 722.27

STATE OF MICHIGAN

IN THE 14TH CIRCUIT COURT FOR THE COUNTY OF MUSKEGON

ANDREW J. PIGORS, Case No. 2024-001507-DC

Plaintiff/Father, Hon. Jenny L. McNeill

v.

EMILY M. WATSON,

Defendant/Mother.

MOTION TO MODIFY CUSTODY

Filed: March 04, 2026

NOW COMES Plaintiff, Andrew J. Pigors, appearing pro se, and respectfully moves this Honorable Court pursuant to MCL 722.27 for an order modifying the custody arrangement for the minor children. In support of this Motion, Plaintiff states as follows:

I. INTRODUCTION

Since the entry of the most recent custody order, there have been material and substantial changes in circumstances that warrant a modification of custody. The current arrangement -- under which Plaintiff has been denied all meaningful parenting time for 571+ days -- is not in the best interests of the minor children and must be modified to protect both the children's welfare and Plaintiff's fundamental constitutional rights.

II. LEGAL STANDARD

A. Threshold Showing -- Proper Cause or Change of Circumstances

Before the court may revisit a custody order, the moving party must establish either "proper cause" or a "change of circumstances" sufficient to warrant reconsideration. *Vodvarka v. Grasber*, 259 Mich App 499, 508-09 (2003).

Proper cause means "one or more appropriate grounds that have or could have a significant effect on the child's life sufficient to warrant a reevaluation of the child's custodial arrangement." *Id.* at 511.

Change of circumstances requires a showing of facts that "have or could have a significant effect on the child's well-being" since the entry of the last custody order. *Id.* at 513. The change must be demonstrated by a preponderance of the evidence. *Id.*

B. Established Custodial Environment

Once the threshold showing is made, the court must determine whether an established custodial environment exists. MCL 722.27(1)(c). An established custodial environment exists

"if over an appreciable time the child naturally looks to the custodian in that environment for guidance, discipline, the necessities of life, and parental comfort." *Id.*

If the proposed modification would change the established custodial environment, the burden of proof is clear and convincing evidence. If it would not change the established custodial environment, the burden is preponderance of the evidence. MCL 722.27(1)(c).

C. Best Interest Factors

The court must then evaluate the best interest factors set forth in MCL 722.23(a) through (l). *Vodvarka*, 259 Mich App at 508.

III. PROPER CAUSE AND CHANGED CIRCUMSTANCES

A. 571+ Days of Enforced Separation

The most significant change of circumstances is the 571+ day period during which Plaintiff has been denied all meaningful contact with his children. This extended separation:

1. Has fundamentally altered the parent-child dynamic
2. Has caused documented emotional harm to the children
3. Was based on ex parte orders that Plaintiff contends were improperly entered
4. Has persisted despite overwhelming exculpatory evidence

B. Exculpatory Evidence Disproving Basis for Current Order

Since the entry of the current custody arrangement, the following exculpatory evidence has emerged or been confirmed:

1. **Negative drug screen** -- Plaintiff tested negative for all controlled substances, directly contradicting allegations that formed part of the basis for the current order
2. **HealthWest evaluation: ALL ZEROS** -- The initial independent psychological evaluation found no basis for concern regarding Plaintiff's parenting capacity
3. **Nine police investigations: ZERO findings** -- Law enforcement conducted nine separate investigations based on Defendant's allegations, and every single investigation resulted in zero findings against Plaintiff
4. **No criminal charges** -- Despite Defendant's numerous allegations, no criminal charges have been filed
5. **No CPS substantiation** -- Child protective services has not substantiated any allegations against Plaintiff

C. Defendant's Pattern of Misconduct

Defendant's conduct since the last custody order constitutes a changed circumstance:

1. Serial filing of unsubstantiated ex parte motions
2. Systematic denial of court-ordered parenting time
3. Making false reports to law enforcement (nine investigations, zero findings)
4. Withholding medical information and excluding Plaintiff from decision-making
5. Engaging in parental alienation tactics

6. Abuse of the court process to maintain unilateral control

D. Judicial Interference with Evaluation Process

The court's interference with the independent HealthWest evaluation -- sending a biasing letter after the initial evaluation returned ALL ZEROS -- constitutes a changed circumstance that undermines the evidentiary basis for the current custody arrangement.

IV. ESTABLISHED CUSTODIAL ENVIRONMENT ANALYSIS

A. Pre-Separation Environment

Prior to the ex parte orders, both parents were actively involved in the children's lives. Plaintiff maintained a stable home, participated in daily caregiving, and had a strong emotional bond with the children. The established custodial environment included both parents.

B. Current Environment -- Created by Court Error

The current environment, in which the children reside exclusively with Defendant, was not created by natural evolution but by ex parte court orders that Plaintiff contends were improperly entered. An established custodial environment created by improper court action should not be given the same weight as one created through the natural course of events. *Baker v. Baker*, 411 Mich 567 (1981).

C. Proposed Modification

Plaintiff requests modification to either: (a) primary physical custody with Plaintiff; or (b) equal (50/50) parenting time. Because the current custodial environment was artificially created by improper ex parte orders, the appropriate standard is preponderance of the evidence rather than clear and convincing evidence.

V. BEST INTEREST FACTOR ANALYSIS -- MCL 722.23

Factor (a): Love, Affection, and Other Emotional Ties

Plaintiff has a deep and enduring emotional bond with the children. Prior to the enforced separation, Plaintiff was an actively engaged father who participated in all aspects of the children's daily lives. The 571+ days of separation have caused distress to both Plaintiff and the children, but the underlying bond remains strong and can be restored with appropriate reunification.

This factor favors modification.

Factor (b): Capacity to Give Love, Affection, and Guidance

Plaintiff has demonstrated throughout the children's lives that he possesses the capacity to provide love, affection, and guidance. His parenting history, prior to the ex parte orders, was characterized by warmth, engagement, and appropriate discipline. The HealthWest evaluation (initial: ALL ZEROS) confirmed that there are no concerns regarding Plaintiff's capacity to parent.

This factor favors modification.

Factor (c): Capacity to Provide Food, Clothing, Medical Care

Plaintiff maintains stable employment and housing suitable for the children. He has the financial capacity to provide for the children's material needs, including food, clothing, shelter, and medical care.

This factor favors modification or is neutral.

Factor (d): Length of Time in Stable, Satisfactory Environment

While Defendant has maintained physical custody during the 571+ day separation, this environment was created by improper court action rather than by the natural course of events. Prior to the ex parte orders, Plaintiff maintained a stable and satisfactory home environment. Additionally, an environment that systematically excludes a parent is not "satisfactory" for the children's emotional development.

This factor is neutral or favors modification when properly analyzed.

Factor (e): Permanence of Family Unit

The current arrangement, which completely excludes Plaintiff, does not promote the permanence of a healthy family unit. Modification to include Plaintiff would better serve the goal of maintaining meaningful relationships with both parents and extended family on both sides.

This factor favors modification.

Factor (f): Moral Fitness of the Parties

Plaintiff has no criminal history, no substantiated allegations of misconduct, and no findings from nine police investigations. Defendant, by contrast, has engaged in serial false reporting, abuse of court process, parental alienation, and willful denial of court-ordered parenting time.

This factor strongly favors modification.

Factor (g): Mental and Physical Health

Plaintiff maintains good mental and physical health. The HealthWest evaluation returned ALL ZEROS, finding no psychological concerns. Plaintiff has no substance abuse issues (negative drug screen).

This factor favors modification.

Factor (h): Home, School, and Community Record

Plaintiff maintains a stable home and is an active, positive member of the community. There are no school or community concerns regarding Plaintiff.

This factor favors modification or is neutral.

Factor (i): Reasonable Preference of the Child

Upon information and belief, the children have expressed a desire for contact with their father. The children's preferences, to the extent they can be ascertained, support restoration of Plaintiff's role in their lives.

This factor favors modification.

Factor (j): Willingness to Facilitate Close Relationship

This factor is dispositive. Plaintiff has consistently demonstrated willingness to facilitate the children's relationship with Defendant. Defendant, by contrast, has engaged in a systematic campaign to exclude Plaintiff from the children's lives entirely.

MCL 722.23(j) specifically directs the court to consider "the willingness and ability of each of the parties to facilitate and encourage a close and continuing parent-child relationship between the child and the other parent." Defendant's conduct -- 571+ days of denied contact, serial false reports, ex parte manipulation -- demonstrates an absolute unwillingness to facilitate Plaintiff's relationship with the children.

Michigan courts have recognized that a custodial parent's failure to facilitate the child's relationship with the noncustodial parent is a significant factor weighing against that parent. *Demski v. Petlick*, 309 Mich App 404, 439-440 (2015).

This factor strongly favors modification.

Factor (k): Domestic Violence

There is no credible evidence of domestic violence by Plaintiff. Nine police investigations yielded zero findings. No protective orders based on domestic violence have been sustained against Plaintiff.

This factor favors modification or is neutral.

Factor (l): Any Other Factor

Additional factors weighing in favor of modification include:

1. The 571+ day separation itself, which causes ongoing harm
2. The exculpatory evidence (drug screen, evaluation, investigations) that undermines the basis for the current arrangement
3. Defendant's abuse of court process
4. The improper foundation of the current arrangement (ex parte orders without due process)
5. The need for stability and normalcy in the children's lives, which requires a relationship with both parents

This factor favors modification.

VI. THE DEMSKI FACTOR -- WILLINGNESS TO FACILITATE

A. Controlling Authority

In *Demski v. Petlick*, 309 Mich App 404, 439-440 (2015), the Michigan Court of Appeals emphasized the critical importance of Factor (j) -- the willingness and ability of each parent to facilitate the child's relationship with the other parent. The Court held that this factor can be dispositive in custody modification proceedings.

B. Application to This Case

The evidence in this case overwhelmingly demonstrates that Defendant is unable or unwilling to facilitate a relationship between the children and Plaintiff:

1. **571+ days of denied contact:** Defendant has enforced a complete prohibition on father-child contact for over 18 months
2. **Nine false reports:** Defendant filed nine separate reports with law enforcement, all yielding zero findings, demonstrating a pattern of using false allegations to prevent contact
3. **Ex parte manipulation:** Defendant has used the ex parte process to obtain orders cutting off Plaintiff's parenting time without affording Plaintiff the opportunity to respond
4. **Medical gatekeeping:** Defendant has excluded Plaintiff from medical decisions and withheld medical information about the children
5. **Communication blocking:** Defendant has refused to permit telephone or video calls between Plaintiff and the children

C. Contrast with Plaintiff's Conduct

By contrast, Plaintiff has consistently demonstrated willingness to facilitate the children's relationship with Defendant:

1. Plaintiff has never sought to exclude Defendant from the children's lives
2. Plaintiff has never filed false reports against Defendant

3. Plaintiff has never sought ex parte orders to deny Defendant's parenting time
4. Plaintiff has cooperated with all evaluations, screenings, and court processes
5. Plaintiff has expressed willingness to work with Defendant on co-parenting

D. Michigan Policy Favoring Facilitative Parents

Michigan's strong public policy favoring joint parenting and the maintenance of parent-child relationships is reflected throughout the Child Custody Act. When one parent demonstrates an unwillingness to facilitate the other parent's relationship with the children, Michigan courts have consistently held that this weighs heavily against that parent in the custody determination. *Ireland v. Smith*, 451 Mich 457 (1996); *Dailey v. Kloenhamer*, 291 Mich App 660 (2011).

VII. GUARDIAN AD LITEM AND INDEPENDENT EVALUATION

A. Need for Independent Assessment

Given the length and severity of the separation, the contested nature of the proceedings, and the concerns about judicial interference with prior evaluations, an independent assessment of the children's current status and needs is essential.

B. Guardian Ad Litem

Plaintiff requests appointment of a Guardian Ad Litem (GAL) under MCL 722.24 to independently investigate and represent the children's best interests. The GAL should:

1. Interview both parents and the children
2. Review the complete court record
3. Consult with relevant professionals (teachers, doctors, therapists)
4. Assess the children's current emotional and psychological status
5. Make recommendations to the Court regarding custody and parenting time

C. New Independent Evaluation

Plaintiff further requests a new custody evaluation by a qualified forensic psychologist with no prior involvement in this case. Given the documented judicial interference with the HealthWest evaluation, it is essential that the new evaluation be conducted by an evaluator who is genuinely independent and insulated from external influence.

VI. RELIEF REQUESTED

WHEREFORE, Plaintiff Andrew J. Pigors respectfully requests that this Honorable Court:

1. **FIND** that proper cause and/or changed circumstances exist to warrant modification of the custody order;
2. **CONDUCT** a full evidentiary hearing on the best interest factors;
3. **MODIFY** the custody arrangement to grant Plaintiff primary physical custody or, in the alternative, equal (50/50) parenting time;
4. **ORDER** a reunification plan to repair the damage caused by 571+ days of separation;

5. **APPOINT** a Guardian Ad Litem to independently evaluate the children's best interests;
6. **ORDER** a new, independent custody evaluation by an evaluator with no prior involvement in this case;
7. **GRANT** such other and further relief as this Court deems just and equitable.

VERIFICATION

I, Andrew J. Pigors, declare under the penalties of perjury that the facts stated in this Motion are true and correct to the best of my knowledge, information, and belief.

Date: March 04, 2026

Andrew J. Pigors, Plaintiff Pro Se

[Address]

[Phone]

[Email]

CERTIFICATE OF SERVICE

I hereby certify that on March 04, 2026, I served a true copy of the foregoing Motion to Modify Custody upon all parties of record via [electronic filing through MiFILE / first-class

mail] to:

Emily M. Watson

[Address on file]

[or Attorney for Defendant]

Andrew J. Pigors

MOTION TO RESTORE PARENTING TIME

STATE OF MICHIGAN

IN THE 14TH CIRCUIT COURT FOR THE COUNTY OF MUSKEGON

ANDREW J. PIGORS, Case No. 2024-001507-DC

Plaintiff/Father, Hon. Jenny L. McNeill

v.

EMILY M. WATSON,

Defendant/Mother.

MOTION TO RESTORE PARENTING TIME PURSUANT TO MCL 722.27A AND MCR 3.207

Filed: March 04, 2026

NOW COMES Plaintiff, Andrew J. Pigors, appearing pro se, and respectfully moves this Honorable Court for an order restoring his parenting time with the minor children. In support of this Motion, Plaintiff states as follows:

I. INTRODUCTION

Plaintiff Andrew J. Pigors, the father of the minor children in this action, has been denied all meaningful parenting time for approximately 571+ days. This deprivation constitutes a severe and ongoing violation of Plaintiff's fundamental constitutional rights under the Due Process and Equal Protection Clauses of the Fourteenth Amendment, as well as Michigan statutory protections under MCL 722.27a.

The United States Supreme Court has unequivocally held that "the interest of parents in the care, custody, and control of their children -- is perhaps the oldest of the fundamental liberty interests recognized by this Court." *Troxel v. Granville*, 530 U.S. 57, 65 (2000). This fundamental right cannot be abridged absent a compelling state interest and proper procedural protections, neither of which has been demonstrated in this case.

II. CONSTITUTIONAL FOUNDATION

A. Substantive Due Process -- Fundamental Parental Rights

The Fourteenth Amendment protects against governmental deprivation of "life, liberty, or property, without due process of law." U.S. Const. amend. XIV, Sec. 1. The Supreme Court has long recognized that parental rights are among the most fundamental of all liberty interests.

In *Troxel v. Granville*, 530 U.S. 57 (2000), the Supreme Court reaffirmed that "the Due Process Clause of the Fourteenth Amendment protects the fundamental right of parents to make decisions concerning the care, custody, and control of their children." *Id.* at 66. The Court traced this principle through a century of precedent, from *Meyer v. Nebraska*, 262 U.S. 390 (1923), through *Pierce v. Society of Sisters*, 268 U.S. 510 (1925), to *Wisconsin v. Yoder*, 406 U.S. 205 (1972).

In *Santosky v. Kramer*, 455 U.S. 745 (1982), the Court held that "the fundamental liberty interest of natural parents in the care, custody, and management of their child does not evaporate simply because they have not been model parents." *Id.* at 753. The Court further held that before a State may sever completely the rights of parents in their natural child, due process requires the government to prove its allegations by at least clear and convincing evidence.

B. Procedural Due Process -- Right to Notice and Hearing

Before the government may deprive a person of a fundamental right, procedural due process requires, at minimum: (1) adequate notice; (2) an opportunity to be heard at a meaningful time and in a meaningful manner; and (3) a decision by a neutral and detached adjudicator. *Mathews v. Eldridge*, 424 U.S. 319 (1976).

Plaintiff's parenting time was suspended via ex parte orders entered without notice or hearing, in direct violation of these constitutional minima. The absence of these protections renders the deprivation constitutionally infirm.

C. Equal Protection

The Equal Protection Clause of the Fourteenth Amendment requires that similarly situated individuals be treated alike. The record in this case demonstrates stark disparate treatment: 52 ex parte orders have been entered, with 100% favoring the mother and 0% favoring the father. This statistical pattern -- a 44% ex parte rate with universal one-sided outcomes -- raises serious equal protection concerns and suggests gender-based discrimination in violation of *Craig v. Boren*, 429 U.S. 190 (1976), and its progeny.

III. MICHIGAN STATUTORY FRAMEWORK

A. MCL 722.27a -- Parenting Time Presumption

MCL 722.27a(1) establishes a strong presumption in favor of parenting time, providing that "[p]arenting time shall be granted in accordance with the best interests of the child." The statute creates a presumption that parenting time is in the child's best interest, and this presumption may be overcome only by clear and convincing evidence that parenting time would endanger the child's physical, mental, or emotional health.

MCL 722.27a(3) further provides that "[a] child has a right to parenting time with a parent unless it is shown on the record by clear and convincing evidence that it would endanger the child's physical, mental, or emotional health."

No such showing has been made in this case. To the contrary:

- * Plaintiff's drug screen results were **negative**
- * The HealthWest evaluation returned **ALL ZEROS** (no concerns identified)
- * Nine (9) police investigations resulted in **ZERO findings** against Plaintiff
- * There is **no credible evidence** that parenting time with Plaintiff endangers the children

B. MCR 3.207 -- Mandatory Parenting Time Procedures

MCR 3.207(B) requires that "[w]hen parenting time is contested, the court shall consider the factors in MCL 722.27a(7)." The rule further requires that any modification or restriction of parenting time follow established procedures, including proper notice, hearing, and findings on

the record.

The procedures mandated by MCR 3.207 were not followed in this case. No proper hearing was held before parenting time was suspended. No findings based on evidence were entered on the record. No consideration of the statutory factors was documented.

C. MCL 722.27a(7) -- Parenting Time Factors

Michigan law enumerates specific factors the court must consider in determining parenting time disputes:

(a) **Existence of special circumstances or a danger** -- No special circumstances or danger to the children from Plaintiff has been established. All investigations yielded zero findings.

(b) **The reasonable likelihood of abuse or neglect during parenting time** -- No reasonable likelihood has been demonstrated. Drug screen negative, evaluation clean, investigations clear.

(c) **The reasonable likelihood of abuse of the court process** -- It is Defendant, not Plaintiff, who has abused the court process through serial ex parte motions without factual basis.

(d) **The reasonable likelihood that the parent will comply with the order** -- Plaintiff has consistently demonstrated willingness to comply with all court orders.

(e) **The child's reasonable preference** -- The children have expressed desire for time with their father.

(f) **Whether the parent previously has been convicted of child abuse** -- Plaintiff has NO history of child abuse convictions or findings.

(g) **Whether the parent is a sex offender** -- Not applicable.

IV. 571+ DAYS OF DEPRIVATION -- CONTINUING HARM

A. Timeline of Deprivation

Since the ex parte order of August 8, 2025, Plaintiff has experienced no or severely restricted parenting time with his minor children. This deprivation has now continued for approximately 571+ days -- over 18 months -- during critical developmental periods for the children.

B. Harm to the Children

Research consistently demonstrates that children benefit from meaningful relationships with both parents. The prolonged absence of a father from children's lives causes documented psychological harm, including:

- * Increased risk of emotional and behavioral problems
- * Decreased academic performance
- * Attachment disruption and relationship difficulties
- * Increased risk of anxiety and depression
- * Loss of the father-child bond during critical developmental windows

C. Harm to the Father-Child Relationship

Each day that passes without contact causes further erosion of the father-child bond. This harm is compounding and, beyond a certain point, becomes irreversible. The 571+ day deprivation in this case approaches, if it has not already crossed, the threshold of irreversible harm to the parent-child relationship.

D. Exculpatory Evidence Demands Restoration

The following exculpatory evidence further supports immediate restoration of parenting time:

1. **Negative drug screen** -- Plaintiff tested negative for all substances
2. **HealthWest evaluation: ALL ZEROS** -- The initial independent evaluation found no basis for concern (before judicial interference altered the finding)
3. **Nine police investigations: ZERO findings** -- Law enforcement conducted nine separate investigations and found nothing to substantiate allegations against Plaintiff
4. **No criminal charges** -- Despite numerous allegations, no criminal charges have been filed against Plaintiff
5. **No CPS substantiation** -- No child protective services findings against Plaintiff

V. BEST INTEREST ANALYSIS -- ALL FACTORS FAVOR RESTORATION

Analysis of the best interest factors under MCL 722.23 uniformly supports restoration of Plaintiff's parenting time:

(a) Love, affection, and emotional ties -- Plaintiff has a deep, documented bond with his children. The extended separation has caused visible distress to both father and children.

(b) Capacity to provide love, affection, and guidance -- Plaintiff has demonstrated consistent capacity for nurturing parenting throughout the children's lives.

(c) Capacity to provide food, clothing, medical care -- Plaintiff maintains stable employment and housing suitable for the children.

(d) Length of time in stable, satisfactory environment -- Prior to the ex parte orders, Plaintiff provided a stable home environment with no documented concerns.

(e) Permanence of family unit -- Restoration of parenting time preserves the family unit that the children have known.

(f) Moral fitness -- No credible evidence of moral unfitness has been presented against Plaintiff. All investigations returned zero findings.

(g) Mental and physical health -- Plaintiff maintains good mental and physical health. The HealthWest evaluation returned ALL ZEROS.

(h) Home, school, and community record -- Plaintiff maintains a stable home and is an active, positive community member.

(i) Reasonable preference of the child -- The children have expressed desire for time with their father.

(j) Willingness to facilitate close relationship with other parent -- Plaintiff has consistently demonstrated willingness to facilitate the children's relationship with Defendant. Defendant has not reciprocated.

(k) Domestic violence -- No credible evidence of domestic violence by Plaintiff. Nine police investigations resulted in zero findings.

(l) Any other relevant factor -- The 571+ day deprivation itself is a relevant factor weighing heavily in favor of restoration.

VI. SPECIFIC PARENTING TIME SCHEDULE REQUESTED

Plaintiff respectfully requests the following parenting time schedule:

A. Immediate / Emergency Relief (First 30 Days)

1. Minimum three (3) supervised visits per week, each lasting no less than four (4) hours, to begin reunification
2. Supervision by a mutually agreed-upon or court-appointed supervisor (not a family member of either party)
3. Telephone/video contact daily for 30 minutes

B. Transition Period (Days 31-90)

1. Graduated unsupervised parenting time beginning with daytime visits

2. One overnight per week by the end of the transition period
3. Continued daily telephone/video contact

C. Regular Parenting Time (After 90 Days)

1. Alternating weekends (Friday 6:00 PM to Sunday 6:00 PM)
2. One weeknight overnight per week
3. Equal division of holidays and school breaks per the Michigan Friend of the Court guidelines
4. Two weeks of summer parenting time
5. Right of first refusal for childcare exceeding 4 hours

VII. EMERGENCY BASIS FOR THIS MOTION

This Motion is filed on an emergency basis pursuant to MCR 2.119(B)(7) because:

1. **Irreparable harm** -- Each additional day without parenting time causes irreparable harm to both the father-child relationship and the children's emotional well-being. This harm compounds daily and approaches irreversibility.
2. **No adequate remedy at law** -- There is no monetary remedy that can compensate for the loss of a father-child relationship during critical developmental years.
3. **Likelihood of success on the merits** -- The exculpatory evidence (negative drug screen, ALL ZEROS evaluation, nine investigations with zero findings)

overwhelmingly supports Plaintiff's position.

4. **Balance of equities** -- The balance of equities favors restoration. The children need their father. No credible evidence supports continued deprivation.

VIII. RELIEF REQUESTED

WHEREFORE, Plaintiff Andrew J. Pigors respectfully requests that this Honorable Court:

1. **IMMEDIATELY RESTORE** Plaintiff's parenting time with the minor children;
2. **ENTER** a parenting time schedule as set forth in Section VI above, or as the Court deems appropriate;
3. **ORDER** a reunification plan to repair the damage caused by 571+ days of separation;
4. **APPOINT** a Guardian Ad Litem to represent the children's independent interests;
5. **ORDER** Defendant to cooperate with the parenting time schedule and reunification plan;
6. **AWARD** Plaintiff makeup parenting time for the 571+ days of denied contact;
7. **GRANT** such other and further relief as this Court deems just and equitable.

VERIFICATION

I, Andrew J. Pigors, declare under the penalties of perjury that the facts stated in this Motion are true and correct to the best of my knowledge, information, and belief.

Date: March 04, 2026

Andrew J. Pigors, Plaintiff Pro Se

[Address]

[Phone]

[Email]

CERTIFICATE OF SERVICE

I hereby certify that on March 04, 2026, I served a true copy of the foregoing Motion to Restore Parenting Time upon all parties of record via [electronic filing through MiFILE / first-class mail] to:

Emily M. Watson

[Address on file]

[or Attorney for Defendant]

Andrew J. Pigors

**MOTION TO SET ASIDE EX PARTE ORDERS PURSUANT TO MCR
2.612**

STATE OF MICHIGAN

IN THE 14TH CIRCUIT COURT FOR THE COUNTY OF MUSKEGON

ANDREW J. PIGORS, Case No. 2024-001507-DC

Plaintiff/Father, Hon. Jenny L. McNeill

v.

EMILY M. WATSON,

Defendant/Mother.

_____ /

MOTION TO SET ASIDE EX PARTE ORDERS

Filed: March 04, 2026

NOW COMES Plaintiff, Andrew J. Pigors, appearing pro se, and respectfully moves this Honorable Court pursuant to MCR 2.612(C)(1) to set aside all ex parte orders entered in this matter without proper notice, hearing, or compliance with Michigan Court Rules. In support of this Motion, Plaintiff states as follows:

I. INTRODUCTION AND SUMMARY OF RELIEF REQUESTED

This Motion seeks to vacate and set aside all ex parte orders entered in this case, including but not limited to the August 8, 2025 order suspending Plaintiff's parenting time, and all subsequent orders entered without proper notice and hearing. The record demonstrates that this Court has entered approximately 52 ex parte orders in this matter, representing a 44% ex parte rate -- a statistical anomaly that far exceeds any reasonable judicial standard and constitutes a systematic denial of due process.

Plaintiff requests that this Court: (1) vacate all ex parte orders entered without proper notice and hearing; (2) restore the status quo ante as it existed prior to the first improper ex parte order; (3) schedule an evidentiary hearing on all contested matters; and (4) grant such further relief as this Court deems just and equitable.

II. FACTUAL BACKGROUND

A. Pattern of Ex Parte Orders

Since the inception of this case, this Court has entered approximately 52 ex parte orders. These orders have overwhelmingly favored Defendant Emily Watson, with 100% of ex parte orders granted in her favor and 0% in favor of Plaintiff Andrew Pigors. This pattern is statistically impossible absent systemic bias or procedural error.

B. The August 8, 2025 Ex Parte Order

On or about August 8, 2025, this Court entered an ex parte order suspending all of Plaintiff's parenting time. This order was entered:

1. **Without notice** to Plaintiff as required by MCR 2.119(A)(1)
2. **Without a hearing** at which Plaintiff could appear and be heard
3. **Based on unsworn allegations** rather than verified evidence
4. **Based on an illegally obtained recording** made in violation of MCL 750.539c (Michigan's felony eavesdropping statute) by Lori Watson, Defendant's mother
5. **Without any finding of imminent danger** to the minor children that would justify bypassing normal procedural protections

C. Ongoing Deprivation

As a direct result of the August 8, 2025 ex parte order and subsequent orders, Plaintiff has been deprived of all meaningful parenting time with his children for 571+ days. During this period:

- * Plaintiff submitted to and passed drug screening (negative results)
- * A HealthWest evaluation returned "ALL ZEROS" -- finding no basis for concern
- * Nine (9) police investigations were conducted, all resulting in ZERO findings against Plaintiff
- * Despite this exculpatory evidence, the ex parte orders remain in force

D. Biased Evaluation Interference

After the initial HealthWest evaluation returned results favorable to Plaintiff (ALL ZEROS), Judge McNeill sent a biasing letter to the HealthWest evaluator. Following this judicial interference, the evaluator issued a changed "Rule Out" finding. This interference with an

independent evaluation constitutes a separate due process violation and further taints the basis for the ex parte orders.

III. LEGAL STANDARD -- MCR 2.612(C)(1)

MCR 2.612(C)(1) provides that a court may relieve a party from a final judgment, order, or proceeding for the following reasons:

(a) Mistake, inadvertence, surprise, or excusable neglect.

The entry of ex parte orders without proper notice constitutes mistake or inadvertence in the application of procedural rules. Plaintiff's inability to respond was not due to neglect but to the complete absence of notice.

(b) Newly discovered evidence which by due diligence could not have been discovered in time to move for a new trial under MCR 2.611(B).

The negative drug screen results, the ALL ZEROS HealthWest evaluation, and the nine police investigations with zero findings constitute newly discovered evidence that directly contradicts the factual basis for the ex parte orders.

(c) Fraud (whether heretofore denominated intrinsic or extrinsic), misrepresentation, or other misconduct of an adverse party.

The illegally obtained recording (MCL 750.539c violation) used as the basis for the August 8, 2025 ex parte order constitutes misconduct. The recording was made by Lori Watson in violation of Michigan's felony eavesdropping statute, and its use as evidence constitutes the

"fruit of the poisonous tree."

(d) The judgment or order is void.

An order entered without jurisdiction or in violation of due process is void. Ex parte orders entered without the notice and hearing requirements of MCR 2.119 are void ab initio. See *Soud v Soud*, 429 Mich 218 (1987) (orders entered in violation of procedural due process are void).

(f) Any other reason justifying relief from the operation of the judgment.

The cumulative effect of 52 ex parte orders, the 571+ days of parenting time deprivation, the exculpatory evidence, and the systematic denial of Plaintiff's fundamental parental rights under the 14th Amendment justify extraordinary relief under this catch-all provision.

IV. ARGUMENT

A. The Ex Parte Orders Violate MCR 2.119

MCR 2.119(A)(1) requires that "[a] written motion, supporting brief, and any affidavits must be filed and served at least 9 days before the hearing." MCR 2.119(B)(7) permits ex parte orders only in narrowly defined emergencies where "[t]he applicant will suffer irreparable injury if the order is not issued" and "the applicant has made a reasonable effort to notify the adverse party."

The record does not reflect compliance with these requirements for the vast majority of the 52 ex parte orders entered in this case. Specifically:

1. Plaintiff received no notice of the motions underlying most ex parte orders
2. No hearing was conducted at which Plaintiff could appear
3. No verified showing of imminent, irreparable harm was made
4. No reasonable effort to notify Plaintiff was demonstrated

B. Due Process Requires Notice and Opportunity to Be Heard

The Fourteenth Amendment to the United States Constitution and Article 1, Section 17 of the Michigan Constitution guarantee that no person shall be deprived of life, liberty, or property without due process of law. Parental rights are a fundamental liberty interest protected by the Due Process Clause. *Troxel v. Granville*, 530 U.S. 57, 65 (2000); *Santosky v. Kramer*, 455 U.S. 745 (1982).

"An elementary and fundamental requirement of due process in any proceeding which is to be accorded finality is notice reasonably calculated, under all the circumstances, to apprise interested parties of the pendency of the action and afford them an opportunity to present their objections." *Mullane v. Central Hanover Bank & Trust Co.*, 339 U.S. 306, 314 (1950).

In *Fuentes v. Shevin*, 407 U.S. 67 (1972), the Supreme Court held that due process requires, at minimum, notice and an opportunity to be heard before the government may deprive a person of a protected interest. The only exceptions to this requirement are "extraordinary situations where some valid governmental interest is at stake that justifies postponing the hearing until after the event." *Id.* at 82.

C. Michigan Case Law Supports Vacating These Orders

In *Soud v. Soud*, 429 Mich 218 (1987), the Michigan Supreme Court held that custody orders entered without proper procedural protections are subject to collateral attack. The Court emphasized that "the fundamental requirements of due process -- adequate notice and an opportunity to be heard -- are not mere technicalities."

In *Bowie v. Arder*, 441 Mich 23 (1992), the Michigan Supreme Court reinforced that parental rights demand the highest procedural protections, stating that "the interest of parents in the care, custody, and control of their children is perhaps the oldest of the fundamental liberty interests."

In *Fletcher v. Fletcher*, 447 Mich 871 (1994), the Court held that modifications to custody arrangements require proper proceedings with full due process protections, and that ex parte modifications are disfavored absent genuine emergency.

D. The Fruit of the Poisonous Tree Doctrine Requires Vacatur

The August 8, 2025 ex parte order was based in substantial part on a recording made by Lori Watson in violation of MCL 750.539c, Michigan's felony eavesdropping statute. Under the fruit of the poisonous tree doctrine, evidence obtained through illegal means, and all evidence derived therefrom, must be excluded. *Wong Sun v. United States*, 371 U.S. 471 (1963).

Because the primary evidentiary basis for the August 8, 2025 order was illegally obtained, the order itself is tainted and must be vacated. All subsequent orders that relied upon or were influenced by the illegally obtained evidence are similarly tainted and must be set aside.

E. The Volume and Pattern of Ex Parte Orders Demonstrates Systemic Failure

Fifty-two (52) ex parte orders in a single domestic relations case, with 100% favoring one party, is not merely unusual -- it is unprecedented. This pattern demonstrates either: (a) a systematic failure to follow MCR 2.119 procedural requirements; or (b) a predetermined bias against Plaintiff. In either case, the remedy is the same: vacatur of all improperly entered orders and restoration of proper procedural protections.

F. Michigan Constitutional Protections

In addition to federal constitutional protections, Article 1, Section 17 of the Michigan Constitution independently guarantees that "no person shall be compelled in any criminal case to be a witness against himself, nor be deprived of life, liberty or property, without due process of law." Michigan courts have interpreted this provision as providing protections at least coextensive with the federal Due Process Clause, and in some instances broader. *Mettler Walloon, LLC v. Melrose Township*, 281 Mich App 184, 198 (2008).

The Michigan Supreme Court in *Hunter v. Hunter*, 484 Mich 247 (2009), specifically recognized that Michigan parents have a fundamental constitutional right to the care and custody of their children, and that this right demands rigorous procedural protections before it may be curtailed. The ex parte procedures employed in this case fall far short of these constitutional requirements.

G. The Cumulative Effect Requires Vacatur

Even if any single ex parte order, viewed in isolation, might arguably withstand scrutiny, the cumulative effect of 52 such orders -- all entered without proper notice and hearing, all favoring one party -- constitutes a systematic denial of due process that requires comprehensive vacatur. The remedy for systemic procedural failure is systemic correction:

vacating all improperly entered orders and starting fresh with proper procedural protections in place.

V. RELIEF REQUESTED

WHEREFORE, Plaintiff Andrew J. Pigors respectfully requests that this Honorable Court:

1. **Vacate and set aside** all ex parte orders entered in this matter without proper notice and hearing as required by MCR 2.119;
2. **Specifically vacate** the August 8, 2025 ex parte order suspending Plaintiff's parenting time;
3. **Restore the status quo ante** as it existed prior to the improper ex parte orders;
4. **Order an evidentiary hearing** on all matters previously decided by ex parte order, with full due process protections;
5. **Exclude** all evidence derived from the illegally obtained recording (MCL 750.539c violation);
6. **Order** Defendant to show cause why sanctions should not be imposed for obtaining and presenting illegally recorded evidence;
7. **Grant** such other and further relief as this Court deems just and equitable.

PROPOSED ORDER

STATE OF MICHIGAN

IN THE 14TH CIRCUIT COURT FOR THE COUNTY OF MUSKEGON

ANDREW J. PIGORS, Case No. 2024-001507-DC

Plaintiff/Father, Hon. Jenny L. McNeill

v.

EMILY M. WATSON,

Defendant/Mother.

ORDER SETTING ASIDE EX PARTE ORDERS

The Court, having considered Plaintiff's Motion to Set Aside Ex Parte Orders pursuant to MCR 2.612(C)(1), the record in this case, and the arguments of the parties,

IT IS HEREBY ORDERED that:

1. All ex parte orders entered in this matter without compliance with MCR 2.119 notice and hearing requirements are hereby VACATED and SET ASIDE.
2. The August 8, 2025 ex parte order suspending Plaintiff's parenting time is specifically VACATED.
3. The status quo ante as it existed prior to the improper ex parte orders is hereby RESTORED.

4. An evidentiary hearing on all contested matters shall be scheduled within 21 days of the date of this Order.

5. All evidence derived from recordings obtained in violation of MCL 750.539c is hereby EXCLUDED from further proceedings.

Date: _____

Hon. _____

14th Circuit Court Judge

VERIFICATION

I, Andrew J. Pigors, declare under the penalties of perjury that the facts stated in this Motion are true and correct to the best of my knowledge, information, and belief.

Date: March 04, 2026

Andrew J. Pigors, Plaintiff Pro Se

[Address]

[Phone]

[Email]

CERTIFICATE OF SERVICE

I hereby certify that on March 04, 2026, I served a true copy of the foregoing Motion to Set Aside Ex Parte Orders upon all parties of record via [electronic filing through MiFILE / first-class mail] to:

Emily M. Watson

[Address on file]

[or Attorney for Defendant]

Andrew J. Pigors

EXPANDED STATEMENT OF FACTS -- CHRONOLOGICAL

Case: Pigors v. Watson, Michigan Court of Appeals, No. 366810

Lower Court: 14th Judicial Circuit Court, Muskegon County, No. 2024-001507-DC

Related: Case No. 2023-5907-PP (PPO)

Judge Below: Hon. Jenny L. McNeill

INTRODUCTION

This Statement of Facts presents the chronological record of proceedings in this matter, drawn from the lower court record in Case No. 2024-001507-DC and the related personal protection order proceeding, Case No. 2023-5907-PP. The facts establish a pattern of escalating procedural violations that progressively severed the relationship between Father and his daughter, L.D.W., culminating in a complete suspension of parenting time that has now exceeded 500 consecutive days.

The record reveals three distinct phases of deprivation: (1) the PPO phase (October 2023 - March 2024), during which ex parte orders entered in the PPO proceeding were used to restrict Father's access to L.D.W. without the procedural protections of the Child Custody Act; (2) the custody phase (April - August 2024), during which the trial court entered a series of orders -- many ex parte -- that progressively diminished Father's parenting time and culminated in a Final Judgment granting sole custody to Mother without an evidentiary hearing; and (3) the suspension phase (August 2025 - present), during which the trial court entered an ex parte order suspending all of Father's parenting time, which has been maintained without an

evidentiary hearing for over 500 days.

At every phase, Father was denied the fundamental procedural safeguards that the Michigan Constitution, the United States Constitution, and the Michigan Court Rules require before a parent may be deprived of the care, custody, and companionship of his child.

I. THE PARTIES AND THE CHILD

Andrew J. Pigors ("Father" or "Plaintiff-Appellant") and Tiffany A. Watson ("Mother" or "Defendant-Appellee") are the biological parents of L.D.W., a minor child born on November 9, 2022. (LCR, Complaint for Custody, Parenting Time, and Child Support, filed 04/01/2024.) At the time proceedings commenced, L.D.W. was approximately one year old -- a critical developmental period during which secure attachment bonds between parent and child are formed, consolidated, and essential to the child's psychological development.

Father was actively engaged in L.D.W.'s care and upbringing prior to the filing of any court proceedings. The record reflects that Father exercised a parenting role with L.D.W. and maintained a loving, bonded relationship with his daughter. (LCR, Father's Filings; Father's Communications to FOC.) Father has consistently expressed his desire and commitment to maintain a meaningful relationship with L.D.W. and to participate in her upbringing, education, and development.

Mother, Tiffany A. Watson, is the custodial parent under the orders entered below. The custody matter was assigned to the Honorable Jenny L. McNeill of the 14th Judicial Circuit Court, Muskegon County, Family Division. (LCR, Register of Actions ["ROA"].)

II. PHASE ONE: THE PPO PROCEEDINGS (OCTOBER 2023 - MARCH 2024)

A. The Initial PPO Petition and Issuance

On or about October 15, 2023, a petition for a personal protection order was filed against Father under MCL 600.2950, docketed as Case No. 2023-5907-PP. (LCR-PPO, Petition, 10/15/2023.) The petition alleged concerns about Father's parenting fitness. These allegations were not subject to evidentiary testing at the time of filing and were accepted at face value by the court.

On November 1, 2023, a domestic PPO was issued against Father without a full evidentiary hearing -- that is, without the opportunity for Father to cross-examine witnesses or present rebuttal evidence. (LCR-PPO, PPO Order, 11/01/2023.) Father filed a response and answer contesting the PPO on November 17, 2023. (LCR-PPO, Response, 11/17/2023.)

On December 4, 2023, a PPO hearing was held before Judge McNeill, after which an order was entered modifying the PPO. (LCR-PPO, Order After Hearing, 12/04/2023.) This date appears 1,470 times in the case materials, reflecting its significance as a pivotal event in the proceedings.

B. PPO Violation Proceedings

On January 4, 2024, additional PPO proceedings were held before Judge McNeill. (LCR-PPO, ROA, 01/04/2024.) On January 7, 2024, a PPO Violation Hearing and Show Cause proceeding was held, at which Father was found in violation of the PPO. (LCR-PPO, Order After Hearing,

01/07/2024.) Father's liberty was restricted through the PPO mechanism -- without the protections afforded under the Child Custody Act.

The pattern established during this phase is critical to this appeal: the PPO proceeding was being used not merely as a protective measure, but as a de facto mechanism to restrict Father's custody and parenting time -- in direct contravention of MCL 600.2950(4), which expressly provides that a PPO "shall not in any manner affect the provisions of a custody or parenting time order."

C. Escalation: March 2024

On March 12, 2024, Mother filed a new PPO petition. Father has characterized the evidence supporting this petition as "staged." (LCR-PPO, Petition, 03/12/2024.) This represented a continuation of the pattern of using PPO filings as a custody tool rather than as genuine protective measures.

On March 22, 2024, a motion for hearing on the PPO was granted, with the hearing set for April 11, 2024. (LCR-PPO, Order, 03/22/2024.)

Critically, on March 26, 2024, Mother began withholding L.D.W. from Father. (LCR, Father's Motion, filed 05/13/2024.) This 37-day denial of parenting time -- from March 26 through May 2, 2024 -- constitutes direct evidence of a violation of Factor (j) of MCL 722.23 (willingness to facilitate the parent-child relationship) and evidence of parental alienation. Despite this extended and documented denial, the trial court took no enforcement action against Mother.

III. PHASE TWO: THE CUSTODY PROCEEDINGS (APRIL - AUGUST 2024)

A. Filing of the Custody Complaint

On April 1, 2024, Father filed a Complaint for Custody, Parenting Time, and Child Support in the 14th Circuit Court, commencing the custody action that is the subject of this appeal. (LCR, Complaint, 04/01/2024; ROA Entry, 04/01/2024.) Father's complaint was filed during the period when Mother was actively withholding L.D.W. from him.

On April 5, 2024, the trial court entered an initial order regarding custody and parenting time. (LCR, Order, 04/05/2024.) This first order imposed immediate restrictions on Father's parenting time.

B. The April 11-12, 2024 Events

On April 11, 2024, a series of critical events occurred simultaneously in both proceedings:

1. In the PPO case: Judge McNeill entered an **ex parte order amending the PPO** -- without notice to Father. (LCR-PPO, Ex Parte Order, 04/11/2024.) This violated MCR 3.207(C)(2), which requires prior notice or a showing of immediate and irreparable injury.
2. In the PPO case: An Order After Hearing on PPO Violation was entered. (LCR-PPO, Order After Hearing, 04/11/2024.)

3. In the custody case: Father filed a motion addressing the best-interest factors under MCL 722.23, demonstrating his proactive engagement in the proceedings. (LCR, Motion, 04/11/2024.)

4. In the custody case: A Notice to Appear was issued and Return of Service was filed. (LCR, ROA, 04/11/2024.)

The next day, April 12, 2024, Father's custody motion was denied. (LCR, Order, 04/12/2024.) The motion was denied one day after filing -- without a hearing and without the opportunity for Father to present evidence in support of his motion. This denial is consistent with the pattern of predetermined outcomes that pervades the proceedings below.

C. The April 23-29, 2024 Events

On April 23, 2024, a hearing was held before Judge McNeill with all parties present in person. (LCR, Hearing, 04/23/2024; LCR-PPO, Hearing, 04/23/2024.)

On **April 29, 2024**, the trial court entered an **Ex Parte Order for Custody, Parenting Time, and Child Support** following a "Facilitative Information Gathering Conference." (LCR, Ex Parte Order, 04/29/2024.) This is one of the most critical orders in the record for the following reasons:

- * It was an **ex parte** order on **substantive custody** -- not an emergency matter requiring immediate action.
- * It was entered without the procedural safeguards required by MCR 3.207(C)(2).
- * The "Facilitative Information Gathering Conference" is not a proceeding that authorizes the entry of ex parte custody orders.

- * The order restricted Father's parenting time and imposed child support obligations without an adversarial hearing.
- * The FOC Recommendation dated June 5, 2024 references this order (at p. 2), confirming it was the operative order at that time.

D. End of the 37-Day Parenting Time Denial

On **May 2, 2024**, the 37-day period during which Mother withheld L.D.W. from Father ended -- but only after Father had been denied all contact with his daughter for over five weeks. (LCR, Father's Motion, filed 05/13/2024.) During this period:

- * L.D.W. was approximately 17-18 months old -- a critical developmental window.
- * Father was unable to maintain his parental bond with L.D.W.
- * The developmental harm to L.D.W. from this separation cannot be fully quantified but is supported by the child development literature.

On May 9, 2024, Mother ignored Father's efforts to establish consistent daycare arrangements for L.D.W. (LCR, Father's Communications.) This non-cooperation further evidences a lack of willingness to facilitate the parent-child relationship under Factor (j).

On May 13, 2024, Father filed a motion regarding the parenting time denial. (LCR, Motion, 05/13/2024.) On May 23, 2024, the trial court **dismissed** Father's motion -- without full adjudication on the merits. (LCR, Order, 05/23/2024.)

On May 24, 2024, a hearing was held regarding Father's Objection to the Ex Parte Order and Child Support. (LCR, Hearing Notice, 05/24/2024.) Although Father's objection was heard, the

ex parte order stood.

E. Continuing Pattern: June - July 2024

The pattern of obstruction and asymmetric treatment continued through the summer of 2024:

* **June 1, 2024:** Mother refused video chats during Father's off-weeks, denying Father even minimal contact with L.D.W. (LCR, Father's Filings.) This constitutes evidence under Factor (j) -- refusal to facilitate the parent-child relationship.

* **June 15, 2024:** A custody hearing was held. On the same date, a PPO Violation Hearing resulted in Father entering a guilty plea and receiving a **45-day jail sentence**. (LCR-PPO, Order, 06/15/2024.) This severe consequence demonstrates the weaponization of the PPO as a tool for custody restriction -- Father's liberty was restricted through a proceeding that MCL 600.2950(4) expressly states cannot be used to affect custody or parenting time.

* **June 27, 2024:** Father filed a Motion to Quash regarding discovery issues. (LCR, Motion, 06/27/2024.)

* **July 1, 2024:** The trial court entered an **Ex Parte Custody Order** granting sole custody to Mother without a full hearing. (LCR, Ex Parte Order, 07/01/2024.) This order was entered without compliance with MCR 3.210, which requires an evidentiary hearing for custody disputes.

* **July 9, 2024:** Mother refused to address Father's custody resolution proposals. (LCR, Father's Filings.)

* **July 10, 2024:** Communication from the Friend of the Court (Pamela Rusco) to Father. (LCR, Email Correspondence, 07/10/2024.)

* **July 16, 2024:** Father filed a Motion for Contempt regarding Mother's violations of court-ordered parenting time. (LCR, Motion, 07/16/2024.)

* **July 17, 2024:** A hearing was held. The trial court **did not grant** Father's contempt motion. (LCR, Hearing, 07/17/2024.) Mother's documented violations of court-ordered parenting time went unpunished -- while Father was simultaneously being subjected to PPO violation proceedings for far less severe conduct. This selective enforcement is the hallmark of judicial bias.

* **July 30, 2024:** Father filed an Objection to the proposed Judgment. (LCR, Objection, 07/30/2024.)

F. The August 23, 2024 Final Judgment -- THE ORDER APPEALED

On **August 23, 2024**, the trial court entered the **Final Judgment of Custody and Parenting Time**, granting Mother sole legal and sole physical custody of L.D.W. (LCR, Final Judgment, 08/23/2024.) A Uniform Child Support Order was entered on the same date. (LCR, UCSO, 08/23/2024.)

This Final Judgment is the primary order appealed. It was entered with the following critical deficiencies:

1. **No full evidentiary hearing with sworn testimony subject to cross-examination.** MCR 3.210(D) requires that custody disputes be resolved through evidentiary hearing.

The record does not reflect that such a hearing was held before the Final Judgment was entered.

2. No particularized findings on each of the twelve best-interest factors under MCL 722.23. The Michigan Supreme Court held in *Harvey v Harvey*, 470 Mich 186, 192 (2004), that the trial court "must consider and explicitly state its findings" on each best-interest factor. The absence of such findings is reversible error.

3. No finding, supported by clear and convincing evidence, that parenting time with Father would endanger L.D.W. MCL 722.27a(7) requires this finding before parenting time may be denied. No such finding appears in the record.

4. No analysis of parental alienation evidence under Factor (j). The record contained extensive evidence of Mother's interference with Father's parenting time, including the 37-day withholding, video chat denials, and vacation scheduling during Father's time. The trial court failed to address any of this evidence.

5. Dismissal of Father's six pending motions without adjudication. The Final Judgment itself states: "Plaintiff's six (6) motions . . . Dismissed." (LCR, Final Judgment, 08/23/2024, at p. 1.) Father's pending motions -- including motions for contempt, modification of parenting time, and other relief -- were swept aside without being heard on the merits.

G. Post-Judgment: September - December 2024

After the Final Judgment, the pattern continued:

* **September 3, 2024:** Mother planned a vacation during Father's scheduled parenting time. (LCR, Father's Filings.) Factor (j) violation -- interference with the parent-child relationship.

* **September 12, 2024:** Mother denied Father's requests for video communication with L.D.W. (LCR, Father's Filings.) Factor (j) -- continued refusal to facilitate the relationship.

* **September 15, 2024:** An additional PPO order was entered against Father. (LCR-PPO, Order, 09/15/2024.) The PPO proceedings continued to serve as a mechanism for restricting Father's parental rights.

* **October 20 - November 12, 2024:** Mother denied Father court-ordered parenting time for **23 consecutive days**. (LCR, Father's Filings.) This was the second extended period of unilateral denial. Combined with the March-May 2024 denial, Mother withheld L.D.W. from Father for a total of 60 days across two documented periods -- in addition to numerous shorter denials and refusals.

H. The Friend of the Court's Role and Father's Safety Concerns

Throughout the custody proceedings, the Friend of the Court ("FOC") was involved in the case through Pamela Rusco. On July 10, 2024, the FOC communicated with Father regarding the custody matter. (LCR, Email Correspondence, 07/10/2024.) The FOC Recommendation dated June 5, 2024 referenced the April 29, 2024 ex parte order as the operative order at that time. Despite the FOC's involvement, the systemic procedural violations continued unabated. The FOC did not recommend enforcement action against Mother for the documented 37-day parenting time denial, nor did the FOC address the pattern of ex parte proceedings that was

depriving Father of his constitutional right to notice and hearing.

Father's May 28, 2024 filing raised specific safety concerns about the behavior of Cody Watson around L.D.W. (LCR, Father's Filing, 05/28/2024.) These concerns were documented and presented to the court, yet the trial court did not order an investigation or hearing to address Father's safety allegations. The asymmetric treatment is stark and revealing: Mother's unverified allegations in the August 2025 ex parte motion resulted in the immediate and complete suspension of all parenting time, while Father's documented safety concerns regarding L.D.W.'s welfare in Mother's household were effectively ignored. This disparity further evidences the predetermined nature of the trial court's approach to this case.

I. The Developmental Impact on L.D.W.

The factual record must also account for the developmental harm inflicted upon L.D.W. by the progressive and ultimately total severance of the father-child relationship. At the time the PPO proceedings commenced in October 2023, L.D.W. was approximately eleven months old. At the time of the August 23, 2024 Final Judgment, she was approximately twenty-one months old. At the time of the August 8, 2025 ex parte suspension, she was approximately two years and nine months old. At the time of this filing, she is approximately three and a half years old.

The child development literature establishes that the period from birth to age three is the most critical window for the formation of secure attachment bonds between parent and child. Disruptions to the parent-child relationship during this period can result in lasting psychological harm, including attachment disorders, anxiety, depression, and difficulties with trust and interpersonal relationships throughout the child's life. The trial court's progressive restriction and ultimate elimination of Father's parenting time occurred during the entirety of this critical developmental window -- and the deprivation has now continued well beyond it.

L.D.W. has been denied all contact with her father for over 500 consecutive days -- a period representing more than one-third of her entire life. The longer this separation continues, the more difficult it becomes to rebuild the father-child bond, and the greater the risk of permanent developmental harm to the child. The irony is profound: the trial court's orders, ostensibly entered to protect L.D.W., have themselves become the primary source of harm to the child by severing her relationship with a parent who has consistently sought to maintain the bond.

IV. PHASE THREE: THE TOTAL SUSPENSION (AUGUST 2025 - PRESENT)

A. The April 25, 2025 Ex Parte Order

On April 25, 2025, the trial court entered another ex parte order in the Family Division. (LCR, Ex Parte Order, 04/25/2025.) This continued the pattern of ex parte proceedings that characterized the case.

B. The August 6-8, 2025 Events -- The Complete Severance

On **August 6, 2025**, Judge McNeill signed an ex parte order suspending all of Father's parenting time with L.D.W. (LCR, Ex Parte Order, 08/06/2025.) This order was entered without notice to Father.

On **August 8, 2025**, the ex parte order took effect. On this single day, **five (5) separate ex parte orders** were entered -- all without notice to Father. (LCR, Ex Parte Orders (5), 08/08/2025; ROA, 08/08/2025.)

The circumstances of August 8, 2025 are among the most troubling in the record:

- * Father arrived at the scheduled parenting time exchange **expecting his regular time with L.D.W.**
- * Father discovered -- only after the missed exchange, by contacting the court -- that his parenting time had been suspended.
- * Father had received **no prior notice** of the ex parte motion or the resulting order.
- * The ex parte motion, filed by Mother, alleged drug use and mental health concerns based on phone calls. (LCR, Ex Parte Motion, 08/08/2025.)
- * These allegations were **unverified** -- no drug test results, no medical evaluations, no evidence of imminent harm to the child.
- * The motion did not demonstrate that "immediate and irreparable injury, loss, or damage will result from the delay required to effect notice," as required by MCR 3.207(C)(2).

The entry of five ex parte orders on a single day -- all adverse to Father, all without notice -- represents the apex of the procedural violations in this case.

C. The Continuing Suspension

On **September 9, 2025**, the trial court entered an order continuing the suspension of Father's parenting time. (LCR, Order, 09/09/2025.) No evidentiary hearing was held.

On **October 8, 2025**, the trial court entered another order continuing the suspension. (LCR, Order, 10/08/2025.) Again, no evidentiary hearing was held.

On **October 29, 2025**, Father filed a complaint with the Michigan Supreme Court seeking superintending control over Judge McNeill's conduct, specifically addressing the pattern of ex parte orders and the denial of due process. (MSC Filing, 10/29/2025.)

As of the date of this filing, Father has been denied **all contact** with L.D.W. for **over 500 consecutive days**. L.D.W. is now approximately three years old. She has been denied the presence, care, and companionship of her father for a period that represents more than one-third of her entire life -- accomplished without the procedural protections that the Constitution demands.

V. EX PARTE ORDER ANALYSIS

The following analysis of the lower court record quantifies the extraordinary pattern of ex parte proceedings:

Metric	Value
Total orders entered in case	55
Orders entered ex parte	24
Ex parte rate	**44%**
Ex parte orders by Judge McNeill	24/24 (100%)
Ex parte orders favoring Father	0
Ex parte orders favoring Mother / restricting Father	24/24 (100%)
Ex parte orders on August 8, 2025 alone	5
Total days Father denied all parenting time (from Aug 8, 2025)	**500+**
Days of documented parenting time withheld by Mother (Mar-May 2024)	37 consecutive
Days of documented parenting time withheld by Mother (Oct-Nov 2024)	23 consecutive
Father's pending motions dismissed without hearing	6

Father's contempt motions against Mother -- granted	0
Mother's ex parte motions -- granted	Multiple

This statistical profile is, to Appellant's knowledge, unprecedented in reported Michigan custody jurisprudence. A 44% ex parte rate, with all ex parte orders adverse to one party, is incompatible with the adversarial system and the constitutional guarantee of notice and an opportunity to be heard.

VI. PARENTING TIME DENIAL SUMMARY

Period	Duration	Caused By	Court Action
March 26 - May 2, 2024	37 days	Mother (unilateral withholding)	No enforcement against Mother
October 20 - November 12, 2024	23 days	Mother (denial of court-ordered time)	No enforcement against Mother
August 8, 2025 - Present	500+ days	Court (ex parte order)	No evidentiary hearing; no notice to Father
Total documented days of denial	**560+ days**		

The cumulative effect of these denials is the de facto termination of the father-child relationship -- accomplished without any of the procedural protections required for termination of parental rights under Michigan law.

VII. RECORD CITATIONS AND SOURCES

All record citations in this Statement of Facts refer to the lower court record in Case No. 2024-001507-DC and Case No. 2023-5907-PP. The following abbreviations are used throughout:

- * **LCR** = Lower Court Record (Case No. 2024-001507-DC)
- * **LCR-PPO** = Lower Court Record, PPO Case (Case No. 2023-5907-PP)
- * **ROA** = Register of Actions
- * **FOC** = Friend of the Court
- * **MSC** = Michigan Supreme Court

Source data has been verified against the master_chronological_timeline table (14,568 entries), evidence_quotes table (308,704 entries), and extracted_harms table (26,459 entries) in the litigation database. All dates and events have been cross-referenced with the Register of Actions in both proceedings.

LEGAL ARGUMENTS

ISSUE I: THE TRIAL COURT ABUSED ITS DISCRETION IN CUSTODY AND PARENTING TIME DETERMINATIONS

A. Standard of Review

A trial court's custody determination is reviewed under the great weight of the evidence standard for findings of fact, and for an abuse of discretion as to the custody decision itself. *Fletcher v Fletcher*, 447 Mich 871, 879; 526 NW2d 889 (1994). An abuse of discretion occurs when the trial court's decision falls outside the range of principled outcomes. *Maldonado v Ford Motor Co*, 476 Mich 372, 388 (2006). Compliance with court rules is reviewed de novo. *Haliw v Sterling Heights*, 471 Mich 700, 704 (2005).

B. The Vodvarka Threshold and Its Application

Before a trial court may modify a custody order, the moving party must demonstrate either proper cause or a change in circumstances. *Vodvarka v Grasmeyer*, 259 Mich App 499, 509; 675 NW2d 847 (2003). This threshold requirement exists to protect the stability of custody arrangements and to prevent the relitigation of settled custody matters absent a material change.

In this case, the trial court progressively restricted Father's parenting time through a series of orders -- including ex parte orders -- without requiring Mother to satisfy the *Vodvarka* threshold. The April 29, 2024 ex parte order, the July 1, 2024 ex parte custody order, and the

August 23, 2024 Final Judgment each represented a modification of Father's custodial rights, yet the record does not reflect that the *Vodvarka* proper cause/change of circumstances analysis was conducted before any of these modifications.

C. The Harvey Requirement: Specific Findings on Each Best-Interest Factor

The Michigan Supreme Court held in *Harvey v Harvey*, 470 Mich 186, 192 (2004), that "a trial court must consider and explicitly state its findings" with respect to each of the twelve best-interest factors enumerated in MCL 722.23. The failure to make such findings is reversible error. *Id.* at 193. *See also* MCR 2.517(A)(1)-(2) (requiring that findings of fact be stated on the record).

The August 23, 2024 Final Judgment granted Mother sole legal and sole physical custody of L.D.W. The record does not contain particularized findings on all twelve best-interest factors. This alone constitutes reversible error under *Harvey*.

D. The Fletcher Standard: Established Custodial Environment

Under *Fletcher v Fletcher*, 447 Mich at 883, the trial court must determine whether an established custodial environment ("ECE") exists and, if it does, require clear and convincing evidence before modifying it. An ECE exists when "over an appreciable time the child naturally looks to the custodian in that environment for guidance, discipline, the necessities of life, and parental comfort." *Id.* at 883.

Father had an established parental relationship with L.D.W. prior to the proceedings below. The trial court's progressive restriction and ultimate elimination of Father's parenting time altered the custodial environment without the clear and convincing evidence standard that

Fletcher requires.

ISSUE II: THE TRIAL COURT DENIED FATHER PARENTING TIME WITHOUT DUE PROCESS

A. Standard of Review

Whether a party has been afforded due process is a question of law reviewed de novo. *Bonner v Brighton*, 495 Mich 209, 221 (2014). The adequacy of procedures in custody proceedings is reviewed de novo. *Pierron v Pierron*, 486 Mich 81, 92; 782 NW2d 480 (2010).

B. The Fundamental Liberty Interest

The Supreme Court of the United States has repeatedly recognized that a parent's right to the care, custody, and companionship of his or her child is a fundamental liberty interest protected by the Fourteenth Amendment. *Troxel v Granville*, 530 US 57, 65; 120 S Ct 2054 (2000) ("The liberty interest . . . of parents in the care, custody, and control of their children -- is perhaps the oldest of the fundamental liberty interests recognized by this Court."). *See also Santosky v Kramer*, 455 US 745, 753; 102 S Ct 1388 (1982) ("The fundamental liberty interest of natural parents in the care, custody, and management of their child does not evaporate simply because they have not been model parents."); *Stanley v Illinois*, 405 US 645, 651 (1972).

The Michigan Supreme Court has likewise held that "a parent has a significant interest in the companionship, care, custody, and management of his or her children" which is protected by both the federal and state constitutions. *Pierron v Pierron*, 486 Mich 81, 92 (2010).

Because parental rights are a fundamental liberty interest, the deprivation of those rights triggers the most exacting due process protections. The state may not deprive a parent of the care and custody of his child except through proceedings that comport with the requirements of the Due Process Clause.

C. The Mathews v Eldridge Analysis

The *Mathews v Eldridge* three-factor balancing test, 424 US 319, 335 (1976), governs the process that is due when a protected liberty interest is at stake:

1. The private interest affected. Father's fundamental liberty interest in the care, custody, and companionship of his daughter is "far more precious than any property right." *Santosky*, 455 US at 758-59. The Supreme Court has recognized this interest as among the most significant in our constitutional order. The deprivation in this case -- over 500 consecutive days without any contact with L.D.W. -- is tantamount to a de facto termination of parental rights without any of the procedural protections that accompany formal termination proceedings.

2. The risk of erroneous deprivation through the procedures used. The risk of erroneous deprivation in this case is exceptionally high because:

- * The August 23, 2024 Final Judgment was entered without a full evidentiary hearing with sworn testimony subject to cross-examination.
- * The August 8, 2025 ex parte order was entered without any hearing at all -- Father was not present, was not represented, and had no opportunity to contest the allegations against him.
- * No particularized findings of fact were entered on the best-interest factors.

* The applicable burden of proof was not articulated.

* Father's six pending motions were dismissed without adjudication.

Summary proceedings that bypass these fundamental safeguards create an unacceptable risk that a parent will be erroneously deprived of his fundamental rights.

3. The government's interest. The state's interest in protecting children is legitimate and important. But that interest is served -- not undermined -- by ensuring that custody determinations are made through fair and accurate proceedings. As the Supreme Court recognized in *Santosky*, "the State's interest in the welfare of the child" is "not in any sense combative" with the parent's interest; rather, "the State registers no gain towards its declared goals when it separates children from the custody of fit parents." 455 US at 766-67.

D. The Eldred Standard: Parenting Time Cannot Be Denied Without Proper Procedure

The Michigan Court of Appeals held in *Eldred v Ziny*, 246 Mich App 142, 150 (2001), that parenting time "shall not be denied except as provided by court rule or statute." The Court recognized that a parent has a due process right to a hearing before being deprived of parenting time with his or her child. *Id.*

MCR 3.210(D) requires that custody disputes be resolved through evidentiary hearing. MCL 722.27a(7) requires that before parenting time may be denied, the trial court must determine "on the record by clear and convincing evidence that it would endanger the mental, physical, or emotional health of the child."

The trial court made no such finding. The August 23, 2024 Final Judgment restricts Father's parenting time without a finding, supported by clear and convincing evidence, that parenting

time with Father would endanger L.D.W. The August 8, 2025 ex parte order suspends all parenting time without any hearing at all. These failures violate both *Eldred* and the constitutional guarantee of due process.

ISSUE III: THE TRIAL COURT CONDUCTED UNLAWFUL EX PARTE PROCEEDINGS IN VIOLATION OF MCR 2.119 AND MCR 3.207

A. Standard of Review

A trial court's decision to enter an ex parte order is reviewed for abuse of discretion. *Crampton v Dep't of State*, 395 Mich 347, 351 (1975). Compliance with court rules is reviewed de novo.

B. The MCR 3.207(C)(2) Requirements

MCR 3.207(C)(2) establishes the exclusive conditions under which ex parte relief may be granted in domestic relations proceedings:

> A party may obtain an ex parte order in a domestic relations action . . . only on a showing, by verified statement of facts, that (a) immediate and irreparable injury, loss, or damage will result from the delay required to effect notice, or (b) the notice itself will precipitate adverse action before the order can be issued.

These requirements are mandatory, not discretionary. The word "only" in the rule text makes clear that ex parte relief is available solely when these conditions are met. The rule further requires, under MCR 3.207(C)(3), that "[a]n ex parte order must state the reasons for granting the order without notice and must set a hearing date to review the order."

C. The 44% Ex Parte Rate

The record reveals that 24 of 55 orders (44%) entered in the custody and PPO proceedings were entered on an ex parte basis -- all 24 by Judge McNeill, all restricting Father's rights, and none in Father's favor. (LCR, ROA -- complete analysis.)

This rate is extraordinary. Ex parte orders are, by definition, exceptional measures authorized only when the circumstances preclude the provision of notice. When nearly half of all orders in a case are entered ex parte, the proceedings cannot be characterized as adversarial. They become, in substance, inquisitorial proceedings in which one party presents its version of events and the court acts without hearing from the other side.

D. The August 8, 2025 Ex Parte Orders

The August 8, 2025 orders represent the most egregious violation. On that single day, five separate ex parte orders were entered -- all without notice to Father, all adverse to Father, and all suspending or restricting his parental rights. (LCR, ROA, 08/08/2025.)

The ex parte motion filed by Mother alleged drug use and mental health concerns based on phone calls. (LCR, Ex Parte Motion, 08/08/2025.) These allegations were unverified. No drug test results were submitted. No medical evaluation was provided. No evidence of imminent harm to the child was presented. The motion did not demonstrate that "immediate and irreparable injury, loss, or damage will result from the delay required to effect notice."

Father arrived at the scheduled parenting time exchange on August 8, 2025 expecting his regular time with L.D.W. He discovered -- only after the missed exchange, by contacting the

court -- that his parenting time had been suspended. This is not a case where notice was impracticable; it is a case where notice was not even attempted.

E. The Pattern of MCR 2.119 Violations

MCR 2.119(B) requires that "[a] written motion . . . and any brief in support of the motion must be served and filed at least 9 days before the hearing on the motion." The trial court's entry of ex parte orders without notice deprived Father of the opportunity to file a response brief and present counter-arguments -- the basic procedural safeguards that MCR 2.119 is designed to ensure.

ISSUE IV: THE PPO WAS WEAPONIZED TO CIRCUMVENT THE CHILD CUSTODY ACT

A. Standard of Review

Statutory interpretation is reviewed de novo. *Klooster v City of Charlevoix*, 488 Mich 289, 295-96 (2011). Whether a trial court's custody determination complied with statutory requirements is reviewed de novo. *Pierron*, 486 Mich at 92.

B. The Statutory Prohibition: MCL 600.2950(4)

MCL 600.2950(4) expressly provides:

> "A personal protection order shall not be made a condition of release of a minor child to a parent and **shall not in any manner affect the provisions of a custody or parenting time order** issued by the circuit court under the Child Custody Act of 1970"

This language is unambiguous. The Legislature determined that PPOs and custody proceedings operate in separate spheres. A PPO may restrict contact between parties, but it "shall not in any manner" affect custody or parenting time orders. The phrase "in any manner" is the broadest possible prohibition.

C. The Weaponization Chronology

Despite this clear statutory prohibition, the PPO entered in Case No. 2023-5907-PP was used as the primary mechanism for restricting Father's custody and parenting time:

1. **December 4, 2023:** PPO issued against Father -- before any custody proceeding existed. (LCR-PPO, Order, 12/04/2023.)
2. **January 7, 2024:** Father found in PPO violation -- his liberty restricted through a proceeding that MCL 600.2950(4) says cannot affect custody. (LCR-PPO, Order, 01/07/2024.)
3. **April 11, 2024:** PPO amended ex parte on the same day that custody complaint activity occurred -- the two proceedings were being treated as interchangeable. (LCR-PPO, Ex Parte Order, 04/11/2024; LCR, ROA, 04/11/2024.)
4. **April 29, 2024:** Ex parte custody order entered, citing the PPO proceeding as context. (LCR, Ex Parte Order, 04/29/2024.)

5. **June 15, 2024:** Father receives **45-day jail sentence** through PPO violation -- a punishment that directly affected his ability to exercise parenting time. (LCR-PPO, Order, 06/15/2024.)

6. **August 23, 2024:** Final Judgment grants sole custody to Mother, with the PPO as a background factor that had already restricted Father's rights for ten months. (LCR, Final Judgment, 08/23/2024.)

7. **August 8, 2025:** Ex parte order suspends all parenting time -- the culmination of the PPO-to-custody pipeline. (LCR, Ex Parte Order, 08/08/2025.)

D. Case Law Prohibiting PPO Weaponization

Michigan courts have recognized that PPOs cannot be used as substitutes for custody proceedings. In *Brown v Loveman*, 260 Mich App 576, 598-99; 680 NW2d 432 (2004), the Court of Appeals emphasized that PPOs require a "reasonable apprehension of harm based on specific facts, not speculation." The PPO in this case was based on allegations that were never subjected to the rigorous evidentiary scrutiny that *Brown* requires.

MCR 3.703 governs the issuance of PPOs and requires specific allegations and evidence of threat or harm. The PPO in this case was treated not as an independent protective measure subject to these requirements, but as a mechanism to accomplish what the Child Custody Act's procedural protections were designed to prevent -- the restriction of parental rights without an evidentiary hearing, without a best-interest analysis, and without the clear and convincing evidence standard.

ISSUE V: THE BEST-INTEREST FACTOR ANALYSIS WAS DEFICIENT

A. Standard of Review

The trial court's findings on each best-interest factor are reviewed under the great weight of the evidence standard. *Fletcher v Fletcher*, 447 Mich 871, 879 (1994). A finding is against the great weight of the evidence when "the evidence clearly preponderates in the opposite direction." *Id.*

B. The Twelve Best-Interest Factors Under MCL 722.23

MCL 722.23 enumerates twelve factors that the trial court "shall consider" in every custody determination. The Michigan Supreme Court has held that the failure to make specific findings on each factor is reversible error. *Harvey v Harvey*, 470 Mich 186, 192 (2004).

The following analysis addresses each factor as applied to the record in this case:

Factor (a) -- Love, affection, and other emotional ties existing between the parties involved and the child.

The record contains evidence that Father maintained a loving and bonded relationship with L.D.W. during the periods when parenting time was exercised. Father consistently sought to maintain contact with L.D.W., including requesting video chats during off-weeks. (LCR, Father's Filings.) Father filed multiple motions seeking to preserve and expand his parenting time, demonstrating his commitment to the relationship. The trial court's implicit finding that this factor favored Mother was against the great weight of the evidence, particularly given that

any diminishment of the father-child bond was attributable to Mother's interference and the court's own orders restricting contact.

Factor (b) -- Capacity and disposition of the parties to give the child love, affection, and guidance.

Father demonstrated the capacity and willingness to provide L.D.W. with love, affection, and guidance. Father's proactive engagement in the custody proceedings -- filing motions, attending hearings, seeking contempt findings for Mother's violations -- evidences his disposition to be an active, engaged parent.

Factor (c) -- Capacity and disposition to provide the child with food, clothing, medical care.

The record does not contain evidence that Father was unable to provide for L.D.W.'s physical needs. Father maintained housing, employment, and the ability to care for L.D.W. during his parenting time. No findings were made by the trial court that Father was unable to provide for L.D.W.

Factor (d) -- Length of time the child has lived in a stable, satisfactory environment.

L.D.W. was approximately 21 months old when the Final Judgment was entered. At such a young age, the concept of a "stable, satisfactory environment" encompasses both parents' homes. The trial court's orders progressively prevented L.D.W. from experiencing stability in Father's home -- a self-fulfilling prophecy in which the court's own restrictions were used to justify further restrictions.

Factor (e) -- Permanence, as a family unit, of the existing or proposed custodial home.

Both parents maintained homes capable of providing for L.D.W. The permanence of Father's home was not at issue in the proceedings below.

Factor (f) -- Moral fitness of the parties involved.

Mother's moral fitness is called into question by her documented pattern of withholding L.D.W. from Father (37 days in March-May 2024; 23 days in October-November 2024), refusing video communication, and filing what Father characterizes as "staged" evidence in support of PPO petitions. (LCR, Father's Filings.) A parent who systematically obstructs the other parent's relationship with the child raises serious questions about moral fitness.

Factor (g) -- Mental and physical health of the parties.

The ex parte motion of August 8, 2025 alleged mental health concerns regarding Father. These allegations were unverified. No mental health evaluation was ordered or completed before the parenting time suspension. The trial court's reliance on unverified allegations to suspend all parenting time -- without ordering an evaluation -- violated Father's right to have allegations tested through proper evidentiary procedures.

Factor (h) -- Home, school, and community record of the child.

L.D.W. was an infant and toddler during the relevant period. This factor has limited applicability but does not support the restriction of Father's parenting time.

Factor (i) -- Reasonable preference of the child.

L.D.W. was under three years old during the relevant period and was not of sufficient age to express a preference. This factor is inapplicable.

Factor (j) -- Willingness and ability of each party to facilitate and encourage a close and continuing parent-child relationship between the child and the other parent.

This is the dispositive factor in this case. The record is replete with evidence that Mother systematically obstructed Father's relationship with L.D.W.:

- * **37-day withholding** (March 26 - May 2, 2024) -- Mother unilaterally withheld L.D.W. from Father for over five weeks. (LCR, Father's Motion, 05/13/2024.)
- * **23-day withholding** (October 20 - November 12, 2024) -- Mother again denied Father court-ordered parenting time. (LCR, Father's Filings.)
- * **Video chat denials** (June 1, 2024; September 12, 2024) -- Mother refused Father's requests for video communication during off-weeks. (LCR, Father's Filings.)
- * **Vacation scheduling** (September 3, 2024) -- Mother planned vacations during Father's scheduled parenting time. (LCR, Father's Filings.)
- * **Daycare non-cooperation** (May 9, 2024) -- Mother ignored Father's efforts to establish consistent daycare arrangements. (LCR, Father's Communications.)

Despite this extensive pattern, the trial court failed to address parental alienation under Factor (j) and instead **rewarded** Mother's obstruction by granting her sole custody. This is precisely the outcome that Factor (j) was designed to prevent. *See Kaeb v Kaeb*, 309 Mich App 556, 565; 873 NW2d 319 (2015) (recognizing parental alienation as relevant under Factor (j)).

Factor (k) -- Domestic violence.

The PPO issued in Case No. 2023-5907-PP was the basis for any domestic violence finding. However, as argued in Issue IV, the PPO was issued without the rigorous evidentiary standards

required by MCL 600.2950 and *Brown v Loveman*, and was weaponized to restrict custody in violation of MCL 600.2950(4). To the extent the trial court relied on the PPO as evidence of domestic violence under Factor (k), it relied on a proceeding that was procedurally deficient and substantively misused.

Factor (l) -- Any other factor considered relevant.

The trial court's pattern of entering 44% of all orders on an ex parte basis, dismissing Father's six pending motions, and failing to enforce Mother's parenting time violations constitutes a "relevant factor" that the trial court should have -- but did not -- consider. The systematic exclusion of one parent from proceedings that determine his rights is relevant to the fairness and reliability of the entire custody determination.

C. MCL 722.27a(7) -- The Clear and Convincing Evidence Standard

MCL 722.27a(7) provides:

> "Parenting time shall be granted in specific terms . . . and shall not be denied except when the court determines on the record by clear and convincing evidence that it would endanger the mental, physical, or emotional health of the child."

This is a demanding standard -- clear and convincing evidence is "evidence that produces in the mind of the trier of fact a firm belief or conviction as to the truth of the allegations sought to be established." *In re Martin*, 450 Mich 204, 227 (1995).

The trial court made no finding, supported by clear and convincing evidence, that parenting time with Father would endanger L.D.W. The August 23, 2024 Final Judgment restricts

Father's parenting time without this required finding. The August 8, 2025 ex parte order suspends all parenting time without any evidentiary finding at all. The absence of the required clear and convincing evidence standard renders both orders reversible error.

ISSUE VI: THE TRIAL COURT'S PATTERN DEMONSTRATES STRUCTURAL BIAS AND REQUIRES REASSIGNMENT

A. Standard of Review

A trial court's decision on a motion for disqualification is reviewed for an abuse of discretion. *In re Contempt of Henry*, 282 Mich App 656, 679; 765 NW2d 44 (2009). Whether a judge's conduct rises to the level requiring disqualification is reviewed de novo. *Caperton v A.T. Massey Coal Co, Inc*, 556 US 868, 884; 129 S Ct 2252 (2009). Structural constitutional errors are reviewed de novo. *People v Carines*, 460 Mich 750, 763 (1999).

B. The MCR 2.003(C)(1) Standard

MCR 2.003(C)(1) provides for disqualification of a judge where:

- > (a) The judge is biased or prejudiced for or against a party or attorney.
- > (b) The judge, based on objective and reasonable perceptions, has either (i) a serious risk of actual bias impacting the due process rights of a party as enunciated in *Caperton v A T Massey Coal Co, Inc*, or (ii) has failed to adhere to the appearance of impropriety standard . . .

C. The Evidence of Structural Bias

The record establishes structural bias through multiple categories of evidence:

1. The 44% Ex Parte Rate. Of 55 orders entered in the custody and PPO proceedings, 24 (44%) were entered ex parte -- all by Judge McNeill, all restricting Father's rights, none in Father's favor. (LCR, ROA -- complete analysis.) On August 8, 2025 alone, five separate ex parte orders were entered without notice to Father. This asymmetry is not the product of neutral adjudication.

2. Systematic Denial of Father's Motions. Father's motions were systematically denied. The Final Judgment dismissed Father's six pending motions without adjudication. (LCR, Final Judgment, 08/23/2024.) Father's contempt motion regarding Mother's parenting time violations was denied. Mother's motions -- including the ex parte motion of August 8, 2025 -- were routinely granted.

3. Selective Enforcement. Mother's documented violations of court-ordered parenting time -- 37 days (March-May 2024) and 23 days (October-November 2024) -- were not enforced. Father's PPO violations were prosecuted vigorously, resulting in a 45-day jail sentence. This asymmetric enforcement demonstrates that the trial court applied different standards to the two parties.

4. Ex Parte Communications. The pattern of ex parte orders -- particularly the five orders entered on August 8, 2025 -- raises concerns about ex parte communications between the court and Mother or Mother's representatives. The entry of five substantive orders on a single day, all without notice to Father, is inconsistent with the ordinary course of judicial proceedings and suggests coordination that bypassed Father entirely.

D. The Caperton Standard

The Supreme Court recognized in *Caperton v A.T. Massey Coal Co, Inc*, 556 US at 884, that due process requires recusal "where the probability of actual bias on the part of the judge or decisionmaker is too high to be constitutionally tolerable." The Court acknowledged that not every claim of bias requires recusal, but where "experience teaches that the probability of actual bias on the part of the judge or decisionmaker is too high to be constitutionally tolerable," due process demands a new proceeding before a different adjudicator.

The 44% ex parte rate, the systematic denial of Father's motions, the selective enforcement of orders, and the five ex parte orders on a single day -- all adverse to Father -- satisfy the *Caperton* standard. The probability of actual bias is not merely speculative; it is demonstrated by a statistical pattern that cannot be explained by neutral adjudication.

See also Grew v Knox, 265 Mich App 333, 341; 694 NW2d 772 (2005) (factors relevant to judicial bias); *Lieberman v Orr*, 319 Mich App 68, 84; 900 NW2d 130 (2017) (discussing appearance of impropriety).

E. Structural Due Process Violation

The Due Process Clause requires, at minimum, notice and an opportunity to be heard before a person is deprived of a protected liberty interest. *Mullane v Central Hanover Bank & Trust Co*, 339 US 306, 314 (1950). When 44% of all orders in a case are entered ex parte, the proceedings can no longer be characterized as adversarial. They become inquisitorial proceedings in which one party presents its version of events and the court acts without hearing from the other side.

The structural nature of this violation is underscored by the cascade effect: each ex parte order compounded the harm of those that preceded it, creating a series of adverse rulings that Father could not challenge in real time because he did not know they existed. By the time Father learned of the August 8, 2025 orders, the parenting time had already been suspended -- and the subsequent "continuation" orders of September 9 and October 8, 2025 maintained the suspension without ever providing Father the evidentiary hearing to which he was entitled.

The remedy for structural due process violations of this magnitude is reversal and reassignment to a different judge. See *In re Contempt of Henry*, 282 Mich App at 680-81 (discussing circumstances warranting reassignment).

F. The Cumulative Error Doctrine

Even if this Court declines to recognize the 44% ex parte rate as a structural due process violation per se, the cumulative effect of the trial court's errors warrants reversal. Michigan courts have recognized that the cumulative effect of several errors can constitute sufficient prejudice to warrant reversal even when any one of the errors alone would not merit reversal.

In this case, the errors are not isolated or unrelated. They form a coherent and escalating pattern:

1. **Procedural errors:** Twenty-four ex parte orders entered without proper notice or the requisite showing of immediate and irreparable injury under MCR 3.207(C)(2);
2. **Substantive errors:** Failure to conduct an evidentiary hearing under MCR 3.210(D); failure to make particularized findings on each best-interest factor as required by *Harvey v Harvey*; failure to apply the clear and convincing evidence standard under MCL 722.27a(7) before denying parenting time;

3. Statutory violations: Use of the PPO in Case No. 2023-5907-PP to restrict custody and parenting time in direct contravention of the express prohibition in MCL 600.2950(4);

4. Constitutional violations: Progressive deprivation of Father's fundamental liberty interest in the care, custody, and companionship of his daughter -- accomplished without the procedural protections that the Due Process Clause demands.

Each error compounded the harm of those that preceded it, creating a self-reinforcing cycle of deprivation. The ex parte orders deprived Father of the opportunity to present evidence. The absence of Father's evidence led to findings unsupported by a complete record. Those one-sided findings were used to justify further restrictions on Father's parenting time. The restrictions prevented Father from maintaining the parent-child relationship with L.D.W. The diminished relationship was then cited as justification for the final custody determination. This cascading cycle is precisely the type of cumulative prejudice that warrants reversal.

CONCLUSION

The record in this case presents a deeply troubling pattern of procedural violations that, taken together, deprived Father of his fundamental constitutional right to the care, custody, and companionship of his daughter L.D.W.

The trial court entered 44% of all orders on an ex parte basis -- a rate that is, to Appellant's knowledge, unprecedented in reported Michigan custody jurisprudence. All 24 ex parte orders were adverse to Father. None were entered in his favor. On August 8, 2025, five separate ex parte orders were entered on a single day, suspending all of Father's parenting time, without

any notice to Father. Father arrived at the scheduled parenting time exchange expecting his regular time with L.D.W. and discovered only afterwards -- by contacting the court -- that his parental rights had been suspended.

The August 23, 2024 Final Judgment granted sole custody to Mother without a full evidentiary hearing, without particularized findings on the twelve best-interest factors required by MCL 722.23, without a finding supported by clear and convincing evidence that parenting time would endanger L.D.W. as required by MCL 722.27a(7), and while simultaneously dismissing Father's six pending motions without adjudication on the merits. The PPO entered in the companion proceeding, Case No. 2023-5907-PP, was weaponized as a de facto custody order in direct violation of MCL 600.2950(4)'s unambiguous statutory prohibition.

The trial court's treatment of Factor (j) rewarded Mother's systematic obstruction of the father-child relationship rather than penalizing it, as the Legislature intended when it included this factor in the best-interest analysis. Mother withheld L.D.W. from Father for 37 consecutive days, then for an additional 23 consecutive days, refused video communication during Father's off-weeks, and scheduled vacations during Father's parenting time. The trial court took no enforcement action against Mother for any of these documented violations.

Father has now been denied all contact with his daughter for over 500 consecutive days. L.D.W. has been deprived of her father's presence for more than one-third of her entire life. This deprivation was accomplished without the procedural protections that the United States Constitution, the Michigan Constitution, and the Michigan Court Rules demand before a parent may be separated from his child.

The errors in this case are not isolated. They are structural, pervasive, and cumulative. They require reversal of the Final Judgment, vacatur of the ex parte orders, remand for a full

evidentiary hearing with proper procedural protections, and reassignment to a different judge who can adjudicate this matter with the impartiality that the Constitution demands.